

The Navy (Pension) Regulations, 1964

Source: <https://indiankanoon.org/doc/114915658/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with](#)

[PRISM](#)

[AI](#)

[Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions](#)

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[Cites

0

, Cited by

0

]

Union of India - Act

The Navy (Pension) Regulations, 1964

UNION OF INDIA

India

The Navy (Pension) Regulations, 1964

Rule THE-NAVY-PENSION-REGULATIONS-1964 of 1964

Published on 6 January 1967

Commenced on 6 January 1967

[This is the version of this document from 6 January 1967.]

[Note: The original publication document is not available and this content could not be verified.]

The Navy (Pension) Regulations, 1964

The Regulations published vide Notification Gazette of India, 1964, Part 2, Section 4 page 57, are reprinted as corrected by S.R.O. 40, dated 6th January, 1967.

1969.

S.R.O. 74, dated the 10th February, 1964. - (1) In exercise of the powers conferred by Section 184 of the Navy Act, 1957

(

62 of 1957

), the Central Government hereby makes the following regulations, namely:

Part I

Chapter I

Preliminary

1.

Short title and application.

(1)

These regulations may be called the Navy (Pension) Regulations, 1964.

(2)

They shall apply to all persons subject to naval law including commissioned officers and sailors but shall not apply to-

(a)

commissioned officers who, on the 1st July, 1936, were in service as commissioned officers or were undergoing training in the United Kingdom;

(b)

commissioned officers who, in accordance with regulation 14, elect to be governed by the Pension Regulations, 1943; and

(c)

sailors who were in service on the 31st May, 1953, and who have, before the 31st December, 1961, elected to be governed by the Pension Regulations, 1953.

2.

Definitions.

- In these regulations, unless the context otherwise requires,-

(a)

"Act" means the Navy Act, 1957 (62 of 1957

).

(b)

"Active list" means the list of officers who are not placed either on the retired list or on the emergency list;

(c)

"Appendix" means an Appendix to these regulations;

(d)

"branch list" means the list of officers whose occupational designations are prefixed by the words "Senior Commissioned" or "Commissioned";

(e)

"Competent authority" with reference to any regulation mentioned in column 2 of Appendix I means the authority specified against that regulation in column 4 thereof;

(f)

"emergency list" means the list of commissioned officers

(i)

who having been permanent have withdrawn from the active list without entitlement to retiring benefits and voluntarily accepted liability for recall to service in an emergency but who were not eligible for inclusion in the retired list; and

(ii)

who were short service officers with liability for a period specified in the original engagement for recall to service in an emergency;

(g)

"general list" means the list of officers including subordinate officers in the Indian Navy, holding the rank of Sub-Lieutenant and above and acting Sub-Lieutenant;

(h)

"Pension Regulations, 1943" means the pension regulations for the Indian Navy and other related orders applicable as on the 31st May, 1953;

(hh)

[Qualifying active service means all service which under any general or special orders qualifies for pension.]

[Inserted by S.R.O. 309, dated 5th September, 1974]

(i)

"retired list" means the list of commissioned officers who have retired from service and who in the event of war or an

emergency are liable to be recalled for service till they attain the age of 55 years;

(j)

"sailor" means a seaman as defined in clause (20) of section 3 of the Navy Act, 1957;

(k)

"sanctioning authority" with reference to any award mentioned in column 3 of Appendix II means the authority specified against that award in column 4 thereof;

(l)

"service" means service in the Indian Navy.

3.

Kinds of pensionary etc., benefits.

- Subject to the other provisions of these regulations, the following kinds of retiring and other benefits are admissible to whom these regulations are applicable, namely :

(a)

service pension.

(b)

service gratuity,

(c)

disability pension,

(d)

constant attendant allowance,

(e)

family pension which may be either ordinary or special.

(f)

family gratuity,

(g)

children allowance, and

(h)

education allowance to children.

4.

Implied condition of granting of pension, etc.

- Future good conduct shall be an implied conditions of every grant of pension or any other allowance under these regulations and its continuance.

5.

Full rates not always admissible.

- The full rate of pension or gratuity under these regulations shall not be granted to a person unless the service rendered by him has been satisfactory.

[5-A. Grant of provisional pension.

[Inserted by S.R.O. 201, dated 2nd August, 1976.]

(1)

Where any departmental or judicial proceedings are in progress or are instituted after retirement for an event which took place not more than 4 years before such institution against service personnel (including a commissioned officer) who has retired on attaining the age of compulsory retirement or otherwise, he shall be paid during the period commencing from the date of his retirement to the date on which, upon conclusion of such proceedings final orders are passed, a provisional pension not exceeding the maximum pension which would have been admissible on the basis of his qualifying service upto the date of retirement or if he was under suspension on the date of retirement upto the date immediately preceding the date on which he was placed under suspension:

Provided that no gratuity or Death-cum-Retirement gratuity shall be paid to him until the conclusion of such proceedings and the issue of final orders thereon;

Provided further that no commutation of provisional pension shall be allowed.

(2)

Payment of provisional pension shall be adjusted against the final retirement benefits sanctioned to such personnel

upon conclusion of the aforesaid proceedings but no recovery shall be made where the pension finally sanctioned is less than the provisional pension or where the final pension is reduced or withheld either permanently or for a specified period.

(3)

Nothing contained in this regulation shall prejudice the operation of regulation 5 when final pension or gratuity (including death-cum-retirement gratuity) is sanctioned upon the conclusion of the departmental or judicial proceedings.

(4)

No "show cause" notice shall be required to be given to the individual if the amount of provisional pension is less than the maximum.]

6.

Date of Commencement of pension.

- Subject to the other regulations, a family pension shall be payable from the date following that on which the casualty which gives rise to the claim occurred and a pension other than a family pension shall be payable-

(a)

in the case of commissioned officer, from the date following the date of his retirement;

(b)

in the case of a sailor, from the date on which he ceases to be borne on the effective establishment.

Explanation. - A sailor who is discharged shall cease to be borne on the effective establishment on the date following the date of discharge and a sailor transferred to the reserve after earning a service pension shall cease to be borne on the effective establishment on the date following the date of transfer.

7.

Duration of pension.

- A pension shall, unless otherwise provided in these regulations, be payable during the life time of the pensioner including the day on which the pensioner dies.

8.

[Pension may be withheld, suspended or discontinued or paid to wife or other dependent.

[Substituted by S.R.O. 146, dated 26th May, 1973]

(a)

In special circumstances specified hereunder, the competent authority may withhold, suspend or discontinue in full or in part the pension (including commuted value thereof which has not been paid), children's allowance or gratuity (including Death-cum-Retirement Gratuity), to be granted or granted to an individual. In exceptional cases, payment of part or whole of the pension, allowance or gratuity withheld or suspended may, by order of the President, be made to the wife or other dependent(s) of the pensioner.

(b)

This regulation may be invoked under the following circumstances.

(i)

offences against the State as listed in Chapter VI of the Indian Penal Code 1860 (45 of 1860), as amended from time to time;

(ii)

other serious crimes under the Indian Penal Code 1860 (45 of 1860) Official Secrets Act, 1923 (19 of 1923

) or any other special Law of the land and grave misconduct;

(iii)

to recover the whole or part of any pecuniary loss caused to the Government in cases where in any departmental or judicial proceedings, the pensioner/ individual is found guilty of misconduct or negligence committed during the period of re-employment after retirement/ discharge leading to the said loss;

(iv)

unauthorisedly continuing to occupy the residential accommodation including hired one provided by the Government;

(v)

when a report is received, after sanctioning the pension, that departmental or judicial proceedings (for the offences committed while in service or during the period of re-employment) are in progress against the individual;

(vi)

when an individual obtains re-employment after retirement without obtaining prior permission of the competent authority as prescriber from time to time; and (vii) any other circumstances considered a special by the President.

(c)

In applying the provisions of this Regulation the procedure laid down in Chapter IV-A of part II of these regulations shall be followed.

Explanation. - The word pension as used in the regulation means service, disability, invalid or family pension, as the case may be.]

9.

Discontinuance of pension on change of nationality.

- Where a person who is in receipt of a pension or allowance under these regulations becomes a naturalised citizen of a foreign State, the Central Government may, by order, direct that the whole pension or allowance or any part thereof to be specified in the order be discontinued: Provided that an order under this regulation shall not be made unless the person concerned has been given an opportunity to make his representation and the representation has been considered by the Central Government.

10.

Fractions of year in qualifying service.

- Where the total period of service of a person qualifying for pension exceeds a whole number of completed years by 180 days or more, the pension or other benefit payable to him shall be increased by half the difference between the amount admissible for the completed years of qualifying service and the amount admissible for the next consecutive number of completed years.

11.

Re-employment.

- Subject to the provisions of regulation 76 a person who is in receipt of pension under these regulations, and who is re-employed in a civil capacity under the Central Government or a State Government or an administration or who is granted a pension under these regulations while serving in such civil capacity shall, in respect of his pay in the re-employed post, be governed by the provisions of article 510-B, or article 526 of the Civil Service Regulations or, as the case may be, the corresponding rules applicable to the civil post concerned.

12.

[Personnel in Civil Government Employment.

[Substituted by S.R.O. 139, dated 31st MAY, 1982]

(1)

A person loaned for civil Government employment, irrespective of whether he is on civil or naval rates of pay, shall be governed by the civil extra-ordinary pension rules for the purpose of an extra-ordinary pensionary award in respect of injuries received by him or on his death during such employment.

(2)

If the benefits admissible for the purpose of similar awards under these regulations are more advantageous than those admissible under the civil rules, those will be allowed in place of the award under the civil extraordinary pension rules.

(3)

The family of a person, who is awarded an extraordinary family pension under the civil rules or special family pension under these regulations, shall not be entitled to an ordinary family pension under any of the foregoing provisions.]

Chapter II

Commissioned Officers

Section 1

General

13.

Interpretation.

- In this Chapter:

(a)

'late entrant' means an officer who on reaching the prescribed age for compulsory retirement completes or who, but for his retirement on account of a disability, would have completed fifteen years but not twenty years of commissioned

service qualifying for pension:-

Explanation. - In the case of an officer on the general list, service in the general list shall alone be counted for the fifteen years limit.

(b)

'officer' means a commissioned officer.

14.

Right to elect.

(1)

An officer who on the 1st June, 1953, was in service as a permanent commissioned officer shall no retirement have the right to elect to be governed in respect of his service award either by these regulations or by the Pension Regulations, 1943:

Provided that the pension of an officer who elects to be governed by the Pension Regulations, 1943, shall be assessed on the substantive rank held by him on the 31st May, 1953.

Explanation. - Service rendered by the officer from the 1st June, 1953, up to the date of retirement or invaliding shall qualify for pension.

(2)

The election once made shall be final.

15.

Officers dismissed, discharged, etc.

(1)

No pension shall be granted to an officer who is dismissed with disgrace from service.

(2)

In the case of an officer who is dismissed otherwise than with disgrace from the service, the question whether any pension shall be granted and if so, the rate of such pension shall be decided by the Central Government, provided that the pension, if granted shall not exceed the rate which would have been admissible to him if he had retired on the same date.

(3)

An officer who is discharged from service or is called upon to retire or to resign or, in the event of his refusing to do so, is retired from the service, may, at the discretion of the Central Government, be granted a pension at a rate not exceeding that which would have been admissible to him if he had retired on the same date.

16.

Officers re-employed or recalled to service.

(1)

The pension of a retired officer who is re-employed in an emergency in the Indian Navy and of an emergency list officer recalled to service shall be held in abeyance during the period of re-employment or re-call to service, as the case maybe.' [However, an officer in receipt of a disability pension shall continue to draw the disability element of his pension.]

(2)

The re-employed or recalled service shall not count for pension or gratuity; nor shall it count towards the service limits prescribed in regulation 53 for ordinary family pension.

(3)

Disability element of Pension, Constant Attendant Allowance and Special family pensionary awards on account of disablement or death due to re-employed or recalled service shall be at the same rates and subject to the same general conditions as are applicable to the case of an officer on the active list.

17.

[

[Substituted by S.R.O. 179, dated 31st May, 1982]

Acceptance of employment by officers who are granted pension, gratuity or other benefit-]

(a)

Commercial employment after retirement. - If an officer who held the rank of Captain and above, whether in substantive capacity or otherwise immediately before retirement and who is granted or is likely to be granted a pension gratuity

(including Death-cum-Retirement Gratuity) or other benefits in respect of his/her service in the Navy wishes to accept any commercial employment before the expiry of two years from the date of his/her retirement he/she shall obtain the prior sanction of the Government to such acceptance and no pension shall be payable to him/her if he/she accepts a commercial employment without such sanction in respect of any period for which he/she is so employed or for such longer period as the Government may direct.

Provided that, such an officer who was permitted by the Government to take up a particular commercial employment during his/her preparatory to retirement or during refused leave shall not be required to obtain subsequent permission for his /her continuance in such employment after retirement.

Note.1 : The expression "commercial employment" means,

(a)

An employment in any capacity including that of an agent under a company, cooperative society, firm or. individual engaged in trading, commercial, industrial, financial or professional business and includes also a directorship of such company and partnership of such firm, but does not include employment under a body corporate, wholly or substantially owned or controlled by the Government.

(b)

Setting up practice, either independently or as a partner of a firm as adviser or as consultant in matters in respect of which the pensioner.

(i)

has no professional qualifications and the matters in respect of which the practice is to be set up or is carried on the relatable to his official knowledge or experience, or

(ii)

has professional qualification but the matters in respect of which such practice is to be set up are such as are likely to give his clients an unfair advantage by reason of his previous official position, or

(c)

employment where the pensioner has to undertake work involving liaison or contract with the offices or officers of the Government.

Note.2: The expression "employment under a Co-operative Society" includes the holding of any office, whether elective or otherwise, such as that of President, Chairman, Manager, Secretary, Treasurer and the like, by whatever name called, in such Society.

Note. 3 : The expression "date of retirement" in relation to an officer re-employed after retirement either in the same or in any other equivalent post in the Armed Forces including National Cadet Corps means the date on which the Government servant finally ceases to be so re-employed in the Defence Services.

(b)

Employment of officers allowed to retire prematurely at their own request. - As officer of the rank of Captain and above allowed to retire prematurely at his/her own request shall obtain the permission of the President before accepting employment, in a civil post under the Central or State Government or an Union Territory Administration/Government, or in a post under a Body corporate owned or controlled by the Government before the expiry of two years from the date his/her retirement from the Naval service. Such permission will not, however, be required if the officer had retired from Naval service in the normal course on completion of the standard service prescribed for his/her rank and if he/she had been invalided from Naval Service on grounds of ill health or physical disability.

Such permission will also not be necessary in cases where due to personal reasons the officers proceeding on normal retirement are allowed to retire a few days earlier (not exceeding one month) than the due date;

[17-A. Employment after retirement under a Government outside India.

[Inserted by S.R.O. 139, dated 31st May, 1982]

- A commissioned officer who wishes to accept any employment under any Government outside India, shall obtain the prior permission of the President for such acceptance. No pension shall be payable to a pensioner who accepts such an employment without prior permission in respect of any period as the President may direct, Gratuity where due, but not already paid, shall also be liable to be forfeited in part or in full as the President may at his discretion decide :]

Provided that such an officer who was permitted by the President to take up a particular form of employment under any Government outside India during his/her leave preparatory to retirement shall not be required to obtain subsequent permission for his/her continuance in such employment after retirement.

Explanation. - For the purpose of this regulation, the expression "employment under any Government outside India" includes employment under a local authority or corporation or any other institution or organisation which functions under the supervision or control of a Government outside India, "or an organisation of which Government of India is not a member." In this connection it may added that permission will not be granted for acceptance of employment under a foreign Mission India before the expiry of at least 3 years from the date an officer ceases to be in the Naval service.

Section 2

Service Pension

18.

Admissibility.

- An officer who is permitted to retire from service may be granted service pension in accordance with these regulations.

19.

Minimum service.

- The minimum period of service qualifying for pension shall be fifteen years in the case of late entrants and twenty years in other cases.

20.

Service qualifying for pension.

- The periods of service of officers in the general list and in the branch list which qualify for pension under these regulations shall be as specified in Appendix III.

21.

[Rank for assessment of Pension.

[Substituted by S.R.O. 181, dated 7th Junae, 1983]

(1)

The service pension admissible to an officer shall be assessed on the basis of the rank actually held continuously whether in a substantive or paid acting capacity during the last Ten Months before retirement. Provided that an officer who has held the substantive rank of Admiral should have held that rank at least for one year.

(2)

Where an officer has held a rank for less than the period specified in sub-regulation (1), the pension shall be assessed on the next lower rank held for 10 months.]

22.

Rates of Pension.

- An officer who at the time of retirement has held a substantive rank specified in column 1 of the Table below and who has rendered qualifying service for a period not less than that specified in the corresponding entry in column 2 of that Table may be granted service pension at the rate specified in the corresponding entry in column 3 of the said Table :

Provided that the service pension of an officer who at the time of retirement held the substantive rank of Lieutenant Commander may, if the conditions specified in Appendix IV are fulfilled, be assessed on the paid acting rank held by him at the time of retirement.

Table

Rank

Period

of service

Rate

of pension

1

2

3

(a)

General List Officers

Years

Rs.

per mensem

Lieutenant

20
425
Lieutenant
Commander
22
550
Commander.
24
675
Captain
(Less than 5 years in rank).
26
750
Captain
(5 years or more in rank)
28
825
Rear
Admiral.
30
875
Vice
Admiral.
30
900
Admiral.
30
1000
(b)
Branch List Officers
Commissioned
Officer
23
190
Senior
Commissioned Officer
25
220
23.
Deficiency in Service.
- Where an officer has rendered service for a period less than that specified in regulation 22 for his rank, the amount of service pension payable to him shall be the rate prescribed for that rank reduced by one deduction at the rates specified below for each year or part thereof of the deficiency in service:
Service
Pension
Rate
of deduction
Rs.
per mensem
Rs.
per mensem

1000
to 751
30
750
to 601
20
600
to 401
15
400
to 301
10
300
to 201
5
200
and below

2.50:
Provided that each successive deduction shall be at the rate appropriate to the amount remaining after the preceding deduction.

24.

Late Entrants.

- The pension payable to a late entrant shall be assessed as follows, namely :

Qualifying Service/Minimum Service] x Rate of pension for the rank
required for
full Pension

Section 3

Service Gratuity

25.

Admissibility.

- An officer who is permitted to retire from service or whose services are otherwise terminated after he has completed ten years service may, at the discretion of the Central Government, be granted a service gratuity in accordance with these regulations.

26.

Service qualifying for gratuity.

- All service which qualifies in full for service pension shall also qualify in full for service gratuity but service as sailor and any other service which does not qualify in full for service pension shall not qualify for gratuity.

27.

Rate of service gratuity.

- The amount of gratuity admissible to an officer shall be-

(a)

in the case of an officer of the general list, Rs. 10,000 for the first ten years of qualifying service and Rs. 1,000 for every year of qualifying service in excess of ten years;

(b)

in the case of an officer of the branch list, one month's pay for each completed year of qualifying service.

Section 4

Disability Pension And Gratuity

28.

Disability Pension when admissible.

- An officer who is retired from service on account of a disability which is attributable to or aggravated by such service and which is assessed at twenty percent or over may., on retirement, be awarded a disability pension consisting of a

service element and a disability element in accordance with the regulations in this section.

[28-A. Re-assessment of disability permanently below pensionable degree at the time of invalidation.

[Inserted by S.R.O. 309, dated 5th September, 1974]

- In cases where an officer's disability or its aggravation at the time of invalidation is permanently below the pensionable degree, he may claim to be brought before a medical board within a period of seven years from the date from which he was retired. If the disability is still assessed as permanently below the pensionable degree, no claim for re-assessment shall be considered.]

29.

Officers who became non-effective.

- An officer who held a permanent commission and who became non-effective during the period from the 27th October, 1947 to the 31st May, 1953 (both days inclusive) shall be eligible for disability pension with effect from the 1st June, 1953 or from the date on which the disability arose, whichever is later :

Provided that this regulation shall not apply unless the officer was alive on the 28th of December, 1954.

30.

Voluntary retirement.

- An officer who retired from service voluntarily shall not be eligible for disability pension.

[Note. - An officer who is due for retirement on account of age or on completion of tenure and who seeks premature retirement within a month of his due date of retirement for the purpose of getting higher commutation value, shall remain eligible for disability element under regulations 33 and 34.]

[Added by S.R.O. 181, dated 23rd June, 1979]

31.

Disability due to negligence or misconduct.

- Where the disability of an officer was wholly or partly due to his serious negligence or misconduct, the competent authority may reduce the rate of disability pension admissible to him to such extent as the authority may, in the circumstances of the case, consider reasonable.

32.

Refusal to undergo medical treatment.

(1)

If an officer suffering from a disability which is attributable to or aggravated by service refuses without justifiable reason to undergo an operation or other medical treatment which, in the opinion of the service medical authority, would cure or reduce the degree of disablement, the disability element of pension otherwise admissible may, at the discretion of the Central Government, be withheld or be granted at such reduced rate as may appear to the Central Government to be reasonable in the circumstances of the case.

(2)

The refusal shall not be regarded as unreasonable when, in the opinion of the service medical authority, the treatment or operation may be severe and dangerous to life.

33.

Compulsory retirement.

- An officer who is compulsorily retired on account of age or on completion of tenure and who at the time of retirement is in the opinion of the service medical authority suffering from a disability attributable to or aggravated by service, may, at the discretion of the Central Government, be granted in addition to the service pension, a disability element according to the degree of disablement as if he had been retired on account of the disability.

34.

Disability manifesting after retirement.

- An officer who had retired (otherwise than at his own request or in any of the circumstances specified in regulation 15) on a service pension or gratuity, but who, within a period of seven years from the date of retirement, is found to be suffering from a disease which is attributable to his service may, at the discretion of the Central Government, be granted in addition to his service pension or gratuity, a disability element at the appropriate rate with effect from such date as the Central Government may determine.

35.

[

[Substituted by S.R.O. 309, dated 5th September, 1974]

Refusal to appear before a Resurvey Medical Board. In case a pensioner who has been asked under any regulation or order to appear before a resurvey medical board, for re-assessment of his disability, refuses to do so, the disability element or his pension shall be suspended from the date of such refusal. If, however, the pensioner has rendered less than five years qualifying service the disability pension as a whole shall be suspended.]

36.

Officers suffering from tuberculosis.

(1)

Where an officer who was suffering from pulmonary tuberculosis attributable to or aggravated by service and who on completion of leave rejoined duty having been found fit for retention in service is retired there from on account of a relapse of the disability within a period of five years from the date of rejoining, he shall be eligible for a disability element appropriate to the degree of disablement as accepted on the date he was found medically fit for retention in service.

(2)

The grant of a disability element under sub-regulation (1) to an officer shall be in addition to the service element of disability pension which would have been admissible to him if he had been invalided on the date immediately prior to the date of rejoining duty or, the service pension based on the total length of qualifying service rendered up to the date of retirement, whichever is greater :

Provided that if he is retired from service on account of the relapse of the disability after a period of five years from the date of rejoining, the disability pension admissible shall be regulated by these Regulations.

37.

Qualifying service.

- All service which qualifies for service pension shall also qualify for the service element of disability pension.

Explanation. - Service rendered in aid of the civil power shall be treated as service in the Indian Navy for the purpose of disability pension and gratuity.

38.

Rank for assessment of service element.

- The service element of disability pension shall be assessed on the substantive rank held by the officer on the date of his retirement from service on account of a disability.

Provided that, in the case of an officer of the general list, the service element shall not be assessed on a rank lower than that of a Lieutenant :

Provided further that in a case where the disability arises on or before the 31st May, 1963, the service element may be assessed on the paid acting rank held by the officer on any one of the dates specified below which is most favourable to him, namely :

(a)

the date of his retirement from service; or

(b)

the date on which he sustained the wound or injury or was first removed from duty on account of a disease causing his disablement; or

(c)

if he rendered further service and suffered aggravation of the disability during and as a result of such service, the date of the later removal from duty on account of the disability.

39.

Amount of disability pension.

(1)

The service element of disability pension shall be assessed as follows, namely-

(a)

if the qualifying service of the officer is twenty years or more, the service element shall be equal to the service pension admissible to him.

(b)

if the qualifying service is less than twenty years, the service element shall be assessed by making deductions from the service pension which would have been admissible to him on his retirement with twenty years qualifying service, such

deductions being made in the manner, and at double the rate, specified in regulation 23 for each year or part of a year by which the qualifying service falls short of twenty years.

Explanation. - In the case of a late entrant, this sub-regulation shall apply subject to the modification that references to twenty years shall be taken as references to fifteen years.

(2)

The disability element of disability pension shall be assessed in accordance with the Table below and shall be granted from the date from which it is admissible or, where there has been a previous grant, from the date of expiry of the previous grant and shall be available for the duration of the disability at that degree as advised by the medical board or the service medical authority:

Table

Percentage

of disablement

Rate

of disability element per mensem

Officers

of General List

Officers

of the Branch List

1

2

3

Re.

np.

Rs.np.

100

150

125

90

135

112.5

80

120

100

70

105

87.5

60

90

75

50

75

62.5

40

60

50

30

45

37.5

20

30

25

40.

Period for grant of disability pension when the invaliding disability is incapable of improvement.

(1)

If the disability is certified on the basis of invaliding or a resurvey medical board, to be incapable of improvement, disability pension shall be granted for a period of ten years in the first instance. During this period the pensioner will have a right to claim re-assessment of his pension on the basis of aggravation, if any. Where the pension is modified as a result of re-assessment, the pension shall again be granted for a period of ten years from the date of the revised award provided the disability is still regarded as incapable of improvement. Each successive assessment at a higher or lower level will be for a period of ten years during which the pensioner will be given one opportunity to have his pension re-assessed on the basis of further aggravation.]

[Substituted by S.R.O. 309, dated 5th September, 1974]

(2)

When the percentage of disablement has remained unmodified for ten years, the pensioner shall be brought before a re-survey medical board at the end of ten years and in the event of the disability still being regarded by the pension sanctioning authority as incapable of improvement, his pension shall be sanctioned for life. Thereafter, no revision of pension will be admissible.

(3)

In cases where the invaliding disability is loss of limb(s), total loss of sight, loss of one eye amputation etc., and where the question of improvement or worsening of its physical condition does not arise the award shall be sanctioned for life.

"40-A Period of grant of disability pension when the invaliding disability is capable of improvement.

- When the disability is accepted as capable of improvement, the period of an award calculated with reference to the date of the medical board shall not exceed one year. When the disability is accepted as aggravated by naval service, the duration of the disability element shall be determined with due regard to the provisions contained in Appendix V.)

41.

Duration of service element.

- The service element of disability pension shall be payable

(a)

in the case of an officer who has completed five years qualifying service, for life, and

(b)

in other cases, for so long only as the accepted degree of disablement is not less than 20 percent.

42.

Final gratuity.

(1)

In the case of an officer whose disablement is finally assessed at less than 20 percent, and who has less than five years qualifying service, a final gratuity shall be paid to him

(a)

if he is a general list officer, at the rate of Rs. 1000 for each year of qualifying service; or

(b)

if he is a branch list officer, at the rate of one month's pay for each year of qualifying service.

(2)

The provisions of regulations 31 and 37 relating to disability pension shall apply to final gratuity under this regulation.

43.

Determination of nature etc. of disability.

- All questions regarding the nature of the disability, the assessment of its degree and its attribut ability to or aggravation by service shall be determined in accordance with the provisions of Appendix V.

44.

Constant Attendant Allowance.

(1)

Subject to the conditions specified in sub-regulation (2), an officer who has been granted a disability pension for hundred percent, disablement may also be granted a constant attendant allowance at the rate of Rupees forty per mensem in the case of an officer of the general list and of Rupees thirty per mensem in the case of an officer of the branch list :

Provided that no allowance shall be payable for any period during which the pensioner is an inmate or in-patient in a Government institution or hospital. (2) The conditions referred to in sub-regulation (1) are-

(a)

that the disablement shall be such that in the opinion of the invaliding or re-survey medical board, the services of a constant attendant are required for not less than three months ;

(b)

that the officer has no relative to look after him properly;

(c)

that an attendant is actually employed.

(3)

The allowance may be granted to an officer who has been granted a reduced rate of pension under regulation 31, provided that the other conditions for the grant of the allowance are fulfilled.

(4)

The payment of the allowance shall be made in accordance with the provisions of Appendix VI to these regulations.

[44-A. Admissibility of disability pension to a disabled Pensioner re-employed without disclosing his invalidation.

[Inserted by S.R.o. 309, dated 5th September, 1974]

- A pensioner, who, on his re-employment in the Navy, does not disclose that he was previously retired from service with the Armed Forces for medical unfitness, shall be debarred from the date of his re-employment from any disability pension admissible to him in respect of his previous service with the Armed Forces. If his re-employment is terminated of the re-employment, he is brought a medical board, his claim for a disability pension after the termination of re-employment will be submitted for orders of the Central Government. Such orders will duly take into consideration the effect of his employment in the Navy in aggravating a previous disability or introducing a new one.]

Section 5-Family Pension

45.

Kinds of family pension.

(1)

A family pension may be granted to the members of the family of a deceased officer in the circumstances, at the rates and subject to the conditions hereinafter specified.

(2)

The different kinds of family pension admissible under this regulation are-

(a)

pension to the widow, which may be ordinary or special ;

(b)

gratuity to the widow;

(c)

children's allowance, which may be special or ordinary;

(d)

education allowance for children;

(e)

dependents pension.

46.

Officers who became non-effective.

- A special family pension shall be admissible in the case of an officer who held a permanent commission and who became non-effective during the period from the 27th October, 1947 to the 31st May, 1953, both days inclusive, if the cause of his death is attributable to or aggravated by service:

Provided that the pension shall be granted from the 1st June, 1953, or the date from which it became admissible, whichever is later :

Provided further that the beneficiary was alive on the 28th December, 1954.

47.

General condition of admissibility.

- A family pension shall not be claimed as of right; nor shall it be granted when the applicant is, in the opinion of the

Central Government, unworthy of the grant or unless the officer's service has been such as to justify the grant.

48.

Reduction of family pension in certain cases.

(a)

The amount of family pension and the children's allowance admissible under these regulations shall, if the applicant is in receipt of any other pension or allowance on account of the service of the deceased officer, whether in the Indian Navy or in any other service capacity, be reduced to the extent of such other pension or allowance.

(b)

A pension admissible under these regulations shall remain unaffected by any pension granted under Central or any State Extraordinary Pension Rules.

49.

Serious negligence or misconduct.

- If the death of an officer is wholly or partly due to his serious negligence or misconduct, the special family pension otherwise admissible may be reduced by the competent authority to such extent as may appear to the authority to be reasonable in the circumstances of the case:

Provided that no reduction in special family pension or children's allowance shall be made where a family gratuity is refused on grounds of serious negligence or misconduct.

50.

Special family pension.

- Where the death of an officer was due to or hastened by a wound, injury or disease which was attributable to service or was due to aggravation by service of a wound, injury or disease which existed before or arose during service, and in the case of death after retirement, if the officer had retired otherwise than voluntarily, the members of the family of the officer may be granted special family pension as follows, namely:

(a)

a special pension to the widow, if

(i)

the officer married before joining service or while on the active list and before he received the wound or injury or before he was removed from duty on account of disease;

(ii)

in the case of death due to a disease the officer survived the marriage by at least a year unless it can be shown that he was manifestly in good health at the time of marriage;

(iii)

the widow was not separated from her husband at the time of his death;

(b)

a special children's allowance to the legitimate children of the deceased officer below 18 years of age if the conditions in clause (a) are fulfilled;

(c)

in the absence of the widow and children eligible for the pension or allowance, a special dependents pension to the parents, if the parents were largely dependent on the officer at the time of his death or the father is dead or, if living, is incapable of self support through age or infirmity and in every case, the pecuniary and other circumstances of the parent or parents are such as in the opinion of the Central Government justify the grant;

[Explanation. - The widowed mother of an officer who remarries during the life-time of the officer but becomes a widow again before his death may be granted an award of dependant's pension, if otherwise admissible. For the purpose of determining the pecuniary circumstances of such widowed mother, resources, if any available to her from her second husband, shall also be taken into account.]

(d)

in the absence of any of the above relations so eligible, a special dependents pension to the brothers and sisters. if the brothers and sisters were largely dependent on the officer at the time of his death and their pecuniary and other circumstances are such as in the opinion of the Central Government, justify the grant.

Explanation. - For the purpose of this regulation, service rendered in aid of the civil power shall be treated as service in the Indian Navy.

[Explanation. - The widowed mother of an officer who remarries during the life-time of the officer but becomes a widow again before his death, may be granted an award of dependant's pension, if otherwise admissible. For the purpose of pecuniary circumstances, resources, if any available to the widow from her second husband, will also be taken in amount.]

[Inserted by S.R.O. 309, dated 5th September, 1974]

51.

Gratuity to widow.

(1)

Where the death of an officer occurred in any of the circumstances specified in sub-regulation (2), the widow of the officer, if she was not separated from her husband at the time of his death, may, in addition to the pension to which she may be eligible under regulation 50, be granted a gratuity at the appropriate rate specified in sub-regulation (3).

(2)

This regulation applies to a case where an officer

(a)

is killed in action or dies of wounds sustained in action, or

(b)

without serious negligence or misconduct on his part

(i)

is killed while on flying duty or parachute jumping duties in a service aircraft or while being carried on duty in a service aircraft, under proper authority, or dies of injuries sustained in such circumstances, or

(ii)

though not serving in an operational area, dies of a cause attributable to circumstances which, in the opinion of the Central Government, are similar to those encountered on field service or in operations; or

(c)

suffers a violent death while employed in aid of the civil power.

Explanation. - An officer employed on the work of disposal by demolition, burning, burial breakdown or dumping of unserviceable stocks of explosives shall be deemed to be on field or operational service for the purpose of eligibility of the widow to death gratuity under clause (b)(ii).

[Explanation. - The provisions of sub-clause (i) of clause (b) of sub-regulation (2) shall also apply to flights in civil or chartered aircraft.]

[Added by S.R.O. 309, dated 5th September, 1974]

(3)

The rates of gratuity under this regulation shall be as follows :

Rank

of officer

Gratuity

Rs.

(i)

General list Officers :

2000

Sub-Lieutenant

2670

Lieutenant

4000

Lieutenant

Commander.

6000

Commander

8000

Captain

(less than 5 years in the rank).

10670

Captain

(5 years or over in the rank)

Rear

Admiral

13000

Vice

Admiral

14500

Admiral

16000

(ii)

Branch List Officers

1000

52.

Education allowance.

(1)

Where the death of an officer occurred in the circumstances specified in regulation 50 and the officer is survived by a legitimate child or legitimate children eligible for children's allowance under that regulation, the Central Government may if, in their opinion, the pecuniary and other circumstances of the case so justify, grant an education allowance to the child or, as the case maybe, to each of the children at the rates specified in sub-regulation (2) :

Provided that the education allowance under this regulation shall be payable irrespective of whether the widow was or was not separated from her husband at the time of the officer's death and shall be admissible only to children above 5 years of age.

(2)

The education allowance shall be granted

(a)

where the deceased officer was on the branch list, at a rate not exceeding Rs. 360 per annum per child;

(b)

in other cases, at a rate not exceeding Rs. 480 per annum per child.

53.

Ordinary family pension and children's allowance when admissible.

(1)

An ordinary family pension to the widow of an officer who, while on the active list or on the retired list, dies on account of causes neither attributable to nor aggravated by service and a children's allowance to the officer's legitimate children under eighteen years of age may be granted if

(i)

the officer married before joining the service or while on the active list and before retirement;

(ii)

the officer was not over fifty years of age at the time of his marriage;

(iii)

the officer was not more than twenty five years older than his wife;

(iv)

the officer survived his marriage by at least one year, unless it can be shown that he was manifestly in good health at the time of his marriage and that his death due to a disease or injury resulting from causes not within his control;

(v)

the officer, being liable to service, had not been excused at his request, from serving, after being officially warned that his widow would thereby forfeit all claim to pension;

(vi)

the officer did not retire with a gratuity;

(vii)

the officer had not less than the following periods of service qualifying for pension as a commissioned officer

(a)

if he died whilst on the active list or after compulsory retirement on account of age or if he retired on account of ill health rendering him permanently unfit for further service-ten years;

(b)

if he died after having retired voluntary or for inefficiency or in disreputable circumstances-twenty years;

and

(viii)

the widow was not separated from her husband at the time of his death:

Provided that where an officer who had been promoted from the lower deck had rendered qualifying service for a period less than that prescribed in clause (vii), the Central Government may, if the officer had rendered a total service as officer and as sailor for 10 years or, as the case may be, 20 years, grant a pension or an allowance or both under this regulation at such rate as they consider reasonable.

[***]

[Omitted by S.R.O. 159, dated 9th February, 1969]

54.

Continuance of children's allowance, and education allowance after 18 years.

- Notwithstanding anything contained in regulations 50, 52 and 64, the children's allowance, whether special or ordinary and the education allowance to children may at the discretion of the Central Government be granted to a child over 18 years of age or be continued beyond the age of 18 years in the following circumstances, namely :

(a)

in the case of all allowances, if the child is being educated at a secondary school, a technical school or a university ; and

(b)

in the case of children's allowance special or ordinary, also if the child is an apprentice receiving not more than a normal wage or if the child is incapable of self-support by reason of mental or physical infirmity which arose before it attained the age of eighteen years and is in distressed circumstances.

55.

[Definition of the term legitimate children.

[Omitted Substituted by S.R.O. 309, dated 5th September, 1974]

- For the purpose of family pension, the term "legitimate children" shall include "validly adopted children."]

56.

Exception in cases of separation of widow from her husband at the time of his death.

(1)

The Central Government may at their discretion and subject to such conditions as they may determine grant a pension or gratuity or both to a widow who, by reason only of her having been separated from her husband at the time of his death, is not eligible for it under the regulations.

(2)

When the widow is not granted a pension for the reason that she was separated from her husband at the time of his death, an allowance to the legitimate children under eighteen years of age may be granted at such rate within the scales (including scales for motherless children) laid down in these regulations as the Central Government may deem proper in the circumstances of the case.

57.

Pension of a widow who dies before establishing her claim.

- If the claim of a widow to a pension fails, through her negligence or omission to be established before her death, the amount of pension to which she would have been entitled, if living, shall not be allowed to her representatives.

58.

Rank on which pension is assessed.

(1)

Except as provided in sub regulation (2), family pension and gratuity to a widow and dependent's pension shall be assessed on the substantive rank held by an officer on the date of his death if the officer died whilst on the active list or on the date of retirement if death occurred after retirement :

Provided that

(i)
the pension to the widow shall be assessed on the rank next below that in which an officer retired, in cases where an officer retired voluntarily or was compulsorily retired on account of misconduct or inefficiency before completing one year's service in the rank in which he retired ;

(ia)
[Ordinary family pension shall be assessed on the paid acting rank provided the acting rank had been held continuously for not less than two years on the date of death.

[Inserted by S.R.O. 461, dated 10th November, 1970]

(ib)
If the acting rank is held for less than two years, no benefit thereof shall be admissible.

(ic)
Where an officer at the time of his death was holding an acting rank more than one step higher than the substantive rank, the benefit of acting rank shall be assessed on the highest acting rank held for at least two years.

(id)
If service in the highest rank is less than two years, it will be treated on par with service in the next lower rank.

(ie)
If an officer reverts to his substantive rank under the acting promotion rules either on account of his proceeding on furlough or being on sick leave for more than six months, the period of such reversion, though not counting as service in the paid acting rank, shall not constitute a break in that acting rank:

Provided that the officer is appointed to the higher paid acting rank at the end of furlough or sick leave, as the case may be, or dies during such leave, but the condition of the period of two years paid service in that rank should have been fulfilled for being eligible for the concession envisaged above.]

(ii)
the widow shall be allowed pension attached to any rank which was posthumously conferred on her husband under the normal promotion rules;

(iii)
the Central Government may, in any other case of posthumous conferment of a higher rank, order the pension to be assessed on that rank;

Explanation. - Any higher rank attained by the retired officer during re-employment shall not be taken into account for ordinary family pension.

(2)
Paid acting rank held by an officer on any of the following dates whichever is not most favourable shall be taken into account for the purpose of assessment of special family pension and gratuity to the widow and dependents pension to parents, brothers and sisters, namely :

(i)
the date of death, if death occurs in service, or the date of invaliding if death takes place after invaliding ; or

(ii)
the date on which the officer sustained wound or injury or was first removed from duty on account of a disease causing death; or

(iii)
if he rendered further service and suffered aggravation of the disability during and as a result of such service, the date of his later removal from duty on account of the disability :

[** * * *]

[Inserted by S.R.O. 146, dated 26th May, 1973]

[58-A.

[Omitted by S.R.O. 309, dated 5th September, 1974]

When ordinary family pension is assessed on paid acting rank, ordinary family pension shall be assessed on the paid acting rank provided the acting rank had been held continuously for not less than two years on the date of death. If the acting rank is held for less than two years, no benefit thereof shall be admissible. Where an officer at the time of death was holding an acting rank more than one step higher than the substantive rank, the benefit of acting rank shall be

assessed on the highest acting rank held for at least two years. If service in the highest rank is less than two years, it shall be treated on par with service in the next lower rank. If an officer reverts to his substantive rank under the acting promotion rules either on account of his proceeding on furlough or being on sick leave for more than six months, the period of such reversion though not counting as service in the paid acting rank will not constitute a break in that acting rank provided he was appointed to the higher paid acting rank at the end of furlough or sick leave, as the case may be, or if he died during such leave, the period of two years paid service in that rank shall be deemed to include the period of furlough or sick leave so that the deceased is eligible for the benefit referred to above.]

59.

Rank for purposes of special family pension in respect of an officer suffering from pulmonary tuberculosis but retained in service.

(1)

Except as provided in sub-regulations (2) and (3), special family pension in respect of an officer suffering from pulmonary tuberculosis attributable to or aggravated by service in the Indian Navy who on the expiry of leave granted to him had rejoined duty having been found fit for retention in service shall be assessed on the substantive rank held by him immediately prior to the date of rejoining duty if he died as a result of a relapse of the disability within five years from that date.

(2)

Paid acting rank' held by such an officer on any of the following dates, whichever is the most favourable, shall be taken into account for the purpose of assessment of special family pension

(i)

the date immediately proceeding the date of resumption of duty; or

(ii)

the date on which the officer was first removed from duty on account of pulmonary tuberculosis; or

(iii)

if he rendered further service, and suffered aggravation of the disability during and as a result of such service, the date of his later removal from duty on account of the disability :

[*****]

[Omitted by S.R.O. 309, dated 5th September, 1974]

(3)

If death occurs as a result of relapse of the disability after a period of five years from the date of rejoining, the rank assessment of special family pensionary awards shall be determined in accordance with regulation 58.

60.

Rates of special family pension.

- The rates of special family pension shall be as under :-

(a)

Special family pension

Rank

of Officer

Special

family pension

(i)

Officers other than those of the Branch List

Rs.

per mensem

Sub-Lieutenant

150

Lieutenant

160

Lieutenant

Commander

180

Commander

220

Captain

(less than 5 years in the rank)

240

Captain

(5 years or over in the rank)

260

Rear

Admiral

300

Vice

Admiral

350

Admiral

400

(ii)

Officer of the Branch List

112.00

per mensem

(b)

Children's allowance (Special)

Officers

other than those of Branch List

Officer

of the Branch List

If

motherless -Rs.600 per annum per child

Rs.

450 per annum per child

Otherwise-Rs.360

per annum per child

Rs.

270 per annum per child

Explanation - Children's allowance at 'motherless' rate maybe granted in cases where the child is in the legal custody of a person other than its mother or step mother, and is being maintained by such a person.

(c)

Dependants pension

At the discretion of the Central Government depending on the circumstances of the case as may appear to the Central Government to be relevant to the case and subject to such conditions as they may prescribe, the maximum rate shall be-

(i)

Parents

Rank

of Officer

Rate

of pension per mensem for two parents

A.-

Officers other than those of the Branch List-

Rs.

nP.

Sub-Lieutenant

112.5

Lieutenant

120

Lieutenant

Commander.

135

Commander.

165

Captain

(less than 5 years in rank)

180

Captain(5

years or more in rank)

195

Rear

Admiral

225

Vice

Admiral

262.5

Admiral

300

B-Officers

of the Branch List

84

(ii)

Brothers and Sisters

Rupees thirty per mensem for each in the case of an officer other than that of the Branch List and Rupees twenty-two and naye Paise fifty per mensem in the case of officer of the Branch List subject to the following further maximum in cases where an award is made to more than one brother or sister.

Rank

of Officer

Maximum

rate of pension per mensem

A.-

Officers other than those of the Branch List-

Rs.

nP.

Sub-Lieutenant

75

Lieutenant

80

Lieutenant

Commander

90

Commander

110

Captain

(less than 5 years in rank)

120

Captain(5
years or more in rank)
130

Rear
Admiral
150

Vice
Admiral
175

Admiral
200
B.-

Officers of the Branch List
56

61.
Rates of ordinary pension and children's allowance.

(1)
Ordinary family pension shall be at half the rate of special family pension laid down for the appropriate rank in regulation 60(a).

(2)
The rates of children's allowance (ordinary) are as under:-

Officers
other than those of the Branch List

Officers
of the Branch List

(i)
If motherless-Rs. 400 per annum per child
Rs-300
per annum per child

(ii)
Otherwise-Rs. 240 per annum per child
Rs.
180 per annum per child

Explanation. - Children's allowance at 'motherless' rate may also be granted in cases where the child is in the legal custody of a person other than its mother, or step mother and is being maintained by such a person.

(3)
If the deceased officer was placed on the retired list on account of inefficiency or in discreditable circumstances and was granted a reduced pension, the ordinary family pension to the widow shall be reduced by half the percentage by which the officer's service pension was reduced.

62.
Division of family pension.

(1)
If an officer leaves behind two or more widows who are eligible for special family pension or gratuity or an ordinary family pension, the pension or gratuity may, by order of the Central Government, be divided amongst them.

(2)
If in a case where a family pension has been divided, one of the recipients dies or is disqualified, the share of the recipient may, in the circumstances of the case as may appear relevant to the Central Government, be paid to the other recipient or if there is more than one recipient, divided amongst them.

63.
When payment of widow's pension ceases.

(1)

Ordinary or special family pension granted to the widow of a deceased officer shall be discontinued.

(i)
if she proves unworthy of it; or

(ii)
if she remarries;

(2)

In the case of remarriage pension shall cease from the date following that of remarriage and in other cases, from such date as the Central Government may decide.

64.

[When payment of children's allowance ceases.

[Substituted by S.R.O. 159, dated 9th February, 1969]

- The payment of ordinary special children's allowance shall cease

(i)
when the child attains the age of eighteen

(ii)
at the expiration of the year commencing with April in which the child if a boy, is otherwise provided for or if a daughter, marries; whichever is earlier.]

65.

When payment of parent's pension ceases.

- A special pension which may be granted to the parent or parents of a deceased officer shall be discontinued.

(i)
in the case of female parent who remarries, from the date of remarriage; or

(ii)
if the pecuniary circumstances of the parent or parents become such as, in the opinion of the Central Government, not to justify the continuance of the pension.

66.

When payment of brothers' and sisters' pension ceases.

- Payment of special pension granted to the brothers and sisters of a deceased officer shall cease under the conditions laid down for the cessation of ordinary rate of children's allowance in regulation 64. It may be continued after the age of eighteen years under the same conditions as for children if they are incapable of self-support by reason of a mental or physical infirmity.

67.

Restoration of pension.

- The family pension (ordinary or special) of a widow, which was discontinued on her remarriage may be restored in the event of her again becoming a widow [or on such marriage being annulled by divorce or desertion by the second husband]

[Added by S.R.O. 161, dated 1st May, 1969]

, if she is otherwise qualified and if her pecuniary circumstances are such as, in the opinion of the Central Government, to justify restoration of the pension, or if, on the death of her second husband she becomes eligible for a pension under these regulations at a different rate, she may be permitted to choose either of the two pensions.

Chapter III

Sailors

Section I

General

68.

Application.

- Unless otherwise provided, the regulations in this chapter shall apply to sailors on continuous service terms.

69.

Sailors dismissed or discharged.

(1)

A sailor, who is dismissed under the Act is ineligible for pension or gratuity in respect of the service rendered by him

before his dismissal.

[Provided that the Central Government may, where it is satisfied that the exceptional circumstances of the case justify it, grant service pension or gratuity, at a rate not exceeding that for which the sailor would have been eligible had he been discharged on the date of his dismissal.]

[Added by S.R.O. 161, dated 1st May, 1969]

(2)

Save as otherwise expressly provided, a sailor who is discharged under the Act and the regulations made thereunder remains eligible for pension or gratuity under these regulations.

70.

Officer cadets and midshipmen.

- A sailor shall continue to be entitled to pensionary benefits as a sailor while he is an officer cadet or a midshipman.

71.

Only one pension is admissible.

- Save as otherwise expressly provided, no person may draw more than one pension under this chapter, and in the case of any person who becomes eligible for more than one pension, the lesser pension shall lapse.

72.

Sailors invalided on account of leprosy.

- A sailor who is invalided on account of leprosy and is not otherwise entitled to a pension or gratuity under this chapter may be granted such amount as the competent authority may decide not exceeding the minimum amount of gratuity admissible under these Regulations.

73.

Sailors invalided on account of indulgence in drugs or drink.

- A sailor invalided in consequence of any disorder (including insanity) resulting from indulgence in drugs or drink shall, unless such indulgence was for reasons beyond his control, be ineligible for pension irrespective of length of service, but may in the circumstances of the case to be considered by the competent authority, be granted-

(i)

if he has rendered sufficient qualifying service to earn a service pension, the whole or part of the gratuity admissible under regulation 89.

(ii)

if he has rendered sufficient qualifying service to earn a service gratuity only, the whole or part of the gratuity normally admissible according to the length of qualifying service under regulation 89.

74.

Sailors who aggravate or retard the cure of a disability.

- A sailor who intentionally aggravates his disability or retards its cure shall, on being discharged as medically unfit for further service on account of such disability, be ineligible for any pension or gratuity.

75.

[* *]

[Omitted by S.R.O. 139, dated 31st May, 1982]

76.

Pensioners re-employed in the Defence Services in an emergency.

(1)

Pensioners re-employed on mobilisation in a naval or civil capacity in the Defence Services shall receive pension in addition to pay in the re-employed post.

(2)

Pensioners who are re-employed in a naval or civil capacity in the Defence Services, in other emergencies in which the re-employment of a large number of pensioners is necessary may, at the discretion of the Central Government, be allowed the same benefit.

(3)

Re-employed service under this regulation shall not count for pension or for gratuity.

Explanation. - The provisions of this regulation also apply to Naval pensioners re-employed in the Army and Air Force.

77.

Pensioners re-employed in a service capacity otherwise than in an emergency.

(1)

Where a pensioner is re-enrolled or is re-employed in an appointment the incumbent of which is normally required to be enrolled under the Act, the pension shall be held in abeyance, but the re-employed service shall also count for pension, if any, under the rules governing the re-employment. On release from re-employment either the pension which was held in abeyance or any higher pension earned by virtue of further service shall be payable.

(2)

Where a pensioner is not re-enrolled or is re-employed in an appointment which does not require him to be enrolled, the pension shall be admissible in addition to the pay of the appointment. The re-employed service shall not count for pension or for gratuity.

Explanation [1]

[Renumbered & Inserted by S.R.O. 309, dated 5th September, 1974]

- The provisions of this regulation also apply to Naval pensioners re-engaged in Army and Air Force.

Explanation 2. - An ex-reservist who had drawn a gratuity in lieu of reservists pension, will for the purpose of sub-regulation (1), be treated as if he was pensioner. In such a case, the grant of an enhanced pension if otherwise admissible will be subject to the recovery of the difference between the gratuity and the pension (including temporary increase and ad-hoc increase at the prevalent rates, if any), which he would have drawn from the date of his discharge to the date of his re-employment. The recovery due will be made within a period of three years from the date of his re-employment or re-enrolment in not more than thirty six instalment from his pay. The first instalment shall be payable within three months from the date of re-employment or re-enrolment.

Section 2

Service Pension And Gratuity

78.

Minimum qualifying service for pension.

- Unless otherwise provided, the minimum service which qualifies for service pension is fifteen years.

79.

Service qualifying for pension and gratuity.

(1)

All service from the date of enrolment or advancement to the rank of ordinary seaman or equivalent to the date of discharge shall qualify for pension or gratuity with the exception of

(i)

any period of service on a temporary establishment or for which a special rate of pay is granted without pensionary benefits;

(ii)

any period of service rendered before reaching the age of seventeen years;

(iii)

any period of service rendered after the date on which the proceedings of the medical board found the individual unfit for service were countersigned by the Director of Medical Services (Navy);

(iv)

any period of unauthorised absence for which pay and allowance have not been allowed;

Explanation. - Mulcts of pay and allowances awarded for absence without leave under the Act do not amount to disallowances for the purpose of this clause;

(v)

Any period of absence without leave which is regularised as extraordinary leave without pay and allowances;

(vi)

Any period intervening between the date of dismissal/ discharge/ release and that of its cancellation which is regularised as extraordinary leave without pay and allowances.

(vii)

any period of absence as a prisoner of war unless pay and allowances are admitted for the period of absence;

(viii)

unless the Central Government, by order, otherwise directs, any period of detention in civil custody before being

sentenced to imprisonment or fine;

(ix)

any period of imprisonment under the sentence of a civil court or of a court martial, and

(x)

any period of absence without leave, as also any period intervening between the date of dismissal/discharge/release and that of its cancellation to the extent it is regularised as extraordinary leave without pay and allowances.

80.

Loss of benefit of service for certain offences and its restoration.

- A person who has been convicted by court martial or summarily of an offence of-

(i)

desertion under section 49 of the Act, or

(ii)

fraudulent entry under section 70 of the Act, shall lose the benefit of the whole of his prior service for purposes of pension or gratuity :

Provided that if such person has not been dismissed from service, he shall, on completion of any consecutive period of three years of further service in the Navy or in the reserve or in both with very good conduct, be eligible to reckon the prior service towards pension or gratuity.

81.

Condonation of an interruption of service.

- In the case of a person to whom an authority subordinate to the Central Government can sanction the pension, the competent authority may, upon such conditions as it may think fit to impose, condone interruption of service as follows, namely :

(i)

when the proposed pension exceeds rupees twenty-five per mensem, interruptions not exceeding a total period of twelve months.

(ii)

when the proposed pension is rupees twenty-five per mensem or less, all interruptions whatever their duration.

82.

Condonation of deficiency, in service for eligibility to service reservist pension.

- Except in the case of a sailor

(a)

who is discharged at his own request, or

(b)

who is eligible for special pension or gratuity under regulation 95, or

(c)

who is invalided with less than fifteen years' service, deficiency in the service qualifying for service pension or reservist pension or gratuity may be condoned by competent authority up to six months in each case.

83.

Counting of former service for pension and gratuity.

(1)

In the case of sailors who have to their credit former service of the nature specified in column 2 of the table below and who had not been dismissed from their former service, a competent authority may, if they are re-employed, permit them to count their former service towards pension and gratuity to the extent specified in column 3 of that table, subject to the fulfilment of the conditions specified in column 4 thereof.

Explanation. - Sailors who were in re-employment on the date of coming into force of these Regulations shall continue to be entitled to the benefit of counting of former service subject to the fulfilment of the conditions attached thereto under the regulations and orders applicable immediately before the above date.

Table

Serial

No.

Description

of former service

Extent

to which former service qualifies for pension or gratuity

Conditions

to be fulfilled

1

2

3

4

1.

Service as continuous service sailor

Qualifies

for pension or gratuity in full

(a)

If discharged from former service voluntarily or on
invaliding-Conditions 1, 2 and 3

(b)If

discharged from former service on public grounds such as
reorganisation or reduction in ship/ Establishment. Conditions 1
and 3

(c)

If discharged from former service on war engagement or reduction
of establishment or demobilisation; Conditions 1 and 3

2.

Service as special service sailors.

(a)

For service pension or gratuity.

(a)

(i) If discharged from former service voluntarily or on
invaliding; and

All

qualifying service as a Special Service Sailor in full and
qualifying service in the reserve to the extent Special Service
Sailor authorised under specific Government orders.

(ii)

either, re-enrolled as Special Service Sailor within three years
of the discharge;

(b)

For reservist Pension. All qualifying service as Special Service
Sailor or Reserve Service in full.

(iii)

Or, if after leaving service as Special Service Sailor is
transferred to the Reserve without a break and re-enrolled within
five years of date of transfer to the reserve-Conditions 1, 2 and

3.

(b)If

discharged from former service on public re-or reduction in ship
or establishment; and re-enrolled within three or five years as
the case may be-

Conditions

1 and 3.

3.

Service as a continuous service sailor and reserve service in the case of reservists (other than pensioner reservists) recalled to service in the Indian Navy and discharged therefrom.

(a)

For service pension or gratuity.

Qualifying

service as continuous service sailor in full and qualifying service in the reserve to the extent authorised under specific Government orders.

Conditions

1, 2 and 3

(b)

For reservist pension. All qualifying service as continuous service sailor or reserve service in full.

4.

Service in the Army or Air Force.

To

the extent that such service qualifies for the grant of pension or gratuity under the pension Regulations for the Army or Air Force, as the case may be.

Conditions

1, 2 and 3 but Conditions 2 will not apply if it would not have applied, had the individuals been re-enrolled in the Army or Air Force.

The Conditions 1, 2 and 3 referred to in column 4 of the table are as follows :-

Condition 1 - At the time of re-enrolment, the individual shall have declared the former service and cause of discharge therefrom and elected to count that service towards pension or gratuity. The election once made shall be final.

Condition 2 - After re-enrolment, the sailor shall have completed any consecutive period of three years service within which his character has not been assessed at less than "Good" and he has not had a court martial conviction.

In the case of sailors transferred to the reserve before completing three years' service since re-enrolment the period of three years for the purposes of this condition may be either wholly or partly with the reserve.

Condition 3 - The sailor shall have refunded any gratuity, other than war gratuity, received in respect of his former service within a period of three years from the date of his re-enrolment in not more than thirty-six monthly instalments from his pay. The first instalment of such refund shall be payable within three months from the date of re-enrolment.

(2)

Notwithstanding anything in sub-regulation (1), in the case of a sailor invalided from service, the competent authority may waive conditions 2 and 3.

84.

[Rank and group for assessment of service pension.

[Substituted by S.R.O. 181, dated 7th June, 1983]

- The service pension shall be assessed on the basis of the rank actually held by an individual continuously whether in a substantive or paid acting capacity and the lowest group for which he was paid during the last ten months of his service qualifying for pension.]

85.

Condonation of deficiency of service in a particular rank.

- A competent authority may, depending on the circumstances of the case, condone a deficiency of service in a particular rank not exceeding three months, except on voluntary retirement.

86.

Rate of service pension.

- The following are the rates of service pension:-

Rates Of Service Pension-Sailors

Rank

Completed

years of service

Rates

of service pension

Group

'A' Naval Aviation Sailors of Group 'A' & rates of pay

Group

'B'

Group

'C'

Naval

Aviation Sailors other than those on Group 'A' & rates of pay

1

2

3

4

5

6

Rs.

p.m.

Rs.

p.m.

Rs

p.m.

Rs.

p.m.

1.

Seaman Class I or equivalent

15

53

43

56

16

57

46

60

17

61

49

63

18

64

52

67

19

68

55

71

20

71
58
74
21
75
61
78
2.
15
57
56
68
16
61
60
73
17
65
64
78
18
69
68
82
19
72
71
87
20
76
75
91
21
80
79
96
22
84
83
100
23
88
86
105
24
91
90
109
25
95

94
114
3.
Petty Officer/Artificer, Class IV/Mechanician Class IV
15
74
72
72
80
16
79
76
76
86
17
84
81
81
91
18
89
86
86
96
19
94
91
91
102
20
99
95
95
107
21
104
100
100
112
22
105
105
118
23
110
110
123
24
114
114
128

25
119
119
134
4.
Chief Petty Officer/Artificer Class III/Mechanician Class III
15
83
83
83
99
16
88
88
88
105
17
94
94
94
112
18
99
99
99
118
19
105
105
105
125
20
110
110
110
131
21
116
116
116
138
22
121
121
145
23
127
127
151
24
132

132

158

25

138

138

164

5.

Artificer Class II/Mechanician

15

96

16

103

17

109

18

115

Class

II

19

122

20

128

21

135

22

141

23

147

24

154

25

160

6.

Artificer Class I/Mechanician Class I

15

102

16

109

17

116

18

123

19

130

20

136

21

143

22

150

23

157

24

164

25

170

7.

Chief Artificer/Chief Mechanician

15

116

16

124

17

131

18

139

19

147

20

154

21

162

22

170

23

178

24

185

25

193

8.

Master CPO Class II

15

120

95

113

16

128

102

121

17

136

108

129

18

144

114

136

19

152

121

144

20
159
127
151
21
167
133
159
22
175
140
166
23
183
146
174
24
191
152
181
25
199
159
189
26
207
165
196
27
215
171
204
28
223
178
211
29
231
184
219
30
239
190
226
9.
Master CPO Class I
15
131
107
125
16

140
114
133
17
148
121
141
18
157
128
150
19
166
135
168
20
174
142
166
21
183
149
174
22
192
156
183
23
201
163
191
24
209
170
199
25
218
178
208
26
227
185
216
27
235
192
224
28
244
199
232

29

253

206

241

30

261

213

249

87.

Sailors transferred to the reserve.

- A sailor transferred to the reserve after earning a service pension shall be granted such pension from the date of his transfer.

88.

Minimum qualifying service for gratuity.

- Unless otherwise provided, the minimum service which qualifies for service gratuity is five years.

89.

Rate of service gratuity.

(1)

Service gratuity at the rate of two-thirds of a month's pay for each completed year of qualifying service may be granted to a sailor with less than fifteen years qualifying service, who is compulsorily discharged with eligibility to gratuity or who is discharged on the ground that his services are no longer required or who is discharged otherwise than at his own request having reached the stage at which discharge may be enforced :

Provided that the competent authority may, depending on the circumstances of the case, reduce the gratuity by an amount not exceeding one fourth of the admissible gratuity

(2)

No gratuity shall be admissible to a sailor who is discharged at his own request.

90.

Pay for assessment of service gratuity.

- Pay for assessment of service gratuity shall include

(i)

the pay last drawn (including deferred pay, if any) of the substantive rank last held.

(ii)

the good conduct pay;

(iii)

the parachute pay, if any; and

(iv)

the diving qualification retaining fee, if any.

91.

Reservists in receipt of service pension.

(1)

A reservist who is in receipt of a service pension shall continue to draw such pension in addition to the retaining fee admissible to him while he is in the reserve, or the normal pay and allowances admissible for the duration of the periodical training, as the case may be.

(2)

Service in the reserve shall not qualify for any higher pension or for gratuity.

92.

Reservist pension and gratuity.

(1)

A reservist who is not in receipt of a service pension may be granted, on completion of the prescribed naval and reserve qualifying service of ten years each, a reservist pension of rupees eleven per mensem or a gratuity of rupees nine hundred in lieu of pension.

(2)

A reservist who is not in receipt of a service pension and whose qualifying service is less than the period of engagement but not less than fifteen years may, on completion of the period of engagement or on earlier discharge from the reserve otherwise than at his own request, be granted a reservist pension at rupees ten per mensem or a gratuity of rupees seven hundred and fifty in lieu of pension.

(3)

Where a reservist elects to receive a gratuity in lieu of pension under this regulation, the amount of gratuity shall, in no case, be less than the service gratuity that would have accrued to him under regulation 89 based on the qualifying service in the Indian Navy, had he been discharged from the active list.

Explanation. - The option to draw a gratuity in lieu of pension shall be exercised on discharge from the reserve, and the option once exercised shall be final; no pension or gratuity shall be paid until the option has been exercised.

93.

Time spent outside the limits of India, Nepal, Sikkim, Bhutan or Ceylon.

- Time spent by a reservist as a permanent resident beyond the limits of India, Nepal, Sikkim, Bhutan or Ceylon shall not reckon as service for pension or gratuity.

94.

Sailors prematurely transferred to the reserve.

- A sailor who is prematurely transferred to the reserve may be granted the reservist pension irrespective of the period of service rendered in the Indian Navy, provided he has completed, on discharge the period of combined service the Indian Navy and reserve service according to the terms of his engagement and the entire service qualifies for pension.

[94-A. Terminal gratuity to individuals discharged on completion of prescribed engagement with some non-qualifying service

[Inserted by S.R.O. 309, dated 5th September, 1974]

- A reservist who is discharged on completion of his prescribed engagement but who fails to qualify for a reservists pension on account of his service including some non-qualifying period which has the effect of reducing the period of his qualifying service to less than fifteen years, may be granted a terminal gratuity at the rate admissible to sailor for each completed year of active service provided he has rendered not less than five years of qualifying service.]

Section 3

Special Pension And Gratuity

95.

Special pensions and gratuity to sailors-When admissible.

- A special pension or gratuity may be granted at the discretion of the Central Government, to sailors who are not transferred to the reserve and are discharged in large numbers in pursuance of Government's policy

(i)

of reducing the strength of establishment of the Indian Navy; or

(ii)

of re-organisation, which results in paying off of any ships or establishments.

96.

Rank for assessment of special pension.

- Special pension shall be assessed on the substantive rank and the group held by the sailor on the date of discharge.

97.

Pay for assessment of special gratuity.

- Pay for assessment of special gratuity shall be the same as for service gratuity under regulation 90.

98.

Scale of special pension and gratuity.

- The scales of special pension and gratuity shall be:

Qualifying

Service

Scale

A-Special

pension

Fifteen

years or more

Pension

at the rates specified in regulation 86.

Ten

years or more but less than fifteen years.

The

pension which bears the same ratio to the minimum service

pension under regulation 86, as the completed years of

qualifying service bears to fifteen.

B.

Special gratuity

Five

years or more but less than ten years.

Gratuity

at the rate of one and one-third month's pay for such completed

year of qualifying service.

Less

than five years.

Gratuity

equal to three month's pay.

99.

Sailors invalided out of service.

(1)

A sailor who is invalided out of the service on account of a disability attributable to service but whose disability is assessed at less than twenty per cent, shall be granted gratuity equal to two month's pay if-

(i)

no pension or gratuity is admissible to him under any other regulation, or

(ii)

the gratuity admissible to him under any other regulation is less than the gratuity admissible under this regulation, in which case the former shall not be drawn.

(2)

Pay for assessment of gratuity under this regulation shall be same as for service gratuity under regulation 90.

(3)

The provisions of regulations 102 and 104, shall apply mutatis mutandis to the grant of gratuity under this regulation.

Section 4

Disability Pension

100.

Eligibility.

- Subject to the provisions hereinafter contained, the following persons shall be eligible for disability pension, namely:

(i)

sailors on continuous service terms:

(ii)

boys and apprentices;

(iii)

reservists when called up for service or for training.

101.

Conditions for the grant of disability pension.

- Unless otherwise specifically provided, a disability pension may be granted to a person who is invalided from service on account of a disability which is attributable to or aggravated by service and is assessed at twenty per cent, or over.

Explanation. (1) The question whether a disability is attributable to or aggravated by service shall be determined in

accordance with the rules contained in Appendix V to these regulations.

Explanation. (2) Service rendered in aid of the civil power shall be treated as service in the Indian Navy for the purpose of this regulation.

[101-A. Individuals discharged on account of their being permanently in low medical category.

[Inserted by S.R.O. 309, dated 5th September, 1974]

- Individuals who are placed in a lower medical category (other than 'E') permanently and who are discharged because no alternative employment suitable to their low medical category could be provided shall be deemed to have been invalided from service for the purpose of the Rules laid down in Appendix V of these Regulations.]

Explanation. - The above provision shall also apply to individuals who are placed in a low medical category while on extended service and on discharge on that account before the completion of the period of their extension.

101.

-B. Reservists discharged on account of being placed in a low medical category.

(1)

A reservist who is placed permanently in a lower medical category (other than 'E') and is discharged from the Fleet Reserve on that account will be deemed to have been invalided out of service for the purpose of the rules laid down in Appendix 'V' of these regulations.

(2)

An individual who is found to be ineligible for the grant of disability pension shall be paid service gratuity as admissible under regulation 89.

102.

Serious negligence or misconduct.

- If the disability of a person is wholly or partly due to his serious negligence or misconduct, the amount of disability pension otherwise admissible may be reduced by the competent authority to such an extent as may appear to the authority to be reasonable in the circumstances of the case.

103.

Reduction in pension when compensation for disability is paid from public revenues.

- If any compensation is paid from public revenues for a disability incurred in circumstances in which a disability pension is admissible under these regulations, the Central Government may reduce the amount of the pension to such extent as they consider reasonable.

104.

Refusal to undergo medical treatment.

- If a sailor suffering from a disability accepted as attributable to or aggravated by service refuses to undergo an operation, or other medical treatment, which in the opinion of the service medical authority, would cure the disability or reduce the degree of disablement, his case shall be dealt with as follows :

(a)

If the refusal to undergo treatment or an operation is reasonable, the full disability pension normally admissible may be granted,

(b)

[If the refusal to undergo treatment or an operation is unreasonable.]

[Substituted by S.R.O. 309, dated 5th September, 1974]

(i) If the pension

sanctioning authority, in consultation with the Medical Advisor (Pension) where necessary decides that an operation or medical treatment will cure the disability.

The disability

pension shall be withheld but the normal service pension or gratuity, if any, admissible under these regulations, or the pension or gratuity, if any admissible under regulation 110 may be granted, and the disability element or pension shall be restricted to that appropriate to the lower percentage of disablement.

(ii) If the pension sanctioning authority, in consultation with the (Medical Advisor Pension), where necessary, decides that an operation or medical treatment will reduce the disability to a lower percentage.

If that lower

percentage is less than twenty per cent, the normal, service pension or gratuity, if any, admissible under these regulations, or the pension or gratuity, if any, admissible under regulation 110 may be granted.

Explanation. - The question whether a refusal to undergo medical treatment or an operation is reasonable or unreasonable shall be decided in accordance with the rules contained in Appendix VII to these regulations.

105.

Manifestation of disability after discharge from service.

- An individual who is discharged from service, otherwise than at his own request, with a pension or gratuity, but who, within a period of seven years from the date of discharge is found to be suffering from a disease which is accepted as attributable to service may, at the discretion of the competent authority, be granted in addition to his pension or gratuity, a disability element at the rate appropriate to the accepted degree of disablement and the substantive rank last held, with effect from such date as may be decided upon by the competent authority in the circumstances of the case.

[105-A. Reassessment of the disability which is permanently below 20 per cent at the time invaliding.

[Substituted by S.R.O. 309, dated 5th September, 1974]

- In cases where an individual's disability or its aggravation at the time of invaliding is permanently below pensionable degree, he may claim to be brought before a medical board within a period of seven years from the date of his discharge. If the disability is still assessed as permanent below the pensionable degree, no claim for re-assessment shall be considered.]

105.

-B. Disability at the time of discharge.

(1)

A sailor, who is discharged from service after he has completed the period of his engagement and is, at the time of discharge found to be suffering from a disability attributable to or aggravated by naval service may at the discretion of the competent authority be granted in addition to the service pension admissible, a disability element as if he has been discharged on account of that disability.

(2)

The disability element of pension will be assessed on the accepted degree of disablement at the time of retirement or discharge on the basis of the rank held on the date on which the wound or injury was sustained or in case of a disease on the date of the first removal from duty on account of that disease.

(3)

The provisions in sub-regulations (1) and (2) shall also apply to sailors discharged from service on completion of the period of their engagement and who have earned only a service gratuity.

106.

Rank for assessment of disability pension.

- The rank for the purpose of assessment of service and disability elements of disability pension shall be the substantive rank or higher paid acting rank, if any, held by the individual or any of the following dates whichever is the most favourable-

(a)

the date of invaliding from service, or

(b)

the date on which he sustained the wound or injury or was first removed from duty on account of a disease causing his disablement, or

(c)

if he rendered further service, and during and as a result of such service suffered aggravation of disability, the date of

the later removal from duty on account of the disability.

Explanation. - In the case of an individual who on account of misconduct or inefficiency is reverted to a lower rank subsequent to the date on which the wound or injury was sustained or disability contracted, the rank for assessment of service and disability elements of disability pension shall be the rank held on the date of invaliding from service.

107.

Amount of disability pension.

- In cases where the accepted degree of disablement is twenty per cent, or over, the monthly rates of disability pension consisting of service and disability elements, shall be as follows, namely.

(1)

Service element

(a)

Where the individual has rendered sufficient service to qualify for a service pension.

Service

pension admissible in accordance with his rank and group last held, and length of service.

(b)

Where the individual has not rendered sufficient service to qualify for service pension.

(i)

If the disability was sustained while on flying or parachute jumping duty in an aircraft or while being carried on duty in an aircraft under proper authority, the minimum service pension appropriate to his rank and group.

(ii)

In all other cases, that proportion of the minimum service pension appropriate to the individual's rank and group which the number of his completed years of qualifying service bears to fifteen but in no case less than two-thirds of the minimum service pension:

Provided that for the purpose of this clause, service rendered before the age of seventeen years shall be treated as qualifying service.

Explanation. - The service element shall be assessed

(i)

in the case of ordinary seaman or equivalent, on the basis of the minimum service pension laid down for able seaman or equivalent of the same group.

(ii)

in the case of Artificers V Class on the basis of minimum service pension laid down for Leading Seaman or equivalent in Group B.

(iii)

in the case of Artificer acting IV Class, on the basis of the minimum service pension laid down for Group A.

[Table]

[Substituted by S.R.O. 146, dated 26th May, 1970]

Rank

Disability

element as for

20.00%

30.00%

40.00%

50.00%

60.00%

70.00%
80.00%
90.00%
100.00%

Rs.p.m.
Rs.p.m.
Rs.p.m.
Rs.p.m.
Rs.p.m.
Rs.p.m.
Rs.p.m.
Rs.p.m.
Rs.p.m.

Master

Chief Petty Officers granted Honorary Commissions as
Sub-Lieutenant/Lieutenant

28.5
42.75
57
71.25
85.5
99.75
114
128.25
142.5

Master

Chief Petty Officers Class I

21
31.5
42
52.5
63
73.5
84
94.5
105

Master

Chief Petty Officers Class II

18
27
36
45
54
63
72
81
90

Chief

Artificer/Chief Mechanician

18
27

36

45

54

63

72

81

90

Artificer/Mechanician

Class I, II and III and Chief Petty Officers

13

19.5

26

32.5

39

45.5

52

58.5

65

Artificer/Mechanician

Class IV and below and Petty Officers

9.6

14.4

1920

24

28.8

33.6

38.4

43.2

48

Leading

Seamen and equivalent

8

12

16

20

24

28

32

36

40

Able

Seaman and equivalent and below.

7

10.5

14

17.5

21

24.5

28

31.5

35

In the case of a re-employed pensioner who was in receipt of pension in addition to pay and allowance under regulation 76 or regulation 77 only disability element will be admissible in addition to service pension already in issue.

108.

Boys and apprentices.

- The rate of disability pension for boys and apprentices appropriate to the accepted degree of disablement shall be as follows.

20.00%

30.00%

40.00%

50.00%

60.00%

70.00%

80.00%

90.00%

100.00%

Rs.

nP. per mensem

Rs.

nP per mensem

Rs.

nP. per mensem

Rs.

nP. per mensem

Rs.

nP. per mensem

Rs.

nP. per mensem

Rs.

nP. per mensem

Rs.

nP. per mensem

Rs.

nP. per mensem

15

17.5

20

22.5

25

27.5

30

32.5

35

109.

[Period of grant of disability pension when the invaliding disability is incapable of improvement.

[Substituted by S.R.O. 309, dated 5th September, 1974]

(1)

If the disability is accepted as attributable to or aggravated by naval service and is certified on the basis of an invaliding or a re-survey medical board to be incapable of improvement disability pension may be granted for a period of ten years in the first instance. During this period, the pensioner will have a right to claim reassessment of his pension on the basis of aggravation, if any. Where pension is modified as a result of re-assessment, the pension may again be granted for a period of ten years from the date of the revised award, provided the disability is still regarded as incapable of

improvement. Each successive assessment at higher or lower rate will be for a period of ten years during which the pensioner will be given one opportunity to have his pension re-assessed on the basis of further aggravation.

(2)

When the percentage of disablement has remained unmodified for a period of ten years, the pensioner shall be brought before a resurvey medical board and in the event of the disability still being regarded by the pension sanctioning authority as incapable of improvement his pension may be sanctioned for life. Thereafter no review of pension will be admissible.

(3)

In cases where the invaliding disability is loss of limbs(s) total loss of sight, loss of one eye, amputation, etc. and when the question of improvement/ worsening of its physical condition does not arise, the award shall be sanctioned for life.]

[109-A. Period of grant of disability pension when disability is capable of improvement.

[Substituted by S.R.O. 309, dated 5th September, 1974]

(1)

If the disability is accepted as attributable to naval service but regarded as capable of improvement, an award may normally be made for a period of three years from the date from which a disability pension is admissible or in a case where a disability pension was in issue for a specific period, from the date of expiry of the previous award :

Provided that in cases where the duration of the disability at the accepted degree of disablement is considered to be less than three years, the period of an award calculated with reference to the date of the last medical board shall not exceed the period of duration of the disability at that degree.

(2)

An award may, however, be made in any individual case for such longer or shorter period as may be prescribed by the Central Government either generally or in respect of a particular disability.

(3)

If the disability is accepted as aggravated by naval service, the duration of an award shall be determined with due regard to the relevant provisions in the Rules laid down in Appendix 'V' of these regulations.]

110.

Decreased disability on the assessment.

- An individual who is in receipt of a disability pension may be granted pension or gratuity as under, when the accepted degree of his disablement is re-assessed at less than twenty per cent, namely:

(a)

if his qualifying service on the date of discharge was ten years or over, he may, with effect from the date following that of termination of disability pension, and for so long as the accepted degree of disablement remains at less than twenty per cent, be granted special pension in accordance with regulation 98 read with regulation 96.

(b)

if he had not completed ten years of qualifying service on discharge, he may be granted the appropriate amount of special gratuity under regulation 98 read with regulation 96;

Provided that only one-half of the amount of the gratuity shall be payable in the first instance and the other half shall be paid only when the assessment of disability at less than twenty per cent, is regarded as permanent.

111.

Increased disability on re assessment.

(1)

If at any time, an increase which is attributable to service occurs in the degree of disablement of a person, a disability pension may be granted, or as the case may be, the pension already granted may be increased to the appropriate rate, with effect from the date of the assembly of the medical board on the basis of a whose findings the competent authority accepts the higher degree of disablement.

(2)

When a disability pension is granted under sub-regulation (1), any service gratuity or special gratuity paid shall be adjusted against the service element of disability pension which shall be held in abeyance till the entire gratuity has been recovered.

112.

[Refusal to appear before a resurvey medical board.

[Substituted by S.R.O. 309, dated 5th September, 1974]

- The disability pension of an individual who is required under any rules or orders to appear before a resurvey medical board for re-assessment of his disability but refuses to appear before the medical board, shall be suspended from the date of such refusal. If, however, he had rendered ten years or more of qualifying service, special pension admissible under regulation 98 read with regulation 96 shall be granted from that date. This award shall be readjusted against the disability pension which may be subsequently granted.]

113.

Constant attendant allowance.

- [(1) Sailors, including those granted honorary commissions as Sub-Lieutenant (Special Duty) and Lieutenant (Special Duty), who have been granted a disability pension for hundred per cent disablement, may also be granted a constant attendant allowance at the rate of rupees thirty-five per mensem.]

[Substituted by S.R.O. 146, dated 26th May, 1973.]

(2)

The provisions of sub-regulations (2), (3) and (4) of regulation 44 shall mutatis mutandis apply to the grant of an allowance under this regulation.

[113-A. Admissibility of disability pension to a pensioner re-employed/re-enrolled within disclosing his invalidation.

[Substituted by S.R.O. 309, dated 5th September, 1974]

- A pensioner, who on his re-employment or re-enrolment in the Navy does not disclose that he was previously retired or discharged from service with the Armed Forces for medical unfitness, shall be debarred from the date of his re-employment or re-enrolment from any disability pension admissible to him in respect of his previous service with the Armed Forces. If his re-employment or re-enrolment is terminated on account of his medical unfitness or if on termination of the re-employment or re-enrolment, he is brought before a medical board, his claim for a disability pension after termination of the re-employment or re-enrolment will be submitted for orders of the Central Government. Such orders will duly take into consideration the effect of his re-employment or re-enrolment in the Navy service in aggravating a previous disability or introducing a new one.]

Section 5

Family pension, Gratuity, Children Allowance, etc.

Sub-section I--General

114.

Application.

(1)

Subject to the provisions hereinafter contained the regulations in this section shall apply to :

(i)

Sailors on continuous service terms ;

(ii)

boys and apprentices ; and

(iii)

reservists when called up for service or for training.

(2)

They shall also apply to personnel of the above categories who became non-effective during the period from the 27th October 1947 to 31st May 1953 (both days inclusive), but died on or after the date of commencement of these Regulations : Provided that a pensionary award under this section in respect of individuals of the categories mentioned in sub-regulation (2) shall be made only in cases where the cause of death is attributable to or aggravated by service in the Indian Navy.

115.

Serious negligence or misconduct.

- Where the death of an individual is wholly or partly due to his serious negligence or misconduct, the amount of special family pension or children allowance or gratuity otherwise admissible may be reduced by the competent authority to such extent as may appear to that authority to be reasonable in the circumstances of the case :

Provided that no such reduction shall be made in a case where family gratuity under regulation 133 has been withheld on grounds of serious negligence or misconduct.

116.

Reduction in pension in cases where compensation for death is paid from public revenues.

- If any compensation is paid from public revenues for death in circumstances in which a special family pension is admissible under these regulations, the Central Government may, at their discretion, reduce the amount of pension.

Sub-section II-Special Family Pension and Gratuity

117.

Special family pension.

- A special family pension may be granted to the family of an individual if his death was due to or hastened by-

(a)

a wound, injury or disease which was attributable to service,

(b)

the aggravation by service of a wound, injury or disease which existed before or arose during such service :

Provided that no pensionary award in respect of the death of an individual who is in receipt of a constant attendance allowance shall be admissible unless it is proved to the satisfaction of the sanctioning authority that although the disabled sailor had relatives, they were unable to look after him properly :

Provided further that where such authority is not so satisfied, it shall refer the case to the Central Government to be considered on merits.

118.

Service rendered in aid of the civil power.

- Service rendered in aid of the civil power shall be treated as service in the Indian Navy for the purpose of the grant of special family pension, gratuity and children allowance.

119.

Pension intended for the whole family.

- A special family pension is intended for the support of all the eligible members of a family, irrespective of in whose name it stands.

120.

[Eligible members of the family.

[Substituted by S.R.o. 181, dated 1st July, 1976]

- The following members of the family of a deceased individual shall be considered as eligible for the grant of a special family pension, provided that they are otherwise qualified :]

(a)

Widow, lawfully married.

(b)

Son, actual and legitimate (including validly adopted), below 18 years.

(c)

Daughter, actual and legitimate (including validly adopted) and unmarried.

(d)

Father.

(e)

Mother.

Explanation. - (1) The term "father", "mother" or "parents" used in this or in any other regulation in this sub-section shall be deemed to include such putative parents (or surviving parents as the case may be) as had not contracted a lawful marriage, but were living as husband and wife at the time of, or got lawfully married subsequent to, the conception of the said deceased individual.

(2)

The term "widow" used in the above or any other regulation in this sub-section in respect of special family pensionary awards, shall be deemed to include such a widow who was married after the individual's discharge or invalidment.

(3)

The term "child" used in the above or any other regulation in this sub-section, in respect of special family pensionary awards, shall be deemed to include such a child born out of a marriage after discharge or invalidment of the individual.]

121.

Ex gratia awards to other relatives.

- An exgratia award, at the discretion of the Central Government, may be made subject to the conditions mentioned below, to a foster parent, [or a step child]

[Substituted by S.R.O. 309, dated 5th September, 1974]

or a minor brother or sister of an individual whose death takes place in this circumstances mentioned in regulation 117, namely-

(a)

the claimant has been left destitute; and

(b)

he was dependant on the deceased :

Provided that an award under this regulation shall not be made if a special family pension is admitted to a member of the family specified in regulation 120.

122.

Nomination of an heir to family pension.

- [(a) An individual need not make any nomination unless the intention be to change the order of eligibility laid down in Regulation 120 and the revised order of priority shall apply only in cases where no nomination exists or the nominated person is dead or disqualified.]

[Substituted by S.R.O. 181, dated 1st July, 1976]

(b)

A Gorkha recruited from, or whose family resides in Nepal, may, however, nominate in addition, another relative from amongst those specified in regulation 120 as an alternative heir to special family pension. The second heir will, however, be treated as a nominated heir only if the first is dead or disqualified on the date on which the sanctioning authority decides that the claim to special family pension is admissible.

123.

Conditions of eligibility for a special family pension.

(1)

A relative specified in regulation 120 shall be eligible for the grant of a special family pension, provided;

(i)

General. - Subject to the provision of regulation 126 he or she is not in receipt of another pension from the Central Government or any State Government.

(ii)

Subject to the provisions of regulation 126 he or she is not employed under the Central Government or any State Government.

(iii)

Widow. - the widow has not remarried :

Provided that the condition shall not apply to a widow who has remarried the deceased sailor's brother, and continues to live a communal life with, or contributes to the support of, the other living eligible heirs.

(iv)

Father. - the father is above fifty years of age;

Provided that if the father is below fifty years of age, he shall be eligible for a family pension, only

(a)

if he is incapable of self-support by reason of a physical or a mental infirmity; or

(b)

for so long as any of the following are being supported by him the deceased's widow if not re-married, any sons of the deceased under eighteen years of age or eighteen years and over if incapable of self-support by reason of a physical or a mental infirmity; any unmarried daughters of the deceased.

(v)

Mother. - the mother, who is a widow at the time of her son's death or who becomes a widow thereafter, has not remarried;

Provided that if she had remarried before her son's death, she shall remain eligible for a special family pension, unless and until she again becomes a widow and remarries.

(vi)

Son. - the son is below the age of eighteen years;

Provided that a son above the age of eighteen years shall be eligible for pension only if he is incapable of self-support by reason of a physical or mental infirmity, which arose before he attained the age of eighteen years.

(vii)

Daughter. - the daughter has not married.

(2)

A child who has been granted a children allowance under these regulations shall not be eligible for any special family pension.

124.

To whom the original grant of family pension is made.

(a)

Where there is a nomination-

(i)

if on the date, on which the sanctioning authority decides that the claim to special family pension is admissible, the nominated heir is alive and eligible, the pension shall be granted to him or her;

(ii)

if on the date referred to above the nominated heir is dead or disqualified, the pension shall be granted to the heir who stands highest in the list of living heirs specified in regulation 120 and is eligible under regulation 123;

(iii)

if the heir (other than the widow) who is nominated for the special family pension waives his or her claim in favour of the widow, the pension shall be granted to the widow, provided she is eligible on the date referred to in sub-clause (i);

(iv)

[If a father is below 50 years of age on the date referred to in sub-clause (i), he will be deemed to be eligible for the original grant of pension as a first life award, provided the widow or mother of the deceased sailor is also alive. On his death or disqualification, the person shall be transferred to the widow or continued to the mother under regulations 130 and 131 respectively, as the case may be. If a father below 50 years of age is the sole survivor, he will remain ineligible for the grant of family pension for so long as he does not attain the age of 50 years.]

[Substituted and Inserted by S.R.O. 309, dated 5th September, 1974]

[Explanation

[Substituted and Inserted by S.R.O. 309, dated 5th September, 1974]

:- The date on which the pension sanctioning authority decides that the claim to family pension is admissible, shall mean the date on which the draft pension payment order is approved by the Controller of Defence Accounts (Pensions) and the action for actual grant and notification thereof is commenced.]

(v)

if the heir, who is nominated for a special family pension is employed under the Central Government or any State Government and is thereby disqualified for the grant of a special family pension either in whole or in part under regulation 126 then, the pension or the part thereof, which is held in abeyance for the duration of his employment, shall be granted to the heir who stands highest in the list of living heirs specified in regulation 120 and is eligible under regulation 123 and if there are no such heirs, such pension or the part thereof, shall be granted to him from the date of termination of such employment.

(b)

[(i) Where there is no nomination the pension shall be granted to the living heir who stands highest in the list of heirs in regulation 120 and who is eligible under regulation 123 on the date on which the sanctioning authority decides that the claim to pension is admissible.]

[Relettered, inserted & substituted by S.R.O. 309]

[ii] if the father is the highest eligible heir for the grant of family pension and is below 50 years of age on the date referred to in clause (a)(i), he will be deemed to be eligible for the original grant of pension as a first life award, provided the mother of the deceased sailor is also alive. On his death or disqualification, the pension will be continued to the mother under regulation 131. If a father below 50 years of age is the sole survivor, he will remain ineligible for the grant of family pension for so long as he does not attain the age of 50 years.]

[Relettered, Inserted & Substituted by S.R.O. 309, dated 5th September, 1974]

125.

[Date from which a grant of special family pension takes effect

[Relettered, Inserted & Substituted by S.R.O. 309, dated 5th September, 1974]

(1)

The original grant of special family pension shall be made as a first life award from the date following that of casualty which created the claim, to the highest living heir on the date referred to in regulation 124(a)(i). Pending enquiry award already paid, if any, shall be adjusted in accordance with regulation 177 of the Navy (Pension) Regulation 1964.

(2)

If on the date referred to in sub-regulation (1), all the eligible members are dead or disqualified, the arrears may only be paid at the discretion of the Central Government.

(3)

In no case shall claim preferred after incurring of disqualification be entertained.]

126.

[Refusal of family pension]

[Relettered, Inserted & Substituted by S.R.O. 309, dated 5th September, 1974]

to an individual in receipt of another pension from Government or in Government employment.

-(a) No ordinary or special family pension shall normally be granted to an individual if, and for so long as, the individual is in the employment of the Central Government or any State Government, or is in receipt of another pension from the Central Government or any State Government, except as provided for in clause (d):]

[Relettered, Inserted & Substituted by S.R.O. 309, dated 5th September, 1974]

Provided that a widow in receipt of another pension from the Central Government or any State Government or in employment of such Government shall not be debarred from the payment of any special family pension subject to the condition that no two pensions in respect of the same person shall be admissible to her.

Provided further that if in the case of an individual other than the widow, the pay in such employment or pension is less favourable than the special family pension admissible under these regulations, the following provision shall apply:

(1)

Where the individual is in the employment of such Government, half the special family pension normally admissible under these regulations shall be paid subject to the provisions of clause (c). Full special family pension shall be payable from the date of termination of such employment.

(2)

Where the individual is in receipt of a pension under these regulations, it shall be held in abeyance for so long as any special family pension is payable to him either under these regulations or under the Army or Air Force Pension Regulations. The amount, if any, paid on account of the lesser pension, from the date from which the grant of special family pension takes effect, shall be adjusted accordingly.

(3)

Where the individual is in receipt of any pension under the civil rules, the amount of special family pension admissible under these regulations shall be reduced by the amount of such pension.

(b)

Where, however, the pecuniary circumstances of a claimant in receipt of another pensions are such that the operation of clause (a) is likely to cause undue hardship, the case shall be considered by the Central Government on merits whose decision thereon shall be final.

(c)

[Family pension under these regulations shall not be abated or discontinued by the grant of a pension under the Central or State (Extraordinary) Pension rules. A special family pension under these regulations and an extraordinary pension under the civil rules in respect of the same person will not, however, be admissible.]

[Substituted by S.R.O. 161, dated 1st May, 1969]

(d)

[The provisions of this regulation shall also be applicable when the recipient of a special family pension is, subsequently, employed under the Central Government or any State Government or granted another pension from such Government.]

[Inserted & Substituted by S.R.O. 309, dated 5th September, 1974]

(e)

[Family pension granted under these regulations shall remain unaffected in cases where the claimant is in receipt of another pension under the Central or State Extraordinary pension rules.]

[Inserted & Substituted by S.R.O. 309, dated 5th September, 1974]

127.

[Rank and group on which special family pension and gratuity is assessed

[Inserted & Substituted by S.R.O. 309, dated 5th September, 1974]

- The special family pension and gratuity shall be assessed on the substantive rank or higher paid acting rank if any, and group held by an individual on any of the following dates, whichever is the most favourable:]

(a)

The date of death occurs in service, or date of discharge or invaliding if death takes place after discharge or invaliding; or

(b)

the date on which the individual sustained the wound or injury or was first removed from duty on account of the disease causing his death; or

(c)

If he rendered further service and during and as a result of such service suffered aggravation of the disability, the date of his later removal from duty on account of the disability.

Explanation :- In the case of an individual, who on account of misconduct or inefficiency, is reverted to a lower rank subsequent to the date on which the cause of death originated, the rank for assessment of special family pension and gratuity shall be the rank held on the date mentioned in clause (a).

128.

Rates of special family pension.

- The rates of special family pension are:

Rank

Group

Naval

Aviation

A

B

C

Rs.

p.m.

Rs.

p.m.

Rs.

p.m.

Rs.

p.m.

Ordinary

Seaman .

29

23.5

31

Able

Seaman

32

28.5

33

Leading

Seaman

36
35
38.5
Petty
Officer
43
43
49
Chief
Petty Officer
50
50
62
Artificer
V Class
33
Artificer
Acting IV Class
40
Artificer/Mechanician
IV Class
45
III
Class
50
II
Class
59
I
Class
64
Chief
Artificer/Chief Mechanician
72
Boys
and Apprentices Rupees Twenty per mensem.

129.

[(a) If the recipient of a special family pension refuses to contribute proportionately towards the support of other eligible heirs in the family who were dependent upon the deceased sailor, or if the pension is in the name of a child but is not devoted to the interests of the family generally, the competent authority may on the basis of the verification/ investigation report rendered by the recruiting organisation and attested or countersigned by any one of the undermentioned local civil authorities divide 2t his discretion for reasons to be recorded in writing in special family pension among the eligible heir(s) of the deceased sailors.-

(i)

Sarpanch of village

(ii)

Any serving or retired Gazetted Officer, civil or military, including JCO

(iii)

Sub Postmaster

(iv)

Qanungo or Patwari

(v)

Sub-Inspector of Police

(vi)

A member of a Municipal Corporation or Committee or of a Zila Parishad/District Board

(vii)

Panchayat President/Village Munsif/Patel/Village Officer/Panchayat Executive Officer

(viii)

Member of Parliament /Member of Legislative Assembly/Member of Legislative Council

(ix)

Oath Commissioner/Notary Public.

Explanation. - The competent authority may order similar division of family pension at the time of initial grant if at the time of initial investigation of a claim it is found that the nominated heir is not living a communal life with other eligible heirs or he/she is not willing to contribute proportionately towards their support.]

[Substituted by S.R.O. 22, dated 1st January, 1968]

(b)

This division shall hold good only for the period during which the pension is payable to the original recipient. If during this period any of the parties to the division (other than the original recipient) is disqualified or dies his share shall be restored to the original recipient if he is the only one living or shall be divided among the remaining recipients, if there are more than one :

Provided that the fact that an adult recipient of a special family pension refuses to contribute towards the children's support shall nor ordinarily justify the pension before divided.

130.

Transfer of special family pension.

(1)

When for any cause a special family pension ceases to be payable to any heir other than the widow, it shall be transferred to the widow provided she is not disqualified under regulation 123.

(2)

Except as provided for in this regulation and regulation 124(a)(iv), a special family pension shall not be transferred and shall cease altogether on the death or disqualification of the original recipient.

131.

Continuance of special family pension.

(a)

The whole or a portion of special family pension which ceased on the death or disqualification of the previous recipient may be continued to the father or the mother if he or she or both are eligible provided that, the pension to be continued, plus

(i)

the average monthly income of the father or mother or both from permanent sources, and

(ii)

the average monthly contribution which any son, whether willing or unwilling to support, is in a position to make towards his and/or her support, does not exceed the full special family pension admissible under these regulations.

(b)

The maximum amount of special family pension which can be continued under clause (a) shall be rupees fifty per mensem in the case of parents of Chief Petty Officers and rupees thirty-five per mensem in the case of parents of Petty Officers and below.

(c)

Continuance of a special family pension beyond the second life shall not be permissible.

(d)

The continuance of a family pension (or the rectification of the rate where the continuance of such pension has already been sanctioned but at a lower rate through error of facts) shall be sanctioned from the date of application, subject to the grant of a maximum of five years' arrears preceding the date of the pension payment order notifying the award or increase. In a case, where no action has been taken on a previous application, or it has been turned down in error and

the applicant has not re-submitted the claim for more than a year afterwards, arrears shall be allowed, subject to the above maximum from the date of the application which is pursued to the above maximum from the date of the application which is pursued to a finality and leads to the award or increase of pension.

132.

When payment of special family pension ceases.

(1)

The payment of special family pension shall cease when the recipient ceases to fulfil the conditions of eligibility under regulation 123 or on his death, whichever is earlier.

(2)

[A special family pension of a widow which was discontinued on her re-marriage with a person other than the real brother of her deceased husband, may be restored to her when her re-marriage is annulled by divorce, desertion or death of the second husband provided she is left in a destitute condition and was not in receipt of a second life award. Such cases will be submitted to the Central Government for consideration on individual merits.]

[Substituted by S.R.O. 22, dated 1st January, 1968]

133.

Family gratuity.

(a)

Family gratuity at the rates laid down in clause (c) may be granted in addition to special family pension to the family of an individual who-

(i)

is killed in action or dies from wounds sustained in action; or

(ii)

is killed, otherwise than through his own serious negligence or misconduct, while on flying duty or parachute jumping duties in a service aircraft or while being carried on duty in a service aircraft under proper authority, or dies of injuries sustained in such circumstances; or

(iii)

dies, otherwise than through his own serious negligence or misconduct, of a cause attributable to circumstances which, in the opinion of the local administrative authorities, are similar to those encountered on field service or in operations; or

(iv)

suffers a violent death while employed in aid of civil power :

Provided that in cases under clause (iii), the circumstances of death are accepted by the Central Government as similar to those encountered on field service or in operations.

Explanation. - [(1) An individual employed on the work of disposal by demolition, burning, burial, breakdown or dumping of unserviceable stocks of explosives shall be deemed to be on field or operational service for the purpose of eligibility of the heirs to death gratuity under clause (iii).]

[Substituted by S.R.O. 22, dated 1st January, 1968]

[Explanation 2 - The provisions of clause (a) (ii) shall also apply to flights in a civil or chartered aircraft for so long as similar orders exist in respect of Central Civil Government Servants.]

[Substituted by S.R.O. 22, dated 1st January, 1968]

(b)

(i)

Except as provided for in regulation 166 family gratuity shall be payable to the recipient of the special family pension.

(ii)

if, on the date on which the sanctioning authority decides that the claim to a special family pension is admissible, all the members in the list of eligible heirs have died or become disqualified, the gratuity shall be payable only under the orders of the Central Government to the other heirs of the deceased sailor on production of a succession certificate.

(c)

The rates of family gratuity are :-

Chief

Artificer/Chief Mechanician

900

Chief

Petty Officer/Artificer III, H & I Classes/Mechanician III,
II & I Classes.

600

Petty

Officer/Artificer IV Class/Mechanician IV Class

400

Leading

Seaman and equivalent/Artificer V Class/ Artificer Acting IV

Class

300

Able

Seaman and equivalent

250

Ordinary

Seaman and equivalent

250

Boys

and Apprentices

250

Sub-section III-Children's Allowance

134.

Conditions for grant of children's allowance.

(1)

Subject to the provisions of regulations 135 and 139 children's allowance may be granted to each natural [including validly adopted]

[Substituted by S.R.O. 22, dated 1st January, 1968]

child of an individual if his death was due to, or hastened by, either a wound, injury or disease which was attributable to service in the Indian Navy or the aggravation by service in the Indian Navy of a wound, injury or disease which existed before or arose during the service provided that :

(i)

the child is not in receipt of special family pension;

(ii)

in the case of a son, he was below the age of eighteen on the date immediately following the date of death of the deceased sailor which created the claim;

(iii)

in the case of a daughter, she is unmarried or if married, below the age of sixteen on the date aforesaid.

[Explanation :- The term "child" used in the above or other regulation in this sub-section, in respect of special family pensionary awards shall be deemed to include such a child born out of a marriage after discharge or invalidment of the individual.]

[Substituted by S.R.O. 22, dated 1st January, 1968]

135.

Payment of children's allowance to a child in Government Employment.

- Children's allowance shall not be granted to a child who is in the employment of the Central Government or any State Government. If, however, the children's allowance exceeds the pay of appointment, half the children's allowance shall be paid in addition to pay. Full children's allowance shall be payable on termination of such employment.

136.

Rates of children's allowance.

- The rates of children's allowance for each eligible child shall be-

Rs.

per mensem

(a)

in the case of children of Chief Petty Officer

7

(b)

in the case of children of Petty Officer and below.

5

137.

Increased rates of children's allowance when special family pension ceases.

- When for any cause the special family pension ceases to be payable to any eligible heir, the children's allowance shall be increased by fifty per cent.

138.

When the payment of children's allowance ceases.

(1)

The payment of children's allowance shall cease

(a)

subject to the provisions of regulation 139 in the case of a son, on attaining the age of eighteen years, and

(b)

in the case of a daughter, on her attaining the age of sixteen years or on marriage, whichever is later.

(2)

A married daughter in receipt of children's allowance shall surrender such allowance if she becomes eligible for a special family pension under these Regulations in respect of the death of her husband.

139.

Grant or continuance of children's allowance to a son after the normal age limit.

- The children's allowance may be granted to or continued in respect of a son over the age of eighteen years, if he is incapable of self support by reason of a physical or mental infirmity which arose before he attained the age of eighteen years.

140.

When children's allowance is admissible in conjunction with special family pension.

- In cases where a child is the nominated heir and has been granted a special family pension, the children's allowance may be granted to him in addition if and for so long as either of the parents of the deceased or the widow is alive and is otherwise eligible for special family pension.

Sub-section IV-Awards in respect of deaths not due to service

Part A ? Family Pension And Gratuity-Sailors

141.

Extent of application.

- The pensionary benefits in this part shall be admissible to the widows of sailors who died or die on or after 1st October, 1957, of causes neither attributable to nor aggravated by service in the Indian navy.

[141-A

[Omitted & Inserted by S.R.O. 309, dated 5th September, 1974]

- In respect of individuals who die of causes neither attributable to nor aggravated by naval service, the pensionary benefits in part A of this sub-section shall be admissible to the heirs specified in regulation 120.

Explanation :- The awards will be granted to the heir nominated for the purpose of special family pension or if there is no such nomination or the nominated heir is dead or disqualified under clauses (i) to (iii) below, to the eligible heir who stands highest in the list of living heirs. No award will, however, be paid to

(i)

Father or mother who was not dependent on the deceased sailor ;

(ii)

a mother, who is widow at the time of her son's death or who have become widow thereafter, has remarried;

(iii)

a daughter in the event of her marriage.]

142.

Pension/Gratuity in cases of death in service.

- The widow of a sailor who dies in service, may be granted the following pensionary benefits, namely.

(a)

If the deceased had died in the first year of his service.

A

gratuity equal to two month's pay.

(b)

If the deceased had rendered one year or over but less than five years of qualifying service for pension.

A

gratuity equal to six month's pay.

(c)

If the deceased had rendered five years or over but less than fifteen years of qualifying service for pension.

A

gratuity equal to twelve month's pay.

(d)

if the deceased had rendered fifteen years or over of qualifying service for pension.

A

pension at half the rate of the service pension for which the deceased had qualified on the date of his death, for a period of five years from the date following that of death.

Explanation. - Pay for the purpose of determining the amount of gratuity shall be calculated in accordance with regulation 90.

143.

Pension in cases of death after discharge.

- The widow of a sailor who had rendered fifteen years or over of qualifying service in the Indian Navy for pension, and who dies within five years of discharge or invaliding, may be granted a pension at half the rate of the service pension which was granted to the deceased or to which he was entitled, as the case may be. The pension shall be payable from the date following that of the death of the deceased till the expiry of a period of five years from the date of his discharge or invaliding, as the case may be.

144.

When payment of pension ceases.

- The payment of pension shall cease on re-marriage of the widow to a person, other than the brother of the deceased sailor, before the expiry of the period specified in clause (d) of regulation 142 or regulation 143.

Part B ? Gratuity In Respect Of Reservists

145.

Gratuity to the widow of a reservist who dies due to causes not attributable to service before completion of his combined Naval and Fleet Reserve Service.

(1)

The widow of a person in the Indian Naval Reserve Forces (other than an officer) who dies while in the Indian Naval Reserve Forces due to causes neither attributable to nor aggravated by service in the said Forces, before completion of his combined Naval and Fleet reserve service shall be granted a gratuity that would have been paid had he been discharged at the end of his service in the Indian navy.

(2)

The grant of the above gratuity shall be subject to the conditions prescribed in regulations 4, 8 and 75 and also to the following conditions :

(i)

the widow has not remarried a person other than the brother of the deceased;

(ii)

the deceased had not elected to be governed by the Pension Regulations, 1943;

(iii)

the widow is not in receipt of any pension or has not received any gratuity from the Central Government or any State Government or from any undertaking of such Government in which the deceased was an employee at the time of his death.

Chapter IV

Commissioned Officers-Commutation Of Pension

146.

Conditions and limits of commutation.

(1)

A permanent commissioned officer who is in receipt of a service pension or a permanent disability pension and who had attained the age of forty years or who has been certified as permanently incapable, through disability, of further service maybe permitted, subject to the report of a medical board as to his physical fitness and to any decision taken in the exercise of the discretion provided in regulation 8, to commute a portion not exceeding one-half of his pension or pension (less any amount previously commuted), provided that the amount left uncommitted is not less than Rupees two thousand a year in the case of officers of the general list and Rupees twelve hundred in the case of officers of the branch list.

(2)

Notwithstanding anything contained in sub-regulation (1) where the total amount of pension or pensions of an officer (other than an officer of the Branch List) is less than Rupees Two Thousand and Four Hundred a year, a portion of the pension not exceeding Rupees Four Hundred may be commuted, provided that not less than Rupees One Thousand and Six Hundred a year remains uncommuted.

(3)

In calculating the amount of pension for the purposes of this regulation, there may be added to it the uncommuted portion of any other permanent pension or pensions payable to the applicant by the Central Government or any State Government.

[Note :-No commutation of pension sanctioned under regulation 5 A shall be allowed as provided in sub-regulation (1) of that regulation.]

[Inserted by S.R.O. 201, dated 2nd August, 1976]

[Explanation 1. - Communication of pension shall be allowed with reference to total disability pension in cases where the invaliding disability is loss of limb(s), total loss of sight, loss of one eye, amputation etc., or where the award or disability pension is sanctioned for life.]

[Added by S.R.O. 309, dated 5th September, 1974]

Explanation 2. - Where the officer has been granted temporary disability pension but has completed five years qualifying service commutation of pension shall be allowed with reference to the service element of disability pension only.

147.

When commutation of pension is permissible.

- Pension maybe commuted at the time of retirement, or at any time subsequent thereto; but an officer who is re-employed in an emergency and whose pension is held in abeyance under regulation 16, shall not be permitted to commute any portion of his pension during such re-employment.

148.

Calculation of commuted value.

(1)

The Commutation values expressed in terms of number of years' purchase shall be as specified in the following table -
Commutation Table

Age

next birthday

Commutation

value expressed as number of years purchase

Age

next birthday

Commutation

value expressed as number of years purchase

1

2

3

4

17

21.19

30

19.18

18

21.07

31

18.98

19

20.95

32

18.77

20

20.82

33

18.55

21

20.68

34

18.33

22

20.54

35

18.09

23

20.4

36

17.85

24

20.24

37

17.6

25

20.08

38

17.34

26

19.92

39

17.08

27

19.75

40

16.8

28
19.57
41
16.52
29
19.38
42
16.23
43
15.94
65
8.47
44
15.64
66
8.12
45
15.33
67
7.78
46
15.02
68
7.45
47
14.7
69
7.11
48
14.38
70
6.79
49
14.05
71
6.47
50
13.72
72
6.16
51
13.39
73
5.86
52
13.05
74
5.57
53
12.7
75

5.28
54
12.36
76
5.01
55
12.01
77
4.74
56
11.65
78
4.48
57
11.3
79
4.24
58
10.95
80
4
59
10.59
81
3.78
60
10.23
82
3.57
61
9.88
83
3.36
62
9.52
84
3.17
63
9.17
85
2.99
64
8.82

(2)

The age of the officer shall be taken as being the age he will attain on the next birthday following the date on which the commutation shall become absolute, subject to such addition of years of age in the case of an impaired life, as may be recommended by the medical board.

(3)

In the event of the table of values applicable to an officer being modified at any time by the Central Government between the date of sanction for commutation and the date on which commutation is due to become absolute, the commuted value shall be calculated in accordance with the modified table.

149.

[When commutation becomes absolute.

[Substituted by S.R.O. 198, dated 9th July, 1981]

- Unless the application for commutation is withdrawn under regulation 150, commutation shall become absolute on the date on which the medical board or authority signs the medical certificate, but reduction in the amount of pension on account of commutation shall become operative from the date of payment of commuted value of pension or three months after the issue of the payment authority by the Controller of Defence Accounts (Pensions) asking the pensioner to collect the commuted value of pension, whichever is earlier.]

150.

Withdrawal of application.

(1)

An officer may withdraw his application for commutation

(i)

at any time before the date fixed for his appearance before the medical board;

(ii)

when the table of values applicable to him is modified between the date of sanction to the commutation and the date on which the commutation becomes absolute, and the modified table is less favourable to him than that previously in force;

or

(iii)

when, in the case of an impaired life, the medical board recommends an addition of years to age to the actual age.

(2)

in a case falling under clause (ii) or clause (iii) of sub-regulation (1), the withdrawal of application shall be made by written notice, despatched within fourteen days of the date on which the officer receives intimation of the modified table or of the recommendation of the medical board and of the commuted value payable in view thereof, as the case may be.

151.

Incidental expenses incurred.

- No reimbursement of any travelling or other expenses incurred by an officer in connection with commutation of a portion of his pension shall be admissible.

152.

Commutation of anticipatory or provisional pension.

- If some delay is likely to arise in the finalisation of pension of an officer, commutation may be allowed on the anticipatory or provisional pension, if any, in issue under Part II of these Regulations subject to necessary adjustments when the final pension is sanctioned. The anticipatory or provisional pension will be commuted under the same general conditions as apply to commutation of final pension.

[Chapter V] Commutation of pension - Sailors including the MCPOs granted Honorary Commissions and Short Service Commissioned Officers (ex-Sailors).

152.

-A.

(1)

Sailors including the MCPOs granted Honorary Commission and Short Service Commissioned Officers (ex-Sailors) who are in receipt of a service or special pension or a permanent disability pension or invalid pension may be permitted by the competent authority, subject to the report of a medical authority as to his physical fitness and to any decision taken in the exercise of the discretion provided in regulations 8 and 75, to commute a portion, not exceeding one half of his pension or pensions (less any amount previously commuted) provided that the amount left uncommuted is not less than rupees two hundred and forty a year. In calculating the amount of pension for the purpose of this limit, there may be added to it the uncommuted portion of any other permanent pension or pensions payable to the applicant from Indian or other Government revenues.

(2)

The portion of pension to be commuted will consist of whole rupees only subject to the limits prescribed in sub-regulation (1).

Note :- No commutation of pension sanctioned under regulation 5 A shall be allowed as provided in sub-regulation (1) of

that regulation.

152.

-B.

(1)

An individual in receipt of disability pension may be allowed to commute a portion of such pension provided the invaliding disability is loss of limb(s) total loss of sight, loss of one eye, amputation, etc., or the award of disability pension is sanctioned for life.

(2)

in cases where the individual has been granted temporary disability pension but has completed ten years or more qualifying service; commutation of pension may be allowed with reference to the special pension admissible under regulation 110.

(3)

If an individual was granted disability pension (permanent or temporary under the orders in force prior to the 18th March, 1961) he may be allowed to commute a portion of that part of his disability pension which is equal to the service pension which would be admissible to him in the event of his disability being re-assessed below 20 per cent.

152.

-C.

When Commutation of pension is Permissible Commutation may take place on retirement or any time subsequent thereto.

152.

-D.

Calculation of Commuted Value.

(1)

The basis for commutation shall be according to the table prescribed by the Central Government from time to time under the Civil Pension (Commutation) Rules.

(2)

The age of the individual shall be taken as being the age he will attain on the next birthday following the date on which the commutation of pension shall become absolute subject to such addition of year(s) of age in the base of impaired life, as may be recommended by the medical authority.

(3)

In the event of the table of values applicable to an individual being modified between the date of administrative sanction to commutation and the date on which commutation is due to become absolute, the commuted value shall be calculated in accordance with the modified table (see Regulation 152-F).

152.

-E. When commutation becomes absolute.

- Unless the application for commutation is withdrawn under regulation 152-E commutation shall become absolute on the date on which the medical board or authority signs the medical certificate, but reduction in the amount of pension on account of commutation shall become operative from the date of payment of commuted value of pension or three months after the issue of the payment authority by the Controller of Defence Accounts (Pensions) asking the pensioner to collect the commuted value of pension whichever is earlier.]

152.

-F. Withdrawal of Application.

(1)

An individual may withdraw his application for commutation.

(i)

When the table of values applicable to him is modified between the date of administrative sanction to the commutation and the date on which commutation becomes absolute, and the modified table is less favourable to him than that previously in force; or

(ii)

when, in the case of impaired lives, the medical authority recommends an addition of years of age to his actual age; or

(iii)

at any time by written notice despatched before medical examination is due to take place, but this option shall expire on his appearance before the medical authority.

(2)

Withdrawal of application must be made by written notice, despatched within 14 days of the date on which the individual receives intimation of the modified table or of the recommendation of the medical authority and of the capital sum payable in lieu thereof, as the case may be.

152.

-G. Incidental Expenses incurred.

- No re-imbursement of any travelling or other expenses incurred by an individual in connection with the commutation of a portion of his pension shall be admissible.

152.

-H. Commutation of anticipatory/provisional pension.

- If some delay is likely to arise in the finalisation of pension claim of an individual, commutation may be allowed on the anticipatory or provisional pension, if any, in issue subject to necessary adjustments when the final pension is sanctioned. The anticipatory or provisional pension will be commuted under the same general conditions as apply to commutation of final service pension. To ensure re-payment of the commuted value of the portion of an anticipatory or provisional pension paid in excess, the Controller of Defence Accounts (Pensions) will obtain from the pensioner a declaration in the following form along with his application for commutation:

Form Of Declaration

(To be completed by the applicant in receipt of anticipatory /provisional pension).

[Chapter VII]

[Renumbered Inserted b S.R.O]

Power Of Relaxation

153.

Relaxation.

- Where the Central Government is of the opinion that it is necessary or expedient so to do, it may by order, for reasons to be recorded in writing, relax any of the provisions of these regulations with respect to any class or category of persons.

Part II ? Chapter-I

General

154.

[Delay in settlement/Continuance and payment of pension to be avoided.

[Substituted by S.R.O. 146, dated 26th May, 1973]

(1)

All officers dealing with pension claims shall bear in mind that delay in the payment of pension may cause great hardship and so they shall do everything in their power to prevent or curtail such delays as much as possible.

(2)

in order to obviate delay in continuing disability pension to pensioners in receipt of such pensions for a specified period, the following procedure is laid down, namely :

(i)

Officers. - The Naval Headquarters shall initiate action to arrange re-survey medical boards about three months prior to the date of expiry of the current award and shall also ensure that the pensioners are brought before such resurvey medical board about two months prior to the date mentioned above.

(ii)

Sailors. - The Commodore naval Batracks (Drafting Office) shall initiate action to arrange resurvey medical board about four months prior to the date of expiry of the current award and shall further ensure that the pensioner is brought before such resurvey medical boards about three months prior to the date mentioned above.

Explanation. - In order to avoid hardship and expense to Gorkhas in receipt of temporary disability pensions, they may appear before resurvey medical boards at any time within six months before or six months after the date on which they would ordinarily be due for re-examination.]

155.

Consideration of questions affecting pensionary entitlement of an individual.

- Questions affecting the pension or pensionable service of an individual shall be considered as soon as they arise, provided a decision can be arrived at on the actual circumstances of the case known at the time.

156.

Cases not covered by regulation.

- Cases not covered by these regulations but deserving special-consideration may be submitted by the Naval Headquarters to the Central Government along with the audit report with reference to that case.

Chapter II

Applications And Grant Of Pensions And Gratuities

Section I

General

157.

Application for pension, etc.

(1)

An application for pension [***]

[Omitted & Inserted by S.R.O. 238, dated 21st June, 1977]

shall be submitted as soon as possible after the occurrence of the casualty which gives rise to the claim.

(2)

An application for service pension [***]

[Omitted & Inserted by S.R.O. 238, dated 21st June, 1977]

(disability pension in the case of T.B. patients), accompanied by necessary documents, may be submitted to the accounts officer concerned prior to the anticipated date of transfer of the individual to the pension establishment.

(3)

In the cases referred to in sub-regulation (2), the sanctioning authority may sanction the pension not more than two months before the date from which it has to take effect.

(4)

[Service gratuity to sailors proceeding on discharge or leave pending discharge may be paid at the time of final settlement of their pay accounts.]

[Omitted & Inserted by S.R.O. 238, dated 21st June, 1977]

158.

Verification of service.

- In cases where a pension or gratuity is dependent on the length of an individual's qualifying service, the Controller of Defence Accounts (Pensions) or the Controller of Defence Accounts (Navy), as the case may be, shall before reporting on the claim for pension or gratuity or sanctioning the pension or gratuity, verify the service

(i)

in the case of commissioned officers (including Branch List Officers), with reference to the audited Navy List; or

(ii)

in the case of sailors, with reference to their service certificates.

159.

Audit report on applications for pension and gratuity.

- The Controller of Defence Accounts (Pensions) or the Controller of Defence Accounts (Navy), as the case may be, receiving the application, after satisfying himself that it is complete in all respects shall, in cases where he is not himself the sanctioning authority, submit it to the sanctioning authority with an audit report upon the claim for pension, gratuity or allowance and the regulations applicable to the case.

160.

Rounding off of pensions and gratuities.

(1)

The amount of pension as finally calculated, as also the amount of anticipatory pension, shall be rounded off to the next higher rupee.

(2)

Gratuities shall be calculated to the nearest multiple of five paise, that is, where the exact amount works out to two and

a half paise or more, it shall be taken to the next higher multiple of five paise, amount below two and a half paise being disregarded.

(3)

The provisions of sub-regulation (2) shall also apply to the payment of capitalised value of commuted portion of pension.

161.

Communication of sanction to the Controller of Defence Accounts (Pensions).

- Every sanction of a pension, allowance or gratuity sanctioned by any authority other than the Controller of Defence Accounts (Pensions) or the Controller of Defence Accounts (Navy) shall be communicated to the Controller of Defence Accounts (Pensions), who shall arrange for its payment.

Section II-Applications for pension etc. and their disposal

162.

Applications and procedure.

- The forms of applications for grant of different kinds of benefits under these regulations including commutation of pension shall be as specified in Appendix VIII, the procedure to be followed in the submission and disposal of such applications shall be as specified in Appendix IX.

Chapter III

Anticipatory Pensions, Advances Of Pensions, Provisional Payment Of Family Gratuity And Pending Enquiry Awards

Section I

Anticipatory Pensions

163.

Anticipatory pensions.

(1)

Subject to the provisions of sub-regulation (3) when delay is anticipated in reporting on the claim to pension of a commissioned officer or in the final sanction of a pension to a sailor, the Controller of Defence Accounts (Pensions) may, upon a declaration by the individual concerned in the form set out below, sanction the immediate disbursement of the service pension to which, after the most careful summary investigation that he can make without delay, he believes the individual to be entitled :

Declaration

Whereas the Controller of Defence Accounts (Pensions) has consented, provisionally to advance to me the sum of Rupees.....per month in anticipation of the completion of the enquiries necessary to enable the pension sanctioning authority to fix the amount of my pension, I hereby acknowledge that, in accepting this advance. I fully understand that my pension is subject to revision on the completion of the necessary enquiries, and I promise to raise no objection to such revision on the ground that the provisional pension paid to me exceeds the pension to which I may be eventually found entitled. I further promise to repay any amount advanced to me in excess of the pension to which I may be eventually found entitled.

Explanation. - In the case of Gorkha sailor domiciled/ residing in Nepal, the anticipatory pension may be sanctioned without prior production of the declaration form. However, the pension disbursing officer shall invariably obtain this declaration form from the pensioner before making the first payment of anticipatory pension and forward it to the Controller of Defence Accounts (Pensions).

(2)

If, upon the completion of the necessary investigation, it is found that the pension thus summarily assigned differs from the pension finally settled, the difference shall be adjusted in the first subsequent payment.

(3)

No anticipatory pension shall, however, be sanctioned to an individual when intimation is received that he was involved, whilst in service, in a loss or irregularity relating to public fund, which is under investigation.

[Section 2

[Substituted & Omitted by S.R.O. 95, dated 15th February, 1975]

- Procedure for Speedy Payment of Family Gratuity and Finalisation of Family Pension Claims in Cases of Deaths in Action. Flying Accidents or Parachute jumping or while Employed in aid of Civil Power]

164.

Speedy payment of family gratuity and finalisation of family pension claims.

- In cases of death of naval personnel [in action, due to wounds sustained in action, flying accidents or parachute jumping or while employed in aid of civil power.]

[Substituted & Omitted by S.R.O. 95, dated 15th February, 1975]

the highest priority shall be given to the completion of a court of enquiry, which have a vital bearing on the finalisation of the pensionary awards in this type of cases. It shall be ensured that no delay occurs at any stage in forwarding the proceedings, with the necessary remarks to the Government through the prescribed channels. Claimants shall be assisted in filling up the details in the prescribed forms. The officers of the recruiting organisation shall take action personally to reduce to the minimum the time necessary for the verification of the details of the claims by the civil authorities.

165.

Provisional payment of family gratuity.

(1)

The competent authority may pay an amount equivalent to seventy-five per cent of the family gratuity (subject to eventual adjustment against the family pensionary awards) immediately on receipt of the prescribed report accompanied by the relevant documents, to the widow of an officer or to the family of a sailor who is killed while on flying duty in a service aircraft or while being carried on duty in [an aircraft]

[Substituted & Omitted by S.R.O. 95, dated 15th February, 1975]

under proper authority.

(2)

The provisional payment of family gratuity will be adjusted in accordance with regulation 167.

(3)

[* **]

[Substituted & Omitted by S.R.O. 95, dated 15th February, 1975]

166.

Procedure for payment.

(1)

Where the deceased individual was an officer-

(i)

The Controller of Defence Accounts (Navy) shall authorise the treasury from which the widow desires payment, to make payment of the appropriate amount. Where payment is desired through a Branch of the State Bank of India, a crossed cheque will be issued in favour of the widow for the appropriate amount.

Payment shall be subject to the widow signing the following declaration :

"Whereas the Controller of Defence Accounts (Navy), has consented provisionally to advance to me a sum of Rupeesin anticipation of the completion of the enquiries and further investigation necessary to enable the Government to determine my entitlement to special family pensionary award in respect of lateI hereby acknowledge that, in accepting this advance, I fully understand that it is subject to adjustment on the completion of the necessary enquiries and further investigation, and promise to raise no objection to such re-adjustment, including the recovery of any amount advanced to me in excess of the pensionary award to which I maybe eventually found entitled."

(ii)

The Controller of Defence Accounts (Navy) will inform the Ministry of Defence, Naval Headquarters and the Controller of Defence Accounts (Pensions) of the action taken under clause (i). He will also indicate the amount of family gratuity if any, paid, on the last pay certificate of the deceased officer issued to the Controller of Defence Accounts (Pensions), for eventual adjustment.

(2)

Where the deceased individual was a sailor-

(i)

The Controller of Defence Accounts (Pensions) shall sanction the payment of the appropriate amount and intimate the particulars to the Base Supply Officer, Bombay.

(ii)

The Base Supply Officer, Bombay shall remit the amount through ordinary money order to the heir nominated for special family pension, or if the nominated heir is dead or there is no nomination, to the living heir standing highest among the

eligible heir without verification in either case as to his or her eligibility for special family pension, apart from those which can be checked from the latest entries in the service records.

Either of the following intimation shall be recorded in the footnote of the money order form :-

Cases of death due to flying accidents or parachute jumping

The sum of Rsas family gratuity consequent on the death of your(here insert) relationship, rank and name of the deceased individual) is sent herewith as provisional payment till the necessary enquiries and investigations are completed and your correct entitlement to the pensionary awards, in respect of late.....is determined. The amount now advanced will be adjusted against the family pensionary awards which are finally found to be admissible.

OR

Cases of death in action, due to wound sustained in action or of violent death in aid of civil power.

The sum of Rupeesas family gratuity consequent on the death of your(here insert relationship, rank and name of the deceased individual), is sent herewith. This amount represents the final payment of family gratuity and no further award of gratuity will be admissible to any other heir if, after completion of necessary enquiries and investigation, it is found that special family pension is admissible to any such heir.

(iii)

The Base Supply Officer, Bombay shall inform the Ministry of Defence, Naval Headquarters, Captain Naval Barracks, Bombay, and the Controller of Defence Accounts (Pensions), of the particulars of the remittance, as also its actual payment when made to the heir of the deceased to whom the family pension is due. The Captain Naval Barracks shall indicate the amount of family gratuity if any, paid on the family pension claim form as also on the last pay certificate, for eventual adjustment.

167.

Adjustment of provisional payment.

(1)

Where the deceased individual was an officer the Controller of Defence accounts (Pensions) shall specify the provisional payment [* * *]

[Omitted by S.R.O. 95, dated 15th February, 1975]

of family gratuity, in his audit report, when he submits the claims to special family pensionary awards with the prescribed documents, for orders of the Central Government. Those orders will provide for the proper adjustment of the provisional payment against the final awards admissible to the family under these regulations.

(2)

Where the deceased individual was a sailor the provisional payment [* * *]

[Omitted by S.R.O. 95, dated 15th February, 1975]

of the family gratuity shall be adjusted in accordance with the procedure in force for adjustment of payments of Pending Enquiry Award against the final awards admissible to the family under these regulations.

Section 3

Sailors And Their Families

Sub-section 1-Advance of pension

168.

Advances of service [invalid/special pensions.

- An advance of service or invalid or special pension not exceeding six months' pension (exclusive of allowance attached to decorations etc.) may be paid by the Controller of Defence Accounts (Pensions) to a sailor who is discharged or invalided from service after having earned a pension.

The amount of advance paid shall be recovered in full as pension falls due.

169.

Advance of pension to destitute pensioners.

- An advance of pension or arrears of pension may be sanctioned by the Controller of Defence Accounts (Pensions) to pensioners other than officers and their families, subject to the following conditions:

(a)

The advance will be sanctioned in cases in which arrears of pension for over twelve months are clearly payable to the pensioners and after the individual's identity and bona fides have been clearly established.

(b)

The advance will be sanctioned only to those pensioners who are, in the opinion of the Controller of Defence Accounts (Pensions) or joint Controller of Defence Accounts (Pensions), in a destitute condition and in immediate need of financial help.

(c)

The advance will be sanctioned under the orders of the Controller of Defence Accounts (Pensions) or joint Controller of Defence Accounts (Pensions) in each case and will be an amount, which is considered absolutely essential for immediate relief of the pensioner and will in no case exceed Rupees one hundred.

(d)

The advance will be recovered from pension or arrears of pension. Sub-section 2-Pending enquiry awards

170.

Object and nature of pending enquiry awards.

(1)

The pending enquiry award is intended to relieve the financial difficulties of personnel below officer rank and their dependants when such personnel are invalided out of the service or die and the invaliding disability or the cause of death is considered prima facie due to service or is accepted as such, by the competent authority with reference to the applicable entitlement rules. Provisional awards may be made pending completion of the enquiries and other steps which may be necessary before a pension claim can be finally admitted.

(2)

The award does not affect the payment of anticipatory pension or provisional payment of family gratuity.

171.

Circumstances in which pending enquiry award may be made.

- In the following cases Pending Enquiry Awards may be made:

(a)

Disability pension claims.

Cases in which the Controller of Defence Accounts (Pensions) is unable to sanction a disability pension within a month of the receipt of the claim in his office; and

(i)

the Controller of Defence Accounts (Pensions) is satisfied that prima facie the disability is attributable to or aggravated by the individual's service or when this is not the case, entitlement is conceded by the competent authority, or in the opinion of the local administrative authorities, in injury cases, and of medical boards in disease cases, the disability is attributable to or aggravated by the individual's service before 1st April 1948, and

(ii)

the disability is assessed at twenty per cent or above.

(b)

Special family pension and children's allowance claims.

Cases of the following types in which the Controller of Defence Accounts (Pensions) is unable to sanction a special family pension or children's allowance within a month of the receipt of the claim in his office:

(i)

cases of death in action and battle accident cases;

(ii)

cases where the Controller of Defence Accounts (Pensions) is satisfied that prima facie the cause of death is attributable to or aggravated by the individual's service, or when this is not the case, as soon as entitlement is conceded by the competent authority;

(iii)

injury and disease cases where, in the opinion of the administrative authorities and the medical authorities respectively, the cause of death is due to individual's service before 1st April, 1948; and

(iv)

cases where the deceased sailor was in receipt of a disability pension or was admitted to such pension posthumously and the cause of death is accepted by the competent authority as attributable to or aggravated by his service.

172.

Amount and date of effect-(a) Disability pension claims.

(1)

A pending enquiry award shall be made at a monthly rate equal to the appropriate rate of disability pension based on the degree of disablement assessed by the medical board or the medical adviser (Pensions), where the case is referred to him :

Provided that where the individual has been granted anticipatory pension, the award shall be at the rate equal to the disability element of disability pension.

(2)

The award shall be made with effect from the date following that of discharge from the service.

(b)

Family pension and Children's allowance claims. - (1) A pending enquiry award shall be made at a monthly rate equal to :

(i)

the appropriate amount of family pension, plus

(ii)

the appropriate amount of children's allowance according to the number of living minor children, if any, shown in the service records.

(2)

The award shall be made with effect from the date following that of the death of the individual but in a case where family allotment has been paid and the allottee is the recipient of the award, the award shall commence from the date following that up to and for which family allotment has been paid.

Explanation. - In this sub-regulation and sub-regulation (2) of regulation 174, "family allotment" means the amount allotted to be sent to the family of the individual and "allottee" means the person who receives the amount allotted.

(3)

In a case where, the documents necessary to determine entitlement to family pension are received in the office of the Controller of defence Accounts (Pensions) after a period of twelve months from the date of death or the date specified in sub-regulation (4) of regulation 205, as the case may be, the grant of arrears of pending enquiry award shall be regulated by regulation 205.

173.

To whom payable.

(1)

An award of disability pension shall be made to the individual invalided out of the service.

(2)

An award of family pension and children allowance shall be made to the heir nominated for family pension as shown in service records or if the nominated heir is dead or if there is no nomination, to the living heir standing highest among the eligible relatives without verification in either case as to his or her eligibility for family pension and children allowance under these regulations except to the extent that such verification can be made on the basis of entries in the service records.

Any case of doubt shall be submitted for orders of the Central Government.

174.

Procedure.

(1)

The Captain Naval Barracks shall submit to the Controller of Defence Accounts (Pensions), disability pension claims as soon as the medical board proceedings have been approved, and family pension claims as soon as possible after the receipt of the casualty report.

(2)

In case of family pension claims, the Captain Naval Barracks, while forwarding the claim, shall state in each case whether family allotment was being paid and if so, the name and relationship of the allottee and the date up to and for which it was paid.

175.

Payments.

(1)

Intimation of the grant of a pending enquiry award and its particulars shall be sent by the Controller of Defence Accounts (Pensions) by express letter to the Base Supply Officer, Bombay, who shall arrange payment of the award through ordinary money order.

The money order charges shall be borne by the Central Government.

(2)

In remitting the pending enquiry award to the claimant, the Base Supply Officer, Bombay shall explain to the payee the object and the nature of the award and make it clear that the award is provisional only and shall cease if and when the pension is sanctioned or the claim to pension is rejected.

(3)

In a case where a pending enquiry award is sanctioned to a claimant to disability pension who lives in Nepal, the award, instead of being remitted by money order, shall be paid to the claimant in lump sum when he visits the Recruiting Office, Kunraghat or Ghoom or the Indian Embassy, Nepal, as the case may be, provided that during the time that lapses between the sanctioning of the pending enquiry award and the claimant's visit, the claim is not finally rejected or sanctioned.

(4)

In the case of claimants to family pension, who live in Nepal, the Recruiting Officers for Gorkhas at Kunraghat and Ghoom or the Indian Embassy, Nepal, as the case maybe, shall disburse pending enquiry awards at their discretion in lump sum for the period during which, in their opinion, the individuals remained eligible for special family pension. All payments of pending enquiry awards and also all amounts which have been sanctioned and which are not paid, shall be notified to the Base Supply Officer, Bombay.

The amount of pending enquiry award and the period for which payment has been made, shall also be recorded in Part H of the Pension claim Form 22 (RIN 239) and Form 23 (RIN 240) specified in Appendix VIII; in cases where no payment has been made, a note to that effect shall be made in the form.

176.

Termination of pending enquiry award.

(1)

In all cases the pending enquiry award shall be stopped on receipt of intimation by the Base Supply Officer, Bombay, from the Controller of Defence Accounts (Pensions) regarding the acceptance or rejection of the claim.

(2)

Intimation of rejection of the claim shall be sent by the Controller of Defence Accounts (Pensions) to the Base Supply Officer, Bombay, by telegram (with a post copy) to avoid further payment. A copy of the intimation will also be sent by the Controller of Defence Accounts (Pensions) to the Captain, Naval Barracks.

(3)

[The Commodore, Naval Barracks]

[Substituted by S.R.O. 95, dated 15th February, 1975.]

Bombay, shall also stop further payment of pending enquiry award,

(a)

on receipt of orders of the Central Government regarding acceptance or rejection of the claim, or

(b)

if definite information, duly verified, is received through service sources, the local civil authorities or Sailors', Soldiers' and Airmen's Board or officers of recruiting organisation, [regarding the death of the recipient of his ineligibility for a special family pension.]

[Substituted by S.R.O. 95, dated 15th February, 1975.]

In all such cases, the Base Supply Officer, Bombay, shall inform the Controller of Defence Accounts (Pensions) as to the month up to and for which the pending enquiry award has been paid.

177.

Adjustment of pending enquiry awards.

(a)

Disability pension claims. - (i) If the claim is rejected, no recovery of the amount paid as pending enquiry award shall be made.

(ii)

If the claim is accepted, the amount paid as pending enquiry award shall be adjusted by the Controller of Defence Accounts (Pensions) against the award of disability pension.

(b)

Family pension and Children's allowance claims. - If the claim is rejected, the amount paid as pending enquiry award shall be adjusted as under :

(a)

If paid to the widow, it shall be adjusted against the award of family pension or gratuity admissible to her under regulation 142.

(b)

If paid to an heir other than the widow who is alive and is eligible for the grant of an award of pension or gratuity under regulation 142, the case shall be referred to the Central Government for orders, regarding the regularisation of the pending enquiry award.

(c)

No recovery shall be made in other cases.

(ii)

If the claim is accepted the amount paid as pending enquiry award shall be adjusted as indicated below :

(A)

When the recipient of the pending enquiry award and the family pension and children's allowance finally sanctioned is the same, the amount paid as pending enquiry award shall be adjusted against the award of family pension and children's allowance.

(B)

In cases where:

(1)

the recipients of the pending enquiry award and the family pension and children's allowance finally sanctioned are husband and wife (or vice versa), or

(2)

the recipient of the pending enquiry award is the father of the deceased and family pension and children's allowance are sanctioned to the widow or the child of the deceased, or

(3)

the recipient of the pending enquiry award waives his or her claim in favour of the widow and the family pension and children's allowance are sanctioned to the latter,

the amount paid as pending enquiry award shall be adjusted against the arrears of family pension and children's allowance due under these regulations and the balance, if any, recovered from the pension sanctioned in instalments not exceeding one third of the pension.

(C)

All other cases shall be submitted for orders of the Central Government. Pending such orders, the arrears of family pension and children's allowance to the extent of the amount paid as pending enquiry award shall be withheld from the recipient of the family pension and children's allowance. If the amount paid as pending enquiry award exceeds the arrears of family pension and children's allowance admissible, the balance shall be recovered from the family pension and children's allowance in instalments not exceeding one-third of the pension. Final adjustment shall be made on receipt of orders of the Central Government.

178.

Review of cases.

- The Controller of Defence Accounts (Pensions) shall review every four months all cases of pending enquiry awards to ensure that there has been no avoidable delay in sanctioning pensions.

Chapter IV

Payment Of Pension And Children Allowance

Section I-General

179.

Agencies for payment of pension.

(1)

A pension or children's allowance granted under these regulations shall, if drawn in India, be paid through one of the agencies specified in Appendix X.

(2)

The payment of pension and children's allowance outside India shall be regulated by the orders of the Central Government for the time being in force.

[179-A. Transfer of pension.

[Inserted by S.R.O. 95, dated 15th February, 1975]

(1)

Except where specifically provided otherwise, pension shall be paid in rupees in India, transfer outside India of pensions of pensioners who retired on or after the twenty-first August nineteen hundred and fifty-nine or who, having retired before the twenty-first August nineteen hundred and fifty-nine, had not taken up residence outside India before that date as well as of their dependants shall not be permissible except with the prior approval of the Central Government.]

(2)

A non-Indian pensioner (non-Indian by citizenship and not merely by nationality) who is a citizen of a country other than India at the time of his retirement and who entered service before tenth September nineteen hundred and forty-nine and takes up his residence in any country outside India shall be eligible to get his pension transferred outside India.

(3)

The Controller of Defence Accounts (Pensions), or the Pension Disbursing Officer concerned may, on application and on sufficient cause being shown, permit transfer of payment of a pension from one station to another in India.

180.

Drawal of pensions through agents.

(1)

A recipient or pension or children's allowance resident in India may draw his or her pension or allowance through a duly authorised agent approved by the Central Government.

The agent shall execute a bond to refund over payments and produce at least once a year a life certificate in respect of the recipient signed by any of the persons authorised by regulations 189 and 194 to sign such certificates.

(2)

Any such recipient not resident in India may draw his or her pension or allowance in India through a duly authorised agent, who shall either produce a certificate by a magistrate, a notary, a banker or a diplomatic representative of the Central Government on each occasion, that he or she was alive on the date up to which his or her pension or allowance is claimed, or execute a bond in favour of the Central Government to refund over payments and produce such a certificate as aforesaid at least once a year.

(3)

The pension of an individual drawing pension through an agent who has executed a bond to refund over payments shall not be paid in respect of a period of more than a year after the date of the life certificate last received, and the Controller of Defence Accounts (Pensions) and pension disbursing officers shall promptly stop further payments on receipt of authentic information of the death of any such pensioner.

181.

Pensioners employed or re-employed under Government.

(1)

A pensioner drawing pension in India shall be required to furnish a certificate showing whether or not during the period for which pension is claimed, he or she was employed or re-employed under the Central Government or any State Government. In cases where pension is not permitted to be drawn during employment or re-employment under these regulations, the payment of pension shall be suspended.

(2)

Where the salary of the pensioner is payable from the Defence Services Estimates, the Captain Naval Barracks or the Head of the office concerned shall report the pensioner's employment or re-employment or re-enrolment to the Controller of Defence Accounts (Pensions) and shall also take the following further action in respect of the specified categories of pensioners

(i)

Pensioners re-enrolled/re-employed otherwise than in a civil

capacity

(i)

In cases where pension is to be suspended, the individual's pension certificate shall be withdrawn and forwarded to the Controller of Defence Accounts (Pensions) along with his service certificate noting therein the date of re-enrolment or re-employment for necessary endorsement and return.

(ii)

Pensioners re-employed in a civil capacity.

(ii)

A report shall be made to the Controller of Defence Accounts responsible for auditing the pensioner's pay and allowance.

183.

[Payment in respect of insane pensioners.

[Substituted by S.R.O. 95, dated 15th February, 1975.]

- When a pensioner is certified by a magistrate to be insane, the payment of pension or gratuity, or children's allowance shall be regulated by the competent, authority as under :

(a)

Where the insane pensioner is lodged in an asylum.-The whole of the pension or gratuity or children's allowance shall be paid to the dependants of the pensioner on the production of the life certificate and the pension certificate as required under regulations 189 and 194, the question of payment by them of the cost of the Pensioner's maintenance being left to be decided by the court on an application made by the asylum authorities in accordance with the provisions of section 26 of the Indian Lunacy Act, 1912 (

4 of 1912

).

(b)

Where the insane pensioner is in the charge of his or her dependants.- The whole of the pension or gratuity or children's allowance shall be paid to the dependants of the pensioner on production of the documents referred to in clause (a).

(c)

Where the insane pensioner is in the charge of a friend or any other relation.-The pension or gratuity or children's allowance shall be payable in two shares-one to the person having charge of the lunatic and another to the dependants of the pensioner on production of the documents referred to in clause (a). The size of the two shares shall be determined by the competent authority in consultation with the local civil authorities and pending such determination, half of the pension or gratuity or children's allowance shall be paid to the dependants of the pensioner.

Explanation. - For the purpose of resuming payment to the pensioner on his regaining sanity, certificate of the magistrate to that effect shall be obtained.]

184.

Payment of pension by money orders.

- Payment of pensions up to Rupees one hundred per mensem through treasuries or Pension Paymasters made by money order at the option of the pensioner, the money order commission being deducted from the amount of pension.

186.

Issue of supplementary instructions.

(1)

Supplementary instructions for payment of pensions by pension disbursing officers on matters of detail not provided for in these regulations may be issued by the Controller of Defence Accounts (Pensions) with the concurrence of the Controller General of Defence Accounts.

(2)

In regard to pensions paid through post offices, such supplementary instructions may be issued by the Director General, Posts and Telegraphs; with the concurrence of the Controller of Defence Accounts (Pensions).

Section 2

Officers and their families

187.

Mode of payment.

(1)

Except as provided in sub-regulation (2), a pension is payable monthly and children's allowance at motherless rate is payable half-yearly on or after the first day of the following month or half year as the case may be.

(2)

Pension may be paid before the end of the month in the following cases :-

(i)

When a pension drawn in India is transferred to be paid by a pension paying officer outside India, payment shall be made up to and for the day preceding the day of departure from India.

(ii)

When there is a variation in the rate of a pension consequent on the commutation of a portion of it, payment at the original rate may be made up to and for the day preceding that from which the commutation takes effect.

(iii)

When a pensioner dies or ceases to be eligible for pension.

(iv)

When the first four days of a month are public holidays on which pensions are not disbursed by treasuries '[or Pension pay Master] in India, the head of local administration may, if he thinks fit, direct the payment, on the last working day before the holidays, of pension bills of pensioners drawing pensions of Rupees one hundred or less.

(3)

Subject to the limitations prescribed in these regulations, a children's allowance (other than allowance at motherless rate) shall be paid from the date following that of the officer's death to the 31st march next ensuing, and subsequent payment shall be made yearly in advance from the 1st April in each year.

188.

How and by whom arrangements for payment are made.

- When an individual who has been granted a pension desires that it should be paid at one of the stations in India specified in Appendix X, the Controller of Defence Accounts (Pensions) shall forward the original copy of the pension payment order notifying the grant of pension and the conditions to which it is subject, to the prescribed pension disbursing officer and authorise him to pay pension from a date which should be specified. On receipt of the pension payment order, the pension disbursing officer shall make the payment.

189.

Identification of pensioners.

(1)

Except as provided in regulation 180 and sub-regulations (2) to (4), a pensioner shall take payment in person after the pension disbursing officer has satisfied himself as to his identity.

[Explanation

[Inserted by S.R.O. 95, dated 15th February, 1975]

- Service or disability pensioners, except female pensioners and those who have been specially exempted by the Central Government, shall, as an additional precaution, be identified with reference to their photographs sent to the pension disbursing officer by the Controller of Defence Accounts (Pensions)."]

(2)

A pensioner specially exempted by any State Government or Administration from appearing in person, a female pensioner not accustomed to appear in public or a pensioner who is unable to appear in consequence of bodily illness or infirmity, may receive his or her pension through a representative upon the production of a life certificate signed by a Gazetted Officer of the Central Government or any State Government or by some other respectable person.

(3)

A pensioner who produces a life certificate signed by any person exercising the powers of a magistrate under the Code of Criminal Procedure, 1898 (5 of 1898), or by any Registrar or Sub-Registrar under the Indian Registration Act, 1908 (16 of 1908

), or by any pensioned officer who before retirement exercised the powers of a magistrate or any gazetted officer of the

Central Government or any State Government or by a munsiff or by a police officer not below the rank of a Sub-Inspector or a Post Master/Departmental Sub-Post master, or an Inspector of Post Offices, or by a Class I Officer of the Reserve Bank of India, or a Staff Officer or Staff Assistant of the State Bank of India is also exempted from personal appearance.

[Explanation.

[Inserted by S.R.O. 95, dated 15th February, 1975]

- Retired commissioned officer may sign the life certificate on pension bill form (IAFA-319)."]

(3A)

[The life certificate referred to in sub-regulation (2) or (3) shall be produced by the pensioner once in six months.]

[Inserted by S.R.O. 217, dated 24th June, 1968]

(4)

In the cases referred to in sub-regulations (2) and (3) the pension disbursing officer shall take precautions to prevent impersonation, and shall, at least once a year, require proof independent of that furnished by the life certificate, of the continued existence of the pensioner. For this purpose, he shall (save in cases of pensioners who are exempted from personal appearance by any State Government or Administration and female pensioner not accustomed to appear in public) require the personal attendance and the due identification of all pensioners who are not incapacitated by bodily illness or infirmity from so attending and in all cases where such inability is alleged, he shall require proof thereof in addition to the proof submitted of the pensioner's existence. A pensioner of commissioned rank may be privately identified by the pension disbursing officer and need not be required to appear at a public office.

(5)

The pension disbursing officer shall be personally responsible for any payment wrongly made. In cases of doubt he shall consult the Controller of Defence Accounts (Pensions).

190.

Certificate regarding employment under a Government outside India or in a commercial firm.

(1)

A retired officer whether drawing pension in India or outside, shall be required to furnish a certificate showing whether or not during the period for which pension is claimed, he or she was employed-

(a)

under a Government outside India, and

(b)

in the case of an officer of the rank of Captain or above, in a commercial firm, within two years of retirement.

(2)

In cases where prior permission of the Central Government to such employment had not been obtained, the payment of pension shall be suspended from the date of employment and the case reported for orders of the Central Government.

191.

Payment of pension in respect of deceased pensioners.

(1)

Subject to the provisions of sub-regulation (2), arrears of pension or gratuity due to the estate of a deceased pensioner may be paid to the legal heir on production of a certified copy of the probate of the will, if any, left by the deceased, or letters of administration granted by a court of law or an indemnity certificate signed by two respectable persons that the claimant is the legal heir and that they hold themselves responsible for the refund of the amount paid, in the event of any future claim being preferred. If the legal heir is a minor, payment shall be made to the legal guardian or when there is none, to the person appointed by a court of law.

(2)

Claims to arrears of pension preferred after the expiration of one year from the pensioner's death may be admitted in full by the Controller of Defence Accounts (Pensions), if he is satisfied with the claimant's explanation for the delay; if he is not satisfied with the explanation, he shall obtain the orders of the Central Government for disbursement of pension.

Section 3-Sailors and their families

192.

Mode of payment.

(1)

Subject to the provisions of sub-regulation (2), a pension to any sailor or to any of his legal heir, payable under these Regulations shall be paid only after it has become due. In the State or Union territory specified in column 1 of Appendix XI such pension shall be payable as specified against that State or Union territory in column 2 thereof.

(2)

The provisions of clauses (i), (iii), and (iv) of sub-regulation (2) of regulation 187 shall apply in relation to pension payable to sailors and their families as they apply in relation to pension payable to officers and their families.

193.

How and by whom arrangements for payment are made.

- When an individual who has been granted a pension desires that its payment from its commencement should be made at one of the stations in India specified in Appendix X, arrangements for its payment shall be made in accordance with the following procedure:

The Controller of Defence Accounts (Pensions) shall forward the original copy of the pension payment order notifying the grant of pension, and the conditions to which it is subject, to the pension disbursing officer and authorise him to pay the pension from a date which should be specified.

The controller of Defence Accounts (Pensions) shall also prepare a pension certificate and forward it along with a copy of the pension payment order to the, Captain Naval Barracks. In the case of a pensioner who has been granted a family pension, duplicate copy of the descriptive roll shall be forwarded in addition.

On receipt of these documents, the Captain Naval Barracks shall

(a)

in the case of service and disability pensioners complete the individual's descriptive roll with the number of the pension payment order (with the exception of which the descriptive roll should be kept complete) and forward it along with the photograph of the pensioner to the pension disbursing officer concerned by registered post; hand over the pension certificate to the individual and instruct him to present it to the pension disbursing officer concerned; if the individual has already left the ship or establishment, send it to him by registered post;

(b)

in the case of family pensioners-hand over the pension certificate to the individual or send it by registered post with instruction to present it to the pension disbursing officer concerned and forward the duplicate copy of the descriptive roll to the pension disbursing officer concerned by registered post.

On receipt of the descriptive roll and the pension payment order, the pension disbursing officer shall make payment. Where, however, the pension payment order is not received by him before a pensioner appears for receiving payment, the pension shall be paid on the authority of the pension certificate. The payment thus made shall be treated as provisional and shall be confirmed after verification from the pension payment order which shall be called for from the Controller of Defence Accounts (Pensions) immediately.

194.

Identification of a pensioner.

(1)

Except as provided for in sub-regulation (2) of regulation 180 a pensioner shall take payment in person and shall be identified by comparison with the descriptive roll and pension certificate. In the case of service and disability pensioners they shall, in addition, be identified with reference to their photographs.

(2)

In the case of severely wounded and infirm pensioners and female pensioners who are not accustomed to appear in public, personal attendance shall not be necessary. Payment shall be made to a representative of the pensioner on the production of

(i)

the pension certificate;

(ii)

subject to the provisions of sub-regulations (3) and (4) a certificate signed by a Gazetted Officer of the Central Government or any State Government or by some other respectable person that the pensioner is alive. The certificate must bear the signature or the left thumb impression of the pensioner taken in the presence of that officer or person; [and shall be produced once in six months.]

(iii)

a written authority from the pensioner to the representative bearing the signature or the left thumb impression of the pensioner together with a specimen of the signature or thumb impression of the representative.

(3)

If the life certificate referred to in sub-regulation (2) is given by [a retired gazetted officer pensioner"]

[Inserted by S.R.O. 95, dated 15th February, 1975.]

a junior commissioned officer/junior commissioned officer pensioner, a sub-inspector of police, a sub-post master drawing not less than Rupees fifty per mensem, a tehsildar, a village headman, a patti patwari (in the case of Garhwali pensioners resident in Kumaon), or the head of the village panchayat, who is acquainted with the pensioner, it shall be accepted by the pension disbursing officer, if he has no reason to doubt the veracity of such a certificate. He shall inform the pensioner's representative of any further guarantee which he may require to safeguard the payment being received by the correct person. He shall also make independent enquiries once a year to satisfy himself that the pensioner is alive.

(4)

In the case of a Gorkha pensioner living in Nepal who is physically unable to apply for his pension in person, payment may be made through a pension disbursing officer in India or under arrangements by the Indian Embassy, Nepal to a representative under the conditions prescribed above but the life certificate shall be signed by either two male pensioners if below junior commissioned officer's rank or by a pensioner of Joint Commissioned Officer's rank acquainted with the pensioner.

In case of pensioners residing in Sikkim and Bhutan who are physically unable to draw their pensions in person, payment may be made by the Political Officer there, through a representative in accordance with the procedure indicated above.

[The Political Officer at Sikkim or Buthanshall obtain once a year a life certificate from Sikkim or Bhutan Government, as the case may be, for every such pensioner residing in those countries. Gorkha military pensioners residing in Nepal shall themselves be responsible for furnishing annually a life certificate signed by two male military pensioners and countersigned by an official of the Nepal Government.]

[Substituted by S.R.O. 95, dated 15th February, 1975]

(5)

The pension disbursing officer is personally responsible for any payment wrongly made. In case of doubt he shall consult the Controller of Defence Accounts (Pensions) without prejudice to the provisions of Regulation 4.

[195 to 197.

[* * *]

[Omitted by S.R.O. 139, dated 31st May, 1982]

198.

Withholding of disability pension of a pensioner who does not disclose his disability on re-employment.

- A disabled pensioner who obtains re-employment in Indian Navy without disclosing the fact that he was; previously discharged from service of any of the Armed Forces for medical unfitness, shall not be entitled, from the date of his re-employment, to any disability pension in respect of his previous service.

199.

Payment of pension or gratuity in respect of deceased beneficiaries.

(1)

Subject to the provisions of sub-regulations (2) and (3), arrears of pension due to the estate of a deceased pensioner claimed within three years of his or her death shall be investigated and paid to the heirs of the deceased by the officer responsible for the payment after such enquiry into the right and title of the claimant as he may deem sufficient. If there is reasonable doubt regarding the claim or title, the payment shall only be made to the administrator appointed by the civil court.

(2)

Any claim to arrears of pension

(a)

preferred after the expiry of three years from the date of death of the pensioner,

(b)

exceeding Rupees one hundred preferred after twelve months from the date of death of the pensioner, or

(c)

for a period exceeding twelve months shall require the sanction of the Controller of Defence Accounts (Pensions) before payment.

(3)

Claims to arrears of pension on account of deceased Gorkha pensioners drawing pension from any of the following treasuries shall, however, subject to the conditions laid down above, be disposed of finally by the officers specified against that treasury instead of by the pension disbursing officer or the Controller of Defence Accounts (Pensions):

Kathmandu

treasury

Military

Attache/Assistant Military Attache to Indian Embassy at Nepal.

Gorakhpur

treasury

The

Recruiting Officer or Deputy Recruiting Officer and Record

Officer or Assistant Recruiting Officer for Gurkhas, Kunraghat.

Darjeeling

treasury

The

Deputy Recruiting Officer and Record Officer or Assistant

Recruiting Officer, Ghoom, Darjeeling.

Darbhanga

& Purnea treasuries

The

Deputy Recruiting Officer and Record Officer or Assistant

Recruiting Officer, Ghoom, or the Collectors, Darbhanga and

Purnea, as the case may be.

Bahraich

and Gonda treasuries

Recruiting

Officer or Deputy Recruiting Officer and Record Officer or

Assistant Recruiting Officer for Gorkhas, Kunraghat (Gorakhpur)

or Deputy Commissioner, Bahraich and Gonda, as the case may be.

(4)

When the exact date of a pensioner's death cannot be ascertained, the Controller of Defence Accounts (Pensions) shall have the power to admit arrears of pensions for the entire month in which the casualty occurred, but when the month or year of death is not known the payment of arrears shall be limited to a period of one month.

(5)

In the case of Gorkha pensioners, the certificates of death and heirship granted by the mukhia of the Government of Nepal shall be counter signed by the Military Attache or Assistant Military Attache to the Indian Embassy, Nepal or the Recruiting Officer, the Deputy Recruiting Officer and the Record Officer, the Assistant Recruiting Officer for the Gorkhas, Kunraghat, or Ghoom, as the case may be.

(6)

In the case of a claim to gratuity already admitted but the payment whereof has not been made, the Controller of Defence Accounts (Pensions) or Controller of Defence Accounts (Navy) as the case maybe, may sanction its payment, depending on the circumstances of the case if an application therefor is submitted by the claimant within five years from the date on which the claim originally fell due. Cases where the application for the payment of gratuity is submitted by the claimant after the expiry of five years from the date on which the claim originally fell due shall be submitted for orders of the Central Government.

200.

Payment of life-time arrears of pension by money orders.

- Subject to the provisions of regulation 184, the payment of arrears of pension of deceased pensioners who were drawing their pensions through treasuries and pension paymasters may be made to their heirs by postal money order provided the amount of arrears does not exceed Rupees one hundred in cases where the pension is payable monthly, and Rupees three hundred in other cases.

The money order commission shall be deducted from the arrears of pension remitted.

200.

-A. Money Order Commission on payment of gratuities made by Money Order. - Money order commission on remittance of gratuities admissible under these regulations shall be borne by the Central Government.

Chapter IV

A Suspension, Discontinuance, Or Withholding Of Pension Procedure In Respect Of

200.

-B. Suspension, discontinuance or withholding of pension of a pensioner who is convicted of a crime by Court of Law or is guilty of grave misconduct not of a political nature.

- If a pensioner is convicted of a crime by court of law or is guilty of grave misconduct, which is not of a political nature, the following procedure shall be followed :

(a)

If a pensioner is sentenced to imprisonment for a criminal offence, his pension shall be suspended from the date of his imprisonment and the case reported by the Controller of Defence Accounts (Pensions), Allahabad for the order of the competent authority. in a case where a pensioner is kept in police or jail custody as an under-trial prisoner and is eventually sentenced to a term of imprisonment for a criminal offence, the suspension of pension shall take effect from the date of imprisonment only.

(b)

The competent authority shall decide in consultation with the Controller of Defence Accounts (Pensions) and if necessary, with the civil authorities also, whether the offence is a serious one and if so, he shall order the removal of the prisoner's name from pension list, from the date of the commencement of his imprisonment. Pension there upon shall cease to be payable from that date.

(c)

If the competent authority decides that the offence is not so serious as to justify the removal of the pensioner's name from the pension list, it shall not be removed; the payment of arrears of pension due from the date of last payment before imprisonment shall be made on release from prison.

(d)

if a pensioner is sentenced to imprisonment for a criminal offence by a lower court but is acquitted, on appeal, by a higher court, the pension withheld shall be restored.

(e)

If a pensioner is imprisoned for debt, pension shall continue to be paid.

(f)

If a pensioner is guilty of grave misconduct not falling under the proceeding clauses, it shall at once be reported to the competent authority who may, if he considers it justifiable, order the suspension of his pension from a date to be specified. The competent authority shall subsequently investigate the case in consultation with the Controller of Defence Accounts (Pensions) and if necessary the civil authorities, and

(i)

either authorise the withholding of pension in whole or in part from a date to be specified by him not earlier than the date of original suspension;

or

(ii)

authorise continuance in full.

(g)

If a pensioner is convicted by a foreign court (including Nepal) or is imprisoned in a jail outside India for a serious crime of a non-political nature, his case will be referred to the Government of India through the Controller of Defence Accounts (Pensions) for a decision on the question of reduction/ forfeiture or restoration of pension. Clause (a) above will apply in these cases also.

(h)

Where an individual pensioner is convicted to a serious crime by a court of law, action to withhold or withdraw gratuity and pension or a part thereof shall be taken by the competent authority in the light of the judgement of the Court and other provisions of this Chapter."

"200-C. Suspension, discontinuance or withholding of pension of a pensioner who is convicted of a crime by a Court in India or is guilty of a misconduct of a political nature.

- If a pensioner is convicted of crime by a court in India or is guilty of misconduct of a political nature his case shall be reported by the Controller of Defence Accounts (Pensions) to the competent authority, who on the recommendation of the State Government or Administration concerned may order the withholding of his pension (service and disability pensions, family pension drawn by adult males only, and children allowance) from a date to be specified. In cases where the pensioner is sentenced to imprisonment, his pension shall, pending the orders of the competent authority be suspended from the date of his imprisonment.

If a pensioner is convicted by a foreign court or is imprisoned in a jail outside India for a crime of a political nature by a friendly foreign country, his case for reductional forfeiture or restoration of pension as well as the question of payment of pension for the period of imprisonment, will be decided by the Indian High Commissioner or Ambassador to that country in consultation with the foreign Government concerned."

200.

-D. Restoration of Pension withheld.

- A pension withheld in whole or in part may be restored in full or in part by the competent authority in consultation with the State Government or Administration concerned in political cases and with the Controller of Defence Accounts (Pensions) and the civil authorities if necessary, in other cases. In the case of a pensioner undergoing imprisonment, any action under this Regulation shall only be taken on his application after release but in no case, shall pension be sanctioned for the period of imprisonment in jail for a serious crime.

200.

-E. Suspension, discontinuance or withholding of pension of a pensioner.

(1)

Before passing orders under these regulations regarding suspension, discontinuance or withholding of the whole or part of pension (including commuted value thereof which has not been paid) children allowance or gratuity (including Death-cum-retirement Gratuity), the competent authority shall serve upon the individual pensioner, a notice specifying the action proposed to be taken and calling upon his/her to submit within thirty days of the receipt of the notice (or such further time not exceeding thirty days as may be allowed by the competent authority) such representations as he/she may wish to make against the proposal.

(2)

The competent authority shall, after considering the representation if any made by the pensioners under sub-regulation (1) decide and issue orders in writing to suspend, discontinue or withhold the whole of pension, children's allowance and gratuity or part thereof, indicating whether the orders in the case of pension and children allowance will apply permanently or only for a specified period.

(3)

An appeal against the decision of the competent authority in cases falling under regulation 8 can be made to the Appellate authority. Appellate authority shall be the President in the case of the commissioned officers. In the case of sailors, the appeal shall lie to the Flag Officer Commanding-in-Chief of the Naval Command or the Flag Officer Commanding of the Naval Area concerned. The appeal will be made through the Captain Bureau of Sailors, BOMBAY.

(4)

In the case of personnel below the officer's rank the competent Authority/ Appellate Authority will consult the Controller of Defence Accounts (Pensions) while passing the final orders. In the event of difference of opinion between these authorities and the Controller of Defence Accounts (Pensions) the matter will be referred to the Government of India for orders.

Chapter V

Limitation Of Claims

Section I-General

201.

Definition of "claimant".

- For the purpose of regulations 202; 205 and 206 the term "claimant" shall mean the Captain Naval Barracks.
202.

Claims for the initial grant of pension or allowance or for gratuity.

- Save as otherwise provided in section 2 and 3 of this chapter :

(a)

First claims for pension or allowance or gratuity, under these regulations, preferred within twelve months of the date on which they fall due shall be entertained and paid with full arrears, if such claims are otherwise in order;

(b)

such claims which are not preferred within that period may be admitted with full arrears, if the pension sanctioning authority concerned is satisfied with the claimant's explanation for the delay in their submission; if he is not satisfied with the explanation, such claims shall be submitted for orders of the Central Government who shall give the decision depending on the circumstances of the case. Section 2-Officers and their families

203.

Special provisions for claims to pensions in respect of widows.

- In the case of widows of commissioned officers, pension shall normally be awarded from the date of application. Arrears prior to that date shall be paid as follows:

(a)

if application for pension is made within six months of the officer's death, full arrears shall be paid;

(b)

if failure to apply for pension within six months of the officer's death is, in the opinion of the pension sanctioning authority, due to satisfactory cause (such as serious illness of the widow), payment of arrears prior to the date of application shall ordinarily be limited to a period of six months;

(c)

if the widow is unable to furnish a statement or a reasonable estimate of her income in cases where such estimate or statement is necessary, within six months of her husband's death but she completes and submits her application for pension within that period, full arrears shall be paid, if she is subsequently found eligible for pension;

(d)

in the case of death of an officer prior to the settlement of his disability pension claim, the time-limit of six months shall be reckoned from the date of orders of the Central Government sanctioning the grant of disability pension.

204.

Claims to arrears of pension by pensioners who fail to draw their pension.

(1)

Unless otherwise provided in these Regulations, a pensioner who fails to draw his pension for a period of twelve months shall be struck off the pension establishment.

(2)

if he thereafter prefers a claims to draw his pension, he may be readmitted to the pension establishment, if he accounts for such failure to the satisfaction of the competent authority which may depending on the circumstances of the case, grant or withhold the arrears of pension or any portion thereof.

Section 3 - Sailors and their families

205.

Claims for initial grant, revision and re-assessment of pension or allowance or for gratuity.

(1)

Subject to the provisions of sub-regulation (2), claims for the first grant, revision and re-assessment of pensions or allowance or gratuity shall be dealt with as follows:

Claims preferred after twelve months from the date on which they fall due shall be entertained, if otherwise such claims are in order, with arrears as specified below :

(i)

Where arrears are due to rectification of a mistake in assessing or reassessing a pension, etc., or to revision of a pension, etc., which is not revised through inadvertence at the time of a

general revision.

Full

arrears subject to the maximum of arrears for five years preceding the date of the pension payment order in which the correct or the revised rate is notified.

(ii)

Claims to first grant of a pension, etc., or to revision of a pension, etc., in cases where reassessment is to be made only on the submission of a claim;

(a)

Where explanation for the delay is considered by the pension sanctioning authority to be satisfactory.

Full

arrears subject to the maximum of arrears for five years preceding the date of the pension payment order in which the award is notified.

(b)

Where no action is taken on a petition or the petition is rejected on account of any error on the part of the pension sanctioning authority or competent authority and the applicant does not represent the case again for more than a year after the first rejection.

Up

to three years preceding the date of the application which is pursued to a finality and leads to the grant of a pension, etc., subject to the maximum of arrears for five years preceding the date of the pension payment order in which the award is notified.

(c)

Where explanation for the delay is considered by the pension sanctioning authority to be unsatisfactory.

From

the date of the application subject to a maximum of arrears for three years preceding the date of the pension payment order in which the award is notified.

Provided that where a pending enquiry award is under issue, the date of commencement of pension shall be the date from which the pending enquiry award was sanctioned.

Explanation. - Doubtful cases, as also cases in which the grant of arrears for periods in excess of the periods referred to above is considered to be justified in the special circumstances of the case shall be referred by the pension sanctioning authority to the Central Government for orders.

(2)

Claims for family pension preferred by claimants who are disqualified under these regulations shall not be entertained.

(3)

The provision of this regulation shall apply to claims for transfer of family pension and increase of children's allowance.

Explanation. - In regard to claim for transfer of family pension to the widow under regulation 130, the period of twelve months shall reckon from the date on which intimation regarding the death of disqualification of the recipient of the family pension is received by the Captain Naval Barracks, Bombay from the Controller of Defence Accounts (pensions) or from any other source.

(4)

In cases of death of individuals who are invalided out of service and who die prior to the settlement of their disability pension claims, the time-limit of twelve months under regulation 202 and sub-regulation (1) of this regulation for the

purpose of special family pension claims shall be reckoned from the date of the pension payment order in which the award of disability pension is notified.

(5)

(i)

Claims to gratuity preferred after twelve months but within three years of the date on which they fall due shall be admitted in full by the Controller of Defence Accounts (Pensions) or Controller of Defence Accounts (Navy), as the case may be: Provided that claims preferred after three years but within five years of such date may, where the explanation for the delay is satisfactory be admitted in full by the said authority.

(ii)

Claims not covered by clause (i) shall be submitted for orders of the Central Government.

206.

Claims for counting former service for pension and gratuity.

- All claims for counting former service for pension submitted by the Captain, Naval Barracks, if otherwise in order, shall be admitted by the Controller of Defence Accounts (Navy). In cases, however, where the delay in preferring a claim exceeds twelve months from the date when the pension fell due, the claim shall be admitted in full by the Controller of Defence Accounts (Navy) and a report of the late submission of the claim shall be made by him to his next superior authority for such action as may be deemed necessary by the latter.

207.

Claims to arrears of pension or gratuity.

(1)

Claims to arrears of pension preferred within a period of twelve months of the date from which it became due and payable shall be entertained and may be paid by the pension disbursing officer, if such claims are otherwise in order. Such claims preferred after twelve months but within three years of such date shall be entertained and may be paid by the competent authority if it is satisfied with the claimant's explanation for the delay in drawing the pension.

(2)

If after the expiry of three years no explanation has been received of the cause of a pensioner failing to draw his pension, his name shall be struck off the pension establishment. If he thereafter prefers a claim to draw his pension he maybe readmitted to the pension establishment if he accounts for his failure to draw the pension, to the satisfaction of the competent authority. The authority shall, depending on the circumstances of the case grant or withhold the arrears of the pension or any portion thereof.

(3)

In case of claims to gratuity already admitted but where the payment thereof has not been made, the Controller of Defence Accounts (Pensions) or the Controller of Defence Accounts (Navy), as the case may be, may sanction its payment depending on the circumstances of the case, if an application therefor is submitted by the claimant within five years from the date on which the claim originally fell due.

Cases where the application for the payment of gratuity is submitted by the claimant after the expiry of five years from the date on which the claim originally fell due shall be submitted by the said Controller for orders of the Central Government.

Chapter VI

Recoveries And Over Payments

208.

Recovery of public claim, non-public fund debts or claims from pension.

(1)

Subject to the provisions of sub-regulation (2), a public claim against a pensioner, non-public fund debt due from him or a non-public fun claim which the Central Government may direct him to pay, shall be recoverable from his pension, gratuity or commuted value of pension.

(2)

A public claim or non-public fund debt, shall not be recovered from the disability pension of an officer or sailor, except under the special orders of the Central Government.

(3)

[A public claim against a sailor, a non-public fund debt due from him or non-public fund claim which the Central

Government may direct to be recovered shall be recoverable from the gratuity admissible to him widow under regulation 142.]

[Inserted by S.R.O. 95, dated 15th February, 1975]

209.

Mode of recovery of public claims (other than over payments of pensions), non-public debts or claims.

- Public claims, other than those on account of overpayment of pensions, non-public fund debts and non-public fund claims which the Central Government directs any person to pay, shall be adjusted as under

(i)

Retirements on account of excess issues of pay and unauthorised expenditure, stoppages other than those awarded under the Act, the value of losses and all other claims for which Central Government holds any person liable, shall be recovered in monthly instalments of one-third of pension until the full claim is satisfied.

The competent authority may, if it is satisfied that there are reasonable grounds for such a course, which must be recorded in writing, relax this regulation and order recoveries to be made in smaller amounts which in no case shall exceed twelve instalments in number.

(ii)

in the case of public claims other than those specified in clause (i), and non-public fund debts which are not disputed, the Commanding officer/Captain Naval Barracks of the person against whom the claim is made or from whom the debt is due may order the recovery of the amount from his pension in such instalments as the Commanding Officer/Captain Naval Barracks considers reasonable.

(iii)

In the case of a non-public fund debt where the person from whom it is due disputes the correctness of the amount or repudiates his liability, such debt becomes a non-public fund claim and shall be recovered only under the orders of the Central Government.

Explanation. - Non-public fund debt means any debt arising out of dues recoverable from the person towards :

(a)

Loan granted from any Non-public Funds (vi. I.N.B.A./Command Benevolent Funds).

(b)

Suscription and other dues in respect of any Non-Public Fund (viz. I.N. Amenities Fund /Contributory Education Scheme)

(c)

Purchases made on credit from Canteens.

(d)

Mess/Wine Bills.

(e)

Loss incurred by the person of any money or stores, belonging to any Non-Public Fund entrusted to him (viz. Library Books/Sports equipment etc.).

(f)

Deficiency or irregular expenditure of Non-Public Fund money or stores of which, after due investigation, no explanation satisfactory to the Chief of Naval Staff, is given by the person who is responsible for the same.

(iv)

The mode of recovery from disability pension shall be determined by Central Government in each individual case.

(v)

If any person is eligible for a gratuity in lieu of pension or if he has commuted a portion of his pension, the whole amount of the claim shall be recovered in one instalment from the gratuity or commuted value of the pension, as the case may be.

210.

Over payments of pension.

(1)

Overpayment of pension in India due to an error in law (including those due to misinterpretation of any of these regulations) shall not be recovered, but shall be reported by the Controller of Defence Accounts (Pensions) to the Central Government through the Controller General of Defence Accounts.

Any case in which there is a doubt or a difference of opinion between the Controller of Defence Accounts (Pensions) and the competent authority as to whether the overpayment was due to an error in law, or due to misinterpretation of any of these regulations, shall be submitted to the Central Government through the Controller General of Defence Accounts for orders.

Cases of overpayment in such circumstances outside India shall be reported by the Controller of Defence Accounts (pensions) to the Central Government through the Controller General of Defence Accounts for orders.

(2)

Overpayment of pension due to any other reason (including those involving fraud) shall be dealt with as follows :

(i)

Those challenged in audit within twelve months from the date of payment.- If a pension is payable, further payments shall be made at the correct rate and the overpayment recovered in instalments of one-third of the pension. If the circumstances leading to overpayment disclose fraud on the part of the recipient, and in the opinion of the Controller of Defence Accounts (Pensions) warrant the stoppage of the pension in full or recovery of over payments in instalments of more than one third of the pension, a report shall be submitted (through the Controller General of Defence Accounts in cases of pensions drawn outside India) to the competent authority, who shall decide each case on its merits and communicate their decision to the Controller of Defence Accounts (Pensions). Further adjustment as may be necessary shall be carried out by the Controller of Defence Accounts (Pensions) on receipt of such orders.

If no pension is admissible, payment shall cease immediately the error is detected and a report of the circumstances leading to the overpayment shall be submitted (through the Controller General of Defence Accounts in cases of pensions drawn outside India) to the competent authority.

(ii)

Those not challenged in audit within twelve months from the date of payment (including those where payments were made partly within twelve months and partly on a date or dates more than twelve months anterior to the date of challenge). - If a pension is payable, further payments shall be made at the correct rate and a report of the circumstances leading to the overpayment shall be submitted by the Controller of Defence Accounts (Pensions) (through the Controller General of Defence Accounts in cases of pensions drawn outside India) to the competent authority. pending the orders of that authority, no recovery of the overpayment shall be made.

If no pension is payable, payment shall cease immediately the error is detected and a report of the circumstances leading to the overpayment shall be submitted by the Controller of Defence Accounts (Pensions) (through the Controller General of Defence Accounts in cases of pensions drawn outside India) to the competent authority.

(3)

Action to be taken by the competent authority. - On receipt of the reports specified in clauses (i) and (ii) of sub-regulation (2) the competent authority shall for reasons to be recorded in writing decide, subject to the provisions of clause (ii), whether the whole or any portion of the overpayment shall be recovered or written off or in cases involving fraud or misconduct whether the pension shall be withheld wholly or reduced, and if so, permanently or temporarily, as the case may be, and communicate his decision to the Controller of Defence Accounts (Pensions).

Any amount withheld under this regulation shall be adjusted against the overpayment to the extent necessary.

(ii)

In cases of pensions drawn in India, over payments made during the twelve months preceding the date of challenge in audit shall not be written off unless it is impossible to effect recovery.

(4)

How recovery is made. - If the competent authority decides that the overpayment should be recovered, recovery shall normally be effected in instalments of one-third of the pension unless otherwise specified in the orders. If no pension is payable, the method of recovery shall be decided by the competent authority [in consultation with the Controller of Defence Accounts (Pensions) in the cases of pensions drawn in India.]

211.

[Powers of the Controller of Defence Accounts (Pensions) and the officers of his establishment to write off over-payment of pension and to waive audit objections.

[Substituted by S.R.O. 95, dated 15th February, 1975.]

(1)

Over payments of pension not due to an error in law (including misinterpretation of regulations and orders) which are,

from any cause, irrecoverable may be written off by the Controller of Defence Accounts (Pensions) or by a joint Controller of Defence Accounts (Pensions), if in independent charge, up to an amount not exceeding rupees two hundred and fifty in each case.

(2)

In order to save time and trouble over relatively unimportant items, the Controller of Defence Accounts (Pensions) or the joint Controller of Defence Accounts (Pensions) if in independent charge may, at his discretion, when he is reasonably satisfied that, having regard to the facts of the case, it is in the best interests of the Central Government to do so, waive any audit objection on the payment of pension up to a limit of rupees one hundred and twenty-five in each case, brief reasons being recorded of the circumstances which, in his opinion, justify the waiver. Similarly the Joint Controller of Defence accounts (Pensions) may waive an audit objection upto a limit of rupees seventy five in each case. A Deputy Controller of Defence Accounts (Pensions) may exercise the same powers upto a limit of rupees fifty and an Assistant Controller of Defence Accounts (Pensions) or a gazetted officer in charge of a section, up to a limit of rupees twenty-five in similar circumstances.

(3)

In cases where the whole or any portion of the expenditure although not unjustifiable in itself, is not exactly covered by rule or the authority for the expenditure is insufficient or full proof that it has been incurred has not been provided such as an absence of one or more sub-vouchers, the Controller of Defence Accounts (Pensions), or the joint Controller of Defence Accounts (Pensions) if in independent charge, may waive an audit objection upto a limit of rupees two hundred and fifty in each case;

Provided-

(i)

that the expenditure is not of an intrinsically recurring nature;

and

(ii)

where the objection is based on insufficiency of sanction, he is satisfied that the authority empowered to sanction the expenditure would accord sanction if required; or

(iii)

where the objection is based on insufficiency of proof of payment, he is of opinion that undue trouble would be caused if the submission of the full proof of the expenditure having been incurred were insisted on, and he sees no reason to doubt that the payment has actually been made.]

212.

Over payments indicating defective system or serious failure of audit.

- Should the circumstances in which overpayment has been made in any case reveal any serious irregularity or defect in procedure or serious failure of audit for which the staff of the Defence Accounts Department is responsible, a full report of the case shall be made by the Controller of Defence Accounts (Pensions) to the Controller General of Defence Accounts who shall take such further action as may be necessary.

[212-A. Recovery of disability pension from a pensioner who is re-employed or re-enrolled without disclosing his invalidation.-

[Substituted by S.R.O. 95, dated 15th February, 1975.]

Any payment of the disability pension made after the date of re-employment or re-enrolment, to a pensioner who is re-employed or re-enrolled without disclosing that he was invalided out of service shall be recovered as under :]

(a)

if he is on effective list, from his pay and allowances; and

(b)

if he is non effective, from the fresh award of disability pension, if any, sanctioned on the termination of his re-employment or re-enrolment.

213.

Overpayments in India on account of erroneous grant of more than one family pension.

- Overpayments made consequent on the erroneous grant of more than one family pension to the same pensioner may be written off by the competent authority provided that it is established that the overpayments were made in good faith and that there has been no attempt to defraud.

214.

Overpayments resulting from false certificates of widowhood or non-marriage-recovery from pension.

(1)

Overpayments of pension obtained by female pensioners on presentation of false certificates of continued widowhood shall, irrespective of the amount involved be referred by the Controller of Defence Accounts (Pensions) to the competent authority for orders as to the manner in which the sum fraudulently drawn by the alleged widow shall be recovered, where the false certificate has been signed by any person receiving pension under these regulations, from such pension, unless that pensioner can offer a satisfactory explanation provided that the sum so recovered every month shall not exceed 1/3 of the monthly pension of that pensioner.

(2)

The provisions of sub-regulation (1) shall also apply mutatis mutandis to overpayments of pension made to female pensioners who submit false non-marriage certificates.

Explanation. - Signing the certificate in ignorance of the widow's remarriage shall not be accepted as satisfactory explanation for the purpose of this regulation.

Chapter VII

Procedure For Commutation Of Pensions-[***]

[Omitted Inserted & Ruled By S.R.O. 95, Dated 15th February, 1975]

[Section 1-Officers]

[Omitted Inserted & ruled by S.R.O. 95, dated 15th February, 1975]

215.

Age of commutation.

- The age for purpose of commutation shall be calculated on the basis of the date of birth indicated in the audited Navy Lists. Where, however, the date of birth has not been verified in audit, the case shall be submitted by the Naval Headquarters for orders of the Central Government.

216.

Submission of application and arrangement for medical examination.-

(1)

An application for commutation of a portion of pension shall be in the prescribed form (see Appendix VIII) and be made

(i)

if in India, to the Chief of the Naval Staff through the Controller of Defence Accounts (Pensions); and

(ii)

[if outside India, to the Secretary to the Government of India, in the Ministry of Defence through the Indian Mission concerned and the Controller of Defence Accounts (Pensions).]

[Omitted Inserted & ruled by S.R.O. 95, dated 15th February, 1975]

(2)

The application shall be made so as to reach the Chief of the Naval Staff, at least one month before the date on which the applicant will attain the age specified in the application. Such applications from officers residing outside India should reach the Central Government at least three months before the date on which the applicant will attain such age.

(3)

The commuted value payable shall be assessed by the Controller of Defence Accounts (Pensions) and intimated to the Chief of the Naval Staff or to the Secretary to the Government of India, Ministry of Defence, as the case may be, when forwarding the application, for communication to the applicant.

(4)

if the applicant is residing in India, the Chief of the Naval Staff shall arrange a medical board at any station in India that may be convenient to him, such board being assembled under the orders of the State Government or Administration and presided over, when practicable, by the chief civil administrative medical officer of the State or Administration. In cases where difficulty may arise in the assembly of a civil medical board, the Chief of the Naval Staff may convene a suitable service medical board for the purpose.

(5)

The pensioner shall at the same time be informed of the date on which he should present himself for examination by a medical board, which in no case, shall be earlier than the actual date of retirement. The pensioner shall have the option

of withdrawing his application at any time before the date fixed for examination by the medical board.

(6)

[If the applicant is residing outside India, the Indian Mission concerned shall arrange a medical board at any station in the country convenient to the applicant as well as to the Mission. The composition of the medical board shall be decided by the Mission.]

[Substituted and Inserted by S.R.O. 95, dated 15th February, 1975]

217.

Medical board's fees.

- By whom borne -[1]

[Substituted and Inserted by S.R.O. 95, dated 15th February, 1975]

Civil medical board. - (1) If the examination is conducted by a civil medical board in India, the pensioner shall pay a fee of Rupees sixteen one-fourth of which, shall be credited to the Central Government as revenue of the civil department concerned and the balance shall be paid by the pensioner in cash to the Board at the time of the medical examination to the retained and divided by the members of the board among themselves.

(ii)

The authority competent to convene the civil medical board shall, when sending intimation to the pensioner, direct him to deposit Rupees four, into the civil treasury or the Reserve Bank of India, or its agencies carrying on treasury functions for the time being on behalf of the Central Government and to hand over the receipt along with the balance of Rupees twelve, in cash to the board at the time of examination. The above authority shall also direct the board to forward the receipt and the medical certificate to the civil audit officer concerned and the Controller of Defence Accounts (Pensions) respectively.

(2)

Services medical board. - No fee shall be payable by the pensioner in respect of his first examination when he is examined by the services medical board.

[3] Medical Board for pensioners residing outside India-Necessary fee for the medical board shall be deposited in full by the applicant with the Indian mission who shall arrange payment to the members of the medical board. The pensioner shall pay the fee of the board according to the rates fixed by the Indian Mission in that country.]

[Substituted and Inserted by S.R.O. 95, dated 15th February, 1975]

218.

Form of medical board report.

(a)

The medical board shall report in the following form:

"We have carefully examinedand are of the opinion that he is/ he is not in good bodily health and has/has not the prospect of an average duration of life. We therefore (or do not) recommend him to be allowed to commute a portion of his pension.

Form of declaration in respect of health and fitness etc. of the individual duly completed in our presence is also attached;"

(b)

In the case of impaired lives in which officer's application is recommended, but with an addition of years of age, the following form shall be used by the Medical Board:

"We have carefully examinedand are of the opinion that he is not in good bodily health and has not the prospect of an average duration of life. We, however, recommend him to be allowed to commute a portion of his pension, but as he is suffering fromhis age for the purposes of commutation i.e. his age next birthday, should be taken to beyears more than his actual age.

Form of declaration in respect of health and fitness etc. of the individual duly completed in our presence is also attached."

219.

Payment of commuted value.

(1)

(i)

If the board reports that the pensioner has an average expectation of life, the commuted value already notified to the

officer shall be paid in the manner indicated by him on his form of application.

(ii)

in cases where an addition to his age is recommended, the pensioner shall be informed by the Controller of Defence Accounts (Pensions) by registered post and with acknowledgment due of the board's recommendation and of the commuted value payable in view thereof.

(iii)

That applicant may withdraw his application by written notice to the Controller of Defence Accounts (Pensions) despatched within two weeks from the date on which he receives intimation of the revised sum payable on commutation. If the applicant does not withdraw in writing his application within the said period, he shall be presumed to have accepted the sum offered.

(2)

[The capitalised value shall be paid as under :]

[Substituted by S.R.O. 95, dated 15th February, 1975]

(i)

Pensioners residing in India as well as those residing outside India who have not been permitted to draw their pension outside India-The capitalised value shall be payable in India but pensioners residing outside India shall have to make their own arrangements for its transfer to the foreign country concerned.

(ii)

Pensioners residing outside India, who have been permitted to draw their pension in a foreign country-Payment of capitalised value shall be made through the Indian Mission.

(3)

Payment of commuted value shall be made as expeditiously as possible but in the case of an impaired life, no payment shall be made until either the period within which the application for commutation may be withdrawn has expired, or a written acceptance of commutation is received.

(4)

If any commuted portion of pension has been drawn after the date on which the commutation became absolute, the amount drawn shall be deducted from the amount payable on commutation.

(5)

If the pensioner dies on or after the day on which commutation became absolute, but before receiving the commuted value, the value shall be paid to his legal heirs.

220.

Reopening of rejected applications for commutation and payment of fees for the medical examination by a second medical board.

(1)

A pensioner whose application to commute a portion of his pension has been rejected on the recommendation of a medical board, or who has once declined to accept commutation on the basis of an addition of years to his actual age recommended by a medical board, may prefer an appeal to the Naval Headquarters and that authority may if it thinks fit, permit him to appear for a re-examination by a medical board, provided that a period of not less than one year has elapsed since the date on which he was examined by the first medical board. In such cases the provisions of clause (1) of regulation 217 shall be followed irrespective of whether the re-examination is conducted by a civil or a services medical board, except that when the examination is conducted by the services medical board, the Government share of the fee, shall be credited as receipt of the Defence Services and the receipt together with the medical certificate shall be forwarded to the Controller of Defence Accounts (Pensions).

(2)

If in the opinion of the medical board some special examination is necessary which it is not in a position to carry out itself, it may require the pensioner to undergo such examination at his expense.

221.

Recovery of public claims from the commuted value.

- Before the commuted value is paid, the Controller of Defence Accounts (Pensions) shall ascertain whether any public claim is outstanding against the applicant and deduct the amount of any such claim from the sum which would, but for the claim, be payable to him.

222.

[Commutation of anticipatory or provisional pension-Officers

[Substituted by S.R.O. 95, dated 15th February, 1975]

- An applicant for commutation of his pension who has clearly indicated his intention to commute the maximum amount of his pension or expressed the amount proposed to be commuted as a fraction or percentage of the full and final pension within the maximum permissible limits and is allowed to commute such fraction or percentage of the anticipatory or the provisional pension, shall neither be required to apply afresh nor to produce a fresh certificate of medical examination for commutation of the difference between the fraction or percentage of the final pension and the anticipatory pension or provisional-pension. As the commutation in such cases is payable in two instalments, one out of the anticipatory or the provisional pension and the other after final assessment of pension, the report from the Controller of Defence Accounts (pensions) shall have to be called for twice. A fresh sanction of the competent authority for the difference of the commuted value, that is the maximum value accrued minus value commuted provisionally shall be necessary. In such cases, commutation as finally sanctioned shall also take effect from the date of original commutation of the anticipatory or provisional pension and the amount of residual pension shall also be re-adjusted from the same date.]

Section 2-Sailors. including the Master Chief Petty Officers granted honorary commissions and Short Service Commissioned Officers (ex-sailors)

223.

Age for commutation.

(1)

the following documents in original shall be accepted as proof of the date of birth for the purpose of commutation, namely :-

(i)

the Matriculation Certificate or the Secondary School Leaving Certificate, or a Certificate recognised by an Indian university as equivalent to Matriculation, or

(ii)

Municipal birth certificate or an extract from the Municipal birth register, duly certified by the proper authority, or

(iii)

the record of admission in the registers of the school or schools in which the applicant was educated and also a record of the applicant's age at various periodical school examinations.

(2)

Where the documentary evidence as required by sub-regulation (1) is not available, the date of birth shall be verified with reference to the assessed apparent age given in the enrolment form. For purposes of calculating the date of birth in such cases, it shall be assumed that the individual has completed the assessed apparent age on the date of enrolment e.g. if a person has been enrolled on the first August nineteen hundred and thirty-seven and if on that date his age is assessed as seventeen years, his date of birth shall be taken as the first August nineteen hundred and twenty. In cases in which the year and month in which the individual is born are known but not the actual date, the latter shall be taken as the sixteenth of the month.

Explanation. - A pensioner may submit any of the documents mentioned above as a proof of his age without certifying the non-availability of other proof of higher inter se priority.

224.

Submission of application

(1)

An individual desirous of commuting a portion of his pension shall apply in Form 28 specified in Appendix VIII, along with two duly attested copies of his passport size photographs (one copy to be pasted on the application form itself at the appropriate place while the other is to be loosely attached to the form), as under :

(i)

if he is still in service or has retired but his pension has not yet been sanctioned, he shall apply to the Controller of Defence Accounts (Pensions) through the Commodore Naval Barracks ;

(ii)

in the case of pensioners residing outside India, the procedure for submission of application and arrangements for

medical examination shall be as laid down in regulation 216.

(iii)

if he is receipt of a pension, he shall apply to the Controller of Defence Accounts (Pensions), through the pension Disbursing officer concerned who shall, while forwarding the application to the Controller of Defence Accounts (Pensions) complete portion 'B' in Part I of the said Form and also furnish information on the point whether the pension in issue is without any encumbrance.

(2)

In order to ensure that payment is made at the rate shown for the specified age, it is necessary that application to commute pension must reach the office of the Controller of Defence Accounts (Pensions) at least two months before the applicant shall attain such age.

225.

Action by the Controller of Defence Accounts (pensions) on receipt of application for commutation of pension.

- On receipt of an application for commutation of pension, the Controller of Defence Accounts (Pensions), shall inform the individual of the commuted value which shall be payable to him in the event of his being found to have an average expectation of life and also instruct him to appear for a medical examination, before a specified authority within three months from the date of the Controller of Defence Accounts (Pension)'s letter and if the application for commutation has been made in advance of the date of retirement or discharge, within three months of that date, but in no case, earlier than the actual date of the retirement or discharge. This intimation shall constitute administrative sanction to the commutation of pension, but shall lapse if the medical examination does not take place within the period specified in the sanctioning order. If the applicant does not appear for the medical examination before the specified medical authority within the specified period, the Controller of Defence Accounts (Pensions), may at his discretion renew administrative sanction for a further period of three months without obtaining a fresh application for commutation of pension. Cases, where the applicant is medically examined by the Controller of Defence Accounts (Pensions), Allahabad, on merits and administrative sanction shall be renewed further only if he is satisfied that the application is not to blame for the delay.

226.

Payment of Capitalised Value.

- (1) Average life - If the medical authority reports that the pensioner has an average expectation of life, the capital sum already notified shall be paid to him and the corresponding deduction made from his pension.

(2)

Impaired life - In case, an addition to his age is recommended, the pensioner shall be informed by registered post with acknowledgement due, of the medical authority's recommendation and the commuted value payable in lieu thereof. The sum offered shall be paid if the applicant does not withdraw in writing his application within a period of fourteen days from the date on which he receives intimation of the revised sum payable on commutation.

(3)

Verification of signatures of the individual - While authorising payment of commuted value, the Controller of Defence Accounts (Pensions) shall forward to the Pension Disbursing officer Form 30 specified in Appendix VIII containing the signatures taken in the presence of the medical authority with instructions that they should be verified with those received with the Pension Payment Order.

(4)

Payment on the death of pensioner before receiving commuted value of pension. - If a pensioner dies on or after the date on which the commutation became absolute but before receiving the commuted value, its value shall be paid to his legal heirs.

(5)

Overdrawal of commuted portion - If the commuted portion of the pension has been drawn after the date on which the commutation became absolute, the amount drawn shall be deducted from the amount payable on commutation.

(6)

Payment of commuted value in or outside India - Payment of the commuted value in India or outside India shall be regulated in the manner specified in sub-regulation (2) of regulation 219.

(7)

Cancellation of sanction - The Controller of Defence Accounts (Pension) may cancel the sanction at any time before

payment is actually made, if the applicant makes any statement found to be false within his knowledge or wilfully suppresses any material fact in answer to any question, written or oral, put to him in connection with his medical examination.

227.

Competent Medical Authority.

(1)

The medical authority competent to examine an applicant for commutation of an amount of pension which, together with the amount previously commuted, exceeds rupees twenty five per month shall be a civil medical board if such a board can be arranged to meet at a station reasonably near to the applicant's residence within the period specified by the sanctioning authority. Failing this, a reviewing board shall constitute a medical board which shall either be the standing medical board at the head quarters of the civil administration or the senior medical officer of the administration and a medical officer nominated by him of status not lower than that of civil surgeon. Such an authority shall review the medical report on the health and expectation of life of the pensioner made by the civil surgeon or district medical officer of the area in which the applicant is ordinarily resident at the time he applies for commutation. After calling for any information as it thinks fit from the examining officer, it shall pass final orders.

(2)

In the case of an applicant who applies for commutation of an amount of pension which, together with the amount or amounts previously commuted, is rupees twenty-five or less, the competent medical authority shall be the medical officer not below the status of a civil surgeon or district medical officer of the area in which the applicant is ordinarily resident.

(3)

Where it is not possible to arrange medical examination by either of the authorities mentioned in sub-regulation (1) or sub-regulation (2), the Controller of Defence Accounts (Pensions) may arrange examination of the applicant by a Services medical board.

(4)

(a)

if the applicant is a person residing in Nepal and drawing a pension through the Indian Embassy in Nepal, the competent medical authority shall be the medical officer of the Indian Embassy in Nepal. To avoid inconvenience the medical examination of an applicant who is resident of Nepal may be carried out at the Central Coordination Board Hospital in Nepal or the Check Post Hospital at Dhankutta. In such cases the medical report shall be reviewed by the medical officer of the Indian Embassy, Nepal, if the commuted amount exceeds rupees twenty five per month;

Provided that if the medical officer of Check Post Hospital at Dhankutta happens to be a Government employee, the report of the medical examination carried out by him shall not be subject to such review.

(b)

Hospitals where pensioners residing in Nepal may go for medical examination are as under :

1. Military Hospital, Kunraghat.
2. Military Hospital, Lebong.
3. Embassy Hospital, Kathmandu.
- Central Co-ordination Board Institution
4. Western Zone Hospital, Pokhara.
5. District Soldiers' Board Hospital, Syangja, No. 4 West.
6. District Soldiers' Board Hospital, Gulmi (Tamgas).
7. District Soldiers' Board Hospital, Piuthan (West Nepal).
8. District Soldiers' Board Hospital, Bhojpur (East Nepal).
9. District Soldiers' Board Hospital, Terathum (East Nepal).
10. Check Post Hospital, Dhankutta (East Nepal).

(5)

It shall be permissible for a Gorkha sailor whose home is in Nepal and who is due to be transferred to the pension establishment to apply for the commutation of his pension if he so desires, shortly before the actual date of his discharge. In such a case, his medical examination may be carried out, before he leaves his Ship or Establishment or discharge, at the Service Hospital of the Station at which the Ship or Establishment is located.

228.

Procedure to be followed in Controller of Defence Accounts (Pension)'s Office

- On receipt of the application for commutation of pension as prescribed in Part I of Form 28 specified in Appendix VIII duly completed by the applicant, the Controller of Defence Accounts (Pensions) shall complete Part II of the said form and forward it in original to the Chief Administrative Medical Officer concerned, together with a copy of Form 30 specified in Appendix VIII and an extra copy of Part III of that form for arranging medical examination. Copies of the previous medical reports or statements of case should also be forwarded along with the above forms, in cases where the applicant has been granted invalid pension, or has previously commuted any portion of his pension (or declined to accept commutation) on the basis of an addition of years to his actual age, or has been refused commutation on medical grounds. Simultaneously, the Controller of Defence Accounts (Pensions) shall forward to the applicant Form 29 specified in Appendix VIII, duly completed together with a copy of the said Form 30, Part I of which shall be filled in by the applicant before his medical examination and handed over to the competent authority.

229.

Procedure to be followed by the medical authority.

(1)

The medical authority, after obtaining from the applicant a statement in Part I of Form 30 specified in Appendix VIII (which must be signed in its presence), shall subject him to a strict examination, enter the results in Part II of the said Form 30 and records its opinion as to the accuracy with which the pensioner has answered the questions prescribed in Part I thereof regarding his medical history and habits. It shall also complete the certificate contained in Part III of the said Form 30 and obtain signature of the pensioner or his thumb and finger impressions if he is unable to sign the forms.

(2)

In the case of an applicant who has been or is about to be granted an invalid pension, the grounds of invaliding or the statement of the medical case shall be duly considered by the certifying medical authority before the certificate in Part III of Form 30 specified in Appendix VIII is signed.

(3)

The ultimate medical authority shall without delay forward the completed Forms 28 and 30 specified in Appendix VIII in original to the Controller of Defence Accounts (Pensions), and a certified copy of Part III of the said Form 30 to the applicant.

230.

Medical Examination fees and opening of rejected applications for commutation

(1)

If the examination is conducted by a single medical officer, the applicant shall himself pay the medical officer's prescribed fee of rupees sixteen, out of which rupees twelve in cash shall be retained by the medical officer concerned and the remaining rupees four shall be credited to the Central Government. If he is originally examined by the civil medical board he shall pay a fee of rupees four into a Government treasury and make over the receipt for the fee to the board before the examination together with an additional fee of rupees twelve to be retained and divided by the members of the board among themselves. If the pensioner is examined by a Service board, no fee shall be paid by him in respect of his first examination.

(2)

A pensioner, after he has been refused commutation on medical ground or after he has once declined to accept commutation on the basis of an addition of year or years to his actual age, may apply for a second medical examination at his own expense, if at least one year has elapsed since his first medical examination. Such a re-examination shall invariably be made by a medical board. If the re-examination is carried out by a Service medical board, the Government share of the fee, viz, rupees four shall be credited to the defence Services Estimates, and the receipt together with the medical certificate shall be forwarded to the Controller of Defence Accounts (Pensions).

(3)

If, in the opinion of the medical authority, some special examination is necessary which it is not in a position to carry out itself, it may, require the applicant to undergo such examination at his own expense. No refund of such expenditure shall be given by the Central Government irrespective of the result of examination.

(4)

In the case of pensioners residing outside India the procedure shall be as laid down in sub-regulation (3) of regulation

217.

231.

Recovery of public claims from the commuted value.

- Before the commuted value is paid, the Controller of Defence Accounts (Pensions), shall ascertain whether any public claim is outstanding against the applicant, and deduct the amount of such claim from the lump sum which would but for the claim be payable to him. Where an over-payment is in the process of recovery from the pension, the overpaid amount remaining unadjusted at the time of commutation shall be recovered in one lump sum from the commuted value payable.

232.

Commutation of anticipatory or provisional pension.

- An individual who applies for the commutation of a portion of his pension and such portion is expressed as a percentage or fraction of the total pension admissible to him and is allowed in the first instance to commute such percentage or fraction of his anticipatory or provisional pension shall, in the event of his final pension being more than his anticipatory or provisional pension be allowed to commute a further sum without appearing before a fresh medical board, so as to make the commuted amount equal to the specified percentage or fraction of the amount of pension as finally sanctioned. In such cases, commutation as finally sanctioned shall also take effect from the date of the original commutation of the anticipatory or provisional pension and the amount of residual pension shall also be re-adjusted from the same date.]

Appendix I

[See Regulation 2(e)]

Item

No.

Reference

to Regulations

Categories

of personnel in respect of whom competent authority shall
exercise its powers

Competent

authority

Remarks

1

2

3

4

5

Officers

Part

I of these regulations

1

5

Commissioned

officers Ministry of Defence

1A

5A

Commissioned

The President officers of India

2

15

Do

Do.

In

case where an officer is dismissed with or without dis grace
the competent authority will be the Central Government.

3

31

Do.

Do.

4

35

Do.

The

Central Government.

5

49

Family

Pensioners

Ministry

of Defence.

5-A

54

Family

pensioners

Controller

of Defence Accounts (Pensions).]

6

62

Do.

Do.

7

146

Commissioned

officers and [Director of Supply Branch]

In

India

152]

outside

India

The

Central Government.

Part

II of these regulations

8

165

Commissioned

officers

The

Controller of Defence Accounts (Navy).

9

182

Commissioned

officers

The

Central Government.

10

183

Commissioned

officers and their families

Controller

of Defence Accounts (Pensions)

11

204

Do.

The

Central Government.

Exception.-

The

Controller of Defence Accounts (Pensions) shall be competent to re-admit a pensioner to pension establishment and pay him full arrears if he is satisfied with the explanation of the pensioner.

12

209

Commissioned

officers

Chief

of the Naval Staff.

13

210

In

India

[Assistant

Chief of Commissioned officers Personnel]

Outside

India

The

Central Government.

In

India

Deputy

Director (Supplies)]

14

220

Commissioned

officers

In

India

[Deputy

Director (Supplies)]

Outside

India

The

Central Government

[Director

of Supplies]

15

222

Commissioned

officers

In

India [Director of Supplies]

Outside

India

The

Central Government.]

SAILORS

Part

I of these regulations

1

5

Sailors

Captain

Naval Barracks.

1

A

5A

Sailors

Flag

Officer Commanding-in-Chief..... of the Naval Commands, or
the Flag Officer Commanding of Naval Area concerned in
consultation with the Controller of Defence Accounts (Pensions),
ALLAHABAD]

2

72

Do

Captain

Naval Barracks.

3

73

Do

Do.

4

74

Do

Captain

Naval Barracks after considering the advice of the Senior
Medical Officer, Bombay shall decide whether an individual is
guilty of aggravating or retarding the cure of his disability.

5

81

Do

Chief

of Personnel.

6

82

Do

[Director
of Supply Branch]'

7

83(1)

Do

Captain

Naval Barracks in consultation with the Controller of Defence
Accounts (Navy).

N.B.-If

the payment or non-payment of gratuity in respect of former
service cannot be proved owing to loss or destruction of
official records, it shall be assumed that the gratuity, if it
was admissible under the rules extant at the time of discharge
from former service, was paid. Permission to count former
service shall be granted only after an amount equal to the sum
so admissible is refunded in full.

8

83(2)

Captain

Naval Barracks for condition 2, and Controller of Defence
Accounts (Navy) for condition 3.

9

85

Do

[Director
of Supply Branch]

10

89

Do

Captain

Naval Barracks.

11

102

Do

Ministry
of Defence.

12[105
and 105 B]

Do.

[Controller
of Defence Accounts (Pensions)]

13

111

Do.

Controller
of Defence Accounts (Pensions).

14

112

Do.

Do.

15

115

Family

Pensioners

Ministry

of Defence.

16

129

(a)

Do.

Controller

of Defence Accounts (Pensions).

17

129(b)

Do.

Ministry

of Defence.

Part

II of these regulations

18

165

Sailors

Controller of Defence Accounts (Pensions).

19

182

Do.

Controller

of Defence Accounts (Pensions).

20

183

Sailors

and their families.

Do.

21

200B

Sailors

and their families.

Captain

Bureau of Sailors.

22

200C

Sailors

and their families.

Captain

Bureau of Sailors.

23

200D

Sailors

and their families.

Captain

Bureau of Sailors.

23A

200E

Sailors:

A.

In cases covered by section 5A,

(i)

in the case of MCPOs I Chief of the Naval Staff & II

(including those granted Honorary commission as ICOs while on the effective list);

(ii)

in the case CPOs, PO, LS, Sea I & II;

Commanding

Officer of the Ship/ Establishment : provided he is not below the rank of Commander.

(iii)

in other cases.

Captain

Bureau of Sailors, BOMBAY].

B.

In cases covered by regulation

8.

Captain Bureau of Sailors, BOMBAY Controller of Defence Accounts (Pensions).

24

207

(i)

Sailors and reservists and their families other than those drawing pension at treasuries specified below.

(ii)

Pensioners of the above categories drawing pensions at the following treasuries:

Kathmandu

Indian

Embassy, Nepal.

Gorakhpur

Recruiting

officer or Deputy recruiting officer and Record Officer or

Assistant Recruiting officer for Gorkhas, Kunraghat.

Darjeeling

Deputy

Recruiting officer and Record Officer or Assistant Recruiting officer, Ghoom, Darjeeling.

Darbhanga

and Purnea

Deputy

Recruiting Officer and Record Officer or Assistant Recruiting officer, Ghoom, or Collectors, Darbhanga and Purnea, as the case may be.

Bahraich

and Gonda

Recruiting

officer, Deputy Recruiting officer and Record Officer or

Assistant Recruiting officer for Gorkhas, Kunraghat
(Gorakhpur) or the Deputy Commissioners, Bahraich and Gonda, as
the case may be.

Explanation

Whenever

a competent authority specified in this clause readmits to
pension establishment a pensioner, his sanction, together with
pensioner's explanation for non-drawal of pension shall be
submitted in support of the first payment to Controller of
Defence Accounts (Pensions).

25

209

Sailors

Chief

of Personnel.

26

210

Sailors

and their families.

In

India including Nepal Capital, Naval Barracks.

Outside

India

The

Central Government

27

213

Family

pensioners

Captain

Naval Barracks.

28

214

Do.

Do.

Appendix II

[See Regulation 2(k)]

Item

No.

Reference

to Regulations

Nature

of award and categories of personnel in respect of whom the
authorities specified in column 4 are competent to sanction
pension etc.

Authority

competent to sanction the grant of pension etc.

1

2

3

4

OFFICERS

1

Chapter

II.

Commissioned

Officers including

Branch

List Officers

(a)

Retiring pension (a) Ministry of Defence provided an award is made in accordance with the audit report of the Controller of Defence Accounts (Pensions) excepting where an officer is dismissed with or without disgrace by sentence of court martial.

(b)

Disability

pension

(b)

(i) Ministry of Defence provided the Central Government decide that disability is attributable to or aggravated by service in the Indian Navy and an award is made in conformity with the audit report of Controller of Defence Accounts (Pensions).

(ii)

Controller of Defence Accounts (Pensions) as regards continuance of disability Pension.

(c)(i)

special family pension and children's allowance to children below the age of eighteen.

(c)

Ministry of Defence provided the Central Government decides that the cause of death of the officer was due to or aggravated by service in the Indian Navy,

(ii)

Gratuity to the widow where an officer is killed in action or dies of wounds received in action

and

an award is made in accordance with the audit report of the Controller of Defence Accounts (Pensions).

(d)

Ordinary family pension and children's allowance to children below the age of eighteen.

(d)

Ministry of Defence provided an award is made in accordance with the audit report of the Controller of Defence Accounts (Pensions).

In

circumstances not covered by the above, the competent authority will be the Central Government.

Explanation

In

the case of the widows and children, the Controller of Defence

Accounts (Pensions) shall have the power to pay gratuities authorised in the regulations when they are clearly admissible and admit pensions under regulation provisionally, in anticipation of the sanction of the competent authority.

SAILORS

1

Chapter III-Part I.

All

awards

Controller

of Defence Accounts (Pensions); and Controller of Defence Accounts (Navy) in the case of service gratuity other than in invaliding cases.

Appendix III

(See Regulation 20)

Qualifying Service For Pension-Officers Of The General List

The following periods of service qualify for pension:

(1)

Commissioned service. - Period of service as a permanent commissioned officer and, if it is preceded without a break, by service of one or more of the following categories subject to the refund to Government of the gratuity, if any, other than war gratuity, received in respect of such service namely-

(a)

Service as commissioned officer in the Army, Indian Navy or Air Force, irrespective of the type of commission;

(b)

Mobilised commissioned service in the Indian Naval Reserve/Indian Naval Volunteer Reserve or called up service as an officer of the late Army in India Reserve of officers or called up commissioned service in the Indian Air Force Volunteer Reserve;

(c)

Embodied or called out commissioned service as an officer of the late Indian Territorial Force or of the late Auxiliary Force (India) or of the Territorial Army [or the Auxiliary Air Force]

[Added by S.R.O. 56, dated 13th February, 1973.]

Provided that-

(a)

any service which was forfeited for seniority, and

(b)

any period of unauthorised absence unless pay and allowances are admitted for the period of absence shall not be regarded as qualifying service;

(2)

Service as Branch List Officer and pre-commissioned service. - (a) All the periods of qualifying service as :

(i)

An officer of the Branch List in the regular cadre including such service as Warrant officer or Commissioned Warrant Officer, mobilised service in the reserve (including service rendered on T-124 X agreement), or service as a short service commissioned officer of the Branch List, if followed by permanent commissioned service without a break ;

(ii)

Junior Commissioned Officer or Warrant Officer, Class I, of the Army or Warrant Officer or Master Warrant Officer of the Air Force (including service rendered during World War II and continuously thereafter), immediately followed by commissioned service;

(b)

[Two-thirds]

[Substituted by S.R.O. 309, dated 5th September, 1974]

of the period of qualifying service, including the period of service rendered during World War II and continuously

thereafter, in any ranks below that of:

(i)

Branch List Officer of the Indian Navy;

(ii)

Junior Commissioned Officer or Warrant Officer Class I of the Army or Warrant Officer of the Air Force; immediately followed by commissioned service direct or service as a junior Commissioned officer or Warrant Officer Class I of the Army or Branch List Officer of the Indian Navy or Warrant Officer of the Indian Navy or Warrant Officer of the Air Force which in turn is immediately followed by commissioned service;

Explanation. - The provisions of this clause are applicable subject to the gratuity, if any, other than war gratuity, received in respect of such service being refunded to the Government;

(3)

All periods of leave, excluding, in the absence of specific authorization by the Central Government, the period of leave without pay;

(4)

(a)

In the case of an officer who is not brought to trial or who emerges from a court martial with results favourable to him, the whole period of suspension; and

(b)

in other cases, such period of suspension, if any, as is ordered by the Central Government to so qualify;

(5)

(a)

Service under the Central Government or a State Government;

(b)

Service under a foreign Government or a local body or an autonomous Corporation or a Municipality or other institution, provided that a pension contribution is paid to the Central Government by the officer or, if under the general or special arrangement the borrowing authority is to bear the contribution then by such authority;

(6)

[(i) in the case of officers who are granted commission after the 1st July, 1966, any period of former continuous civil service/non combatant (Enrolled) service (including service governed by the Civil Service Regulations as checker, store-keeper, artificer, draughtsman, in the late Indian Army Clerical Corps, Army Ordnance Corps, Army Supply Corps) in a temporary or permanent capacity followed by commissioned service without a break to the extent indicated below:]

[Substituted by S.R.O. 309, dated 5th September, 1974.]

(a)

all pensionable gazetted class I or class II civil service, in full;

(b)

all pensionable non-gazetted civil service rendered in an appointment, the initial pay of which is Rs. 200 per month or more, in full;

(c)

all pensionable non-gazetted civil service rendered in an appointment, the initial pay of which is less than Rs. 200 per month, 2/3rd.

(ii)

in the case of officers serving on the 1st July, 1966, their previous civil service shall be assessed either under sub-clause (i) or to the extent as indicated below, whichever is more beneficial:

(a)

all pensionable gazetted service, in full;

(b)

all pensionable non-gazetted service rendered in a substantive capacity in a permanent appointment, the initial pay of which is Rs. 80 per month or more (Rs. 130 per month in respect of civil service rendered under the Central Government in the revised scales as introduced with effect from the 1st July 1959 or under a State Government after revision of scale of pay by merger of dearness allowance), in full;

(c)

all pensionable non-gazetted service rendered in a substantive capacity in a permanent appointment, the initial pay of which is less than Rs. 80,00 per month (less than Rs. 130 per month in respect of civil service rendered under the Central Government in the revised scales as introduced with effect from the 1st July, 1959 or under a State Government after revision of scale of pay by merger of dearness allowance), in half.

Explanation. - For purposes of pension under the New Pension Code, officers who complete a total of fifteen years' commissioned service qualifying for pension but whose total qualifying service (including civil service permitted to count for Naval Pension) is less than twenty years, shall be treated as 'late entrants', provided that they otherwise fulfil other conditions prescribed for becoming eligible for a late entrant's pension.

(iii)
The former pensionable civil service shall count, towards retiring gratuity to the following extent:

(a)
Under the New Pension Code.-Such pensionable civil service, as counts in full for naval pension under clause (ii) above.

(b)
Under the Old Pension Code-No portion of civil service shall count.

(iv)
The counting of the civil service shall be subject to the following conditions :

(a)
no pension or gratuity had been drawn in respect of the civil service;

(b)
either the officer has rendered a total of ten years commissioned service qualifying for pension/gratuity or at least half the total qualifying service has been rendered as a commissioned officer.

Explanation 1. - The conditions stipulated in item (b) shall not apply in the case of officers who are invalided from the service.

Explanation 2. - In the case of officers having temporary civil service only and who did not retain a lien on their civil appointments, the period of joining time and pre-commissioned training as cadet shall not be treated as a break, but it shall not count for pension or gratuity.

Explanation 3. - The limit of initial pay of Rs. 200 mentioned above will be subject to revision as and when civilian scales of pay undergo a major revision.

(7)
Any other period of service to the extent and subject to the conditions specified in this behalf by the Central Government.

Qualifying Service For Pension-Officers Of The Branch List

The following periods of service qualify for pension:

(1)
Period of service as an officer of the Branch List in a regular cadre including such service as a Warrant Officer or Commissioned Warrant Officer, and full pay mobilised service in the reserve (including service rendered on T-124 X agreement), or service as a short service commissioned officer of the Branch List, if followed by permanent commissioned service in the Branch List without a break;

Provided that-

(a)
(i)
any service which was forfeited for seniority; and
(ii)
any period of unauthorised absence unless pay and allowances are admitted for the period of absence, shall not be regarded as qualifying service; and

(b)
any gratuity, other than war gratuity received in respect of such service is refunded to the Government;

(2)
Pro-commissioned service. - (a) Period of service as a junior Commissioned Officer or Warrant Officer Class I of the Army or Warrant Officer/Master Warrant Officer of the Air Force.

All qualifying service as a junior Commissioned Officer or Warrant officer, Class I of the Army or Warrant Officer or

Master Warrant officer of the Air Force (including service rendered continuously during World War II, and thereafter) immediately followed by commissioned service as a Branch List Officer;

(b)

One-half of the period of qualifying service including service rendered continuously during World War II and thereafter, in the ranks below that of

(i)

Branch List Officer of the Indian Navy;

(ii)

Junior Commissioned Officer/Warrant Officer Class I of the Army or Warrant Officer of the Air Force, immediately followed by commissioned -service as a Branch List Officer or by service as a junior Commissioned Officer, Warrant Officer Class I of the Army or Warrant officer of the Air Force;

(3)

All periods of leave, excluding in the absence of specific authorization by the Central Government, the period of leave without pay;

(4)

(a)

In the case of an officer who is not brought to trial or, who emerges from court martial with results favourable to him, the whole period of suspension;

(b)

In all other cases such period of suspension, if any, as is decided by the Central Government to so qualify;

(5)

(a)

Period of service under the Central Government or a State Government,

(b)

Period of service under a foreign state or a local body or an autonomous Corporation or a Municipality or other institution, provided that a pension contribution is paid to the Central Government by the Officer himself or under general or special arrangement the borrowing authority is to bear contribution by such authority;

(6)

Any period of pensionable civilian service to the extent to which it is permitted to qualify for pension as a commissioned officer of the Branch List under any general or specific orders of the Central Government;

(7)

Any other period of service to the extent and subject to the conditions specified in this behalf by the Central Government.

Appendix IV

(See Regulation 22)

Reckoning Of Paid Acting Rank For Purposes Of Retiring Pension

(1)

An officer holding permanent commission who retires from service and becomes eligible for a pension, shall have his pension assessed with reference to a standard rate of retiring pension of Rupees Six hundred and twenty only per mensem for a standard period of qualifying service for 24 years, provided-

(a)

he has held the substantive rank of Lieut-Commander for at least two years more than the minimum period of service required to be served in that substantive rank in order to be eligible for promotion to the substantive rank of Commander under the promotion rules in force at the time of his retirement.

(b)

[He has been found fit in all respects for promotion to the substantive rank of Commander but has not been so promoted owing to insufficiency of vacancies in the substantive cadre.]

[Substituted by S.R.O. 309, dated 5th September, 1974]

(c)

he retires with the paid acting rank of Commander after holding that rank for an aggregate period of not less than four years, of which not less than three years shall be continuous.

Explanation 1. - For purposes of clause (a) the required period of service in the substantive rank of Lieut-Commander will commence from the effective date from which substantive promotion to such rank has been notified in the gazette.

Explanation (2). - For purposes of clause (c)-

(i)

an officer will be deemed to have retired with the paid acting rank of Commander if his reversion to substantive rank immediately prior to retirement is solely on account of the commencement of the furlough portion of his leave pending retirement or his invalidation out of service.

The period subsequent to reversion to substantive rank will not, however, be taken into account in reckoning the necessary service limits.

(ii)

Any paid acting rank held by the officer higher than that of Commander will be equated to that paid acting rank.

(iii)

An officer will be deemed to have held paid acting rank continuously in cases where an interruption of continuity is afterwards cancelled by a retrospective restoration of the paid acting rank by competent authority in accordance with the rules regulating retention of such rank.

(2)

An officer who retires in the substantive rank of Commander but has held that rank substantively for less than two years will also be eligible for the pensionary benefit mentioned above subject to the fulfilment of conditions (a) and (c) above. For the purpose of calculating the necessary service-limits under clause (c) of para 1 above, the period during which the officer held the rank of Commander in a substantive capacity will also be taken into account.

(3)

In all other respects, the pensionary entitlement of an officer to whom this Appendix applies, will be regulated by these Regulations.

Appendix V

(See Regulations 43, 101, 109)

Nature, Assessment And Attributability Of Disability And Entitlement To Disability Pension

Entitlement Rules

1. (a) The entitlement rules set out below apply in cases where the disablement or death, on which the claim to casualty pensionary award is based, takes place on or after the 1st April, 1948. These rules apply to all personnel who are governed by these Regulations for the Indian Navy.

(b)

These rules do not apply to an individual whose continuous service commenced from a date prior to the 1st April, 1948, in so far as his disablement or the cause of his death, can be regarded as attributable to or aggravated by his service during the period 3rd September, 1939 to the 31st March, 1948.

2. Invalidment from service is a necessary condition for the grant of disability pension. An individual who at the time of his release under the Release Regulations is in a lower medical category than that in which he was recruited will be treated as invalided from service. Sailors who are placed permanently in a medical category other than 'A' and are discharged because no alternative employment suitable to their low medical category can be provided as well as those who having been retained in alternative employment but are discharged before the completion of their engagement will be deemed to have been invalided out of service.

3. Disablement or death shall be accepted as due to naval service provided it is certified that :- (a) the disablement is due to a wound, injury or disease which-

(i)

is attributable to Naval service;

(ii)

existed before or arose during naval service and has been and remains aggravated thereby;

(b)

the death was due to or hastened by :

(i)

a wound, injury or disease which was attributable to naval service; or

(ii)

the aggravation by naval service of a wound, injury or disease which existed before or arose during naval service.
[Explanation.

[Substituted by S.R.O. 298, dated 16th November, 1966]

- This regulation also covers cases of death after discharge or invaliding from service.]

[Note.-This rule also covers cases of death after discharge/ invaliding from service.]

[Inserted by S.R.O. 309, dated 5th September, 1974]

4. There must be a causal connection between disablement [or death]

[Inserted by S.R.O. 309, dated 5th September, 1974]

and naval service for attributability or aggravation to be conceded.

5. In deciding on the issue of entitlement all the evidence, both direct and circumstantial, will be taken into account and the benefit of reasonable doubt will be given to the claimant. This benefit will be given more liberally to the claimant in field service cases.

6. Post-discharge claims - Cases in which a disease did not actually lead to the member's discharge from service but arose within seven years thereafter, may be recognised as attributable to service if it can be established medically that the disability is a delayed manifestation of a pathological process set in motion by service conditions obtaining prior to discharge and that if the disability had been manifest at the time of discharge the individual would have been invalided out of service on this account. In cases where an individual in receipt of a disability pension dies at home and it cannot, from a strictly medical point of view, be definitely established that the death was solely due to the disablement in respect of which the disability pension was granted-

(a)

the benefit of the doubt in determining attributability would go to the family of the deceased if death occurs within seven years from the date of his invalidment from service, unless there are other factors adversely affecting the claim; and

(b)

if death takes place more than seven years after the date of man's invalidment from service, the benefit of doubt will go to the State.

In cases where an individual outlives a normal span of life, that is, where death takes place at the age of sixty or above, the death should be held to be due to normal causes and not to naval service.

[Note. - Death of disability pensioner whose disablement has been accepted on the basis of aggravation may also be accepted as due to Naval service under Rule 3(b)

(ii)

above if the last assessment of disablement was 50 percent or above. If the last accepted assessment of disablement was less than 50 per cent, death should not be regarded as due to service.

The above procedure will apply when death is established as due to the disability in respect of which disability pension was granted. If this is not the case, the identification of the cause of death with the invaliding disability will first be determined in accordance with the provisions of this rule. If the identity can be conceded thereunder, the procedure in the proceeding sub-paragraph will be followed for determining the further point whether entitlement to special family pension can be conceded in a case where an invaliding disability was aggravated by service.

[Explanation.

[Inserted by S.R.O. 309, dated 5th September, 1974]

- Death of a disability pensioner whose disablement has been accepted on the basis of aggravation may also be accepted as due to naval service under paragraph 3(b) (ii) above if the last assessment of disablement was 50 per cent or above. If the last accepted assessment of disablement was less than 50 per cent, death should not be regarded as due to service.]

The above procedure will apply when death is established as due to the disability in respect of which disability pension was granted. if this is not the case, the identification of the cause of death with the invaliding disability will first be determined in accordance with the provisions of this paragraph. If the identity can be conceded thereunder, the procedure in the preceding sub-paragraph will be followed for determining the further point whether entitlement to special family pension can be conceded in a case where an invaliding disability was aggravated by service.

7. In respect of accidents the following rules will be observed :

(a)

Injuries sustained when the man is on duty will be deemed to have arisen in or resulted from Navy service unless they

were self-inflicted or due to serious negligence or misconduct in which cases the question of withholding the pension in full/ in part will be considered.

(b)

A person subject to the disciplinary Code of the Armed Forces is "on duty" during the period of time when he is in the course of performance of an official task the failure to do which would constitute an offence triable under the Disciplinary Code applicable to him. The course of performance of a task includes the journey or transport by a reasonable route from one's quarters to and back from the appointed place of duty under organised arrangements.

(c)

A person is also deemed to be "on duty" during the period of participation in recreation, organised or permitted by Service authorities and of travelling in a body or singly under organised arrangements. A person is also considered to be "on duty" when proceeding to his leave station or returning from his leave station at public expense.

(d)

An accident which occurs when a man is not strictly "on duty" as defined may also be attributable to Service, provided that it is not an accident which can be attributed to risk common to human existence in modern conditions in India, unless such risk is definitely enhanced in kind or degree by the nature, conditions, obligations or incidents of the person's service. Thus, for instance, where a person is killed or injured by another party by reason of belonging to the Armed Forces, he shall be deemed "on duty" at the relevant time.

This benefit will be given more liberally to the claimant in cases occurring during the time when the person, subject to the Navy Law.

(i)

is attached to, or forms part of a force which is engaged in operations against an enemy, or

(ii)

is engaged in naval operations in, or is proceeding to, the seas in the neighbourhood of a country or place wholly or partly occupied by an enemy, or

(iii)

is attached to or forms part of a force which is in military occupation of a foreign country.

Explanation 1. - (a) Personnel of thormed Forces participating in

(i)

local/national/international sports tournaments as members of Service teams, or

(ii)

mountaineering expeditions /gliding organised by the Service authorities, with the approval of Government will be deemed to be "on duty" for purposes of these regulations;

(b)

personnel of the Armed Forces participating in the above-mentioned sports tournaments or in privately organised mountaineering expeditions or indulging in gliding as a hobby, in their individual capacity, will not be deemed to be "on duty" for purposes of these regulations, even though prior permission of the competent Service authorities may have been obtained by them;

(c)

injuries sustained by personnel of the Armed Forces in impromptu games and sports outside parade hours, which are organised by, or with the approval of, the local Service authority and death arising from such injuries, will continue to be regarded as having occurred while "on duty" for purposes of these regulations.

Explanation 2. - The personnel of the Armed Forces deputed for training at courses conducted by the Himalayan Mountaineering Institute, Darjeeling, shall be treated on par with personnel attending other authorised professional courses or exercises for the Defence Services for the purpose of the grant of disability/ family pensions on account of disability/death sustained during the courses.

8. In respect of diseases, the following rules will be observed :

(a)

Cases, in which it is established that conditions of naval service did not determine or contribute to the onset of the disease but influenced the subsequent course of the disease, will fall for acceptance on the basis of aggravation.

(b)

A disease which has led to an individual's discharge or death will ordinarily be deemed to have arisen in service if no

note of it was made at the time of the individual's acceptance for naval service. However, if medical opinion holds, for reasons to be stated, that the disease could not have been detected on medical examination prior to acceptance for service the disease will not be deemed to have arisen during service.

(c)

If a disease is accepted as having arisen in service, it must also be established that the conditions of naval service determined or contributed to the onset of the disease and that the conditions were due to the circumstances of duty in naval service.

(d)

In considering whether a particular disease is due to naval service, it is necessary to relate the established facts, in the aetiology of the disease, and of its normal development, to the effect that conditions of service, for example, exposure, stress, climate, etc., may have had on its manifestation. Regard must also be had to the time factor. (Also see classification of diseases at the end of this Appendix.)

(i)

Common diseases known to be affected by exposure to weather. - Diseases such as Bronchitis, Rheumatism and Nephritis indeed most diseases of the respiratory system, joints and kidneys are affected by climatic conditions. The period and the conditions of service at any particular place should be taken into account in determining causal connection with service.

(ii)

Common diseases known to be affected by stress and strain. - This should be decided with due reference to the nature of the duties an individual has had to perform in naval service. It may be that in some cases the individual had been engaged on sedentary duties when they will normally not qualify.

(iii)

Diseases endemic to certain areas. - Diseases such as Malaria, Kalazar, Filariasis, Dysentery, Cholera, etc., are endemic in certain areas. These diseases may also be introduced by movements of infected persons. In determining causal connection with service it will have to be established that the conditions of naval service exposed the individual to the infection as a result of which he contracted the disease. Where there is medical evidence of the contraction of the diseases either prior to entry into service, or while off duty or on leave or desertion or unauthorised absence, etc., attributability should not be accepted unless the disease occurs within the incubation period.

(iv)

Diseases due to infections in service. - Entitlement to pension will be admitted if the exposure to infection arose from the circumstances of the member's service.

(v)

Diseases known to be affected by dietary compulsions. - The compulsions of service would also cover such cases as gastric disorders, for example, gastritis, gastric and duodenal ulcers, where it is established that the member was unable to follow a dietary regime required for his condition. The effect of service in such cases will be limited essentially to the question of aggravation of a pre-existing constitutional condition. This will not normally apply to individuals in sedentary occupation.

(vi)

Diseases which run their course independently or external circumstances. - There are certain diseases which would have run the same course whether the individual had been in the Forces or not, for example, leukaemia, Hodgkin's disease, etc. [see classification of diseases, sub paragraph (E) at the end of this Appendix]. Such cases will not be accepted as aggravated by service unless it is clear that owing to exigencies of service the man did not receive treatment of a satisfactory character and standard or such treatment was so delayed as to be less effective than it would have been.

(1)

Venereal disease will normally be rejected but a sequela of the disease may sometimes be accepted as aggravated by service. In the case of such disease contracted during service, grounds for acceptance will rarely be found unless the member after treatment had returned to full duty and had been subjected to such strain as would produce one of the after effects of the disease sooner than would have normally been the case. The strain must have been of an exceptional nature.

(2)

In the case of disease contracted before service if the member had reached an age when such a manifestation could be accepted, entitlement will not be conceded. On the other hand, if the later manifestation had been produced or hastened by the strain of service in which case there should be evidence that the strain was of an exceptional nature, entitlement may be considered on the basis of aggravation.

(3)

In the case of disease due to heredity, entitlement must be determined as in para (2) above.

(4)

The above refers only to late manifestations or sequela of venereal disease as Neuro-Syphilis or Cardio-vascular Syphilis.

(viii)

Invalidation on account of indulgence in drugs or drinks.-Entitlement shall not be conceded if the disability or death on which the claim is based, resulted from indulgence in drugs or drinks which was within one's own control.

9. Unforeseen effects of service medical treatment.

(a)

Where unforeseen complications arise as a result of treatment (including operative treatment) given for the purpose of rendering a member fit for service duties, any disablement resulting will normally be accepted as attributable to service.

(b)

Where the treatment is given for other reasons, the position regarding any unforeseen complications differs according as the condition which necessitated treatment was or was not, either attributable to or aggravated by service. If it was so attributable or aggravated, any disablement resulting from the treatment will normally be accepted as attributable to service. If it was not, no responsibility will be accepted for the additional disablement unless neglect, delay, faulty technique or lack of reasonable skill can be held responsible for the untoward outcome, or the exigencies of service before, during or after the treatment can be held to have caused or aggravated the condition.

(c)

The above considerations apply whether the treatment is given in a service hospital or under service arrangements in any other hospital but will not apply if the treatment is undertaken under private arrangement by an individual.

10. Assessment.

(a)

The assessment of a disability is the estimate of the degree of disablement it causes, which can properly be ascribed to service as defined below.

(b)

The disablement properly referable to service will be assessed as under:

(i)

At the time of discharge from the forces.-Normally the whole of the disablement then caused by the disability. This rule will apply irrespective of whether the disability is actually attributable to service, or is merely aggravated thereby. In the latter event, part of the disablement on discharge may have been present before service and/or may have been brought about by the natural progress of the disability during service. But as it is impossible, for so long as the strain and stress of service continues, to apportion quantitatively the effects of service and non-service factors, the entire disablement at the time of discharge will be taken into account. For example :

(1)

Where a person who had a partially disabled hand sustains injury to the same hand which renders it less useful than before or a person with an impaired foot injures the other as a result of service thus increasing his defect in locomotion, or

(2)

Where a person gives history of cough and cold prior to enrolment and is invalided out of service for Chronic Bronchitis held to be aggravated by service, pension will be admissible for the total disablement.

(ii)

On resurvey of disability after discharge from the service. - The whole of the disablement then caused by the disability, less the following:

(1)

The part due to non-service factors, such as individual habits, occupation in civil life, accident after discharge, climate

environment after discharge.

(2)

Any worsening due to the natural progress of the disability since discharge apart from the effects of service.

Deduction (1) will be made in all cases; while deduction (2) above will apply only in cases where the disability is accepted as aggravated by, but not attributable to service. (c) In cases accepted as aggravated by service, although a percentage of disablement, equal to more than twenty per cent may be assessed on medical resurvey, after discharge from service, in accordance with sub-paragraph (b)(ii)(2) above, disability pension will cease to be payable as soon as the effects of the aggravation by service have passed away, for example, where a person with disease, for example, Fibrositis, Bronchitis, Eczema, etc., held to be aggravated by service is invalided out and on resurvey is found by the Medical Board to have been restored (a) to his pre-service condition or (b) the condition in which he may have been normally at that time even if he had not joined the forces, aggravation by service will be deemed to have passed away.

(d)

[Paired Organs-

(i)

Paired organs, namely eyes, ears, arms and legs shall be considered together, where disablement due to service occurs in one of a pair of organs, assessment on discharge will be made with reference to the diminution of the functional capacity of the organs working together. Therefore, assessment will include functional defect of the pair of organs.

(ii)

Subject to the exceptions specified below, any subsequent increase in the non-service disablement and non-service disablement arising after discharge whether due to injury or disease will be excluded from the assessment.

(iii)

Cases arise in which at the time of discharge there is damage by service to only one of the paired organs namely eyes, ears, arms (including hands) and legs (including feet) and the other is, either normal or impaired in a minor degree. Where the disablement acceptable under clause (ii) and the disablement of the other limb or organ are together assessable at any subsequent date at 100 per cent, the assessment for pension purposes will be increased by one half of the difference between the current assessment and 100 per cent. For instance a pensioner receiving an award at 40 per cent rate for the loss of an eye who later loses the sight of his other eye through a non-service cause, will have his award increased to 70 per cent rate; and a pensioner with an award at 80 per cent for a gunshot wound of an arm who later develops severe arthritis of his other arm, thereby being 100 per cent disabled, will qualify for a revised award at 90 per cent rate. Where the combined disablement of the pair of organs is less than 100 per cent, but is more than twice as serious as the disablement acceptable under clause (ii), the assessment will be increased to one half of the combined disablement. if, for example, a pensioner with an award at 30 per cent rate for the loss of vision of one eye partially loses the sight of the other eye through a non-service cause the defective vision of both eyes together is assessable at 80 per cent, his award will be increased to 40 per cent rate.

(iv)

The provisions of the preceding clause are applicable even where the second of a pair of organs has been disabled by some generalised disability (e.g. rheumatoid arthritis) which would have also disabled the first of the pair if it had not been lost or damaged as the result of service.]

(e)

Composite assessments. - Where there are two or more disabilities due to service, compensation will be based on the composite assessment of the degree of disablement. Generally speaking, when separate disabilities have entirely different functional effects, the composite assessment will be the arithmetical sum of their separate assessments. But where the functional effects of the disabilities overlap, the composite assessment will be reduced in proportion to the degree of overlapping.

(f)

Nil disablement. - Where although a definite disability is or has been in evidence, the Medical Board consider that any disablement resulting therefrom has ceased or has become so small as not to admit of assessable compensation, the assessment will be expressed as "nil disablement".

(g)

Where the disability due to service has no connection with the pre-existing disability, as for example, a person who had lost a finger prior to enlistment, loses a great toe by service, compensation will be restricted to the loss of the great toe

only.

Classification of Diseases referred to in paragraph 8 of Appendix V

A. Diseases affected by climatic conditions.

pulmonary Tuberculosis.

Pulmonary tuberculosis with pleural effusion.

Tuberculosis-Non-pulmonary.

Bronchitis.

Pleurisy, empyema, lung abscess and Bronchiectasis.

Lobar pneumonia.

Nephritis (acute and chronic).

Otitis Media.

Rheumatism-acute.

Rheumatism-chronic.

Arthritis.

Myalgia.

lumbago.

B. Diseases affected by stress and strain.

Psychosis and psychoneurosis.

Hyperpiesia.

Pulmonary Tuberculosis.

Pulmonary Tuberculosis with pleural effusion.

Tuberculosis-Non-pulmonary.

Mitral Stenosis.

Pericarditis and adherent pericardium.

Endo-carditis.

Sub-acute bacterial endo-carditis, including infective endo-carditis

Myocarditis-acute or chronic.

Valvular disease.

C. Diseases affected by dietary compulsions.

Diseases of stomach and deodenum.

Gastritis.

Gastric ulcer.

Duodenal ulcer.

Nutritional Disorders.

D. Diseases affected by training, marching, etc.

Varicose veins.

Hernia

Internal derangement of knee joint.

Deformities of feet.

E. Diseases not normally affected by service.

malignant diseases ; Cancer and Carcinoma.

Sarcoma (except in cases of sarcoma or bone with a history of injury, due to service, on the site of development of the growth).

Epithelioma.

Rodent ulcer

Lymphosarcoma

Lymphadenoma (Hodgkin's disease).

Leukaemia.

Pernicious anaemia (Addison's anaemia).

Osteitis deformans (Paget's disease).

Gout.

Acromegaly.

Cirrhosis of the liver-if alcoholic.

EYES

Errors of refraction.

Hypermetropia.

Myopia.

Acromegaly.

Presbyopia Glaucoma-acute or chronic, unless there is a history of injury due to service or of disease of the eye due to service.

Appendix VI

(See Regulation 44)

Rules Governing The Payment Of Constant Attendance Allowance

[Applicable to cases where the disability for which Constant Attendance Allowance is payable is attributable to or aggravated by service rendered in the Indian Navy from the 1st April, 1948 in the case of Commissioned Officers (from the 15th August, 1947 in the case of those Commissioned Officers who joined the service on or after that date) and from the 1st April, 1946 in the case of Branch List Officers and Sailors.]

Payment of Constant Attendance Allowance shall be made in arrears along with disability pension proper. Payment will be made on the basis of-

(a)

a certificate as in Form I in the case of sailors, and

(b)

a declaration by the pensioner as in Form II in other cases, which shall be submitted to the pension disbursing officer each time the allowance is drawn.

Form I

Certificate for purposes of drawing constant attendance allowance

(Not to be treated as Life Certificate)

Name of Pensioner

Address :

Village

Tehsil

District etc.

Official No

Rank

Ship or Establishment

Pension Circular/Pension Payment Order NoSerial No.....

Rate of Constant Attendance Allowance.....

Particulars of any period spent as an inmate or an in-patient of a Government hospital or institution, since the allowance was last drawn.

(a)

Date of admission to hospital or institution.....

(b)

Date of discharge from hospital or institution.....

(c)

Address of hospital or institution.....

Certificate

Certified from my personal knowledge of the pensioner described that the particulars given on this form are correct, and that during the period, vizfor which Constant Attendance Allowance is now claimed-

(a)

The pensioner was not an inmate or in-patient of a Government hospital or institution;

(b)

he had no relatives to look after him properly; and

(c)

he actually employed Shrison of Shri.....as a paid constant attendant to look after him, such attendance having been necessitated by the disability /disabilities for which he is drawing the disability pension. To the best of my knowledge and belief Shriis not related to the pensioner.

Signature

Designation

Full Address

Date

Explanation 1. - This certificate should be submitted to the pension disbursing officer each time the allowance is drawn.

2. The certificate will be signed by a responsible Government officer or by some other well-known and trustworthy person, for example, a junior Commissioned Officer, a Sub-Inspector of police, a Sub-Postmaster drawing not less than Rupees fifty per month, a tehsildar, a village headman, a pattipatwari (in the case of Garhwali pensioners resident in Kumaon), or the head of the village panchayat, who is personally acquainted with the pensioner.

[In case of Gorkha pensioners residing in Nepal, the certificate may also be signed /countersigned by the Recruiting Officer/Deputy Recruiting Officer/Assistant Recruiting Officer for Gorkhas and Military Attache /Assistant Military Attache/ Assistant Air Attache to the Indian Embassy in Nepal.]

[Added by S.R.O 309, dated 5th September, 1974]

Form II

Declaration for purposes of drawing Constant Attendance Allowance

Explanation. - Any person wilfully making a false declaration is liable to prosecution.

Name of Pensioner

Address

Rank

Ship or Establishment

Pension Circular/Pension Payment Order NoSerial No.....

Disability/ disabilities for which pension is in issue.....

Rate of Constant Attendance Allowance

Particulars of any period spent as an in-mate or an in-patient of a Government hospital or institution since the allowance was last drawn-

(a)

Date of admission in hospital or institution.....

(b)

Date of discharge from hospital or institution.....

(c)

Address of hospital or institution

Declaration

I hereby declare that I am the pensioner described above, that the particulars given on this form are true, and that for the period viz to..... for which Constant Attendance Allowance is not claimed-
given on this form are true, and that for the period viz to..... for which Constant Attendance Allowance is not claimed

(a)

I was not an in-mate or an in-patient of a Government hospital or institution;

(b)

I had no relatives to look after me properly; and

(c)

I actually employed Shrison of Shrias a paid attendant to look after me, such attendance having been necessitated by the disability/disabilities for which I am drawing the disability pension.

Shriis not related to me in any way.

I further declare that I understand that I am not entitled to receive Constant Attendance Allowance for any period during which any of the foregoing conditions is not fulfilled.

Pensioner's signature

Date

Explanation. - This form should be forwarded to the pension disbursing officer each time the allowance is drawn.

Appendix VII

(See Regulation 104)

Criteria for deciding whether an individual's refusal to undergo medical treatment or an operation for his disability attributable to or aggravated by military service, is reasonable or unreasonable.

1. Refusal to undergo medical treatment or an operation shall be held to be reasonable:

(a)

when, in the opinion of the medical authorities, it is improbable that such treatment or operation would cure the disability or reduce its percentage or where such treatment or operation may be severe and dangerous to life; or,

(b)

when, in the opinion of the Commanding Officer, Ship/ Establishment to undergo the operation or the treatment prescribed, is opposed to religious or caste prejudices of a valid nature and the refusal is the bona fide outcome of such prejudices.

2. Refusal to undergo medical treatment or an operation shall be held to be unreasonable:

(a)

when, in the opinion of the medical authorities, it is due to malingering; or,

(b)

when, in the opinion of the Commanding Officer, Ship/Establishment, it is due to a desire to avoid further service or to obtain or retain a pension or to receive an enhanced pension.

3. If in the opinion of the Commanding Officer, Ship/Establishment, the individual, has grounds not covered by the above paragraphs for refusing medical or.

Appendix VIII

(See Regulation 162)

Form I

(Afmsf 16)

Confidential

Medical Board proceedings invaliding all ranks

Authority

for Board

Place

Date

Name

Official

No.

Rank/Rate

Ship/Establishment

Date

of birth

Service

Army/Navy/Air Force

Branch

Total

Service

Total

Flying hours/Service afloat

Permanent

Address

Identification

marks :-

(i)

(ii)

Field

/Operational /Overseas Service : Giving dates and places

From

To

Place

From

To

Place

Part I ? Personal Statement

(The questions should be answered in the individual's own words. This statement will be checked from official records as far as possible.)

1. Give particulars of previous service in ARMY/NAVY/AIR FORCE and state whether you were invalided out of service.

2. Give particulars of any diseases, wounds or injuries, from which you are suffering.

Illness,

wound, injury

First

started

Where

treated

Approximate

dates and periods treated

Date

Place

3. Did you suffer from any disability mentioned in question 2 or anything like it before joining the Armed Forces ? If so give details and dates.

4. Give details of any incidents during your service which you think caused or made your disability worse.

5. In case of wound or injury, state how they happened and whether or not (a) Medical Board or Court of Inquiry was held (b) Injury Report was submitted.

6. Any other information you wish to give about your health.

I certify that I have answered as fully as possible all the questions about my service and personal history and that the information given is true to the best of my knowledge.

Signature of Witness..... Signature..... Official No Rank Date

(In case of illiterate persons thumb and fingers impressions of left hand will be taken here.)

Part II ? Statement of Case

(Not to be communicated to the individual)

Disabilities

Date

of origin

Place

and Ship /Establishment where serving at the time

2. Clinical detail-

Note. - (a) Give the salient facts of

(i)

Personal and relevant family history.

(ii)

Specialist report and

(iii)

Treatment.

(b)

State present condition in detail.

(c)

In this statement and in answering question in Part III the board will differentiate carefully between the individual's statement and the evidence recorded in the medical documents.

Confidential

Part III ? Opinion of the Medical Board

(Not to be communicated to the individual)

NOTE : Clear and decisive answers should be filled in by the board. Expressions such as 'might', 'may', 'probably' should be avoided.

1. Did the disability/ less exist before entering service ?

2. (a) In respect of each disability the medical Board on the evidence before it will express its views as to whether :

(i)

it is attributable to service during peace or under field service conditions; or

(ii)

it has been aggravated thereby and remains so; or

(iii)

it is not connected with service.

The board should state fully the reasons in regard to each disability on which its opinion is based.

Disability

A

B

C

(b)

In respect of each disability shown as attributable under A, the board should state fully, the specific condition and period in service which caused the disability.

(c)

In respect of each disability shown as aggravated under B, the board should state fully:

(i)

The specific condition and period in service which aggravated the disability.

(ii)

Whether the effects of such aggravation still persist.

(iii)

If the answer to (ii) is in the affirmative, whether effect of aggravation will persist for a material period.

(d)

In the case of a disability under C, the board should state what exactly in their opinion is the cause thereof.

Confidential

3. (a) Was the disability attributable to the individual's own negligence or mis-conduct? If so, in what way?

(b)

If not attributable, was it aggravated by negligence or misconduct? if so, in what way and to what percentage of the total disablement?

(c)

Has the individual refused to undergo operation/treatment? If so, individual's reasons will be recorded.

Note.-In case of refusal of operation/treatment a certificate from the individual will be attached.

(d)

Has the effect of refusal been explained to and fully understood by him/her, viz., a reduction in, or the entire withholding of, any disability pension to which he/she might otherwise be entitled?

(e)

Do the medical board consider it probable that the operation/treatment would have cured the disability or reduced its percentage?

(f)

If the reply to (e) is in affirmative, what is the probable percentage to which the disablement could be reduced by

operation/treatment?

(g)

Do the medical board consider the operation to be severe and dangerous to life?

(h)

Do the medical board consider the individual's refusal to submit to operation/treatment reasonable? Give reasons in support of the opinion, specifying the operation/treatment recommended.

4. What is present degree of disablement as compared with a healthy person of the same age and sex? Percentage will be expressed as Nil or as follows-

(1.5%, 6-10%,11-14%,15-19% and thereafter in multiples of ten from 20 per cent to 100 per cent).

Disability

(As numbered in question 1 Part II)

Percentage

of disablement

Probable

duration of this degree of disablement

Composite

assessment (all Disabilities)

5. Is the individual in need of further treatment and, if so, of what nature and for how long is it likely to be required?

6. Does the individual require an attendant? If so, (i) whole or part time; (ii) permanently or temporarily; (iii) if temporarily for how long.

Signature President

[*]

[Name in block capitals.]

(.....)

Signature Member

[*]

[Name in block capitals.]

(.....)

Signature Member

[*]

[Name in block capitals.]

(.....)

Place

Date

Confidential

Approving Authority

Signature

[*]

[Name in block capitals.]

(.....)

Designation

Place

Date

Confirming Authority

Signature

[*]

[Name in block capitals.]

(.....)

Designation

Place

Date

Accepting Authority

Signature

[*]

[Name in block capitals.]

(.....)

Designation

Place

Date

Confidential

Part IV ? Roll of Sailors

Proposed to be invalided

No.

Information

required

Answers

1

Official

No.

2

Rank/Rate

Group

and Name (Name should be hand printed)

3

Ship/Establishment.

4

Age

of enrollment

Years

Days

6

Date

of enrollment

Date

of advancement to rank/rate

Date

of Advancement to man's service

7

Height

8

Personal

appearance (colour of hair and eyes) and Identification Marks

9

Permanent

home address on being discharged (to be hand printed).

Village

Pargana /Tehsil

Post

Office/District.

10

(a)

Substantive rank(s) held during the last 2 years with dates of

promotion/ advancement.

(b)

Acting rank held, if any

11

Periods,

with dates of service in each pay Group (If more than one Group has been held during the last 2 years of service).

12

Rate

of pay last admitted (in cases of non-combatants claiming disability pension under military rules) and rules or order under which admissible .

13

Date

of discharge (the date up to which effective pay has been admitted) .

14

Service

to date of discharge .

15

Service

to date on which Medical Board Proceedings are countersigned by ADMS Army/ DMS Navy/DMS Air .

16

Periods

not counting as qualifying service for pension (See Regulations 69 and 79.)

17

Any

previous Army, I.N. or IAF Service counting towards pension or gratuity as verified by the Defence Accounts Department (quote authority)

18

Character

.

19

Pension

Paying Agency from which desirous of drawing pension.

20

Invalid/

Disability Pension for which recommended

NOTE

:-Orders of the competent authority are necessary for reduction in the amount of invalid gratuity /pension and for the grant of gratuity in the case of those invalided on account of disorders (including insanity) brought on by indulgence in drugs or drink. (Regulations 73 and 89)

Amount

Rs. nP

Authority

for same

21

Allowances

to which entitled when pensioned.

Allowances

in respect of Gallantry Awards or

other

Decorations :

(i).....

(ii).....

(iii).....

(iv).....

22

Whether

he was granted any pension (Civil or Military) previously? If

so, quote No. and date of pension Circular/ Pension payment Order

and the amount of pension

23

Whether

any disability pension claim has or had been submitted in

respect of previous service ? If so, with what result? (Quote

authority for accepting/rejecting the claim)

24

Name

and relationship of next of kin or other person to whom arrears

of pension are to be paid on demise of the pensioner

[*]

[In case of illiterate persons only.]

Signature

or Thumb and finger impressions of the left hand of (to be

attested by a Commission ed Officer)

In cases of disabilities due to accidents, Captain, Naval Barracks, Bombay or the 'Commanding Officer Ship /Establishment should certify here

(a)

Whether the disability was sustained according to the information available while the individual affected was in actual performance of Ministry/Naval/Air Force duty and, if so, what was the nature of such duty; and (b) whether in his opinion, the disability was attributable to

FiledMilitary/Naval/Air Force| Service and should state the reasons

underlying his opinion as regards attributability.

Certified thatwill be discharged with effect from.....I consider the man's refusal to undergo operation/[Date shown at item 13 above to be entered] treatment to be reasonable/ unreasonable for the following reasons :

Designation

Captain, Naval Barracks, Bombay/Commanding Officer, Ship/ Establishment

Station

Dated19

NOTE.-1. Audit Officers will bring to the notice of the competent authority any abnormal delay between the date on which the Board Proceedings are countersigned by the ADMS Army/DMS (Navy)/DMS (Air) and the date on which the man is discharged by the Officer-in-charge Record Office. In cases where a Gorkha Rank, whose home is in Nepal is found unfit for further service by a Medical Board and the proceedings are signed by the ADMS after 15th June, the Captain, Naval Barracks, Bombay, will record in the above certificate that the man will be retained with his unit until 15th September, and disclaimed with effect from that date.

2. The Captain, Naval Barracks, Bombay, will specify the date of discharge before the claim to pension is submitted to the Audit Officer concerned.

I certify that the particulars given are correct as far as can be ascertained from records of the Regiment/Corps/Ship/Establishment/Air Force and recommend thatpension admissible under rules may be sanctioned.

Designation

Station

Date

Commanding Officer/ Captain, Naval Barracks, Bombay.

For Use In The Defence Accounts Department

Admitted

Invalid

Pension

Disability

Rs

.....

(Rupees.....only)

p.m. vide P.P.O.

No

.....

dated

.....

A.A.O.

(P)

?.....

Serial

No

A.C.D.A.(P)

?.....

D.C.D.A.(P)

Instructions

Part IV ? will be completed only when it is proposed to invalid a Sailor.

2. Items 13 to 16 and 20 and the Certificate, shown above, will be completed by the Officer-in-Charge, Record office, after receipt of medical Board Proceedings but before the submission of the pension claim to the CDA(P).

3. In the case of I.N.Sailors, three copies of this form (duly completed) will be submitted by the Commanding Officer Ship/Establishment, to Hospital/Sick Bay where the Medical Board is to be held.

4. Claims to Disability Pension should invariably be accompanied by (a) Form 21 (AFMSF-81) in cases of disablement on account of disease, and (b) Form 3 (IAFY 2006) and proceedings of Court of Inquiry where held, in case of disablement on account of wound or injury.

5. Claims for Invalid/ Disability Pension, supported in each case by the Sheet Rank/Rating (in pencil).....Ship/Establishment (in pencil).....

Form 2

(AFMS1)

Confidential

File Number

Service :-NAVY

Name (in full) No..... Rank/Rating (in pencil)

.....Ship/Establishment (in pencil).....Branch

TABLE I-List of Enclosures

Sl.

No.

Form
No.
Date
Sl.No.

Form
No.
Date
Sl.No.
Form
No.
Date
Sl.No.

Form
No.
Date

TABLE II-Issue/Repair of Surgical Appliances and Spectacles/Dentures.

Date
of Issue/Repair
Details
Date
of Issue/Repair
Details

Confidential

Form 3

(IAFY 2006)

Report on Accidental and Self-inflicted injuries

(See Instructions on pages 244 and 245)

1. Declaration by the injured person

Ihereby declare that the injury sustained by [Number, rank, name and Ship/Establishment]
me on.....| diddid not| [*]
[Strike out whichever is not applicable]
occur while I was in the performance of
Naval duty.

(Signature of the Medical Officer before whom the declaration is made)

Date

(Signature of the injured person)

Station

Date

2. Nature, location and severity of injury.

N.B. - Hospital to be notified at once if wound is believed to be self-inflicted.

(Signature of the Medical Officer)

3. Short statement of the circumstances of the case.

(Signed statements of witnesses giving a detailed account of the circumstances of the accident must be attached to this form. Plan or sketch of place of accident and how it occurred in cases of lorry, motor car or cycle accidents-(see instructions 5 & 7 on page 245.

4. Commanding Officer's opinion :

(a)

(i)

Was the individual in the course of performance of an official task or a task the failure to do which would constitute an offence triable under the disciplinary code applicable to him ? (Indicate the nature of the task, by whom it was ordered

and when).

or

(ii)

Did the accident occur during the journey or transport by a reasonable route under organised arrangements from the individual's quarter to or back from an appointed place of duty ? (Attach copies of standing instructions or other orders in support. If the journey or transport was officially organised, also a sketch showing the reasonable route from the individual's quarter to the place of duty).

or

(iii)

Was the individual participating in recreation organised or permitted by service authorities ?

NOTE 1.-All Physical Training and exercises including Physical Training games carried out as par of a sailor's training during parade hours under a Physical Trainer or such other individual as may be deputed by the Commanding Officer are compulsory.

Confidential

Games and sports out of parade hours are not compulsory but if organised by, or with the approval of Naval Authority, will be regarded as Physical Training. Injuries sustained by officers and men (including boys and apprentices) taking part in such parades, games and sports or deaths arising from these injuries will be considered to have occurred while on duty.

NOTE 2.-In case of games and sports out of parade hours, attach copy of official orders to indicate that it was organised or permitted by competent authority.

or

(iv)

Was the individual travelling either in a body or singly under organised arrangements ? (Attach copy of official orders to indicate that the arrangements were organised by competent authority). or

(v)

Was the individual proceeding to his leave station or returning to duty from his leave station ? In either case, was the journey at public expense or was performed on concession voucher or at individual's own expense ?

[Give :

(1)

the dates of commencement and termination of the period of leave;

(2)

the name of the leave station; and

(3)

particulars of the direct route from the place of duty to or from the leave station].

(b)

Was the accident due wholly/ partially to:

(i)

serious negligence [and/or

(ii)

misconduct of the individual ? (Indicate the nature of the serious negligence or misconduct and the grounds on which the opinion is based-see Instruction 10).

(c)

Was any one else to blame for the accident?

(If so, indicate how and to what extent).

(d)

Was the individual under the influence of intoxicating drink or drug at the material time

(e)

Has any Court of Enquiry been held or will be held ? (If so, indicate the date and the place of the enquiry).

StationDate.....

(Signature of the Commanding Officer)

5. Injury/Death [*]

[Strike out which is not applicable]

is/is not attributable to Naval Service.

Station Date.....

(Signature of the Chief of Personnel

Or

Captain, Naval Barracks, Bombay).

Confidential

For Use On Field Service Only (Items 6-8)

To be completed in all field service cases where injuries are, or are suspected to be, self-inflicted.

6. ToAdministrative Authority.

(a)

Opinion of the Commanding Officer.

(b)

Disciplinary action taken, or proposed whether against injured individual or another.

.....

Commanding Officer, Ship/Establishment.

Decision of Administrative Authority

8. To

The Naval Headquarters [*]

[In the case of Officers]

The Captain, Naval Barracks, Bombay [**]

[in the case of Sailors]

.

The casualty should be reported as

Administrative Authority.

Date

Note.-If the above authority decides that the casualty is to be reported as self-inflicted he should indicate how far he concurs in the opinions expressed above.

Instructions

1. This form will not be prepared in cases of accidents reported as "Battle Accidents" except when there is misconduct/serious negligence or the injuries are due to self-inflicted wounds. It should be prepared in all other cases of accidental or self-inflicted injuries. Items 1-5 will be filled up in all cases. Items 6-8 will be completed in all field service cases where injuries are, or are suspected to be, self-inflicted.

2. The form will be completed and disposed of as follows:-

(a)

Commissioned Officers and Cadets.

The form will be sent to the authorities maintaining the records of the Officer or to the Base Echelon of the Force concerned for disposal according to the instructions issued from time to time in respect of individuals on Field Service.

(b)

Sailors.

In field service cases, the form will be sent to Base Echelon of the Force concerned for forwarding it to the Officer Commanding. Record Office concerned for attachment to other pension documents. In non-field service cases, the Commanding Officer, Ship/ Establishment will attach the form with other documents of the person concerned.

Confidential

3. This form is to be completed in every case of accidental or self-inflicted injury which involved absence from duty as well as injuries sustained while travelling on leave whether due to the individual's own act or to that of a comrade, or to other extraneous circumstances.

4. Where several casualties occur as the result of one accident, one form is to be completed for each individual. A copy of the set of the statements from the witnesses of the accident, will be attached to each form.

5. Full statements are to be taken by an officer from the witnesses of the accident (vide item 3 above). These statements will be signed by the witnesses making them and by the officer who takes them, and will be forwarded with this form.

Where it is intended to take disciplinary action, duplicates of these statements should be retained by the unit for use in lieu of a summary evidence.

6. Where it is possible to obtain it, a statement from the injured person will also be forwarded. This, however, should not be used as evidence against him in any subsequent disciplinary proceedings.

7. In cases where there are no witnesses to an accident, statements from any person to whom the injured person may have mentioned his injury immediately after the occurrence should, when obtainable, be attached to this form.

8. In field service cases where the portion of item 6 regarding the decision cannot be completed by the appropriate authority owing to the exigencies of field service, the decision may be recorded by a senior officer of Army Headquarters.

9. If the circumstances in which the injury or wound was sustained indicate that a unit or other order was disregarded, a true copy of the order with the date of its last publication in unit orders, will be attached.

Special Instructions With Regard To Evidence In Cases Of Self Inflicted Wounds

10. In these cases the statement mentioned in Instructions No. 6 and 7 above should bring out all material points, e.g., statements to the effect that the witness was with the accused standing on the fire step (or sitting in a dug-out). That the accused was cleaning his rifle, position of safety catch, magazine, etc., if known, muzzle of rifle, on toe of foot and hand on muzzle; that accused pulled trigger; that the rifle was afterwards examined and an empty cartridge case was found in the chamber; that accused was seen to be wounded; that accused said, e.g., "I have shot myself", "I did not know it was loaded", etc.

11. An officer or sailor is specially trained in the safe use of his rifle and revolver, an evidence of any neglect of the ordinary precautions as to their handling in such cases usually has considerable bearing on the question of negligence. In cases of wilful self-wounding the fullest possible evidence inconclusive, this charge should not be used. The charge in respect of personnel subject to the Navy Act will, therefore, usually be laid under Navy Act Section 61(a) and an alternative charge to this effect should be made even if the accused is to be tried under Navy Act section 61(a) for wilful maiming.

Form 4

(MPB 501)

Application For Pension-Widow Of Officer

Please Note

A The issue of this form does not imply that you will be found eligible for pensions.

B When completed, the form should be sent with all available birth and marriage certificates to the Controller of Defence Accounts (Pensions), Draupadi Ghat, Allahabad. The decision on your claim will be communicated to you as soon as possible and the certificates returned.

C Before signing the Declaration please make sure that the questions have been answered correctly. (Dashes or ticks are not sufficient answers). This will save correspondence and delay. Please also note that this is an official document and that any person making a statement which she knows to be false is committing a legal offence.

Part I ? Particulars relating to deceased officer

1. Surname(BLOCK LETTERS).....Full name(BLOCK LETTERS).....

2. (a) Ship /Establishment (b) Rank.....

(c)

Date of birth(d) Place of birth.....

3. (To be answered only if death occurred after termination of service)

(a)

Date of death (b) Place of death.....

Part II ? Particulars of applicant

4. Surname (BLOCK LETTERS).....Full name(BLOCK LETTERS).....

5. Address in full

(6)

(a)

Date of birth(b) Date and place of Marriage

(BIRTH AND MARRIAGE CERTIFICATES TO BE ATTACHED-if available)

(b)

Place of birth

7. Were you living apart from your husband at the time of his death for any reason other than his employment with the Forces ? If "Yes" attach a statement of the circumstances

8. (a) Particulars of children of the deceased officer under 18 years of age (see note overleaf) in respect of whom allowances are claimed.

(BIRTH CERTIFICATES TO BE ATTACHED-if available)

Full

Name of each Child

Birth

Present

Address (if different from your own, state reason)

Surname

Name

Sex

Date

Place

(b)

Are all the children maintained by you?.....

9. (a) Are you or any of your children in receipt of any pension or allowance?(If so, state the particulars thereof under Part III below)

(b)

Have you applied for any pension or allowance (apart from the present application) or do you intend doing so

If so, state to whom you have applied or intend to apply.....

Part III ? Particulars of any pension received by the deceased or the applicant or their Children

Name

of Pensioner

Nature

of pension or Allowance

Rate

of amount per month or per annum

By

whom paid

Reference

No. Authority

Declaration

(Place see Note C at page 246)

I HEREBY DECLARE that to the best of my knowledge and belief the answers to the questions on this form are true and complete and I claim pension on the basis of the facts set forth. I undertake to furnish any further particulars that may be required.

Witness to Signature, Ordinary Signature of Applicant

(Any Commissioned Officer of the Defence Services, not below the rank of Lieutenant of the Navy or equivalent rank.)

Address of Witness

Date

State name of Treasury or Bank at which you desire pension should be made payable, if granted

NOTE.-Where pecuniary circumstances require it an allowance may also be granted, under certain conditions, after the age of 18 for a child who is :

D(a) an apprentice (or in an analogous position) receiving no more than nominal wages; or

(b)

being educated at a University, Technical School or Secondary School;or

(c)

incapable of self-support by reason of mental or-physical infirmity which arose before it attained the age of 18 years.
If you wish to claim any such allowance you should attach a statement giving full particulars.

Form 5

(MPB 541)

Reference

Dear Sir/Madam,

With reference to your enquiry of thewill you be good enough to furnish the information indicated below in respect of the child's education, and complete the enclosed form 13 (MPC-60).

Any allowance paid after the child reaches the age when allowances normally cease is temporary and exceptional and can be paid only so long as the necessary conditions are fulfilled.

Before signing the Declaration, please make sure that the question have been answered correctly, the word 'No' or 'None' being inserted where necessary. This will save correspondence and delay.

Yours faithfully,

Full name of deceased officer in respect of whom pension has been granted.

In the case of a deceased officer full name of widow or guardian.....

Name of child

Date of birth of child.....

1.

Name and address of Secondary School, Technical Institute, Training College, or University at which the child is being educated. (In the case of a Private school or College, a prospectus should be attached.)

1

2.

In the child a day or resident scholar, and, if the former, what are the hours of attendance ? If not attending whole time, how is the child otherwise occupied ?

2

3.

(a) State the commencing and terminating dates of the course of higher education or training.

3(a)

(b)

If the course did not commence until after the child's allowance ceased to be payable, state the reason and how the child was previously occupied.

(b)

(c)

State the purpose for which the further education is required giving the post of occupation in view.

(c)

(d)

If an examination is to be taken, what is its nature, and probable date ?

(d)

4.

(a) Has a free place been awarded or applied for?

(a)

(b)

Have any scholarship or grant been awarded ?

(b)

If

so what portion is for :

(1)

Fees

(2)

Maintenance.

(c)

Is assistance being given from private or voluntary funds ? If

so, state the name and address of the fund.

(c)

(d)

Give particulars of your expenses in respect of the child's fees
and maintenance not covered by grants from public funds.

(d)

I hereby declare that the particulars above are to the best of my knowledge true and accurate, and I hereby make application for grant of extension of an allowance in respect of the above named child beyond the normal age limit on the ground that the child is being educated at a Secondary School, Technical Institute, Training College or University and that the child is incapable of self support by reason of mental or physical infirmity which arose before it attained the age of 18 years.

Signature Date.....

Address.....

Witness to Signature

(Any Commissioned officer of the Defence Services not below the rank of Lieutenant of the Navy of equivalent or Magistrate).

Address

Form 6

(MPAO-71-A)

Reference

Dear Sir/Madam,

Information is required in connection with an application for Education Allowance in respect ofand it is requested you will be so good as to furnish information as indicated below.

Yours faithfully,

The Principal,

.....

1.

(a) Date of commencement of the course of education at present school.

1.

(a)

(b)

Date on which it is expected the child will leave school.

(b)

2.

Please state (a) the nature of the education or training, e.g.,
Primary, Secondary, Technical, etc.

2.

(a)

(b)

The object of the further course of education.

(b)

3.

Is the education or training whole time? Please state the number of hours per day and the number of days per week on which the attendance of the child is required.

3

4.

(a) Has a free place been awarded or applied for?

4.

(a)

(b)

has any scholarship or grant been awarded? if so, what portion is for :

(b)

(i)

Fees

(ii)

Maintenance

5.

What amount per annum, over and above any grant made from public funds is the parent or guardian called upon to pay towards the cost of the child's education and maintenance?

5

Date

.....

Signature.....

Form 7

(I.A.F.A. 805)

STATEMENT of the anticipated total annual income and means of the widow and children of (Full name of officer)

.....

Part I

Particulars of anticipated income and means for the period from 1st April 19to 31st March 19.....

IMPORTANT-The

word "nil" should be inserted in each column against any heading no property, income or means. It is not sufficient to leave the space blank (Columns 1 to 4 need only be completed in respect of children whose particulars have been given).

Children

Widow

(Name

of child to be under which the widow or children have inserted at head of column)

1

2

3

4

The

widow's pension and children's compassionate allowances from Army Funds for which application is now made, should not be shown in this statement.

Give

details in Part III The amounts entered should indicate the gross income and means expected to be received for the period from 1st April 19.....to 31st March 19.....

(i)

Pension from other Public Funds.

(ii)

Pensions from Military or other Funds to which the deceased subscribed except pension from Indian Military Service Family Pension Fund and Indian Military Service Widows and Orphans Fund.

*(iii)

From any office, Employment, Trade, Profession or Vocation or from any Pension other than the above.

*(iv)

From interest, Dividends, Annuities, etc. (including interest on Bank Accounts or Deposits.)

*(v)

From the ownership of Land and Houses, wherever situated including the net annual value of property in own occupation.

(vi)

From the Occupation of Land wherever situated.

(vii)

From other Profits, income & means (including Voluntary Allowances and expected income from un-invested capital, e.g., proceeds of Insurance Policies.)

(viii)

From any other sources whatever.

TOTAL

anticipated INCOME AND MEANS

(anticipated

income-tax not be deducted)

Particulars Of Anticipated Charges On Income:

Ground Rent onpayable to..... Interest on Mortgage or Loan
.....Rsat%.....on..... Annuities or other annual charges (if any) viz.,-
payable to.....

Total Anticipated Charges On Income

Total Anticipated Income And Means From All Sources Less Charges.

Part II

(Full name of applicant) Ido solemnly and sincerely declare that the foregoing is to the best of my knowledge and belief a correct statement of the whole of the income and means, from every source whatsoever expected to be received during the period from 1st April 19to 31st March 19.....by myself and by the children referred to, and that neither I nor they expect to have any other income or means during that year, either from my husband's estate, or from my or their own property, or from any other source.

And I undertake to refund to the Government of India such sums paid to me by way of widow's pension and/or children's compassionate allowances under the provisions of the Royal Warrant or Indian Army Regulations, or such part thereof as the Government of India may after consideration of the circumstances, at any time hereafter require me to refund, if the total income and means actually received by myself and the children referred to during the period from 1st April 19 to 31st March 19(apart from the widow's pension and children's compassionate allowances for which I am now applying) should prove to be in excess of the figures shown in the statement in Part I to such an extent as to render myself or my children ineligible in the opinion of the Central Government for the awards made.

And I make this solemn declaration, conscientiously believing the same to be true and by virtue of the provisions of the

Statutory Declaration Act, 1835.

Signature of Applicant

Her Address

[*]

[In the case of person resident abroad, this form may be declared before a British Diplomatic or Consular Officer, a Notary Public or other person competent by the local law to administer oaths.]

Declared and subscribed before me at this.....day of.....19.....

Magistrate for

Commissioner for Oaths

In the case of person resident abroad, this form may be declared before a British Diplomatic or Consular Officer, a Notary Public or other person competent by the local law to administer oaths.

Part III ? Particulars of sources, etc., of income and means shown in Part 1.

Full

description of Stocks, etc. (showing rate of interest of dividend, where known). Description and precise address of land or House of property of Land Occupied. Full particulars of other sources (not market value). This column or annual sources of income and means.

Amount

of Stocks, etc., as stated on certificate (not market value).

This column may be left blank in the case of other property

Annual

amount of dividends income etc. or annual value of property, etc.

included in respect of each item in arriving at the total shown

in Part I (income tax not to be deducted). See notes at foot of page.

(Separate

sheets may be attached if more room total shown in is required).

Details of income shown under the various

Heads in Part I of this form :

Head (i)

Head (ii)

Head (iii)

Head (iv)

Head (v)

Head (vi)

Head (vii)

Head (viii)

Total Income and Means shown in Part I

.....

Head III. - Profits of Trade Profession or Vocation. The amount to be entered should be the estimated assessment of the profit for income-tax purposes for the year in question.

Head IV. - Interest, Dividends, Annuities, etc. The gross amount should be entered, income-tax not being deducted, and dividends declared "free of tax" should be so shown. If you are unable to ascertain the correct amount to be added to a net dividend to arrive at the gross figure before deduction of tax the net amount may be inserted and marked "net".

Head V. - Ownership of Land and Houses. The net annual value of the property, as assessed to Income-tax, Schedule A, should be entered. if the annual value assessed is not known so state and give the best estimate you can.

Head VI. - Occupation of Land. The amount of the assessment to income-tax, Schedule B, should be entered, if this not known, so state and enter

(a)

the amount of the annual value (inclusive of any title) where the lands are occupied wholly or mainly for husbandry, or

(b)

one-third of such annual value where the lands are not so occupied. Head VII.-Other Profits and Income. An example of income to be entered under this head is the profit from letting a furnished house.

Form 8

(I.A.F.A.393)

(Part I-Death Certificate) Part I Death Certificate

For Sailors

Certified that NumberRank..... Name
Ship/Establishment..... died/was killed/was killed in actionon the19
at..... of [*]

[Here enter specific disease or injury which was the cause of death.]

Station

Date

Signature and full designation of Medical Officer /Principal Medical Officer, Ship/Establishment.

NOTE.-This form will be completed and forwarded by the Commanding Officer, Ship/ Establishment concerned.

Form 8 (I.A.F.A.-393 Part II)

Confidential

(Certificate of Attributability)

Part II ? Certificate Of Attributability

(For sailors in connection with death awards)

(For Instructions see page 254)

Certified that NumberRank.....

Name.....Ship/Establishmentdied/was killed on the 19..... at.....of [*]

[Strict proof regarding a tributability/aggravation is necessary only in cases of death due to wounds, injury or illness contracted in ordinary peace conditions (Vide Appendix V).]

.....
The cause of death is/is not attributable [*]

[1/4 Here enter specific disease or injury which was the cause of death.]

to or aggravated by military service for the following reasons :

.....
Station

Date

Signature and full designation of Medical Officer /Principal Medical Officer, Ship/Establishment.

I| agreedo not agree| with the above.

Station

Date

Fleet Medical Officer/Command Medical Officer

I| concurdo not concur| with the above.

.....
Command.

Station D.M.S.

Date

Instructions

This from will be completed by the Medical Officer/Principal Medical Officer or Field Medical Unit and will be disposed of as under:

(a)

In cases of death at peace stations the form, after completion by the Medical Officer/Principal Medical Officer, Ship /Establishment will be forwarded to the deceased's Commanding Officer through Fleet Medical Officer/Command Medical Officer and D.M.S. Command concerned who will make the necessary endorsement.

(b)

In cases of death on Field Service the form will be completed by the Medical Officer/ Principal Medical Officer, and forwarded to the deceased's Commanding Officer. Endorsement by the Fleet Medical Officer/Command Medical Officer

D.M.S. Command is not required in these cases.

2. The Principles to be observed in determining attributability to or aggravated by military service of the cause of death are laid down in Appendix V.
3. As the grant of the pension or gratuity depends upon this certificate, greatest care should be taken to ensure the actual cause of death being correctly entered.
4. The medical officer who furnishes the death certificate will not express any opinion, except on purely medical grounds which should be clearly specified. The certificate will, however, be accompanied by the proceedings of the Court of Enquiry.
5. The opinion about attributability expressed by the Officer Commanding, Military Hospital on this form will, after concurrence by higher medical authority, be copied into the Medical History Sheet.
6. This form will NOT be rendered in cases of casualties reported as "killed in action or died of wounds sustained in action".

Form 8-A

Form Of Death Certificate In Cases Of Death After Discharge Or At Home While On Leave When The Deceased Was Treated By A Qualified Medical Practitioner

1. Name of the deceased.....
 2. Address.....
 3. Date of onset of the fatal disease.....
 4. Name, nature and symptoms of the disease.....
 5. Duration of Illness.....
 6. Particulars of treatment received from the Medical Attendant
 7. Information (if known) regarding medical treatment received by the deceased since his discharge from service.....
 8. Time and date of death.....
- Signature of the
Medical Practitioner
Designation.....
Regd. No
Place
Date

Form 8-B

Statement Of Claimant In Cases Of Death After Discharge Or At Home While On Leave When The Deceased Was Not Treated By A Qualified Medical Practitioner Statement Of Claimant

- Statement of Shri/Smt
Father/Mother/ Widow of Rank No.....
Nameof
Claimant for family/dependent pension
1. Date and time of death.....
 2. Name of disease which caused death.....
 3. Details of medical treatment received by the deceased since his discharge from service
 4. The disease causing death started on (here give the date, if known, otherwise indicate the approximate month and year)
 5. Signs and symptoms of disease causing death are given below.
(here give brief details like location and nature of pain, breathing difficulties, inflammations, stomach disorders, loss of consciousness, fever, etc. and any other peculiar symptoms.)
 6. He was not treated by any medical practitioner as(here give reasons why no medical treatment was given)
- Place
Date
Signature or thumb impression of the claimant

We certify that the above facts are known to us personally and that they are correct.

(i)

Signature/Thumb Impression 1st witness (Name and Address)

(ii)

Signature/Thumb Impression 2nd witness (Name and Address)

Place

Date]

Form 9

(1.A-F.M.1231)

Report on cases (other than those due to injuries) which have ended fatally or are proposed for invaliding

Part A ? (To be filled by the Medical Officer)

Station Date.....

1. No., Rank, Name and Ship /Establishment.....

2. Disability.....

3. Outcome of the case i.e., died or to be invalided.....

Medical Officer

Part B ? (To be answered by the Commanding Officer, Ship/Establishment)

Circumstances of the case ;

1. Was the individual in your opinion of average physique and stamina when he joined the Ship/ Establishment ?

2. (a) Was the individual, as far as you are aware, in his normal health prior to the onset of the illness ?

(b)

If you are aware of any previous illness from which he suffered (which is not recorded in his medical history), state its nature and duration.

3. Was the individual employed on sedentary duties/ sheltered occupations ? if so,

(a)

had he to do. P.T. and/or parades ?

(b)

was he doing it regularly prior to falling ill or had been exempted therefrom on account of ill-health ? If so, from which date ?

4.

(a)

(i)

Mention any circumstances of exposure giving details thereof, and/or

(ii)

State periods and conditions of service, at any particular place, which you consider caused or aggravated the illness.

(b)

(i)

Give the nature of duties he had to perform in military service.

(ii)

Was he subjected to stress and strain by such duties ? If so, was it of an exceptional nature ? Give details.

(c)

Diseases endemic to certain areas or disease due to infection.

(i)

If disability or death was due to infection, is there any evidence that the exposure was due to negligence or misconduct on his part ?

(ii)

Did he live in unit lines or was he permitted to live outside with his family ?

(iii)

How many out passes was he granted during the previous month and what was the date of the last out pass ?

(iv)

Was the disease endemic to the area he was serving in and during this period or immediately preceding it were there

other cases of the same disease in the Ship/ Establishment ? If so, give the number of such cases, details of movements of infected persons and state any other circumstances which might have been responsible for the disease.

(v)

Give the date of last leave and places where the leave was spent. Did illness start during leave ? If shortly after return from leave, state date on which the illness commenced.

(d)

Veneral Diseases (Further information on the points mentioned below) :

(i)

When was it contracted ?

(ii)

Period of treatment ?

(iii)

Whether after treatment the man returned to full duty ?

(iv)

Whether after return to duty post hospital surveillance and treatment was continued according to existing regulations ?

(v)

After return to duty, was the man subjected to any stress of an exceptional nature ? If so, mention the nature of exceptional stress.

5. Do you consider that the death or disability was attributable to or aggravated by service ?

Date

Commanding Officer

Part C ? (To be completed by Commanding officer Hospital in all death cases except those of Sailors for whose cases Form (IAFM 393), Part II, will be completed).

Diseases endemic to certain areas or disease due to infection.

(i)

How many cases of this disease were treated during six months prior to admission of this individual ?

(ii)

How many cases of this disease were received from his unit ? Give details of such patients in chronological order.

(iii)

Was the infection endemic or was there any outbreak of it in the local garrison ?

(iv)

Was there an outbreak of the disease in the neighbouring city or villages ?

(v)

What is your view of the source of infection?

In all cases state whether you consider that the death was attributable to or aggravated by service and give the reasons on which you base your opinion.

Commanding Officer Hospital or Medical Unit.

Instructions

1. More detailed is the information given of dates and occurrences, the easier will it be for the pension sanctioning authority to determine the question of entitlement to pension.

2. After Part B has been completed by the Commanding Officer, Ship/Establishment this form will be sent to the Commanding Officer, Hospital for disposal as follows :

(a)

In the case of death, for attachment to the death certificate, after completion of Part C, where necessary.

(b)

in the case of invaliding, for attachment to the medical board proceedings.

3. One copy of this form will accompany every disability and family pension claim (other than that due to injuries) for retention by the pension sanctioning authority.

4. In the case of sailors the opinion of medical officer will be copied into the Medical History Sheet.

Form 10

(MPB-531)

Reference

Application for an education allowance in respect of child or children of a deceased Officer

(To be returned when completed to the Controller of Defence Accounts (Pensions), Allahabad Draupadi Ghat, Allahabad).

Questions

Answers

1.

Name of Applicant in full

2.

Full postal Address

3.

Relationship of the applicant

(a)

to the deceased

(a)

(b)

to the child or children in respect of whom application is made

(b)

3A.

Name in full & Ship/ Establishment of

the

deceased officer in respect of

whose

children this application is made.

3B.

Date and cause of death

4.

Period or periods of service of the deceased

From

..... To.....

in

Navy, Army or Air Force (if applicable).

From

..... To.....

5.

Present yearly income from all sources of the deceased and members of his family forming part of his household and applicant for Education Allowance at the present time:

Source

of income

Applicant

for education allowance at the present time

Note.-Income-tax

is not to be deducted. Each space must be filled in and when there is no income the word "none" must be written.

Rs.

nP.

Pension,

allowance or grant (a from public fund

(b)

from other funds

Salary

or Earnings

From

land or house property (full particulars to be shown on back of form[*])

[If the space on the back of the form is insufficient, a separate sheet should be used in continuation]

including rent and ground rent mortgage interest or other charge paid). If the property is both owned & occupied by you, the assessment of its annual value of for income-tax should be stated.

Stocks,

share etc. (full particulars of gross income to be shown on back of form[*])

[If the space on the back of the form is insufficient, a separate sheet should be used in continuation]

Income

from lodgers, sub-tenants or boarders (full particulars to be shown on back of form[*])

[If the space on the back of the form is insufficient, a separate sheet should be used in continuation]

Contribution

from children, relatives or friends if wholly or partly maintained by applicant, give full particulars on back of form[*]

[If the space on the back of the form is insufficient, a separate sheet should be used in continuation]

Income

from any other source, which should be specified (e.g. assistance in kind).

Total

6. Particulars of child or children for whom education allowance is required :

Name

in full

Sex

Date

of birth

Name

& situation of school at which it is desired child shall be educated

State

whether child is to be a boarder or a day scholar

Tuition

fees per annum (excluding fees for extra subjects)

A copy of the school prospectus must be enclosed.

Questions

Answers

7.

Are there any extras payable in addition to fees or any necessary expenses in connection with the education for which you desire to make a claim?

If

so, Form 12 (MPJ-3) should be completed by the Principal of the School.

8(a)

Are any of the children in receipt of a scholarship, Exhibition or other grant from public or private sources ? If so, give particulars, value and period for which held.

(a)

(b)

Was it the father's intention that the child should sit for a Scholarship ?

(b)

9.

State the school or schools, if any, attended by child or children before their father died.

What

fees (including extras) were paid ?

10.

What school or schools are they attending at present time, and what fees (including extras) are being paid ?

A

report from the Principal of the child's progress and capacity, stating form or standard and the last school report should be attached.

11. State the grounds on which you are applying for an Education Allowance, and any other particulars tending to show what standard of education the child would have received had the father been alive.

12. Names and dates of birth of all other children of the deceased, with schools at which they are being, or were educated.

Name

in full

Sex

Date

of birth

Name

& Address of school at which educated

Boarder

of Day scholar

Before signing this Declaration please make sure that all the questions have been answered correctly. This will save correspondence and delay. Please also note that this is an official document and that any person making a statement which he or she knows to be false is committing a legal offence.

I hereby declare that the particulars in the foregoing statement are true to the best of my knowledge and belief.

Signature of witness Signature of applicant.....

(Any commissioned officer of the Defence services not below the rank of Lieutenant of the Navy or equivalent or magistrate).

Address

Occupation

Date

Form 11

(MPB 510-Pensions)

Application for pension-parents of deceased officer

Please read these Notes carefully

A The parents of an officer who had died as a result of Military service may be eligible for pension if they are in pecuniary need arising from old age or from infirmity or any other adverse condition not being merely of a temporary character. If it is claimed that need arises from-

age only, the claim cannot be considered if the father is living and under 60 years of age;

infirmity, a father under 40 or a mother under 55 (unless a widow) should enclose a doctor's certificate showing the nature of the infirmity and how long it is likely to last;

an adverse condition other than age or infirmity, the grounds of the claim should be stated in reply to question 12. For example, a mother in need by reason of widowhood may claim under this clause.

B Before it can be decided whether you are eligible for a pension it is necessary to obtain certain particulars of your circumstances. If, therefore, you consider you may be eligible for pension, you should complete this form and Form 13 (MPC-60) which is issued with it. Then return the forms to CDA (Pensions), Draupadi Ghat, Allahabad-1.

birth certificate of the deceased officer;

your marriage certificate;

your birth certificate and that of your husband/wife.

If you have not all the certificates, it is not necessary to buy them, but you should give instead the information asked for in Part III.

C If you find any difficulty in completing the forms you should write to or call at the appropriate address shown above. Before signing the Declaration please make sure that the questions have been answered correctly. This will save correspondence and delay. Please also note that this is an official document, and that any person making a statement which he or she knows to be false is committing a legal offence.

I. Particulars Relating To Deceased Officer

1. Name in full.....

(Surname first in BLOCK letters)

2. (a) Ship/ Establishment

(b)

Rank (c) Date of joining the Forces.....

3. (This question to be answered only if death occurred after termination of service).

(a)

Date of death (b) Place of death.....

4. Was he single, married, widower, divorced or separated ?.....

5. Did he leave any other dependants ?

If so, state their names and address and their relationship to him.

6. Did your son contribute to your support before the commencement of his service with the Forces, or later ?.....

If so : (a) What was the amount of his regular contribution ?.....

(b)

How long had he been contributing at this rate ?

(c)

If you have any written evidence in support of your answers to (a) and

(b)

you should enclose it

II. Particulars Relating To Applicant

7. Your name in full.....

(Surname first in BLOCK letters)

8. Your relationship to the deceased officer in respect of whom you claim pension (if step-parent this should be stated)

9. Your home address in full

10. (a) Are you married, widower, divorced or separated ?

(b)

Date of your first marriage.....

(c)

If you have re-married, state date of re-marriage.....

(d)

If you are a widow, state date of husband's death.....

11. Give particulars of every pension, allowance, gratuity, etc., that has at any time been awarded or granted to or in

respect of the deceased member or yourself, or your husband/wife or any of your children (including step-children and adopted children), whether now in payment or not. If none put "NONE".

By

whom granted or paid

Pension

No. or other reference No.

Nature

of pension, allowance, etc.

Rate

or amount

To

whom paid

If

now being paid

12. Do you claim to be in pecuniary need arising from old age or from infirmity or any other adverse condition not being merely of a temporary character ?.....

If so, state the grounds of your claim (see note A)

III. Particulars to be Supplied where Certificates are not Available

(In this Part give full names, the surname first in BLOCK letters, For places give full address if possible).

13. If you cannot readily supply a certificate of your son's birth, state :

(a)

Date of his birth (b) Place of birth

(c)

His father's name

(d)

His mother's name

14. If you cannot readily supply a certificate of your marriage, state :

(a)

Date of Marriage (b) Place of Marriage.....

15. If you cannot readily supply your own birth certificate or that of your husband or wife state:-

Yourself:-

(a)

Date of birth (b) Place of birth

Declaration By Applicant (Please see Note C)

I DECLARE that the answers to the questions on this Form and on the accompanying statement of means of Form 13 (MPC-60) are true and complete to the best of my knowledge and belief, and I hereby claim a pension on the basis of the answers given by me, and undertake to supply and further information in connection with my claim that may be required.

Signature of Applicant

Witness to Signature

(Any Commissioned Officer of the Defence Services not below the rank of Lieutenant of the Navy or equivalent).

Address

Date

Declaration By The Husband Or Wife Of The Applicant (if living together)

I DECLARE that the answers by my husband/wife on this form and on the accompanying statement of means on Form 13(MPC-60) are true and complete to the best of my knowledge and belief, and that I have no means which have not been disclosed by him/her, I am theof the *Deceased Officer.

*State your exact relationship to him.....

Witness to Signature : Signature

(Any Commissioned Officer of the Defence Service not below the rank of Lieutenant of the Navy or equivalent).

Address

Date.....

The

applicant should complete and sign this part, but in certain cases it will be necessary to pay otherwise than through a Treasury or Bank

Full

address of the Treasury or Bank at which payment.....of pension, if granted, is desired.....

Please sign here

Form 12

(MDJ-3)

Ref. No

Name of Child.....

Name of School.....

Estimate Of Annual School Expenses

(To accompany application for an Education Allowance)

The average for the present course of education should be shown.

Item

Account

Rs.

nP.

Tuition

Fees

Books.

[*]

[If space insufficient give details overleaf]

(Details

and cost of each prescribed book to be given)

Stationery

[*]

[If space insufficient give details overleaf]

(Details

and cost of each item to be given)

Travelling.

(Distance

from home to Schoolmiles)

School

Uniform (if compulsory)

[*]

[If space insufficient give details overleaf]

(Details

and cost of each item to be given)

[*]

[If space insufficient give details overleaf]

Any

other expenses

(a)

Compulsory expenses

(b)

Other expenses

(Details

and cost of each item to be given)

Total

Date

.....

Signature

of principal

Form 13 (MPC-60)

Statement of total means of support from all sources of an applicant for a parent's pension/ allowance in respect of the death of/missing son (give rank, name and ship/Establishment)

Applicant's surname Full Name.....

(Block letters)

Yourself

Your

husband/wife

Rs.

nP.

Rs.

nP.

(1)

State present yearly income from:

(a)

Salary or Wages, including Overtimes, Bonus, Commission, etc.

(b)

Business on own account (estimated profit)

(c)

Old Age or Widows Pension

State

pension number here

(d)

Any other pension (including the portion commuted, if any) or grant

Give

particulars here

(e)

All other sources of income

Give

particulars here

Total Income Yearly

Where there are two parents the answers to questions (2), (3), (4) and (5) should cover both father and mother.

(2)

If you sublet or take in lodgers or boarders state the total amount received from this source

(3)

If you own the house in which you are living, state:-

(a)

The net annual value as assessed for income-tax.....

(b)

The amount of any mortgage still outstanding.....

(c)

The rate of mortgage interest.....

(d)

Ground rent, if any.....

(4)

(a)

If you receive a building allowance under a Government scheme, state its amount

(b)

Give particulars of any other benefits in kind (for example, free board).....etc.?

(5)

Have you any money invested or uninvested, e.g., in the bank. Post Office. If so, give particulars

(6)

Give particulars of all your surviving children, including step-children and adopted children :

Name

Sex

Date

of Birth

Married

Single widow or widower

Occupation

Whether

living at home with you

Whether

dependent upon you and if so to what extent

Rate

of payment made by each member of the family (including amount paid for board and lodging) if living at home)

Rs.

nP

Month

Year

Before signing the Declaration you should make sure that all questions on the form have been answered correctly. This will avoid correspondence and delay.

This application is an official document and any person making a statement which he or she knows to be false is committing a legal offence.

Declaration By Applicant

I declare that the answers to the questions on this form are true and complete to the best of my knowledge and belief, and that I have disclosed all my/ our means of support.

Signature of Applicant

Witness to Signature.....

(Any commissioned officer of the Defence Services not below the rank of Lieutenant of the Navy or equivalent.)

Address of Applicant

Date.....

Address

Date

Form 14

Form of Application for Commutation of Pension

Commutation of pension

When this Form has been duly filled up and signed, it should be sent to the appropriate authority mentioned in regulation 216.

Questions

Answers

1.

The name and rank of applicant and Ship/Establishment from which he has retired.

2.

Place of birth

3.

Date of birth

Age

next

birthday

years

[***]

[Omitted & renumbered by S.R.O. by S.R.O. 294-A, dated 29th May, 1970]

4.

Married or Single ?

5.

Have you on any previous occasion applied for permission to commute a portion of your pension, and, if so, with what result?

6.

How much per annum of your pension do you now wish to commute?

7.

How do you desire the Commuted value to be paid ? To your Agents, or by draft for negotiation through a bank?

[***]

[Omitted & renumbered by S.R.O. by S.R.O. 294-A, dated 29th May, 1970]

Dated the day of 19.....

Signature

Address.....

Form 15

Ship/

Roll No. of Naval Personneldesirous of reckoning former Army/Air Force/Navy service-

Official

number

Name

and Rank

Particulars

OF

Establishment

or ship in which last served

Date

of enrolment

Date

of discharge

Period

of qualifying service

Period

of non-qualifying service, if any

Years

Days

From

To

Nature (vide Regulations 80 and 77)

NOTE 1.-This roll should be accompanied by the Discharge Certificate (in respect of former and present Indian Navy service) of the individual. [(As regards the

NOTE 2.-In the case of claims to reckon former service, under Regulation 83, it below the table in sub-regulation (1) of Regulation 83. In the case of claims mentioned in the proviso to Regulation 80.

NOTE 3.-In the case of men discharged on public grounds, the claims to count if any, received is refunded in full. In the case of men discharged on other grounds.

Station

Date

(IN-867)

Establishment under the provisions of Regulations 77 and 83

Former

?.....

Rank

when discharged from former service and cause of discharge

SERVICE

?.....

Character

in former service

Character

in present Age on enrollment in former service

Date

of re-enrollment in present service

Whether

on enrollment in present service, former service and cause of discharge were declared

The

month's accounts in which may gratuity he may have received has been refunded in full

Remarks

of former Army or Air Force service), (Service Book or Certificate of Service procedure for the submission of this roll, please see regulation 162) should be stated in this column whether the claimant fulfils condition 2 mentioned former service under Regulation 80 it should be stated whether he fulfils the condition of former service for pension fall on the date of re-enrolment provided the gratuity, such claims fall after three years from the date of re-enrolment.

Commanding Officer

Ship /Establishment

Form 16 (IN-271)

Certificate of the Service of

NAME

.....

(In

Block Letters)

in the Indian Navy

NOTE.-The corner of this certificate is to be cut off where indicated if the man is discharged with a "Bad" character or with disgrace, or if specially directed by the Chief of the Naval Staff. if the corner is cut off, the fact is to be noted in the Ledger.

Official

No.

Man's

Signature on discharge to pension

Date

of birth
Nearest
known Relative or Friend
(To
be noted in pencil)
Educational
Qualification
Relationship.....
Trade
or occupation on entry
Name.....
Address
.....
Religion
.....
Period
of Engagement
Swimming
Qualifications
(Passed
Provisional Test, Swimming Test)
Provisional
Active
Service
Fleet
Reserve
Date
Qualification
Signature
Period
From
Period
From
1
1
2
2
3
3
4
4
5
5
6
6
Medals, Clasps, etc. Long Service and Good Conduct Gratuity (See also page 270).
Date
received or forfeited
Nature
of Decoration
Date

received or forfeited

Nature

of Decoration

Description

of Person

Stature

?.....

Chest

In?.....

Colour

of

Marks, Wound and Scars

Feet

In

Hair

Eyes

Complexion

On entry as a Boy.....

On advancement to or entry in man's rating.....

On re-engagement or re-entry for continuous service or for non-continuous service Further description, if necessary.....

Caution This is an Official document. Any alteration made to it without proper authority will render the offender liable to severe penalties.

Name

Name

of Ship/Establishment (Tenders to be inserted first with parent ship in brackets)

Authority

Substantive

Sailor

Specialist

Qualification

From

To

Cause

of Discharge and other notations e.g. 'Death', 'Desertion', 'Invaliding', etc.

Wounds

received in Action and Hurt Certificate; also any

Date

Meritorious Service, Special recommendations, Prize or other

Captain's Grants; temporary advancements to local (acting)

sailors, with signature inclusive dates

Service.....

Name

of Ship/Establishment (Tenders to be inserted first with parent ship in brackets)

Authority

Substantive

Sailor

Specialist

Qualification

From

To

Cause

of Discharge and other notations e.g. 'Death', 'Desertion',
Invaliding', etc.

Examinations

passed and Notations of Qualifications other than those entered
on History Sheets; also for sailors of the Stoker Mechanic
Branch only, Qualifications affecting advancement.

Date

Particulars

Captain's

signature

Date

Particulars

Captain's

signature

Name.....Conduct

Second

Class for Conduct (Inclusive of date)

Character

and Efficiency on 31st December yearly, on final discharge, and
other occasions prescribed by Regulation. If qualified by
service and recommended for Re-engagement or for Medal or for
Medal with Gratuity, "R.R." or "R.M." or
"R.M.G." to be awarded on 31st December and final
discharge, if not, a line to be drawn across column.

Character

is assessed as follows :- Very Good, Good, Fair, Indifferent,
Bad.

Note

as to method of assessing Efficiency.

Superior-above

average efficiency } in substantive sailor,

Satisfactory-average

efficiency Moderate-less than average efficiency

Inferior-Inefficient

held

at the time, without regard to fitness for advancement.

Variations

in efficiency are often explained by the fact that the man had
recently been promoted-see page 269- and had not gained
sufficient experience in his new position to justify a higher
award than that actually assessed.

Good

Conduct Badges

?.....

Character

Efficiency

in Sailor, noting substantive rating in brackets

Whether

R.R.,

Date

R.M.,

R.M.G.,

or

not

Captain's

Signature

Date

1st

Granted

2nd

Deprived

3rd

Restored

Time

forfeited

Date

[*]

[Imprisonment under the Navy Act for other than disciplinary offences, except as provided above against 'D'.]

P.

[*]

[Detention or imprisonment for disciplinary offences only, or imprisonment considered by the Captain to have been awarded in lieu of detention where a detention establishment is not available.]

D.

[*]

[Confinement in cells.]

C.,.....

[*]

[Conviction by civil power.]

C.P.

[*]

[Waiting trial or desertion.]

W.T.D.

Number

of days

?.....

Awarded

Served

Confidential

Form 17 (R.I.N. 245)

Roll

of a Sailor proposed to be discharged/invalided/dismissed

after years' service

Sl.No.

information

required

Answers

1

Official

No.
2
Rank
and name (name should be in BLOCK letters)
3
Ship
or Establishment in which last employed.
4
Date
of birth/ Age on enrolment
Years
Days
5
Date
of enrolment
6
Height
(on discharge)
Feet
Inches
7
Permanent
Home Address (in BLOCK letters)
Village/Tehsil
Post
Office/District
8
Personal
appearance and identification marks
9
Character.
10
Date
of promotions
11
Rate
of pay last admitted (claim for gratuity only)
12
(a)
Date of discharge .
(b)
Service to date of discharge in the case of ordinary retirement
Years
Days
(c)
Service to date on which medical board proceedings are
countersigned by the Principal Medical Officer, Indian Navy
Senior Medical Officer, Indian Navy in the case of invalidment.
Years
Days
13

Periods

not counting under Regulations 69 & 79 as service for pension

.

14

Any

previous Indian Navy, Indian Air Force or Army Service counting towards pension or gratuity, as verified by the Controller of Naval Accounts (quoting authority) .

15

Prominent

occurrence during life or service (All records of field service from the date of commencement to the date of termination should be entered here).

16

Station

at which desirous of drawing pension

NOTE.-The

Station should be one of those mentioned in the Appendix X)

17

Pension

or gratuity for which recommended

Rs.

(Rupees.....only)

18

Other

allowances to which entitled when pensioned; such as

Amount

Rs.

P

Authority

for same.....

(a)

Jagir allowance (1st life)

(b)

Mahavir Chakra, per mensem

(c)

Param Vir Chakra/George Cross allowance.

(d)

Vir Chakra . .

(e)

Param Vir Chakra .

(f)

Any other allowance

19

Cause

of discharge

20

If

recommended for reduction of pension and reasons .

21

Whether

he was granted any pension previously. If so, the No. and date of Pension circular/P.P.O. notifying pension should be quoted

22

Name,

relationship to the pensioner and full address of the person to

whom arrears of pension are to be paid on the pensioner's

demise

Thumb

and finger impressions of the left hand

of.....

[In case of disabilities due to accidents, the Commanding Officer should certify here (a) Whether the disability was sustained, according to the information available, while the individual affected was in the actual performance of Naval duty and, if so, what was the nature of such duty, and (b) whether, in his opinion, the disability was attributable to service in the Indian Navy/field service; and he should state the reasons underlying his opinion as regards attributability. In cases of accidents attributable to negligence on the part of the individual concerned, the provisions of Regulation 102 will apply.]

I certify that the particulars given are correct as far as can be ascertained from

the records of the| shipEstablishments| and recommend that may be sanctioned (See Regulations No. 5, 4, 69 and 80).

Station

Date

Commanding Officer I.N.S

Recommended.

Station

Date

Captain Naval Barracks.

Instructions

This form will not be used for the reassessment of degrees of disability under Regulations 110 and 111.

1. Two copies of this form for each man (with his medical history sheet and service book/ certificate of service/agreement-T-124-India) will be submitted by the applicant's Commanding Officer to the Staff Officer of the station of assembly of Board, for transmission to the Medical Board. in the event of further boards being held for reassessment of disability or for any other purpose the previous board proceedings will be laid before those boards.

2. When a Medical Board (with the exception of a board for reassessment of disability) is about to be held on a sailor the Commanding Officer of the hospital concerned will apply, in writing, to the Commanding Officer of the person about to be brought before the board of his opinion, expressed in writing in duplicate, whether or not the wound, injury, or disease from which the individual is suffering is due to field service or to service in the Indian Navy in ordinary peace conditions. When recording his opinion the Commanding Officer of the person concerned will include therein a short statement of the reasons which have led him to form his conclusions in the matter. The Medical Officer who prepares the statement of the case will attach thereto the written opinion of the Commanding Officer obtained in the manner described above.

Claims to disability pension on account of disease should invariably be accompanied by Form 9 (I.A.EM.1231) duly completed in all respects, vide instructions printed on the reverse of the form.

3. The board, after verifying the identification marks of the individual and having considered the testimony of the Officer Commanding ship /establishment and the medical history of the case, will state from what disease, injury, or wound, if any, the individual is suffering and will record their further opinion under one of the following heads:

(a)

Fit for further service.

(b)

Recommended for further treatment or observation.

(c)

Recommended for sick leave, stating period.

(d)

Unit for further service.

In all cases, except when the board finds that the individual is suffering from no appreciable disability, the board will submit replies to questions (2), (3), (4) if applicable (5), (6) and (7) on page 275.

4. Cases of men who have brought disease on themselves or who have aggravated or retarded the cure of their disability in the hope of obtaining a pension or gratuity, will be reported for the orders of the Captain Naval Barracks, Bombay, if the board are fully satisfied as to the facts. Captain Naval Barracks, Bombay after considering the advice of Principal Medical Officer, Indian Navy, will decide whether an individual is guilty of aggravating or retarding the cure of his disability. Refusal of operation should not be considered as retarding the cure of a disability and cases of this nature should be dealt with in the manner prescribed in Regulation 104.

5. Claims to disability pension on account of wound or injury received accidentally should invariably be accompanied by the proceedings of the Board of Enquiry where required. These will be scrutinised by the Medical Officer who prepares the statement of case on page 274 and by the Medical Board and sent along with the Roll to the Controller of Defence Accounts (Pensions), Allahabad through Captain Naval Barracks, Bombay. In such cases the Medical Board will assess the percentage of the disability but will not express an opinion as regards the attributability or otherwise except on purely medical grounds. As regards accidents, attributable to negligence on the part of the individual concerned the case should be submitted to the Central Government for orders.

6. When an individual has been examined by a Medical Board with a view to determining his claim to the grant of or continuance of a disability pension the authority arranging for his appearance before the board will inform him, after consultation with the Controller of Defence Accounts (Pensions) whether on the finding of the Board he is eligible or not for the grant or continuance of such a pension. The proceedings of such a Medical Board are confidential. The person concerned should not be informed of the percentage degree of his disability but he should be informed as to the nature of his disability for which he is invalided.

Thumb and finger impressions

7. Thumb and finger impressions to be taken on page 272 by the Commanding Officer of the ship or establishment.

A small quantity of printer's ink should be well rubbed on a tin slab until a very thin, even layer is formed. The balls of the thumb and of all the fingers of the left hand of the individual, after being wiped, should be laid on the inked slab and rolled from side to side (not rubbed) until sufficiently inked (this can be learnt from experience) and then lightly and carefully rolled on the paper on which the print is to be taken in such a way that the pattern of the whole of the thumb and fingers from side to side is clearly impressed on it. It must be specially borne in mind that any side movement either at the time of applying or removing the thumb on fingers will cause a smudge and spoil the impression.

The impressions are required for permanent record in the audit office.

Sailors are permitted to complete the page 272 and 277 with three specimen signatures instead of affixing their thumb and finger impressions.

Statement Of Case

The Medical Officer in charge of the case will enter below a statement of the circumstances, as far as can be ascertained, in which the wound injury or disease originated, the present condition of the disability, his opinion as to the fitness or otherwise of the individual for further service together with any further information likely to assist the Board in forming opinions on the questions before them.

N.B. - Before completing the statement the medical officer will read carefully the instructions in paragraphs on pages 273 and 274 of this form.

Station (Name)

Date (Rank)

Opinions Of The Medical Board On The Questions Below

Note. - Alternative entries and questions not applicable should be expunged. (Unauthorised entries should not be made; the board should see that their remarks accord strictly with the regulations on the subject.)

(1)

The Board having verified the identification marks and considered the testimony of his Commanding Officer, Medical history sheet and the statement of the case finds that :

O.No.....Name.....Rank.....is suffering from/has sustained.....

See paragraph of the instructions.

Note

to be filled in cases of disabilities due to wounds or injuries
accidentally sustained.

[*]

[If the answer is in the negative the Medical Board should state the reasons underlying their findings on the question of
attributability or non-connection of disabilities with service]

(2)

Is the disability attributable to service in the Indian Navy in
an area declared to be a field service area

?.....

[*]

[If the answer is in the negative the Medical Board should state the reasons underlying their findings on the question of
attributability or non-connection of disabilities with service]

(3)

Is the disability attributable to service in the Indian Navy in
ordinary peace conditions.....

[@]

[Full reasons must be given.]

(4) If the reply to question (3) above is in the affirmative, is the board satisfied that strict proof has been produced as
required by Appendix V.

.....

.....

.....

(The Medical board should state the reasons underlying their finding on the question of "attributability" or non-connection
of the cause of a disability with service in the Indian Navy. The individual's own statement, uncorroborated by any
reliable evidence will not be quoted as reason underlying the finding.)

[*] [[In the case of refusal of operation or medical treatment vide question 10(a) the percentage of disability should be
determined with reference to Regulation 104. This item should be completed as per example given below:

100. per cent to be reduced to 70 per cent, for the reasons at 10(a).]](5) What is the percentage of disablement?
(Percentage to be entered in words.)

(6)

Is the disability capable of improvement?

(7)

Is the disability due to indulgence in drink or drugs ?

[*]

[If the answer to any of the questions (8) and (9) is in the negative, that question will be deleted.]

(8) Is the board fully satisfied thathas retarded the cure of or aggravated his disability in the hope of
obtaining pension or gratuity ?.....

(9)

Is the board fully satisfied thathas brought the disability on himself in the hope of obtaining
pension or gratuity ?

[*]

[If the answer to any of the questions(10)(a) is in the negative, that question will be deleted.]

(10)(a)Is the board satisfied thathas refused to
submit to| medical treatmentoperation| him fit for further service or reduced the
percentage of disability.

(b)

Is this refusal considered reasonable.

Station

Date

.....President.

.....Member.

Approved

Station

Date

.....P.M.O. Indian Navy-

..... D.P.M.O. Indian Navy.

[**]

[Captain Naval Barracks will specify the date of discharge before the claim to pension is submitted to the Controller of Defence Accounts (Pensions).]

Countersigned and certified thatwill be discharged with effect from [Date shown at item No. 12(a) on page 271 to be entered].

Station

Date

Captain Naval Barracks

NOTE.-Controller of Defence Accounts (Pensions) will bring to the notice of the competent authority any abnormal delay between the date on which the board

proceedings are countersigned by the| P.M.O.D.P.M.O.| I.N. and the date on which the man

is discharged by the Officer Commanding. In cases where a Gurkha rank, whose home is in Nepal, is found unfit for further service by a medical board and the {

|-

| proceedings are signed by the| P.M.O., I.N.S.M.O.(West) I. N.| after 15th June the Commanding

|}

Officer will record in the above certificate that the man will be retained with his Ship/ Establishment until 15th September and discharged with effect from that date.

Foreign Service Certificate

Every application for an invalid, or disability pension on account of sailor lent for foreign service out of India under the African Administrations, or in Somaliland, Jubaland, etc., or under the Government in Mauritius, China, South Africa, Abyssinia, and elsewhere, will be supported by the following particulars and documents :-

(1)

Period of service rendered in the above administration or under the above Government, the particular administrations or special service being specified.

(2)

Particulars of circumstances under which wounded or injured.

(3)

Rank last held while in the foreign service concerned and for what period.

(4)

A medical certificate in the following form according to the circumstances of each case.

Medical Certificate

(a)

See

marginal note below

(a)

Certified

that the expectation of the life of O.

No.....

Name.....Rank.....aged.....years.....late

of the.....

(b)

See

marginal note below

To

be allowed to stand or struck out according to the circumstances of the case

(b)

?.....is

equal to the average.

Is

in impaired health and that the chance of his life has been reduced, and that.....years should be added to his age in order to make the risk equal to that of an ordinary healthy life.

If

allowed to stand the words ?the expectation of the life of

" in the first line and the word? is equal to the average?

in the sixth line should be expunged.

Signature

of Medical Officer

Date

(Impressions should be taken in as small a compass as possible consistent with clearness, see instructions on page 273. This is required in the case of disability or invalid pension only, and in such cases should be completed by the Medical Board. Only one member of the Board need, however, attest the finger and thumb impressions.)

Thumb and finger impression of late taken before (name of office) (on date)

For use in the office of the Controller of Defence Accounts (Pensions), Allahabad.

O.No..... Name late Ship/Establishmentis entitled to Ordinary /Special pension or gratuity and

temporary disability or disability pensions| at amounting to| Rs

(Rupees.....only) per mensem for| life a period of two years| with effect from

.....to

No. Pen/

Dated the

To the Captain Naval Barracks (D.O.)

Dy. Asstt. Controller of Defence Accounts.

Form 18

Last Pay Certificate to

Original

I hereby certify that the individual named below, proceeding from Ship/ Estab(Station)..... has received pay and allowances from me as shown below :

Official

No.

Rank

Lowest

substantive Rank held and group in which paid during the last two years of service qualifying for pension

Name

(in block letters)

Date

of enlistment promotion to the present rank

Date

of transfer to Reserve

Basic

pay and service increments

Deferred

pay[*]

[Deferred pay is not payable along]

Rank

/ Appointment pay

Good

Service payment pay

Dearness

Allowance

1

2

3

4

5

6

7

8

9

10

11

To

The

(I.A.F.A. 447)

be used for all Sailors)

Establishment.....(Station) transfer/pension [*]

[Strike out]

to (Ship/Establishment)

Expatriation

/[*]

[This column should be filled in (manuscript) where payment of parachute]

Special Compensatory Allowances

Clothing

Allowances

Miscellaneous

recurring allowances such as Galantry awards, Jangi Inam, etc

Date

to which paid in figures and in words

Advance

of pay

Terminal

Balance

Remarks,[**]

[Whether or not Competent Financial Authority's sanction to recover it from pension]

deductions, etc.

Amount

Date

of payment

Dr.

Cr.

12

13

14

15

16

17

18

19, 20

21

where inapplicable.

with pay and allowance.

pay annuity or other allowance is made.

was necessary. If necessary, particulars of the orders in support should be quoted.

Naval Pay Office.

Countersigned.

A.A.O. (Pensions)

Form No.19 [AFB-179(C)]

Medical Categorisation

Part I

No.....Rank.....Name.....

Unit

AgeService.....

Army Medical Category on the first posting to army.....

Diability.....

Present state of disability.....

Station

Date

Signature of Medical Officer/

Principal Medical Officer, Ship/

Establishment.

Part II ? Finding of Medical Board held at.....on.....

Disability.....

Remarks :-.....

[*]

[Delete as required.]

Transferred to Army Medical Category.....

[*]

[Delete as required.]

Remains in Army Medical Category.....

Signatures

.....President Board

.....Members of Medical Board.

Form No. 20 (I.A.F.F 958)

Service and Casualty Form Sailors

(The entries made on this form must invariably agree with those recorded in the Sheet Roll and/or casualties published in Pt. I/II Orders from time to time)

Official No..... Rank Name..... Ship/(in pencil)

Establishment Med. Cat.

(in pencil, if temporary)

Enlistment

Particulars

Personal

Particulars

Postal

Particulars

Enrolled
at
Father's
Name
Village
Navy
Yrs.
Post
office
Telegraph
Service
Religion
Telegraph
Office Nearest Railway Station and the distance from the
residence Terms of Service
Reserve
Yrs.
Age
of Enrolment
Class
or Tribe
Next-of-Kin
Thana/Police
Station Tehsil and District.
Service
reckons from
Educational
Qualifications
Courses
Passed
Honours
& Awards
Civil
Military
Prominent
Occurrences
Musterings
Operational
Theatres
Group/Category
& Class
Admission
To Hospital
Discharge
From Hospital
Annual
Weapon Training Results

Note:-All casualties affecting the military history of sailors including important items mentioned above will be recorded with appropriate authority on the reverse of this form.

Sl.No.

No.

of Pt. II Order or other authority

Ship/Establishment

Record

of all casualties

Place

of casualty

Army

Rank

Date

Signature

(in ink) and designation of Officer certifying correctness of entries

(a)

(b)

(c)

(d)

(e)

(f)

(g)

Form 21 (AFMSF 81)

Report on cases (other than those due to injuries) which have ended fatally or are proposed for invaliding

(For instructions see page 284)

Part A ? (To be filled by the M.O.)

Station

Date

Name Service No..... Rank/Rating.....

Ship/ Establishment Service Army/Navy/Air Force.....

Branch.....

Disability.....

Outcome of the case, i.e., died or to be invalided.....

Medical Officer

Part B ? (To be answered by the Commanding Officer Ship/Establishment)

Circumstances of the case :

1. Was the individual in your opinion of average physique and stamina when he joined the unit ?

2. (a) Was the individual, as far as you are aware, in his normal health prior to the onset of the illness?

(b)

if you are aware of any previous illness from which he suffered (which is not recorded in his medical history), state its nature and duration.

3. Was the individual employed on sedentary duties/ sheltered occupation? If so

(a)

had he to do P.T. and/or Parades?

(b)

was he doing it regularly prior to falling ill or had been exempted therefrom on account of ill-health? If so, from which date ?

4. (a) (i) Mention any circumstances of exposure giving details thereof, and/or

(ii)

State periods and conditions of service, at any particular place, which you consider caused or aggravated the illness.

(b)

(i)

Give the nature of duties he had to perform in military service.

(ii)

Was he subjected to stress and strain by such duties? If so, was it of an exceptional nature? Give details.

(c)

Diseases endemic to certain areas or disease due to infection.

(i)

If disability or death was due to infection, is there any evidence that the exposure was due to negligence or misconduct on his part?

(ii)

Did he live in unit lines or was he permitted to live outside with his family?

(iii)

How many out passes was he granted during the previous month and what was the date of the last out pass?

(iv)

Was the disease endemic to the area he was serving in and during this period or immediately preceding it were there other cases of the same diseases in the unit? If so, give the number of such cases, details of movements of infected persons and state any other circumstances which might have been responsible for the disease.

(v)

Give the date of last leave and places where the leave was spent. Did illness start during leave ? If shortly after return from leave state date on which the illness commenced.

(d)

Venereal Diseases (Further information on the points mentioned below):

(i)

When was it contracted?

(ii)

Period of treatment.

(iii)

Whether after treatment the man returned to full duty.

(iv)

Whether after return to duty post hospital surveillance and treatment was continued according to existing regulations.

(v)

After return to duty, was the man subjected to any stress of an exceptional nature ? If so, mention the nature of exceptional stress.

5. Do you consider that the death or disability was attributable to or aggravated by service?

Commanding Officer

Date

Part C ? (To be completed by O.C. Hospital/Ship in all death cases except those of sailors for whose cases Form 8 (IAFM 393), Part II, will be completed.)

Diseases endemic to certain areas or disease due to infection

(i)

How many cases of this disease were treated during six months prior to admission of this individual.

(ii)

How many cases of this disease were received from his Ship/Establishment? Give details of such patients in Chronological order.

(iii)

Was the infection endemic or was there any outbreak of it in the local garrison ?

(iv)

Was there an outbreak of the disease in the neighbouring city or villages?

(v)

What is your view of the source of infection?

In all cases state whether you consider that the death was attributable to or aggravated by service and give the reasons on which you base your opinion.

Commanding Officer Hospital or Medical

Unit/Ship

Instructions

1. More detailed is the information given of dates and occurrences, the easier will it be for the pension sanctioning authority to determine the question of entitlement pension.

2. After Part B has been completed by the Commanding Officer Ship/Establishment this form will be sent to the Commanding Officer Hospital for disposal as follows :

(a)

In the case of death, for attachment to the death certificate, after completion of Part C, where necessary.

(b)

In the case of invaliding, for attachment to the medical board proceedings.

3. One copy of this form will accompany every disability and family pension claim (other than that due to injuries) for retention by the pension sanctioning authority.

4. In the case of sailors, the opinion of medical officer will be copied into the Medical History Sheet.

Form 22 (RIN 239)

Claim form for the original grant of Family Pensions to the Heirs of Sailors

Original (to be retained by the Pension sanctioning authority)

Duplicate [to be returned after completion of Part III, to the Captain Naval Barracks (D.O.) for transmission to the pension disbursing officer].

Part I ? NOTE 1.-To be filled in by the Captain Naval Barracks (D.O.), from the service document of the deceased.

NOTE 2.-The Captain Naval Barracks (D.O.) will use English-Urdu, English-Hindi or English-Marathi versions of the form according to the vernacular language prevalent in the area to which the claimant belongs and will fill in Part I of the form in English as well as the vernacular concerned. Where the vernacular prevalent in the area to which the claimant belongs is not one of the three referred to above the Captain Naval Barracks will fill in only English copy of the form.

1. Details regarding the deceased

(a)

Official No., rank and name.....

(b)

Ship /Establishment in which he last served.....

(c)

Date, place and cause of death.....

(d)

No. and date of the pension circular/ PPO notifying the grant of pension, if the deceased was a pensioner.....

(e)

(i)

Date up to which pay has been credited to the individual's account.....

(ii)

Rate of family allotment.....

(iii)

Relationship of allottee.....

(iv)

Date up to and for which family allotment has been paid.....

(v)

Whether the family allotment paid beyond the date of death of the individual was met from his credit balance and if so to what extent.....

(vi)

The rate of special family allowance.....

(vii)

Relationship of the person/persons to whom special family allowance has been paid.....

(viii)

Date up to and for which special family allowance was last paid

Note.-The particulars against item (e) above are required to be certified as correct by the Controller of Defence Accounts (Navy).

2. Details regarding the claimant

(a)

Name in full (in BLOCK letters).....

(b)

Relationship with the deceased.....

(c)

Date of birth or age, if known.....

(d)

Residence :

Village.....

Tehsil.....

District, etc.....

3. Rate of family pension considered to be admissible, if the claim is ultimately established (quote authority).....

Signature and full designation of the Captain Naval Barracks (D.O.).

Place

Date

Part II ? Note 1. - To be filled in by an Officer of the Recruiting Staff (including a junior Commissioned Officer /Civilian employed as Extra Assistant Recruiting Officer) with the help and in the presence of a local civil official (Kanungo, Patwari and other subordinate) or if they are not available, of other respectable person e.g. Member of Parliament of Legislative Assembly, a Member of Corporation/Municipality/District Board, Serving or Retired Officer/Junior Commissioned Officer, Sarpanch, Village Lambardar or Zaildar. If the local investigation discloses any doubt or dispute, the Recruiting Officer will refer the case to the higher revenue authorities e.g. Tehsildar, Deputy Commissioner or Collector.

Note 2. - In a case where along with the English copy of the form, the vernacular version in Hindi, Urdu or Marathi is also sent, the Investigating Officer will if he knows English, complete only English copy, and need not fill in the vernacular copy. If he does not know English, he will complete the vernacular copy, and the countersigning officer will translate all the particulars into English and complete the English copy.

1. Details regarding the claimant

(a)

name in full (in BLOCK letters).....

(b)

Relationship with the deceased.....

(c)

Marks of identification (in the case of a female claimant only one or two permanent marks or blemishes of the apparent parts of the body such as hands, feet, etc., may be recorded)

(d)

Date of birth or age, as nearly as can be ascertained.....

(e)

If the claimant is the widow of the deceased, state :

(i)

Whether she was married to the deceased by a lawful and valid ceremony according to recognised custom

(ii)

Whether she has remarried since the death of her deceased husband and if so,

(a)

give the date of remarriage.....and

(b)

state whether she remarried a real brother born of the same parent of her deceased husband.....

(iii)

Whether the deceased left behind more than one widow, and if so, state their names and dates of marriage with the deceased

(f)

If the claimant is a father, state :

(i)

Whether he is the real (as distinct from step or foster) father of the deceased

(ii)

Whether he is a cripple or otherwise physically or mentally unable to support himself. (The information is not necessary if the father is above 50 years of age.)

(iii)

Whether the widow and/or mother of the deceased are/is also alive.

(This information should be given if the father is below 50 years of age).....

If the claimant is mother, state :

(a)

Whether she is the real (as distinct from step or foster) mother of the deceased

(b)

Whether she has remarried since the death of her deceased son; if so, give the date

(h)

If the claimant is a son, state :

Whether he is the legitimate and real (as distinct from step or foster) son of the deceased.....

(i)

If the claimant is a daughter, state:

(a)

Whether she is the legitimate and real daughter of the deceased

(b)

Whether she is married; if so, state the date of her marriage

(j)

Residence :

Village.....

Tehsil.....

District, etc.....

(k)

Occupation

(l)

If already in receipt of any remuneration from public revenues (such as pay, pension, Provident Fund, Compensation, etc.) give nature and details of employment or No. and date of the pension circular/PPO notifying the pension, as the case may be.....

(m)

Place at which payment of pension is desired. (It should be a pension paying treasury or post office).....

(n)

Name and particulars of the person to whom the claimant desires arrears of pension, if any due, to be paid on his/her demise.....

2. The details in para 1 above have been read over to the witnesses (who profess to know the claimant and not related/*related to him/her) and they have acknowledged them to be correct. They have been warned that they will be liable to punishment should their evidence on any point prove to be false.

The description of the witnesses, and their signature (or thumb impressions) in token of the correctness of the above

mentioned details are given in para 3 below.

*If related, state in para 3 below why no disinterested witness could be produced.

3. Description of two reliable and disinterested witnesses (preferably government servants or military pensioners or headmen of the village) from whom necessary particulars regarding the claimant are obtained.

Description

of the 1st witness and his Signature (or thumb impression)

Here

give description as follows:-

(i)

If in service, give name and No. rank and corps or ship

/Establishment designation and department in which employed

.....

Description

of the 2nd witness and his signature (or thumb impression)

(ii)

If a pensioner, give name and No. and date of the pension circular pension payment order, etc. notifying the pension, also the treasury and post office where from the pension is being drawn

(iii)

If a villager, give the name and the position he holds in the village.....

NOTE.-If any of the witnesses is related to the claimant, give reasons why no disinterested witness could be produced.

4. Thumb and finger impression of the left handtaken in my presence:

Place

.....

Signature,

Designation and address in full of the investigating Officer of Recruiting Organisation.

Signature

of the local civil official or other respectable person specified in Note I.

Countersigned

Place

Date Signature of the Recruiting Officer.

NOTE.-In cases where the claimant is a minor, the thumb and finger impression of the guardian should be obtained in the space under para 4 above in addition to those of the claimant and the relationship of such guardian to the claimant should be noted.

Part III ? Family pension at Rsp.m. sanctioned with effect from for Life

till Remarriage, vide

till Marriage

till the age of attaining 18 years, viz.....PPO No.....

of

Date

Place

Assistant Accounts Officer (Pensions)

Form 23

(RIN 240)

Claim form for the grant of children's allowance to the children of sailors

Original (to be retained by the Pension sanctioning authority)

Duplicate [to be returned after completion of Part III, to the Captain Naval Barracks (D.O.) for transmission to the pension disbursing officer].

Part I ? NOTE 1.-To be filled in by the Captain Naval Barracks (D.O.), from the service document of the deceased.

NOTE 2.-The officer commanding or head of the department, etc., will use English-Urdu, English-Hindi, or English-Marathi versions of the form according to the vernacular language prevalent in the area to which the claimant belongs and will fill in Part I of the form in English as well as the vernacular concerned. Where the vernacular prevalent in the area to which the claimant belongs is not one of the three referred to above, the Captain Naval Barracks (D.O.) will fill in only English copy of the form.

1. Details regarding the deceased

(a)

Official No., rank and name.....

(b)

Ship/Establishment in which he last served.....

(c)

Date, place and cause of death.....

(d)

No. and date of the pension circular/PPO notifying the grant of a pension, if the deceased was a pensioner

(e)

(i)

No. and date of the pension circular/PPO notifying the award of family pension, if already sanctioned.....

(ii)

Name and relationship of the heir to whom the family pension was sanctioned or is proposed to be sanctioned

(f)

Rate of children's allowance considered to be admissible, if the claim is ultimately established (Quote authority)

2. Details regarding the children-

Name

Date

of birth or age

Whether

son or daughter

Residence,

i.e., village

Tehsil,

etc.

District

1

2

3

4

Date

Place

Signature and full designation of the Captain Naval Barracks (D.O.)

Part II ? Note 1. - To be filled in by an Officer of the Recruiting Staff (including a junior Commissioned Officer/Civilian employed as Assistant Extra Recruiting Officer) with the help and in the presence of a local civil official (kumungo, Patwari and other subordinate) or if they are not available, of other responsible person e.g., Member of Parliament or Legislative Assembly, a member of Corporation/ Municipality /District Board, Serving or Retired Officer/Junior

Commissioned Officer, Sarpanch, Village Lambardar or Zaildar. If the local investigation discloses any doubt or dispute, the Recruiting Officer will refer the case to the higher revenue authorities e.g. Tehsildar, Deputy Commissioner or Collector.

Note 2. - In a case where along with the English copy of the form, the vernacular version in Hindi, Urdu or Marathi is also sent, the Investigating Officer will if he knows English, complete only English copy, and need not fill in the vernacular copy. if he does not know English, he will complete the vernacular copy, and the countersigning officer will translate all the particulars into English and complete the English copy.

If the countersigning officer also does not know English, the Captain, naval Barracks, Bombay will arrange to translate all the particulars into English and complete the English copy of the form before submitting it to the pension sanctioning authority but the countersigning officer will invariably ensure that the dates of birth etc. shown in the form are given in Christian Era.

1. Details regarding the children. of there are any children of the deceased besides those whose names have been shown in Part I, their particulars should also be entered below by the investigating officer).

Name

Date

of birth or age

Sources

from which date of birth of age has been ascertained

Whether

son or daughter

Residence

Name

and relationship of the guardian to whom the allowance should be disbursed

Name

& designation of the person to whom arrears of children's allowance if any should be paid on demise of the child

Remarks

1

2

3

4

5

6

7

8

Birth

certificates of the children where available should be obtained and furnished with the claim. Where birth certificates are not available, the correctness of the dates of birth given in Part I should be checked by taking evidence of the relatives of the deceased.

2. Description of two reliable and disinterested witnesses (preferably government servants or military pensioners or headmen of the village) from whom the particulars regarding the children are obtained.

Here

give description as follows :

1st

witness

(i)

If in service, give name and No. rank I and corps or Ship/

Establishment designation and department in which employed.

(ii)

If a pensioner, give name and No. & date of pension circular
pension payment order, etc. notifying the pension, as also the
treasury or post office where from pension is being drawn.</P>

2nd

witness

(iii)

If a villager, give the name and position he holds in the
village.

Note. - If any of the witnesses is related to the claimant, give reasons why no disinterested witness could be produced.

3. The following questions should be put to the witnesses and their answers recorded against each question :

Question

to be put to witness

Answer

of the 1st witness

Signature

or thumb impression

of

the 1st witness

Answer

of the 2nd witness

Signature

of thumb impression of the 2nd witness

Name

of children

Name

of the children

1

2

3

4

1

2

3

4

1

2

3

4

5

1.

Are you related to the children) present here ?

2.

Is/are the children) the legitimate and real (and not adopted or
step) children) of the late?

(insert

here the name of the deceased)

3.

Is/are the children) to your knowledge already in receipt of
pay or pension from Government ? If so what is the monthly
amount?

[*]

[Delete the item if not relevant]

4.

If the claimant is a daughter; is she married, if so, what is the date of her marriage?

[*]

[Delete the item if not relevant]

5.

Applicable in a case where the child has also been granted a family pension, or such pension is proposed for him/her [See para 1(e) of Part I].

6.

(a) (i) Is the widow of the deceased alive?

(ii) If

so, has she remarried since the death of her deceased husband?

(iii)

If remarried, has she married her husband's real brother?

(b)

(i) Is the real mother of the deceased alive?

(ii) If

so, has she remarried since the death of her deceased son?

(iii)

If remarried, what is the date of her remarriage ?

(c)

(i) Is the real father of the deceased alive?

(ii)

If so, what is his age?

(iii)

Is he in receipt of any pay or pension from Government?

4. The investigating officer should sign the following certificates :

The answers in para 3 above have been read over to the witness who have acknowledged them to be correct. They have been warned that they will be liable to punishment should their evidence on any point prove false.

5. Thumb and finger impressions of the left hand of the children taken in my presence.

Name

Thumb

and finger impressions

1

2

3

Place.....

Date.....

Signature,

Designation, and Address in full of the Investigating Officer of Recruiting Organisation.

Signature

of the local civil official or other respectable person specified in Note 1.

Countersigned

Place

Date

Signature of the Recruiting Officer.

NOTE.-In cases where the claimant is a minor, the thumb and finger impressions of the guardian should be obtained in the space under para 5 above in addition to those of the claimant and the relationship of such guardian to the claimant should be noted.

Part III

Children

allowance(s) as under, in

P.P.O.....of.....

Name

of the child

Serial

No.

Class

No.

Date

of children's allowance

Date

of commencement

Period

for which payable

1

2

3

4

Date

.....

Place

.....

Assistant

Accounts Officer (Pensions).

Form 24

(RIN 241)

Claim form for the continuance of family pension to fathers or mothers of deceased sailors

Original (to be retained by the Pension sanctioning authority)

Duplicate [to be returned, after completion of Part III, to the Captain Naval Barracks (D.O.) Bombay, for transmission to the pension disbursing officer].

Part I ? Note 1. - To be filled in by the Captain Naval Barracks (D.O.), from the service documents of the deceased.

Note 2. - The Captain Naval Barracks (D.O.) will use English-Urdu, English-Hindi or English-Marathi versions of the form according to the vernacular language prevalent in the area to which the claimant belongs and will fill in Part I of the form in English as well as the vernacular concerned. Where the vernacular prevalent in the area to which the claimant belongs is not one of the three referred to above the Captain Naval Barracks (D.O.) will fill in only English copy of the form.

1. Details regarding the deceased

(a)

Official No. rank and name.....

(b)

Ship/Establishment in which he last served.....

2. Particulars of the original grant of family pension:

(a)

Name of the recipient.....

(b)

Relationship with the deceased.....

(c)

No. and date of the pension circular/PPO notifying the original grant of family pension.....

(d)

Date and cause of cessation of the original grant.....

3. If children's allowance with 50 per cent, increase was sanctioned, quote No. and date of the pension circular/ PPO in which sanctioned

4. Details regarding the claimant:

(a)

name in full (in BLOCK letters).....

(b)

Relationship with the deceased sailor.....

(c)

Date of birth or age as nearly as can be ascertained.....

(d)

Residence:

Village

Tehsil

District, etc

Signature and designation of the Captain Naval Barracks (D.O.)

Date

Place

Part II ? Note 1. - To be filled in by an Officer of the Recruiting Staff (including a junior Commissioned Officer/Civilian employed as Extra Assistant Recruiting Officer) with the help and in the presence of a local civil official (Kunungo, Patwari and other subordinate) or if they are not available, of other respectable person e.g. Member of Parliament or Legislative Assembly, a Member of Corporation/Municipality/District Board, Serving or Retired Officer/Junior Commissioned Officer, Surpanch, Village Lambardar or Zaildar. If the local investigation discloses any doubt or dispute, the Recruiting Officer will refer the case to the higher revenue authorities e.g. Tehsildar, Deputy Commissioner or Collector.

Note 2. - In a case where along with the English copy of the form, the vernacular version in Hindi, Urdu or Marathi is also sent, the Investigating Officer will if he knows English, complete only English copy, and need not fill in the vernacular copy. If he does not know English, he will complete the vernacular copy, and the countersigning officer will translate all the particulars into English and complete the English copy. If the countersigning officer also does not know English, the Captain Naval Barracks, Bombay will arrange to translate all the particulars into English and complete the English copy of the form before submitting it to the pension sanctioning authority but the countersigning officer will invariably ensure that the date of birth, etc., shown in the form are given in Christian Era.

1. Date of event which caused cessation of the original award [See 2(d) of Part I].

(In case of death an extract from the village death register to be furnished in support, if available.)

2. Details regarding the claimant

(a)

Name in full (in BLOCK letters).....

(b)

(i)

Relationship with the deceased.....

(ii)

whether he/she is real (as distinct from step or foster) father/mother of the deceased.....

(c)

Date of birth and age.....

(d)

Marks of identification.....

(In case of female claimant, only one or two permanent marks of blemishes of the apparent parts of the body, such as

hands, feet, etc. may be recorded.)

(e)

Occupation.....

(f)

Whether already in receipt of any remuneration from public revenues (such as, pay, pension Jangi Inam and other allowance) from the State.

If so, give the nature and details of employment of the number and date of pension circular/PPO. etc., notifying the award, as the case may be

(g)

The average monthly income (net) of both father and mother from other permanent sources.....

(h)

The average monthly amount which the living son/sons, whether willing or unwilling to support is/are in a position to contribute regularly towards the support of the claimant

(i)

If the claimant is mother, state whether she has remarried since the death of her deceased son, and if so, give the date of remarriage.....

(j)

Place at which payment of pension is desired. (It should be a pension paying treasury or post office).....

(k)

Residence:

Village.....

Tehsil.....

District, etc.....

(l)

Name and particulars of the person to whom the claimant desires arrears of pension, if any due, to be paid on his/her demise.....

3. The details in paras 1 and 2 above have been read over to the witnesses (who profess to know the claimant and not related/*related to him/her) and they have acknowledged them to be correct. They have been warned that they will be liable to punishment, should their evidence on any point prove to be false.

The description of the witnesses and their signatures (or thumb impressions) in token of the correctness of the above-mentioned details are given in para 4 below.

*If related state in para 4 below why no disinterested witness could be produced.

This form duly completed must accompany all claims of continuance of family pension

1.

Name of the claimant and his/her relationship with the deceased soldier.

1

2.

Occupation of the claimant.

2

3.

If both the father and mother of the deceased are alive.

3

A.

What is their combined monthly in-come from pay, pension' etc.

A.....

B.

(a) Have they got any landed property, house, etc.?

B(a).....

(b)

If so, give details of this property i.e. Urban or rural area;
nature of crops raised, etc. and also the monthly income from
this source.

(b).....

(c)

Annual assessment paid on account of the landed property, etc.

(c).....

C.

Income of both the parents from all other sources.

C.

4.

In case, only one of the parents father or mother is alive.

4.....

A.

What is his/her monthly income from pay, pension' etc.

A.....

B.

(a) Whether he/she has got any landed property, house, etc.

B(a).....

(b)

If so, give details of this property i.e. Urban or rural area;
nature of crops raised, etc. and also the monthly income from
this source.

(b).....

(c)

Annual assessment paid on account of the landed property, etc.

(c).....

C.

Income of the claimant from all other sources.

C.....

5.

(a) What is the number of the living sons of the claimant?

5(a).....

(b)

State their occupations and their in-come from all sources
(including pay, pension, land, etc.)

(b).....

(c)

Whether they stay together with the claimant or separately.

(c)?.....

(d)

If married what is the size of their families.

(d).....

(e)

The amount which the living sons are in position to contribute
per month, willingly or unwillingly towards the maintenance of the
claimant.

(e).....

(f)

Whether the local investigation officer is satisfied that the
contributions, which the living sons are in a position to make

towards the support of father/mother as mentioned at sub-item (e)
above are likely to be regular and NOT otherwise.

(f).....

Place.....

Date.....

District

Civil Officer of Gazetted status.

4. Description of two reliable and disinterested witnesses (preferably Government Servants or military pensioners or headmen of the village) from whom necessary particulars regarding the claimant are obtained.

Description of the

1st witness and his signature (or thumb impression)

Here give

description as follows

(i) If in service,

give name and No., rank and corps or Ship /Establishment

designation and

department in which employed

(ii) If a

pensioner, give the name and No. and date of the pension circular

pension payment order, etc. notifying the pension, also the

treasury and post office where from the pension is being drawn

.....
Description of the

2nd witness and his signature (or thumb impression).

(iii) If a

villager, give the name and the position he holds in the

village.....

Note. - If any of the witnesses is related to the claimant, give reasons why no disinterested witness could be produced.

5. Thumb and finger impressions of the left hand of.....taken in my presence (insert the name of the claimant)

Signature, Designation and address in full of the investigating officer of Recruiting Organisation., Signature of the local civil official or other respectable person specified in Note 1.

Place

Date

Countersigned

Signature of the Recruiting Officer.

Place

Date

Part III ? Continuance of family pension sanctioned at Rsp.m. with effect fromfor life in PPO

No.....of..... till re-marriage

Date

Place

Assistant Accounts Officer (Pensions)

Form 25

(RIN 242)

Claim form for the grant of Family pension to Foster-Parents or Adopted or Step Children or Minor Brothers or Sisters of deceased Sailors

Original (to be retained by the pension sanctioning authority)

Duplicate [to be returned after the completion of Part III, to the Captain Naval Barracks (D.O.) for transmission to the pension disbursing officer].

Part I ? Note 1. - To be filled by the Captain Naval Barracks (D.O.), from the service documents of the deceased.

Note 2. - The officer commanding or head of the department, etc. will use English-Urdu, English-Hindi, English-Marathi versions of the form according to the vernacular language prevalent in the area to which the claimant belongs and will fill in Part I of the form in English as well as the vernacular concerned. Where vernacular prevalent in the area to which the claimant belongs is not one of the three referred to above, the Captain Naval Barracks (D.O.) will fill in only English copy of the form:

1. Details regarding the deceased-

(a)

Official No., rank and name.....

(b)

Ship /Establishment in which he last served.....

(c)

Date, place and cause of death.....

(d)

No. and date of the pension circular/PPO notifying the grant of disability pension, if the deceased was a pensioner.....

(e)

Name and relationship of the person to whom the deceased was making a family allotment; if any, the rate/rates of allotment and the period/periods for which it was made

A copy of IAFF. 1108-A (Statement of debits and credits) when available will be forwarded with this form to the Controller of Defence Accounts (Pensions), Allahabad.

2. Details regarding the claimant :

(a)

Name in full (in BLOCK letters).....

(b)

Relationship with the deceased.....

(c)

Date of birth or age, if known.....

(d)

Residence :-

Village.....

Tehsil.....

District, etc

Signature and full designation of the Captain Naval Barracks (D.O.).

Place

Date

Part II ? NOTE 1. - To be filled in by an Officer of the Recruiting Staff (including a junior Commissioned Officer/Civilian employed as Extra Assistant Recruiting Officer with the help and in the presence of a local civil official (Kanungo, Patwari and other subordinate) or if they are not available, of other respectable person e.g. Member of Parliament or Legislative Assembly, a Member of Corporation/Municipality/District Board, Serving or Retired Officer/Junior Commissioned Officer/Sarpanch, Village Lambardar or Zaildar. If the local investigation discloses any doubt or dispute, the Recruiting Officer will refer the case to the higher revenue authorities e.g. Tehsildar, Deputy Commissioner or Collector.

NOTE 2. - In a case where along with the English copy of the form, the vernacular version in Hindi, Urdu or Marathi is also sent, the Investigating Officer will if he knows English, complete only English copy, and need not fill in the vernacular copy. If he does not know English, he will complete the vernacular copy, and the countersigning officer will translate all the particulars into English and complete the English copy.

1. Details regarding the claimant

(a)

Name in full (in BLOCK letters).....

(b)

Relationship with the deceased.....

(c)

Date of birth or age (Birth Certificate to be furnished, if available in support, if the claimant is a child or minor brother or sister).....

(d)

Mark of identification (in cases of female claimants, only one or two permanent marks or blemishes on the apparent parts of the body such as hands, feet, etc., maybe recorded).....

(e)

Occupation.....

(f)

Average monthly income from all sources (e.g., land, any remuneration from the State, any regular help given by relatives, etc.).....

(g)

Place at which payment of pension is desired. (It should be a pension paying treasury or post office).....

(h)

Residence :

Village

Tehsil.....

District, etc.....

(i)

Name and particulars of the person to whom the claimant desires arrears of pension, if any due to him/her, to be paid on his/her demise-

2. The following particulars will also be verified by the investigating officer:-

(a)

If the family allotment was not made to the claimant, but to someone else, to what extent was it shared by the claimant?

(b)

If no family allotment was made through official channels, through what other source(s) was the contribution made by the deceased to the claimant ?

(c)

What documentary evidence is there in support of the answer to (b) above ? Any evidence should be forwarded with this form. If money orders were sent, a certificate from the local postmaster showing the amounts of the orders and the period during which they were remitted should be attached, in the absence of the M.O. coupons.

If the claimant is a foster parent ?

(d)

What are the actual or approximate dates of deaths of-

(i)

the father of the deceased

(ii)

the mother of the deceased

(e)

(i)

How many unmarried sons has the claimant?

(ii)

What are their ages?

(iii)

What are their respective monthly earnings?

(f)

(i)

Whether the husband of a foster-mother is alive? What is his age?

(ii)

What are his monthly earnings?

(iii)

Does infirmity or disease incapacitate him? If the claimant is an adopted child :

(g)

Was the claimant adopted by the deceased legally, or after the performance of prescribed religious ceremonies? (Copy of the court deed and in case no deed was executed, statement of respectable persons of the locality should accompany in support.)

(h)

Who is his guardian now?

(i)

What are the circumstances in which his guardian, real parent(s) and elder brother(s) if any are unable to support him? If the claimant is a minor brother or sister :

(j)

What are the monthly earnings of each unmarried elder brother (if any) of the claimant?

3. Description of two reliable and disinterested witnesses (preferably Government servants or military pensioners or headmen of the village) from whom necessary particulars regarding the claimants are obtained.

1st

Witness

Here

give description as follows :-

(i)

If in service, give his name, and No. rank, corps of Ship/
Establishment designation and department in which employed

.....

2nd

Witness

(ii)

If a pensioner, give name and

No.

and date of the pension circular

pension

payment order, etc.,

notifying

the pension, as also the treasury or post office where from

pension is being drawn.

(iii)

If a villager, give the name and the position he holds in the

village.....

NOTE.-If any of the witnesses is related to the claimant, give reasons why no disinterested witness could be produced.

4. The following questions should be put to the witnesses and their answers recorded against each question :

Questions

Answers

of the witness

Signature

or thumb impression of the 1st witness

Answers

of the 2nd witness

Signature

or thumb impression of the 2nd witness

1

2

3

4

5

1.

Do you know the man/woman/ child present here?

2.

Is he/she related to you?

3.

Was he/she mainly dependent on the late

..... (insert here name, etc., of the
deceased soldier) during his lifetime ?

4.

If so, what was, to your knowledge, the average monthly amount
contributed by the deceased ?

5.

Has he/she any other means of income, e.g., income (net) from
land, any regular support given by relatives, etc. ; if so, what
is, to your knowledge, the average monthly amount of such
income?

[*]

[Delete the item, if not relevant]

6.

If the claimant is foster-father:-

(a)

Has he got any real son(s) living?

(b)

If so, is he/are they in a position to support him ?

(c)

Did he bring up the deceased during his childhood ?

[*]

[Delete the item, if not relevant]

7.

If the claimant is foster-mother:-

(a)

Is her husband and real son(s) alive ?

(b)

If so, is he/are they in a position to support her ?

(c)

Did she bring up the deceased during his childhood ?

(d)

Has she remarried since the death of the deceased ?

[*]

[Delete the item, if not relevant]

8.

If the claimant is an adopted child:

(a)

Are his/her real parents or brothers alive ?

(b)

If so, are they in a position to support him/her? .

(c)

Was the child being brought up by the deceased ? If so, since
when?

(d)

Is the child (if adopted daughter of the claimant) married ?

[*]

[Delete the item, if not relevant]

9.

If the claimant is a minor brother or sister :

(a)

Was he/she largely dependent for support on the deceased ?

(b)

Has he/she got any other brother(s) and if so,

(i)

What is his/are their age(s)

(ii)

Is he/are they in a position to support the claimant ?

(c)

If the claimant is a sister, is she married ?

10.

Did the deceased leave behind any of the undermentioned relatives:

Widow,

real parents, children?

5. The investigating officer should sign the following certificate after checking up that the answers of the witnesses are in harmony with the detailed facts given by him in reply to items 1 and 2 ante:

The answers in paragraph 4 have been read over to the witnesses who have acknowledged them to be correct. They have been warned that they will be liable to punishment, should their evidence on any point prove to be false.

6. Thumb and finger impressions of the left hand oftaken in my presence. (insert the name of the claimant)

Place

Signature,

Designation and address in full of the investigating officer of Recruiting Organisation

Signature

of the local civil official or other respectable person specified in Note 1.

Countersigned

Place.....

Date.....

Signature

of the Recruiting Officer.

Note. - In cases where the claimant is a minor, the thumb and finger impressions of the guardian should be obtained in space under paragraph 6 above in addition to those of the claimant and the relationship of such guardian to the claimant should be noted.

Part III ? Family pension sanctioned at Rs p.m. with effect from for life till marriage

till re-marriage

till the age of attaining 18 years,

vide P.P.O. noof

Date

Place

Assistant Accounts Officer (Pensions)

Voucher No.

Form 26

(I.A.F.A. 370)

List of Men entitled to pension/gratuity belonging toretiring on pension or declared unfit for service by the Medical Board which assembled aton the.....day of.....19.....for whom the authorised advance/amount of..... *months pension or gratuity is charged/required.

Nos.

Ship/Establishment

Names

Rank

Length

of Service

Date

up to which effective pay has been drawn

[**]

[To be filled in by the units with reference to the recommendations made against item 18 of the 27(IAFY) 1948]

Pension

or Gratuity

Controller

of Defence Accounts (Pensions) Circular. (To be completed by

Pension Office)

Payee's

receipt

Years

Months

Rate

per mensem

Amount

Rs.

Rs.

nP

Certified that the rates of pay and allowances appropriate to the substantive rank held on the termination of qualifying service for Gratuity (i.e. the date of counter-signature of the Medical Board proceedings by the ADMS/PMO IN/DPMO) are as under:

(a)

Basis Pay (including deferred pay, where applicable) of the substantive rank last held.-

(b)

Rank/Appointment Pay

(c)

Increment of Pay

Captain Naval Barracks (DO)

(d)

Good service Pay

(e)

Paraclete Pay, if any

(f)

Badge Pay

Countersigned

AAO CDA (Navy)

Note : Cheque may be issued in favour ofonTreasury for credit to the Public Fund Accounts of the Commanding Officer.

I certify that the above men who have been invalided by the Medical Board and are entitled by length of service to the

gratuities specified, are not invalidated in consequence of disorders brought on by indulgence in drugs or drink.

Station

Comdg.....

Date19 (For use in the D.A. Department)

Passed for (Rs. nP.) Rupees(in words)

Voucher No Noted in Register of gratuities., Page No.....

A.T's

Code No.

Treasury

Name

of Payee

Amount

of cheque

Date

of cheque

Initials

of Officer i/c 'D' section

Initials

of Supdt. 'D' section

Auditor

Supdt.

A.A.O.

NOTE.-Claims that may remain unadjusted after a man has been struck off the effective establishment must be communicated to the pension disbursing officer to whose payment the pensioner has been transferred.

Form 27

(IAFY 1948-A)

Confidential

Roll of a Sailor proposed to be discharged afterears service.

No.

Information

required

Answers

1

Official No.

2

Rank and Name (in

BLOCK LETTERS)

3

Ship or

Establishment .

4

Date of birth/Age

on enrollment

Years

Days

5

Date of enrollment

.

6

Permanent Home

address (In BLOCK LETTERS)

Village

Tehsil

Post

Office

District

7

Personal

appearance and identification marks

8

Character

9

Date of promotion

10

(a) Date of

promotion .

(b) Service up to

date of discharge

11

Periods not

counting under Regulations 69 & 79 as service pension

12

Any previous

service counting towards pension or gratuity, as verified by the

Defence Accounts Department

13

Total qualifying

service (i.e. total of service shown against items 10(b) and 12

less the period against item 11

Years

Days

14

Prominent

occurrences during service.

All records of

field service from the date of commencement to the date of

termination should be entered here

15

Station from which

desirous of drawing pension

16

Pension or

gratuity for which recommended

Rs.

Amount, Authority

for same

17.

Other

allowances to which entitled when pensioned such as :- .

(a)

Personal allowance as ADC per mensem .

(b)

Jagir allowance (1st life)

(c)

param Vir Chakra/Victoria Cross /George Cross allowance per mesem .

(d)

Maha Vir Chakra/Indian Order of Merit Military Cross/member of the Order of British Empire (for gallantry only), per mensem

(e)

Vir Chakra /Military Medal/ George Medal/ Indian Distinguished Service medal/British Empire Medal, per mensem .

(f)

Order of British Indis, Per diem

(g)

Jangi Inam British India, Perdiem

(h)

Any other allowance, per diem

Rs.

nP.

18

Cause

of discharge as mentioned in the service Certificate

19.

If

recommended for reduction of pension or gratuity stating reasons

20

If

granted any pension previously. If so, the number and date of the Pension Circular/PPO notifying pension should be quoted .

21

Name,

relationship to the pensioner and full address of the person to whom arrears of pension are to be paid on the pensioner's death.

*Signature or Thumb and finger impressions of the left hand of

I certify that the particulars given are correct as far as can be ascertained from the records of the Ship/Establishment and recommend thatpension admissible under rule may be sanctioned.

(See Regulations 4,5,8 and 69)

Attested

(Signature)

Station Rank/Designation

Date

Sanctioned

Station

Date Commander

*Thumb and finger impression to be taken by the Commanding Officer of the Ship/Establishment. In the case of reservists who become due for discharge to pension while away from the Ship/Establishment, their attendance at the Ship/Establishment or Military Hospital should be obviated by taking thumb or finger impression during their last training or by sending this form to the nearest magistrate or Deputy Commissioner or Collector of the District in which reservists live. Commanding Officers may however if they are satisfied that the requirement of the case will be equally met, send the forms to District Soldiers', Sailors' and Airmen's Board where such are available.

Small quantity of printer's ink should be well rubbed on a tin slab until a very thin even layer is formed. The balls of the thumb and of all the fingers of the left hand of the individual after being wiped should be laid on the inked slab and rolled

from side to side (not rubbed) until sufficiently inked (this can be learnt from experience) and then lightly and carefully rolled on the paper on which the print is to be taken in such a way that the pattern of the whole of the ball of the thumb and fingers from side to side is clearly impressed on it. It must be specially borne in mind that any side movement either at the time of applying or removing the thumb or fingers will cause a smudge and spoil the impression.

The impressions are required for permanent record in the audit office.

Cheif Petty Officers are permitted to complete this with three specimen signatures instead of affixing their thumb and finger impressions.

For use in the Defence Accounts Department.

Passed for payment of Rupees (Rupees) for gratuity by inclusion in the I.R.L.A. for the month of only. on Treasury.

Issued in favour of Admitted Ordinary/Special/Reservist Pension at Rs. (Rupees only) p.m.w.e.f. for life vide PPO No.

T.I. is payable in addition Supdt. PAQ/AAO

Form 28

Form For Commutation Of Pension Sailors

(IAFA-340A)

Part I ? Form Of application

A - To be completed by the applicant

Questions

Answers

1

Name, rate and number of the applicant and the ship or establishment in which he served before discharge.

2

Place of birth.

3

Date of birth (Proof of age to be furnished).

4

Age on next birthday.

5

Marks of identification.

6

Residential address.

7

Amount of pension desired to be commuted.

8

Have you commuted any portion of your pension before; if so, how much?

9

Have you on any previous occasion applied for commutation of your pension, and if so with what result?

10

From which station do you draw or propose to draw your pension and commuted value ?

11

At what station (near the area in which you are ordinarily resident) would you prefer your medical examination to take place?

Signature or left hand thumb impression

Place.....

Date.....

2. Instructions:-

(1)

The following documents shall be accepted as proof of the date of birth for the purpose of commutation. Only original documents and not certified true copies shall be accepted, namely:-

- (i) the matriculation certificate or the secondary school leaving certificate, or a certificate recognised by an Indian University as equivalent to matriculation, or
- (ii) Municipal birth certificate or an extract from the municipal birth register duly certified by proper authorities, or
- (iii) the record of admission in the registers of the school or schools in which the applicant was educated and also record of the applicant's age at various periodical school examinations.

(2) Where the documentary evidence as required by instruction (i) above is not available, the date of birth shall be verified with reference to the assessed apparent age given in the enrolment form.

(3) The amount desired to be commuted shall be an amount which together with the amount(s) already commuted shall not exceed half of the pension originally sanctioned:

Provided that the residual pension left is not less than rupees twenty per month. In case of anticipatory pension, the pensioner may, if he so desires, indicate his intention to commute the maximum amount in the event of his final pension being more than the anticipatory pension. In such cases, the amount proposed to be commuted may alternatively, be expressed in terms of a percentage or fraction of full pension within the maximum permissible limit.

(4) One copy of the photograph duly attested shall be pasted on the space provided and the other (also duly attested) shall be loosely attached to the form.

Form of Declaration

(To be completed by the applicant in receipt of anticipatory pension)

Whereas the Controller of Defence Accounts (Pensions) has consented provisionally to advance to me the sum of rupees.....

.....being the capitalised value of a portion of the anticipatory pension in anticipation of the completion of the enquiries necessary to enable him to fix the amount of my pension and consequently the part of pension that may be commuted. I hereby acknowledge that in accepting the advance, I fully understand that the capitalised value now paid to me is subject to revision on the completion of the necessary formal enquiries and I promise to have no objection to such revision on the ground that the provisional amount now to be paid to me as the capitalised value of the part of anticipatory pension exceeds the amount to which I may be eventually found entitled. I further promise to repay either in cash or by deduction from subsequent payments of pension any amount advanced to me in excess of the amount to which I may be eventually found entitled.

Signature.....

Station.....

Date.....

Conditions under which a portion of an anticipatory pension can be commuted by the pensioner:

- (a) Forty five per cent of the anticipatory pension may be commuted.
- (b) If the medical authority reports on examination that the applicant has an average duration of life, the commutation shall become absolute from the date of medical examination that is, the anticipatory pension shall be reduced with effect from the date and he shall be entitled to receive only the balance of reduced pension after commutation.
- (c) If the medical authority reports on examination that the applicant's age for the purpose of commutation is to be assumed to be greater than his actual age, he shall have the option of withdrawing his application for commutation by written notice dispatched to the Controller of Defence Accounts (Pensions), Allahabad (by registered post) at any time within two weeks from the date on which he is informed of the findings of the medical examination. If no such application is received in writing from him within fourteen days, it shall be assumed that the applicant accepts the revised capital sum

offered as shown in Form 29 specified in Appendix VIII which shall be supplied to him at the time the medical examination is arranged for. The commutation shall then automatically become absolute from the date on which the medical authority signs the report. The applicant shall be entitled from that date only to receive the balance of the anticipatory pension remaining after commutation.

(d)

If in assessing his final pension it is found that the commuted portion of the applicant's anticipatory pension exceeds the limits of the final pension he shall be allowed to commute only to that extent and the commuted value payable shall be altered accordingly.

I agree to the conditions specified above.

Signature.....

Date.....

B-To be completed in respect of persons already in receipt of pension by pension disbursing officer from his records that is check register, descriptive roll etc.

Questions

Answers

1

pension originally sanctioned (with number and date and descriptive serial number of the particular Controller of Defence Accounts (Pensions) circular or the number and year of the pension payment order notifying the same).

2

T.S. / H.O. number allotted to the pensioner.

3

Portion of pension already commuted with number and date of the sanction(s).

4

pension which the pensioner is drawing at the time of submission of present application.

5

Whether pension is being paid at the rate sanctioned or whether it is under orders of suspension or is being paid at reduced rate (the number and date of the Controller of Defence Accounts (Pensions) memo ordering suspension or reduction, are to be quoted).

6

Whether the pension in issue is without any encumbrances.

Signature.....

Designation.....

Place.....

Date.....

Part II ? (To be completed by the sanctioning authority)

Subject to the medical authority's recommending commutation, the lumpsum payable shall be as stated below:

Sum payable, if the commutation becomes absolute before the applicant's next birthday which falls on.....Sum

payable if the commutation becomes absolute after the applicant's next birthday but before his next birthday but one.....

on the basis of normal, age, namely,

.....years....Rupees...On the basis of normal age, i.e.....

years.....Rupees.....

Signature of the Sanctioning Authority.

Part III ? Administrative sanction is accorded to the above commutation. A certified copy of Part II of the form has been forwarded to the applicant in Form 29 specified in Appendix VIII.

Signature.....

Designation.....

Place.....

Date.....

Forwarded to.....(Here enter the designation and address of the Chief Administrative Medical Officer) with one copy of form 30 and an extra copy of a Part III of that Form in original on....(date) with the request that he shall arrange for the medical examination of the applicant by the proper medical authority as early as possible within three months from the(here enter the date) but not earlier than.....(here enter the date of retirement).....and inform the applicant direct in sufficient time where and when he should appear for the examination. The next birthday of the applicant falls on.....(date) and his medical examination may be arranged before that date, if possible, unless the applicant desires that it would be held after that date but within the period prescribed in the sanctioning order.

Signature and designation of the sanctioning authority.

Form-29

(IAF-340 B)

Part I ? Subject to the medical authority's recommending commutation, the lump sum payable shall be as stated below-

Sum payable, if the commutation becomes absolute before the

applicant's next birthday which falls on.....Sum

payable if the commutation becomes absolute after the applicant

next birthday but before his next birthday but one.....

on the basis of normal, age, namely,

.....years.....Rupees...On the basis of normal age, namely,

years.....Rupees.....

Signature of the sanctioning authority.

The commutation for a lump sum payment of the pension of.....is administratively sanctioned on the basis of Part I above. The table of present values, on the basis of which calculations in Part I have been made is subject to alteration at any time without notice, and consequently they are liable to revision before payment is made. The sum payable shall be the sum appropriate to the applicant's age on his birthday next after the date on which the commutation becomes absolute or, if the medical authority directs that years shall be added to that age, to the consequent assumed age.

2. The.....(here enter the designation and address of the Chief Administrative MedicalOfficer)

has been requested to arrange for the Medical examination and inform Shri.....direct where and when he should appear for the examination. He should bring with him the enclosed Form 30 with the particulars required in Part I thereof completed except for the Signature.

Station.....

Signature.....

Designation.....

Date.....

To.....

(the name and the address of the applicant)

Instructions. - (1) If the medical examination is conducted by a single medical officer, the applicant shall himself pay the medical officer's fee but if he is originally examined by a civil medical board, he shall pay a fee of rupees four into a government treasury and make over before examination, the receipt for the fee to the board together with an additional fee of rupees twelve in cash. If the pensioner is examined by a Service board, no fee shall be paid by him in respect of his first examination.

(2)

If a pensioner, who has once been refused commutation on medical grounds or has once declined to accept commutation on the basis of an addition of years to his actual age, applies for a second medical examination, the entire expenses of such examination shall be borne by him and no refund shall be paid to him irrespective of the result of re-examination.

Form 30

(IAFA-340-C)

Medical examination by the.....(here enter the medical authority)

Part I ? Statement by the applicant for commutation of a portion of his pension.

The applicant must complete this statement prior to his examination by the(here enter the medical authority) and must sign the declaration appended thereto in the presence of that authority.

1. Name in full (in BLOCK letters)

2. Date of birth

3. Have you ever been granted leave on medical grounds? If so, state the period of leave and nature of illness?

4. Has any application for insurance on your life ever been declined or accepted at an increased premium?

5. (a) Have you ever been told that you have albumen or sugar in the urine?

(b)

Do you get up at night to urinate.

(c)

Are you now or have you ever been on special diet for your health?

(d)

Has there been any marked increase or decrease in your weight within the past three years? If so, how much?

6. Have you been under the treatment of any medical practitioner within the last three months? If so, for what illness ?

Declaration By Applicant

(To be signed in the presence of the medical authority)

1. I declare that all the answers given above, are to the best of my belief, true and correct.

2. I shall reveal fully to the medical authority all the circumstances within my knowledge that concern my health.

3. I am fully aware that by wilfully making a false statement or concealing a relevant fact I shall incur the risk of losing the commutation I have applied for and of having my pension withheld or withdrawn under regulation 8 of the Navy (Pension) Regulations, 1964.

Signed in the presence of.....

(Applicant's signature)

Signature and designation of the medical authority.

Part II

(To be filled by the examining medical authority)

1. Apparent age

2. Height 3 Weight

4. Girth of abdomen at level of umbilicus

5.

(1)

Pulse rate-

(a)

Sitting

(b)

Standing

(2)

What is the character of pulse ?

6. What is the condition of arteries?

7. Blood pressure-

(a)

Systolic

(b)

Diastolic

8. Is there any evidence of disease of the main organs-

(a)

Heart

(b)

Lungs

(c)

Liver

(d)

Spleen

9. Does chemical examination of urine show (i) albumen (ii) Sugar

(2)

State specific gravity

10. Has the applicant a rupture? If so, state the kind and if reducible.

11. Describe any scars or identifying marks.

12. Any additional information.

Part III

1.

/We have carefully examined.....and am/are of opinion that:-He is in good bodily health and has the prospect of an average duration of life.

Or

He is not in good bodily health and is not a fit subject for commutation.

Or

Although he is suffering from..... he is considered a fit subject for commutation but his age for the purpose of commutation that is the age next birthday should be taken to be.....(in words) years more than his actual age.

Station.....

Left hand thumb impression or signature of the applicant

Date.....

Signature and designation of the examining medical authority Reviewing Medical Authority]

Appendix IX

(See Regulation 162)

Item No.

Nature of claim

Form of application and supporting documents

To whom application should be submitted

Remarks

1

2

3

4

5

1

Retiring pension and gratuity.

Nil

Officers

No formal application is necessary. On the retirement of an officer being approved. Naval Head-quarters will inform the Controller of Defence Accounts(Pensions) who will submit an audit report on the pension or gratuity admissible to Naval Headquarters

2

(a) Disability pension

(i)invaliding medical board proceedings-Form

1 (AFMSF 16).(ii) Medical History Envelope- Form 2

(AFMSF-I) together with other medical documents as may be

prescribed from time to time.(iii) In case of disease :-

Injury report-Form 3 (IAFY 2006) or where the injury report has not been rendered, such other documentary evidence relating to the injury as may be available. Proceedings of the board of enquiry, where held.

From Naval Headquarters to Ministry of Defence

No formal application is necessary. On receipt of copy of the Government orders communicating the decision that the disability is attributable to or aggravated by Service in the Indian Navy the Controller of Defence Accounts (Pensions) will submit an audit report to Naval Headquarters.

(b) Disability pension where disability manifests itself after retirement vide Regulation 34, Part I of these Regulations.

(i) Application in writing.(ii)

Medical certificate with clinical notes, if any, from a registered medical practitioner who last attended upon the officer indicating the nature of disease.

Form the claimant to Naval Head-quarters.

On receipt of copy of the Govt, orders communicating the decision that the disability is attributable to or aggravated by service in the Indian Navy, the Controller of Defence Accounts (Pension) will submit an audit report to Naval Head quarters.

3

(a) Family pension, children's allowance and gratuity.

(1)(a) Application for pension Form

4(MPB-501).(b) Application for continuance of children's allowance beyond the prescribed age limit Form 5 (MPB-541), together with Form 6 (MPAO-71-A).(2) Form 7 (IAFA-805) and certificate of income from the Income Tax authorities, in the case of pensions and children's allowance at ordinary rates.2

(2)

A certificate that

he/she is maintaining the child for grant of children's allowance at motherless regulation 60, Pt. I of these Regulations.[(3)] When death occurs while in

service:-(a) Death certificate-Form 8 (IAFA-393);(b)

In the case of disease-Commanding Officer Ship/Establishment and medical officer's report on the case-Form 9 (IAFN-1231).In

case of death due to accident:-Injury report-Form 3 (IAFY-2006) or where the injury report has not been rendered, such other documentary evidence relating to the injury, as may be available.proceedings of the board of enquiry, where held, together with other medical documents as may be prescribed from time to time.[(4) When death of the officer occurs

after discharge from service or at home while on leave,-(i)

if the deceased officer was treated by a qualified medical practitioner, a death certificate in form No. 8A as prescribed

in Appendix VIII.(i) if the deceased officer was not

treated by a qualified medical practitioner a statement of the claimant and two reliable and disinterested witnesses in form No. 8B, as prescribed in Appendix VIII, together with an extract from the Village or Municipal death register, if maintained.]

[Forms at items (1), (2), and (4) from the claimant to the Controller of Defence Accounts (Pensions) and forms at item (3) from Naval Headquarters to the Ministry of Defence.

[On receipt of information about the officer's/ex-officer's death, a copy of each of form Nos. 8A and 8B, as prescribed in Appendix VIII, shall be forwarded to the claimant with suitable covering instructions by the Naval Headquarters/ Controller of Defence Accounts (Pensions) as the case may be. In case of award to over-age children under the provisions of Regulations 54 and 64 Pension Regulations, Part I, where a child is shown as incapable of self support, it will also be necessary to produce a certificate from a medical board to be arranged by the local naval authorities at the request of the Controller of Defence Accounts (Pensions) to the effect that the child is incapable of self-support by reason of infirmity which arose before the child reached the prescribed age limit.

(b) Education allowance

(1) Application for education allowance in respect of children-Form 10 (MPB-531).(2) Form 12(MPJ 3).

From the claimant to the Controller of Defence Accounts (Pensions).

On receipt of the claim, the Controller of Defence Account (Pensions) will render an audit report to Naval Headquarters.

4

Dependents? pension-Parents/Brothers and Sisters.

(1) Application for pension- [Form 11 MPB-510/Pension or MPB-511 /Pensions](2) Form 23 (MPC-60).(3) Medical and other documents-same as at item 3(a) above.

Forms at (1) and (2) to the Controller of Defence Accounts (Pensions) by the claimant. Medical and other documents-same as at item 3(a) above.

On receipt of copy of the Government orders communicating the decision that the death is due to or hastened by service in the Indian Navy, the Controller of Defence Accounts(Pensions) will submit an audit report to Naval Headquarters.

5

Commutation of pension

Form 14-Form of application for commutation of pension Commissioned Officers

In India[From the applicant to the

Secretary to the Government of India, Ministry of Defence, through the Indian Mission concerned and the Controller of Defence Accounts (Pensions)]Outside IndiaFrom the claimant to the Secretary to the Government of India, Ministry of Defence through the pension disbursing officer and the Controller of Defence Accounts (Pensions).

1

Counting of former service for pension and gratuity.

(i) Form 15(IN 867)(ii) Form 16(I.N. 271)service certificates in respect of the present and previous service.

SailorsFrom the Commanding Officer, Ship/Establishment to the Captain, Naval Barracks who will obtain a report from the Controller of Defence Accounts (Navy). In the absence of necessary document in respect of former service, the Captain, Naval Barracks will submit the claim to the Controller of Defence Accounts (Pensions) who may admit the claim, if he is satisfied with the corroborative evidence of former service produced by Captain, Naval Barracks. In cases where the cricumstances of discharge from former service were such as to entitle the person concerned to a gratuity in respect of that service and there is no reliable documentary evidence to prove that the gratuity was paid to him, it shall invariably be assumed that the gratuity was paid and the amount of gratuity to which he was entitled should be recovered from the individual, in a lumpsum or in instalments, as may be considered justified. Doubtful cases should, however, be submitted for orders of the Government.

2

Service pension/gratuity special pension/gratuity

(i) Application for pension-Form 17(RIN-245), Form 1(AFMSF-16).(ii) service certificates-Form 16(I.N.271).(iii) Sanction of the competent authority, where such is necessary under rules.(iv) Last pay certificate-Form 18(IAFA 447).(v) A declaration in terms of regulation 163 in cases where anticipatory pension is claimed.(vi) Claim for gratuity (service/special) on the prescribed form.(vii) Enrolment form.

(a) Form Commanding officer, Ship/Establishment to Captain, Naval Barracks who will forward the case to the Controller of Defence Accounts (Pension) in cases of service/ special pension and gratuity in ivaliding cases.(b) From Commanding officer, Ship/Establishment to Captain, Naval Barracks who will forward the case to the Controller of Defence Accounts (Navy) in cases of service/special gratuity.

3

Pension or gratuity in lieu of respect of reservists.

(i) Application for pension or gratuity Form

17(R.I.N.245) Form 1(A.F.M.S.F-16).(ii) Service certificate - Form16(I.N.271)(including enrolment form).(iii) Certificate from the reservist electing to receive a pension or gratuity in lieu.(iv) Sanction of the competent authority where such is necessary under rules.(v)Last Pay Certificate-Form 18(I.A.F.A.447).

From Captain, Naval Barracks to the Controller of Defence Accounts (Pensions).

4

Disability Pension

(i) Invaliding medical board proceedings-Form 1(A.F. M.S.F. 16).(ii) Medical categorisation form -Form 19[I.A.F.B.-179(c)].(iii) Service and casualty form-Form 20 (I.A.F.F.-958).(iv) Medical History Envelope-Form 2(A.F.M.S.F 1) together with other medical documents as may be prescribed from time to time.(v)In case of disease :- Commanding officer Ship/Establishment and medical officer's report on the case- Form 21(A.F.M.S.F. 81). In case of injuries:-Injury report-Form 3(I.A.F.Y 2006) or where the injury report has not been rendered, such other documentary evidence relating to the injury as may be available. Proceedings of the board of enquiry, where held.(vi) Extracts from drafting orders or from the casualty lists received if the casualty is classified as "Action or Battle casualty" or "Action or Battle accident".(vii) Enrolment form.(viii)Service certificate-Form 16(I.N. 271).(ix) Last pay certificate-Form 18(I.A.F.A.447).

From Captain, Naval Barracks to the Controller of Defence Accounts(Pensions).

5

Original grant of family pension to eligible heirs.

1. Form 22(RIN 239) in duplicate.2.Certificate of service of the deceased sailor and Form 20(I.A.F.F.958).3. Medical History Envelope- Form 2(A.F.M.S.F.I) together with other medical documents as may be prescribed from time to time.4. Birth certificates of minor children, if available.5.(A) When death occurs while in service:-(i) Death certificate an certificate of attributability i.e. Form 8(I.A.F.A. 393) Parts I and II.(ii) Form 21(A.F.M.S.F.-81) if death is due to disease or Board of enquiry proceedings, if the death is due to injury or where the injury report has not been rendered, such other documentary evidence relating to the injury, as may be available.(iii) Extract from drafting orders or from casualty lists received, if the casualty is classified as "Action or Battle casualty" or "Action or Battle Accident".[(B) When death of the sailor occurs after discharge from service or at home while on leave,-(i) if the deceased sailor was treated by a qualified medical practitioner, a death certificate in form No. 8A, as prescribed in Appendix VIII;(ii) if the deceased sailor was not treated by a qualified medical practitioner, a statement of the claimant and two reliable and

disinterested witnesses in form 8B, as prescribed in Appendix VIII, together with an extract from the Village or Municipal death register, if maintained;(iii) first application (in original) from the claimant if any"]6.

Explanation of the Commanding Officer, Ship/Establishment or claimant or both for the delay in cases of belated submission of the claim.

From Captain, Naval Barracks to the Controller of Defence Accounts (Pensions).

6

Children's Allowance

1. Form 23 (R.I.N.240), in duplicate2.

Documents mentioned at Nos. 2,4 and 5 and 6 in column 3 against item 5.

From Captain, Naval Barracks to the Controller of Defence Accounts (Pensions).

7

Pensionary benefits to[***] where the cause of death is not attributable to or aggravated by service in the Indian Navy.

(i) Form 17 (R.I.N. 245)/Form (A.F.M.S.F. 16)

as the case may be, duly completed to the extent possible, as in the case of service pension claims.(ii) Service

Certificate-Form 16 (I.N. 271).(iii) L.P.C.-Form 18

(I.A.F.A. 447) together with certificate from the Indian Navy Pay Office duly countersigned by the Controller of Defence Accounts (Navy) regarding substantive rank and group held during the last two years of service.(iv) Form 22 (R.I.N. 239)

duly investigated by the civil authorities.(v) A certificate to the effect that the individual has not elected to be governed by Old Pension Code.[(vi) A certificate to be given after investigation about the dependency of the parents for support upon the deceased individual, in cases where the claimant is father or mother].

PensionFrom Captain, Naval Barracks to the Controller of Defence Accounts (Pensions).

(i) Service Certificate-Form

16(I.N.271).(ii) Form 17 (R.I.N. 245) duly completed to the extent possible, as in the case of claim for service

gratuity.(iii) A certificate from the Indian Navy Pay office duly countersigned by Controller of Defence Accounts (Navy) regarding reckonable pay and allowance for purposes of gratuity.(iv) L.P.C.-Form 18(I.A.F.A. 447).(v)

Form 22 (R.I.N. 239) duly completed by the civil authorities.(vi) A certificate to the effect that the individual has not elected to be governed by Old Pension Code.(vii) A certificate to be given after investigation about the dependency of the parents for support upon the deceased individual, in cases where the claimant is father or mother]

GratuityFrom Captain, Naval Barracks

to the Controller of Defence Accounts (Pensions).

[On receipt from the

pension disbursing officer of the intimation of the death of the pensioner in receipt of a service pension who dies within five years from the date of discharge, the Controller of Defence Accounts (Pensions) shall pass on the information immediately to the Commodore naval Barracks, who shall thereupon initiate the claim for ordinary family pension. If the Commodore Naval Barracks independently receives the intimation of the death of such a pensioner from other sources, he shall not wait for the confirmation from the Controller of Defence Accounts (Pensions) but immediately initiate action to prepare a family pension claim.]

8

Transfer of family pension to the widow.

1. Form 22 (R.I.N. 239) in duplicate.2.

Certificate of death/disqualification of the original recipient

based on investigation made by local civil authorities.3. Explanation for the delay by the Commanding officer, Ship/ Establishment in case of belated claims together with the

original applications of the widow, if any4. Service certificate-Form 16 (I.N. 271).

From Captain, Naval Barracks to the Controller of Defence Accounts (Pensions).

On receipt from the pension disbursing officers of the information of death or disqualification of an heir other than a widow, the Controller of

Defence Accounts (Pensions) will immediately pass on the information to the Captain, Naval Barracks who will thereupon initiate the claim for the transfer of family pension to the widow.If in any case, the Captain, Naval Barracks independently receives intimation of the death/ disqualification of the receipt of the family pension other than the widow from other sources, he will not wait for a confirmation from the Controller of Defence Accounts (Pensions) but will immediately initiate action as indicated above.

9

Continuance of family pension to parent(s).

(i) Form 24 (R.I.N. 241) in duplicate together

with first application (in original) from the claimant.(ii) Documents mentioned at Nos. 2 and 6 in column 3 against item 5.

From Captain, Naval Barracks to the Controller of Defence Accounts (Pensions).

10

Family pension to foster step child or minor brother and Sister

(i) Form 25 (R.I.N. 242) in duplicate.(ii) Documents mentioned at Nos. 2 to 6 in column 3 against item 5

From Captain, Naval Barracks to the Controller of Defence Accounts (Pension)

On receipt of the claim the troller of Defence Accounts (Pensions) will submit an audit report to Naval Headquarters.

11

Advance of Service/ Invalid/Special pension.

Application on Form 26 (I.A.F.A. 370).

Form Caption, Naval Barracks to the Controller of
Defence Accounts(Pensions).

As soon as the pension is sanctioned, the
Controller of Defence Accounts (pensions) will make payment of
the advance and will simultaneously notify the fact in the
pension payment order.

12

Commutation of pension of sailors including those
granted honorary commission

IAFA 304A 340B 340C

If the applicant is still in service or has
retired but his pension has not yet been sanctioned, from the
applicant to the Controller of Defence Accounts (Pensions)
through the Commodore Naval Barracks.If the applicant is in
receipt of pension, from the applicant to the controller of
Defence Accounts (Pensions) through the Pension Disbursing
Officer concerned."

(3)

The following "Notes" shall be inserted at the end, namely:

Note 1. - Form MPB-510/Pensions is used for parents and Form MPB-511/pensions is used for brother and sisters.

II. - All cases of death from disease, accidental injury, suicide or murder, regardless of the circumstances, in which the
invalidation or death occurred shall be submitted by the Commodore Naval Barracks, to the Controller of Defence
Accounts (Pensions) as claims for family pension, with the exception of the under-mentioned type of cases namely:-

(1)

Cases where an individual outlives a normal span of life, that is where death takes place at the age of sixty years or
above.

(2)

Cases where an individual was discharged on other than medical grounds with a service pension or gratuity and the
cause of death is other than a disease.

(3)

Cases of reservists who die whilst in reserve (except when called up for service or training) and the cause of death is
other than a disease: Provided that doubtful cases amongst the excepted categories referred to above shall be referred
to the Controller of Defence Accounts

(Pensions)

for decision.]

Appendix X

(See Regulations 179,188,193)

List-I

List of Civil Treasuries at which pensions paid from defence Services estimates are disbursed and Officers
responsibilities for payment

Andhra Pradesh

Serial No.

District

Treasury

Sub-Treasuries

under the District Treasury

Pension Paying

Officers

1

2

3

4

1

Anantpur

Anantpur

Treasury Officer

Dharamavaram

Do.

Gooty

Do.

Hindupur

Do.

Kalyandrug

Do.

Kadiri

Do.

Mandakasira

Do.

Penukonda

Do.

Rayadrug

Do.

Tadapatri

Do.

Uravakonda

Do.

2

Chittoor

Chandragiri

Do.

Chittoor

Do.

Kalahasti

Do.

Kuppam

Do.

Madnapalli

Do.

Palmaner

Do.

Punganur

Do.

Puttur

Do.

Tirutanni

Do.

Vayalped

Do.

3

Cuddapah

Badvel

Do.

Cuddapah

Do.

Jammalamadugu

Do.

Kamalapuram

Do.

Pulivendala

Do.

Proddatur

Treasury Officer

Rajampet

Do.

Rayachoti

Do.

Siddavattam

Do.

4

East Godavari at

Kakinada

Amalapuram

Do.

Bhadrachallam

Do.

Kakinada

Do.

Kothapeta

Do.

Nagur

Do.

Peddapuram

Do.

Pithapuram

Do.

Razole

Do.

Rajahmundry

Do.

Ramchandrapuram

Do.

Rampachodavaram .

Do.

Tuni

Do.

5

Godavari West at

Eluru

Bhimavaram

Do

Chintalapudi

Do

Eluru

Do.

Kovvur

Do.

Narsapur

Do.

Polavaram

Do.

Tankku

Do.

Tadepalligudem.

Do.

6

Guntur

Addanki

Do.

Bapatla

Do.

Guntur

Do.

Macherla

Do.

Narasaraopet

Do.

Ongole

Do.

Palnad

Do.

Repalli

Do.

Sattenapalli

Do.

Tenali

Do.

Vinukonda

Do.

7

Krishna at

Masulipatam (Bandar)

Bandar

Do.

Divi

Do.

Gannavaram

Do.

Gudivada

Treasury Officer

Kaikalur

Do.

Nandigama

Do.

Nuzivid

Do.

Thiruvuru

Do.

Vijayavada

Do.

8

Kurnool

Alur

Do.

Adoni

Do.

Atmakur

Do.

Bhanganapalli

Do.

Dhone

Do.

Koikuntala

Do.

Kumbum

Do.

Kurnool

Do.

Markapur

Do.

Nandikotur

Do.

Nandyal

Do.

Pathikonda

Do.

Sirval

Do.

Yemiganur

Do.

9

Nellore

Atmakur

Do.

Darsi

Do.

Gudur

Do.

Kanigiri

Do.

Kandukur

Do.

Kavalli

Do.
Kovur
Do.
Nellore
Do.
Podili
Do.
Rapur
Do.
Sulurpet
Do.
Udayagiri
Do.
Venkatagiri
Do.
10
Sirikakulam
Bobbili
Do.
Chipurapalli
Do.
Ichapuram
Do.
Narasannapta
Treasury Officer
Pithapatnam
Do.
Palakonda
Do.
Parvathipuram
Do.
Salur
Do.
Sompeta
Do.
Srikakulam
Do.
Tekkali
Do.
11
Visakhapatnam
Anakapalli
Do.
Bheemunipatnam
Do.
Golugonda
Do.
Gudem
Do.
Saravasiddhi
Do.

Srungavarupukota

Do.

Veeravalli

Do.

Vizianagram

Do.

Visakhapatnam

Do.

TELENGANA AREA

12

Adilabad.

Asifabad

Do.

Beath

Do.

Bhainsa

Do.

Chinoor

Do.

Khanapur (Mahal)

Do.

Lakshathipet

Do.

Madhol

Do.

Nirmal

Do.

Rajura

Do.

Sirpur

Do.

Utnoor

Do.

13

Hyderabad

Hyderabad East .

Do.

Hyderabad West.

Do.

Ibrahimpatan

Do.

Madchal

Do.

Secunderabad

Do.

Shahabad

Do.

Tandur

Do.

Vikarabad

Do.

14

Kareemnagar .

Huzurabad

Do.

Jagtial

Treasury Officer

Mahadevpur

Do.

Metapalli (Mahal)

Do.

Sircella

Do.

Sultanabad

Do.

15

Khammain

Kethagudeum

Do.

Madhira

Do.

Paloncha

Do.

Yellandu

Do.

16

Mahboobnagar.

Achampet

Do.

Atmmakur

Do.

Alampur

Do.

Gadwal

Do.

Kalwakurti

Do.

Kodangal

Do.

Kolhapur

Do.

Makthal

Do.

Nagarkarnool

Do.

Pargi

Do.

Shadnagar

Do.

Wanaparti

Do.

17

Medak (H.Qr. at
Sangareddi).
Andol
Do.
Gajwel
Do.
Medak
Do.
Narasapur
Do.
Narayankhed
Do.
Sangareddi
Do.
Siddipet
Do.
Zaheerabad
Do.
18
Nalgonda
Bhongir
Do.
Devarkonda
Do.
Huzurnagar
Do.
Miryalguda
Do
Ramannapet
Do.
Suryapet
Do.
19
Nizamabad
Armoor.
Do.
Banswada
Treasury Officer
Bodhan
Do.
Kamareddi
Do.
Yellareddi
Do.
20
Warrangal
Jangaon
Do.
Mahboobabad
Do.
Mulug

Do.
Pakhal
Do.
Parkal
Do.
21
Secunderabad .
Agents Hyderabad
State Bank, Secunderabad.
ASSAM
22
Cachar (Silchar)
Hailakandi
Treasury Officer
Karimganj
Do.
23
Darrang (Tezpur)
Mangal Dai
Do.
24
Diphu
Halflong
Do.
25
Garo Hills (Fura)
26
Goalpara (Dhubri)
Goalpara
Do.
27
Jorhat
Golaghat
Do.
Sibsagar
Do.
28
Kamrup (Gauhati) .
Barpeta
Do.
29
Lakhimpur
(Dibrugarh)
. North Lakhimpur
Do.
Sadiya
Do.
30
Lushai hills
(Aijal) .
Lungleh

Do.
31
Naga Hills
(Kohima)
Mokolchung
Do.
32
Nowgong (Assam) .
Feni
Do.
33
Shillong (Khasi
Hills)
Jowai
Do.
BIHAR
34
Bhagalpur .
Banka
Do.
35
Champaran
(Motihari)
Bettiah
Do.
36
Darbhanga (Laheer
Saria)
Madhubani
Do.
37
Dumka .
Deoghar
Do.
Godda
Do.
Jamtara
Do.
Pakaur
Do.
Rajmahal at
Sahibganj
Do.
38
Dhanbad
Treasury Officer
39
Gaya
Aurangabad
Do.
Jahanabad

Do.
Nawada
Do.
40
Hazaribagh .
Chatra
Do.
Giridih
Do.
41
Monghyr .
Begusarai
Do.
Jamui
Do.
42
Muzaffarpur
Hazipur
Do.
Sitamarhi
Do.
43
Palamu
(Daltonganj) .
Lathar
Do.
Garhwa
Do.
44
Patna .
Barh
Do.
Bihar
Do.
45
Purnea .
Araria
Do.
Kishanganj
Do.
46
Ranchi .
Gumla
Do.
Khunti
Do.
Simdega
Do.
47
Saharsa
Madhepura

Do.
Supaul
Do.
48
Saran (Chapra).
Gopalganj
Do.
Siwan
Do.
49
Shahabad (Arrah)
Bhabua
Do.
Buxar
Do.
Sasaram
Do.
50
Singhbhum
(Chaibasa) .
Dhalbhum
(Seraikella)
Do.
Jamshedpur
Do.
GUJARAT
AREA
51
Ahmedabad
(S.B.I.).
1. Dehgaum
Do.
2. Dhandhuka
(S.B.I.)
Do.
3. Dholka (S.B.I.)
.
Do.
4. Sanad
Do.
5. Viramgam
(S.B.I.)
Do.
52
Amreli (S.B.I.) .
1. Babra
Do.
2. Damnagar (Under
Sub. Try. Lathi)
Do.
3. Dhari

Do.
4. Jafrabad
Do.
5. Lathi
Treasury Officer
6. Liliya
Do.
7. Khamba
Do.
8. Kodinar
Do.
9. Rajula
Do.
10.
Vadia-Kunkagav.
Do.
53
Banaskantha
(Palanpur S.B.I.)
1. Danta
Do.
2. Deesa (S.B.I.)
Do.
3. Deodar
Do.
4. Dhanera
Do.
5. Kankrej
Do.
6. Radhanpur
Do.
7. Tharad
Do.
8. Vedgam
Do.
9. Varahi
(Santalpur)
Do.
10. Mav
Do.
54
Baroda (S.B.I.) .
1. Chhota Udepur
Do.
2. Dabhoi (S.B.I.)
.
Do.
3. Jambugam (Pavi
Jetpur)
Do.
4. Karjan

Do.

5. Naswadi

Do.

6. Padra

Do.

7. Sankheda

Do.

8. Salvi

Do.

9. Sinor

Do.

10. Tilakwada

Do.

11. Waghodia

Do.

55

Bhavnagar (S.B.S.)

1. Botad (S.B.S.)

Do.

2. Gadhada

Do.

3. Gariadhar

Do.

4. Gogho

Do.

5. Mahuva (S.B.S.)

Do.

6. Palitana

(S.B.S.)

Do.

7. Savar Kundla

(S.B.S.)

Do.

8. Sihor

Do.

9. Talaja

Do.

10. Umralla

Do.

11. Vallabhipur

(Vala)

Treasury Officer

56

Broach (S.B.I.) .

1. Amod .

Do.

2. Ankleshwar

(S.B.I.)

Do.

3. Dediapada .

Do.

4. Hansot .

Do.

5. Jambusar

(S.B.I.)

Do.

6. Jhagadia .

Do.

7. Nanded

(Rajpipla) (S.B.I.)

Do.

8. Sagbara .

Do.

9. Vagra .

Do.

10. Valia .

Do.

57

Jamnagar (S.B.S.)

.

1. Bhanwad .

Do.

2. Dhrol .

Do.

3. Dwarka .

Do.

4. Jamjodhpur .

Do.

5. Jodia .

Do.

6. Kalawad .

Do.

7. Kalyanpur

Do.

8. Khambhalia

Do.

9. Lalpur

Do.

58

Junagarh

1. Bhesan

Do.

2. Keshod

Do.

3. Kutiyana

Do.

4. Maliya Hatina.

Do.

5. Manavadar

Do.

6. Mangrol

Do.

7. Mandarda

Do.

8. Porbandar

(S.B.S.) .

Do.

9. Ranavav

Do.

10. Talala

Do.

11. Una

Do.

12. Vanthali

Do.

13. Veraval

Do.

14. Visavadar

Do.

59

Kaira (S.B.I.)

1. Anand (S.B.I.)

Do.

2. Balasinor

(S.B.I.)

Do.

3. Borsad

Do.

4. Cambay (S.B.I.)

Treasury Officer

5. Kapadvanj

(S.B.I.) .

Do.

6. Matar

Do.

7. Mehmabad .

Do.

8. Nadiad

(S.B.I.).

Do.

9. Patlad (S.B.I.)

Do.

10. Thasra

Do.

60

Kutch (Bhuj)

(S.B.I.) .

1. Anjar

Do.

2. Bhachau

Do.

3. Gandhidham

(S.B.I.)

Do.
4. Khadir
Do.
5. Khavda
Do.
6. Lakhapat
Do.
7. Mandvi
(S.B.I.).
Do.
8. Mundra
Do.
9. Nakhtrana
Do.
10. Malia Abdasa
Do.
11. Rapar
Do.
61
Mehsana (S.B.I.)
1. Chanasma
Do.
2. Haraij (S.B.I.)
Do.
3. Kadi
Do.
4. Kalol (S.B.I.)
Do.
5. Kheralu
Do.
6. Patan (S.B.I.)
Do.
7. Sami
Do.
8. Sidhpur
(S.B.I.)
Do.
9. Vijapur
(S.B.I.) .
Do.
10. Visnagar
Do.
62
Panch Mahal
(Godhra) (S.B.I.)
1. Devgad-Baria
Do.
2. Dohad (S.B.I.)
Do.
3. Jembughoda
Mahal

Do.

4. Jhalod

Do.

5. Halol (S.B.I.)

Do.

6. Kalol

Do.

7. Limkheda

Do.

8. Lunavada

Do.

9. Santarampur

Do.

10. Shehera

Treasury Officer

63

Rajkot(S.B.I.) .

1. Dhoraji

Do.

2. Gondal

Do.

3. Jasdan

Do.

4. Jetpur

Do.

5. Kandorna

Do.

6. Kotla Sangani .

Do.

7. Lodhika

Do.

8. Malia

Do.

9. Morvi (S.B.S.)

Do.

10. Paddhari

Do.

11. Upleta

Do.

12. Wankaner

Do.

64

Sabarkantha

(Himatnagar) (S.B.I.)

1. Bayad

Do.

2. Bhiloda

Do.

3. Idar (S.B.I.)

Do.

4. Khedbrahma

Do.
5. Malpur
Do.
6. Meghraj
Do.
7. Modasa (S.B.I.)
Do.
8. Prantij
Do.
9. Vijayanagar
Do.
65
Sura (S.B.I.)
1. Ahwa (Dangs).
Do.
2. Bansda
Do.
3. Bardoli
Do.
4. Bulsar (S.B.I.)
Do.
5. Chikhli
Do.
6. Dharampur
Do.
7. Gandevi
Do.
8. Kamrej
Do.
9. Mandvi
Do.
10. Mahuva
Do.
11. Mangrol
Do.
12. Navsari
(S.B.I.)
Do.
13. Olpad
Do.
14. Palsana
Do.
15. Pardi
Do.
16. Songad
Do.
17. Valod
Treasury Officer
18. Vyara
Do.
19. Umbergaon

Do.

66

Surendranagar.

1. Chotila

Do.

2. Dasada

Do.

3. Dharamgadhra

Do.

4. Halvad

Do.

5. Lakhtar

Do.

6. Limbdi

Do.

7. Muh

Do.

8. Sayla

Do.

9. Wadhwan City

Do.

MAHARASHTRA AREA

67

Ahmednagar

(S.B.I.)

1. Akola

Do.

2. Jamkhed

Do.

3. Karjat

Do.

4. Kopergaon

(S.B.I.) .

Do.

5. Navasa

Do.

6. Parner

Do.

7. Pathardi

Do.

8. Rahuri

Do.

9. Sangamner

(S.B.I.).

Do.

10. Shevgaon

Do.

11. Shrigonda

Do.

12. Shrirampur

(S.B.I.)

Do.

68

Akola (S.B.I.) .

1. Akola

Do.

2. Akot (S.B.I.)

Do.

3. Balapur

Do.

4. Mangrul

Do.

5. Murtizapur

Do.

6. Washim (S.B.I.)

Do.

69

Amravati (S.B.I.)

1. Achalpur

(Ellichpur)

Do.

2. Chandur

Do.

3. Chikhalda

(Melghat)

Do.

4. Daryapur

(S.B.I.)

Do.

5. Morsi

Do.

70

Aurangabad

(S.B.I.).

1. Ambad

Do.

2. Bhokardan

Treasury Officer

3. Gangapur

Do.

4. Jafferabad

Do.

5. Jalna(C.B.H.)

Do.

6. Kannad

Do.

7. Khuldabad

Do.

8. Paithan

Do.

9. Sillod

Do.

10. Vaijapur

(S.B.H.) .

Do.

71

Bhandara (S.B.I.)

.

1. Gondia

(S.B.I.).

Do.

2. Sakoli

Do.

72

Bhir (S.B.H.)

1. Ashti

Do.

2. Georai

Do.

3. Kaij

Do.

4. Mominabad

(S.B.H.)

Do.

5. Manjlegaon

Do.

6. Patoda

Do.

73

Buldana (S.B.I.).

1. Chikhli

(S.B.I.).

Do.

2. Jalgaon

Do.

3. Khamgaon

(S.B.I.) .

Do.

4. Malkapur

(S.B.I.)

Do.

5. Mehker

(S.B.I.).

Do.

74

Chanda (S.B.I.) .

1. Bhampuri

(S.B.I.)

Do.

2. Garhiroli

Do.

3. Rajura

Do.

4. Sirondha

Do.

5. Warora (S.B.I.)

.

Do.

75

Jalgaon (S.B.I.) .

1. Amalner

(S.B.I.)

Do.

2. Bhadgaon .

Do.

3. Bhusaval

(S.B.I.)

Do.

4. Chalisgaon

(S.B.I.).

Do.

5. Chopda (S.B.I.)

Do.

6. Edlabad

Do.

7. Erandol

Do.

8. Jamner

Do.

9. Pachora

Do.

10. Parola

Do.

11. Raver

Treasury Officer

12. Yaval

Do.

76

Kolaba (Alibag)

1. Karjat

Do.

2. Khalapur

Do.

3. Mahad

Do.

4. Mangaon

Do.

5. Matheran

Do.

6. Ivihasala

Do.

7. Murud

Do.

8. Panvel (S.B.I.)

Do.

9. Pen

Do.

10. Poladpur

Do.

11. Roha

Do.

12. Shrivardhan .

Do.

13. Sudhagarh

Do.

14. Uran

Do.

77

Kolhapur (S.B.I.)

1. Ajara

Do.

2. Bavda

Do.

3. Bhudargad

Do.

4. Chandgad

Do.

5. Gardhinglaj

Do.

6. Hathanangle

Do.

7. Kagal

Do.

8. Karweer

Do.

9. Panhala

Do.

10. Radhanagari.

Do.

11. Shahuwadi

Do.

12. Shirol

Do.

78

Nagpur (S.B.I.) .

1. Kamptee

Do.

2. Katol

Do.

3. Ramtek

Do.

4. Saoner

Do.

5. Umrer

Do.

79

Nanded (S.B.H.)

1. Bhokar

Do.

2. Biloli

Do.

3. Deglur

Do.

4. Hadgaon

Do.

5. Kandhar

Treasury Officer

6. Kinwat

Do.

7. Mukhed

Do.

80

Nasik (S.B.I.) .

1. Baglan

Do.

2. Chandor

Do.

3. Dindori

Do.

4. Igatpuri

(S.B.I.)

Do.

5. Kalwan

Do.

6. Malegaon

(S.B.I.)

Do.

7. Nandagaon

(S.B.I.)

Do.

8. Niphad

(S.B.I.).

Do.

9. Peint

Do.

10. Sinnar

Do.

11. Surgana

Do.

12. Yeola (S.B.I.)

Do.

81

Satara (S.B.H.) .

1. Jaoli

Do.

2. Karad (S.B.I.)

Do.
3. Khandala
Do.
4. Khatav
Do.
5. Koregaon
Do.
6. Koyananagar
Do.
7. Mahabaleshwar
Do.
8. Man
Do.
9. Patan
Do.
10. Phaltan
(S.B.I.)
Do.
11. Wai
Do.
82
Osmanabad (S.B.H.)
1. Ahmadpur
Do.
2. Bhoom
Do.
3. Kalam
Do.
4. Latur (S.B.H.)
Do.
5. Nilanga
Do.
6. Omerga
Do.
7. Owsa
Do.
8. Parendra
Do.
9. Tulli fapur
Do.
10. Udgir (S.B.H.)
Do.
83
Parbhani (S.B.H.)
.
1. Basmathnagar.
Treasury Officer
2. Gangakhed .
Do.
3. Hingoli
(S.B.H.)

Do.

4. Jintur

Do.

5. Kalamnuri

Do.

6. Partur

Do.

7. Pathri

Do.

84

Poona (S.B.I.) .

1. Ambegaon

Do.

2. Baramati

Do.

3. Bhore

Do.

4. Dhond

Do.

5. Haveli

Do.

6. Indapur

Do.

7. Junnar

Do.

8. Khed (S.B.I.)

Do.

9. Mawal (Vedgaon)

.

Do.

10. Mulshi

Do.

11. Purandhar

Do.

12. Sirur

Do.

13. Velhe

Do.

85

Ratnagiri (S.B.I.)

1. Chiplum (S.B.I.)

Do.

2. Dapoli

Do.

3. Devgad

Do.

4. Guhagar

Do.

5. Kankavli

Do.

6. Khed (S.B.I.)

Do.

7. Kudal

Do.

8. Malvan

Do.

9. Mandangad

Do.

10. Rajapur

Do.

11. Sangameshwar
(Devrukh)

Do.

12. Sawantwadi .

Do.

13. Vengurla .

Do.

86

Sholapur (S.B.I.)

1. Akalkot

(S.B.I.).

Do.

2. Barsi (S.B.I.)

Do.

3. Karmala

Do.

4. Madha

Do.

5. Malasiras

Treasury Officer

6. Mangalwedha.

Do.

7. Mohol

Do.

8. Pandharpur

(S.B.I.)

Do.

9. Sangola

Do.

87

Sangli (S.B.I.) .

1. Jath

Do.

2. Khanapur (Vita)

Do.

3. Miraj (S.B.I.)

Do.

4. Shirala

Do.

5. Tasgaon

Do.

6. Walwa

(Islampur) .

Do.

88

Thana (S.B.I.) .

1. Bassein

(S.B.I.).

Do.

2. Bhiwandi

(S.B.I)

Do.

3. Dahanu (S.B.I.)

Do.

4. Jawhar

Do.

5. Kalyan (S.B.I.)

.

Do.

6. Mokhada

Do.

7. Murbad

Do.

8. Palghar

(S.B.I.).

Do.

9. Shahapur

Do.

10. Wada

Do.

89

Wardha (S.B.I.).

1. Arvi (S.B.I.)

Do.

2. Hinganghat

(S.B.I.)

Do.

90. .

Dhulia (S.B.I.)

1. Akkalkuwa

Do.

2. Nandurbar

(S.B.I.).

Do.

3. Nawapur

Do.

4. Sakri

Do.

5. Sindkheda

Do.

6. Shahada

Do.

7. Shirpur

(S.B.I.).

Do.

8. Taloda

Do.

91

Yeotmal (S.B.I.)

1. Darwha (S.B.I.)

Do.

2. Kelapur

(S.B.I.)(Pandkharkawada)

Do.

3. Pusad (S.B.I.)

Do.

4. Wani (Wun)

(S.B.I.)

Do.

5. Yeotmal

Do.

92

Bomaby .

1. Pay and

Accounts Office Bombay.

Treasury Officer

JAMMU

AND KASHMIR STATE

93

Anantnag

Anantnag

Do.

Kulgam

Do.

Pulwama

Do.

94

Baramulla .

Baramulla

Do.

Handawara

Do.

Karnah

Do.

Sopore

Do.

Uri

Do.

95

Doda .

Bhadrawah

Do.

Doda

Do.

Kishtwar
Do.
Ramban
Do.
96
Jammu .
Akhnoor
Do.
Jammu
Do.
R.S.Pora
Do.
Samba
Do.
97
Kathua
Basoli
Do.
Billawar
Do.
Hiranagar
Do.
Kathua
Do.
Jasmergarh
Do.
98
Leh
Kargil
Do.
Leh
Do.
99
Poonch
Poonch
Do.
Mander
Do.
Rajauri
Do.
Nowshera
Do.
100
Srinagar
Budgam
Do.
Ganderbal
Do.
Srinagar
Do.
101

Udhampur
Gulabgarh
Do.
Ramnagar
Do.
Reasi
Do.
Udhampur
Do.
GOVERNMENT
OF KERALA
102
Allepey
Chengannur
Treasury Officer.
Changanacherry.
Do
Kayamkulam
Do
Muvattupuzha
Do
Shertallai
Do
103
Cannanore
Hosdrug
Do
Kasargode
Do
Manantody
Do
Tellicherry
Do
103-A.
Kottayam
Tellicherry
Do
104
Kozhikode
Badagara
Do
Kozhikode
Do
Manjeri
Do
Tirur
Do
Vayithiri
Do
105
Palghat

Alathur
Do
Ottappalam
Do
Perintalmanna
Do
Ponnani
Do
106
Quilon
Karunagappally.
Do
Kunnathur
Do
Pathanapuram
Do
Pathanamthitta
Do
107
Trichur
Chowghat
Do
Mattancherry
Do
107-A.
Trivandrum
Chirayinkil
Do
Neyyattinkara
Do
MADHYA PRADESH
STATE
108
Balaghat
Baihar
Do
Warasehoni
Do
109
Bastar
(Jagdalpur).
Bhanupratappur
Do
Bhopalpatanam
Do
Bijapur
Do
Dantewara
Do
Kanker
Do

Kondagaon
Treasury officer
Konta
Do.
Narainpur
Do.
Sukma
Do.
110
Betul
Bhainsdehi
Do.
Multai
Do.
111
Bhind
Gopad
Do.
Lahar
Do.
Mehgaon
Do.
112
Bhopal
Ashta
Do.
Bhairasiya
Do.
Bareli
Do.
Begumganj
Do.
Bundi
Do.
Ghairatganj
Do.
Goharganj
Do.
Icchawar
Do.
Nasurullaganj
Do.
Raisen
Do.
Sihore
Do.
Silwani
Do.
Udaipura
Do.
113

Bilaspur

Janjgir

Do.

Katghora

Do.

(Remain closed

from 12th of each month during the period from 1st July to 30th November).

Mungeli

Treasury Officer

Sakti

Do

114

Chhatarpur

Bijawar

Do

Chandla

Do

Nowgong

Do

115

Chindwara

Amarwara

Do

Sausar

Do

116

Damoha

Hatta

Do

117

Datia

Seondha

Treasury Officer

118

Dewas

Bagh

Do.

Kannod

Do.

Khategaon

Do.

Sonkatch

Do.

119

Dhar

Badnagar

Do.

Kukshi

Do.

Manawar

Do.
Sardarpur
Do.
Tappa Dharampuri
Do.
120
Durg
Balodsanjari
Do.
Bemetra
Do.
Dongargarh
Do.
Kawardha
Do.
Khaingarh
Do.
Rajnandgaon
Do.
121
Guna
Ashoknagar
Do.
Chachoda
Do.
Hungawali
Do.
Raghogagh
Do.
122
Gwalior
Bhandar
Do.
Gird
Do.
Pichor
Do.
123
Hoshangabad.
Harda
Do.
Pachmarhi
Do.
Seoni Malwa
Do.
Sohagpur
Do.
124
Indore
Depalpur
Do.

Indore
Do.
Manpur
Do.
Mhow
Do.
Sawer
Do.
125
Jabaipore
Katni
Do.
Patan (Jabalpore)
Do.
Sihora
Do.
126
Jhabua
Alirajpur
Do.
Jobat
Do.
Petlavad
Do
Thandla
Do
127
Khargone
Barwaha
Do
Barwani
Do
Bhikangaon
Do
Kesrawad
Do
Maheshwar
Do
Rajpur
Do
Sendhwa
Do
Tappa Panoemal
Do
128
Mandla
Dindori (Mandla)
Do
Niwas
Do
129

Mandsaur
Bhanpura
Do
Gandhi Nagar Dam
(Chambel Hydel Works)
Do
Garoth
Do
Jawad
Do
Malhargarh
Do
Manasa
Do
Neemuch
Do
Rampura
Do
Singoli
Do
Sitamau
Do
Sunel
Do
130
Morena
Ambah
Do
Bijapur
Do
Jaura
Do
Sabalgarh
Do
Sheopur
Do
131
Narsimhapur
Godarwara
Do
132
Nimar (Headquarter
at Khandwa).
Burhanpur
Do
Harsud
Do
133
Panna
Ajaigarh
Do

Pawai
Do
134
Raigarh
Dharamjaigarh
Do
Gharghode
Do
Fashpurnagar
Do
Sarangaran
Do
135
Raipur
Balodabazar .
Treasury Officer
Dhamtari .
Do.
Gariaband (Bindra
Navagarh).
Do.
Mahasamund .
Do.
136
Rajgarh (Biora)
Biora .
Do.
Khilchipur .
Do.
Narsinghgarh .
Do.
Sarangpur .
Do.
Jirapur .
Do.
137
Ratlam
Alot .
Do.
Bajna .
Do.
Jaora .
Do.
Sailana .
Do.
138
Rewa
Mauganj .
Do.
Sirmur .
Do.

Teonthar .
Do.
139
Sagar
Banda (Sagar) .
Do.
Khurai .
Do.
Rehi
Do.
140
Satna
Amarpatan
Do.
Maihar
Do.
Nagod
Do.
141
Seoni
Lakhndon
Do.
142
Shahdol
Basanihau
(Pushprijgarh)
Do.
Beohari
Do.
Umeria
Do.
143
Shajapur
Agar
Do.
Shujalpur
Do.
Susner
Do.
144
Shivpuri
Karera
Do.
Kolaras
Do.
Pichore
Do.
Pohri
Do.
145
Sidhi

Baidhan
(Singrauli) .
Do.
Jiawan (Deosar) .
Do.
146
Sarguja (H Qrs. at
Ambikapur).
Baikunthpur
Do.
Fanakpur
(Changbhakar) .
Do.
Kusmi .
Treasury Officer
Manendragarh .
Do.
Ramanujganj .
Do.
Surajpur .
Do.
147
Tikamgarh
jatara .
Do.
Newari .
Do.
148
Ujjain
Baranagar .
Do.
Khachrod .
Do.
Mahidpur .
Do.
Tarana .
Do.
149
Vidhisa (Bhilsa) .
Basoda .
Do.
Kurwai
Do.
Leteri .
Do.
Sironja .
Do.
MADRAS STATE
150
Chingleput .
Chingleput (H.Qrs.

at Saidapet)
Treasury Officer
Chingleput (Sub
Treasury)
Do.
Kancheepuram .
Do.
Madurantakam .
Do.
Ponneri .
Do.
Sriperumbudur .
Do.
Tiruvallur .
Do.
Uttaramerur .
Do.
151
Coimbatore .
Avanashi
Do.
Bhavani .
Do.
Coimbatore .
Do.
Dharapuram .
Do.
Erode
Do.
Gobichettipalayam
Do.
Pollach .
Do.
Tirupur (Palladam)
Do.
Udamalpet .
Do.
152
Madurai
Dindigul
Do.
Kodaikanal
Do.
Madurai .
Do.
Melur .
Do.
Nilakottai
Treasury Officer
Palani
Do.

Periyakulam

Do.

Tirumangalam

Do.

Uthamapalayam

(Periyakulam)

Do.

153

Nilgris

Coonoor

Do.

Gudalur

Do.

Ootacamund

Do.

154

North Arcot

Arkonam .

Do.

Arni .

Do.

Chengam

Do.

Cheygar

('Tiruvethipuram)

Do.

Gudiyatham .

Do.

Polur .

Do.

Tirupattur .

Do.

Tiruvannamalai .

Do.

Vellore .

Do.

Valajapet .

Do.

Wandiwash .

Do.

155

Ramanathapuram.

Aruppukottai .

Do.

Devakottai .

Do.

Mudukulathur .

Do.

Parmagudi .

Do.

Ramanathapuram

Do.
Ramanathapuram
(Huzur Tressury at Madurai).
Do.
Sattur .
Do.
Sivaganga .
Do.
Srivilliputtur .
Do.
Tirupattur .
Do.
Tiruvadanai .
Do.
Virudunagar .
Do.
156
Salem
Attur .
Do.
Dharmapuri .
Do.
Harur .
Do.
Hosur .
Do.
Krishnagiri .
Do.
Mettur
Treasury Officer
Namakkal
Do.
Omalur
Do.
Rasipuram
Do.
Salem
Do.
Thriuchengode
Do.
Uttangarai
Do.
Yercaud
Do.
157
South Arcot
Chidambaram
Do.
Cuddalore
Do.
Gingee

Do.
Kallakurichi
Do.
Tindivanam
Do.
Tirukkoiyilur
Do.
Villupuram
Do.
Vridhachalam
Do.
158
Tanjore
Arantangi
Do.
Kumbakonam
Do.
Mannargudi
Do.
Mayuram
Do.
Nagapattinam
Do.
Nannilam
Do.
Orathanad
Do.
Papanasam
Do.
Pattukottai
Do.
Sirkali
Do.
Tanjore
Do.
Tiruturaipundi
Do.
Tiruvarur
(Nagapattinam)
Do.
159
Tiruchirapalli.
Alangudi
Do.
Ariyalur
(Udayarpalayam)
Do.
Jayankondacholapuram
(Udayarpalayam)
Do.
Karur .

Do.
Keeranur .
Do.
Kulitalai .
Do.
Lalgudi .
Do.
Mnapparai .
Do.
Musiri .
Treasury Officer
Perambalur .
Do.
Pudukottai .
Do.
Tirumayyam .
Do.
Tiruchirapalli
Do.
Turaiyur (Musiri)
Do.
160
Tirunelveli
Ambasamudram.
Do.
Koilpatti
Do.
Nanguneri
Do.
Sankaranayinarkoil.
Do.
Srivaikuntam
Do.
Terikasi
Do.
Tiruchendur
Do.
Tirunelveli
Do.
Tuticorin
(Srivaikuntam)
Do.
161
Kanyakumari
Nagercoil (Huzur
Treasury)
Do.
MYSORE STATE
162
Bangalore (Satate
Huzur Treasury).

Anekal Taluk

Do.

Chennapatna Taluk.

Do.

Devanahally Taluk

Do.

Hoskote Taluk

Do.

Doddaballapur

Taluk

Do.

Kannakapura Taluk.

Do.

Magadi

Do.

Neelamangala Taluk

Do.

Ramnagaram Taluk .

Do.

163

Bellary

Harapanahalli

Do.

Hospet

Do.

Kudligi

Do.

Sandur

Do.

164

Belgaum

Belgaum (Huzur

Treasury)

Do.

Khanapur Taluka .

Do.

Bailhonga

(Sampgaon)

Do.

Saundatt

(Parasgad).

Do.

Gokak Taluka

Do.

Ramdurg

Do.

Chikod

Do.

Huker

Do.

Athan

Treasury Officer
Raibag (Mahal)
Do.
165
Bidar
Bhalki
Do.
Humnabad
Do.
Santhpur (Aurad)
Do.
166
Bijapur
Badami
Do.
Bagalkot
Do.
Bagevadi
Do.
Bilgi
Do.
Hungund
Do.
Indi
Do.
Jamakhand
Do.
Muddibihae
Do.
Mudhol
Do.
Sindgi
Do.
167
Chickmaglur
Kadur
Do.
Koppa
Do.
Mudigere
Do.
Narasimharajapur
Do.
Sringeri
Do.
Tarikere
Do.
168
Chitaldurg
Challekere Taluk.
Do.

Davanagere

Do.

Harihar

Do.

Hiriyur

Do.

Hiriyur

Do.

Holalkere

Do.

Hosadurga

Do.

Jagalur

Do.

Molkalmuru

Do.

169

Coorg (Mercara)

Ponnampet (only on

two days in a week, Monday & Friday).

Do.

Somwarpet

Do.

Virajpet

Do.

170

Dharwar

Byadgi

Do.

Gadag

Do.

Hangal

Treasury Officer

Haven

Do.

Hubli

Do.

Hirekerur

Do.

Kalghatgi

Do.

Kundgol

Do.

Mundargi

Do.

Nargund

Do.

Navalgund

Do.

Ramebemsur

Do.

Ron
Do.
Shiggaon
Do.
Shirhatti
Do.
171
Gulbarga
Afzalpur
Do.
Aland
Do.
Chitapur
Do.
Chincholi
Do.
Jawargi
Do.
Shorapur
Do.
Shahpur
Do.
Sedam
Do.
Yadgir
Do.
172
Hassan
Alur Taluka
Do.
Arsikere Taluka
Do.
Arkalgud Taluka
Do.
Belur Taluka
Do.
Channarayapatna
Taluka
Do.
Holenarasipar
Taluka
Do.
Sakleshpur
Do.
173
Kolar
Bangerpet
Do.
Bagepali
Do.
Chintamani

Do.
Chickballapur
Do.
Gudlbanda
Do.
Gowribidanur
Do.
Malur
Do.
Mulbagal
Do.
Sidlaghatta
Do.
Srinivasapur
Do.
174
Kanara North
(Karwar)
Ankola
Treasury Officer
Bhatkal
Do.
Haliyal
Do.
Honavar
Do.
Kunta
Do.
Mundgod
Do.
Siddapur
Do.
Sirsi
Do.
Supa
Do.
Yellapur
Do.
175
Mandya
Krishnarajpet
Do.
Maddur
Do.
Malawalli
Do.
Ngamangala
Do.
Pandvapura
Do.
Srirangapatnam .

Do.
176
Mysore
Chamarajanagar.
Do.
Gundlupet
Do.
Heggadadevenkote
Do.
Hunsur
Do.
Kollegal
Do.
Krishnarajanagar
Do.
Periyapatna
Do.
Najangud
Do.
Tnarasipur
Do.
177
Raichur
Devodurg
Do.
Ganagavathi
Do.
Koppal
Do.
Kustagi
Do.
Lingsugur
Do.
Manwi
Do.
Sindhnoor
Do.
Yelbarga
Do.
178
Shimoga
Bhadravathi
Do.
Channagiri
Do.
Honnali
Do.
Hosanagar .
Treasury Officer
Sagar
Do.

Shikaripur

Do.

Sorab

Do.

Thirthahalli

Do.

179

South Kanara

(Mangalore)

Belthangady

Do.

Coondapur

Do.

Karkal

Do.

Puttur

Do.

Udipi

Do.

180

Tumkur

Chikkanaikanahali

.

Do.

Gubbi

Do.

Koratagere

Do.

Kunigal

Do.

Madhugiri

Do.

Pvagada

Do.

Sira

Do.

Tiptur

Do.

Turuvekere

Do.

ORISSA STATE

181

Balasore

Bhadrak

Do.

Nilgiri

Do.

182

Bolangir-Patna

Ratnagarh

Do.

Sonepur
Do.
Titlagarh
Do.
183
Phulbani (Boundh
Phulbani)
Ballinguda
Do.
Boudh
Do.
Gudayagiri
Do.
184
Cuttack
Athgarh
Do.
Banki
Do.
Barambe
Do.
Jaipur
Do.
Kendrapara
Do.
Narasinghpur
Do.
Tigiria
Do.
185
Dhankanal
Angul
Treasury Officer
Athmalik
Do.
Hindol
Do.
Kamakhyanagar.
Do.
Pallahara
Do.
Talchar
Do.
186
Ganjam (Chatrapur)
Aska
Do.
Barhampur
Do.
Chatrapur
Do.

Kodala
Do.
Paralakimedi
Do.
Suroda
Do.
Bhanjnagar
Do.
Rudayagiri
Do.
187
Kalahindi
(Bhawanipatna)
Dharamgarh
Do.
Nawapara
Do.
Thuamal Rampur
Do.
188
Keonjhar
Anandapur
Do.
Champua
Do.
189
Koraput
Gunupur
Do.
Jaypore
Do.
Malkangiri
Do.
Nowarangpur
Do.
Rayagada
Do.
190
Mayurbhanj
(Baripada)
Bamanghati
(Karanjiv)
Do.
Katopada
(Rairangpur)
Do.
Panchpir (Udala)
Do.
191
Puri
Bhubaneshwar

Do.
Dassapalla
Do.
Khandpara
Do.
Khurda
Do.
Nayagarh
Do.
Ranpur
Do.
192
Sambalpur
Bemada (Deogarh)
Do.
Baragarh
Do.
Kuchinda
Do.
Rairakhol
Do.
193
Sundergarh
(Gangpur)
Bonai .
Treasury Officer
Pamposh
Do.
PUNJAB
194
Amritsar
Ajnala
Do.
Patti
Do.
Taran Taran
Do.
195
Ambala
Jagadhari
Do.
Kharar
Do.
Naraingarh
Do.
Rupar
Do.
196
Bhatinda
Faridkot
Do.

Mansa
Do.
197
Chandigarh
Do.
198
Dharamsala
Debra
Do.
Hamirpur
Do.
Kangra
Do.
Kulu
Do.
Palampur
Do.
Nurpur
Do.
Seraj
Do.
199
Ferozepur
Fazilka
Do.
Moga
Do.
Mukatsar
Do.
Zira
Do.
200
Gurdaspur
Batala
Do.
Dalhosie
Do.
Pathankot
Do.
201
Gurgaon
Bhallabgarh
Do.
Ferozepur Jhirka
Do.
Palwal
Do.
Nuh
Do.
Rewari
Do.

202
Hissar
Bhiwani
Do.
Fatehabad
Do.
Hansi
Do.
Sirsa
Do.
203
Hoshiarpur
Dasuya
Do.
Garshankar
Do.
Una
Do.
204
Jullundur
Phillaur
Treasury Officer
Nakodar
Do.
Nawanshahr
Do.
205
Karnal
Kaithal
Do.
Panipat
Do.
Thanesar
Do.
206
Kapurthala
Phagwara
Do.
207
Ludhiana
Jagraon
Do.
Samrala
Do.
208
Narnaul
Dadri
Do.
Mohindergarh
Do.
209

Patiala
Kasauli
Do.
Kandaghat
Do.
Nabha
Do.
Nalagarh
Do.
Sirhand
Do.
Rajpura
Do.
210
Rohtak
Gohana
Do.
Jhajjar
Do.
Sonipat
Do.
211
Sangrur
Barnala
Do.
Jind
Do.
Malerkotla
Do.
Narwana
Do.
Sunam
Do.
212
Simla
Do.
RAJASTHAN
213
Ajmer
Arain
Do.
Beawar
Do.
Kekri
Do.
Kishangarh
Do.
Rupnagar
Do.
Sarwar
Do.

214

Alwar

Bahrar

Do.

Bansur

Do.

Kishangarh

Do.

Lachmangarh

Do.

Mandawar

Treasury Officer

Rajgarh

Do.

Thana Ghazi

Do.

Tijara

Do.

215

Banswara

Bagidora

Do.

Ghantal

Do.

Kushalgarh

Do.

Partapur (Gadhi)

Do.

216

Barmer

Chhothan

Do.

Sewana

Do.

Sheo

Do.

217

Bharatpur

Bari

Do.

Baseri

Do.

Bayana

Do.

Deeg

Do.

Dholpur (Gird)

Do.

Kaman

Do.

Nadbai

Do.
Nagar
Do.
Rajakhera
Do.
Roopbas
Do.
Weir
Do.
Khumber
Do.
Pahari
Do.
Saipu Seasoner
.Do.
Sir-Mathura
Do.
218
Bhilwara
Asind
Do.
Banera
Do.
Hurda (Gulabpura)
Do.
Jahazpur
Do.
Kotri
Do.
Mandal
Do.
Mandalgarh
Do.
Raipur
Do.
Sahada
Do.
Shahpura
Do.
219
Bikaner
Lunkaransar
Treasury Officer
Magri
Do.
Nokha
Do.
220
Bundi
Hindoli
Do.

Nainwa
Do.
Patan
Do.
Talera
Do.
221
Chittorgarh
Achnera
Do.
Barisadri
Do.
Begun
Do.
Bhadesar
Do.
Bhensoorgarh
Do.
Chhotisadri
Do.
Dungla
Do.
Gangrar
Do.
Kanera
Do.
Kapasin
Do.
Nimbahera
Do.
Pratapgarh
Do.
Rashmi
Do.
222
Churu
Dungargarh
Do.
Ratangarh
Do.
Sadulpur (Rajgarh)
Do.
Sardarshahr
Do.
Sujiangarh
Do.
Raranagar
Do.
223
Dungarpur
Aspur

Do.
Sagwara
Do.
224
Ganganagar
Anupgarh
Do.
Bhadra
Do.
Hanumangarh
Do.
Karanpur
Do.
Nohar
Do.
Padampur
Do.
Raisinghnagar
Do.
Suratgarh
Do.
225
Jaipur
Ambar
Do.
Bairath
Do.
Bandikui (Baswa)
Do.
Bassi .
Treasury Officer
Chaksu .
Do.
Dausa .
Do.
Dadu .
Do.
Jamwa Ramgarh.
Do.
Kotputli .
Do.
Lalsot .
Do.
Phagi .
Do.
Phulera .
Do.
Sanganer .
Do.
Sikrai .
Do.

226

Jhunjhunu

Chirawa .

Do.

Khetri .

Do.

Udaipurwati

Do.

227

Jhalawar

Aklara

Do.

Bakani

Do.

Dag

Do.

Gangdhar

Do.

Jhalra Patan

Do.

Khanpur

Do.

Manoharthana

Do.

Pachpahar

(Bhawanimandi)

Do.

Pirawa

Do.

Suneltappa

Do.

228

Jodhpur

Bilara

Do.

Osian

Do.

Phalodi

Do.

Shergarh

Do.

229

Jalore

Jaswantpura

Do.

Sanchore

Do.

230

Jaisalmer

Pokaran

Do.

231
Kotah
Anta
Do.
Atru
Do.
Baran
Do.
Barod
Do.
Chechat
Do.
Chhabra
Do.
Chhipabarod
Do.
Digod
Treasury Officer
Itawa
Do.
Kanwas
Do.
Kishanganj
Do.
Ladpura
Do.
Mangrol
Do.
Pipalda
Do.
Ramganjmandi
Do.
Sangod
Do.
Shahbad
Do.
232
Nagaur
Degana
Do.
Didwana
Do.
Jayal
Do.
Ladnun
Do.
Merta
Do.
Nawa
Do.
Parbatsar

Do.
233
Pali
Bali
Do.
Desuri
Do.
jaitaran
Do.
Sojat
Do.
234
Sawai Madhopur
Bamanwas
Do.
Gangapur
Do.
Hindaun
Do.
Karauli
Do.
Khandar
Do.
Mahuwa
Do.
Malaranachaur
Do.
Nadoti
Do.
Sapotra
Do.
Toda-Bhim
Do.
235
Sikar
Danta Ramgarh
Do.
Fatehpur
Do.
Lachmangarh
Do.
Neem-ka-thana
(Torawati)
Do.
Sri Madhopur
Do.
236
Sirohi
Abu Road Taluka
Do.
Pindwara

Do.
Roodar
Treasury Office
Sheoganj
Do.
237
Tonk
Duni
Do.
Malpura
Do.
Nawai
Do.
Todaraisingh
Do.
Uniara
Do.
238
Udaipur
Amet
Do.
Bhim
Do.
Bhopals
Do.
Deogarh
Do.
Khamnor
Do.
Kherwara
Do
Kotra
Do.
Kumbhalgarh
Do.
Dasadia
Do.
Mavli
Do.
Phalasai
Do.
Rajsamand
Do.
Relmagra
Do.
Saira
Do.
Salumbar
Do.
Sarada
Do.

Vallabhnagar

Do.

239

Sambhar Lake.

Pachbadra

Do.

UTTAR PRADESH

240

Agra

Bah

Do.

Etamadpur

Do.

Firozabad

Do.

Fatehabad

Do.

Kiraoli

Do.

Kheragarh

Do.

241

Aligarh

Atrauli

Do.

Iglas

Do.

Hathras

Do.

Koh (Sadar)

Do.

Khair

Do.

Sikanadara Rao

Do.

242

Allahabad

Handia

Treasury Officer

Karohana

Do.

Manjhanpur

Do.

Meja

Do.

Phulpur

Do.

Saraon

Do.

Sirathu

Do.

243

Almora

Champawat

Do.

Pithoragarh

Do.

244

Azamgarh

Ghosi

Do.

Mohamdbad

Do.

Lalganj

Do.

Phulpur

Do.

Sageri

Do.

245

Bahraich

Kaisarganj

Do.

Nanpara

Do.

246

Ballia

Bansdih

Do.

Rasra

Do.

247

Banda

Baberu

Do.

Karwi

Do.

Mau

Do.

Naraini

Do.

248

Barabanki

Fatehpur

Do.

Haidergarh

Do.

Ramsanehighat

Do.

249

Bareilly

Aonla

Do.
Baheri
Do.
Faridpur
Do.
Nawabganj
Do.
250
Basti
Bansi
Do.
Domariaganj
Do.
Haraiya
Do.
Khalilabad
Do.
Naugarh
Do.
251
Bijnor
Dhampur
Do.
Nagina
Do.
Najibabad
Do.
252
Budaun
Bisauli
Treasury Officer
Dataganj
Do.
Gunnaur
Do.
Sahaswan
Do.
253
Bulandshahr
Anupshahr
Do.
Khurja
Do.
Sikandrabad
Do.
254
Dehradun
Chakarata
Do.
Mussoorie
Do.

255

Deoria

Hata

Do.

Padrauna

Do.

Salempur

Do.

256

Etah

Aliganj

Do.

Jabesar

Do.

Kasganj

Do.

257

Etawah

Auraiya

Do.

Bhartana

Do.

Bidhuna

Do.

258

Farrukhabad

(Fatehgarh)

Farrukhabad

Do.

Chibramau

Do.

Kaimganj

Do.

Kannauj

Do.

259

Fatehpur

Bindki

Do.

Khaga

Do.

260

Faizabad

Akbarpur

Do.

Bikapur

Do.

Tanda

Do.

261

Gharwal (Pauri)

Chamoli
Do.
Lansdowne
Do.
262
Ghazipur
Mohammadabad
Do.
Saidpur
Do.
Zamania
Do.
263
Gonda
Balrampur
Do.
Tarabganj
Do.
Utraula
Do.
264
Gorakhpur
Bansgaon
Do.
Pharenda
Do.
Maharajganj
Do.
265
Hamirpur
Charkhari
Do.
Mahoba
Treasury Officer
Maudaha
Do.
Rath
Do.
266
Hardoi
Bilgram
Do.
Sandila
Do.
Shahabad
Do.
'267.
Jalaun (At Orai)
Kalpi
Do.
Konch

Do.
Orai
Do.
268
Jaunpur
Kerakat
Do.
Machhlishahr
Do.
Mariahu
Do.
Shahganj
Do.
269
Jhansi
Garautha
Do.
Lalitpur
Do.
Mahroni
Do.
Moth
Do.
Mau
Do.
270
Kanpur
Akbarpur
Do.
Bilhaur
Do.
Bhognipur
Do.
Derapur
Do.
Ghatampur
Do.
271
Kheri (Lakhimpur
Kheri)
Muhamdi
Do.
Nighasan
Do.
272
Lucknow
Malihabad
Do.
Mohanlalganj
Do.
273

Mainpuri
Bhongaon
Do.
Jasrana
Do.
Karhal
Do.
Shikohabad
Do.
274
Mathura
Chhata
Do.
Mat
Do.
Sadabad
Do.
275
Meerut
Baghpat
Do.
Ghaziabad
Do.
Hapur
Do.
Mawana
Do.
Meerut
Treasury Officer
Sardhana
Do.
276
Mirzapur
Chunar
Do.
Dudhi
Do.
Robertsganj
Do.
277
Moradabad
Amroha
Do.
Bilari
Do.
Hasanpur
Do.
Sambhal
Do.
Thakurdwara
Do.

278

Muzaffamagar

Budhana

Do.

Jansath

Do.

Kairana

Do.

279

Nainital

Bazpur

Do.

Haldwani

Do.

Kashipur

Do.

Khaitma

Do.

Kitcha

Do.

Kaladhungi

Do.

Ramnagar

Do.

Sittarganj

Do.

280

Partapgarh

Kunda

Do.

Patti

Do.

281

Pilibhit

Bisalpur

Do.

Puranpur

Do.

282

Raebareli

Dalman

Do.

Maharajganj

Do.

Salon

Do.

283

Rampur

Bilaspur

Do.

Milak

Do.
Shahabad
Do.
Suar
Do.
284
Ranikhet
Do.
285
Roorkee
Deoband
Do.
Nakur
Do.
286
Saharanpur
Do.
287
Shahjahanpur
Jalalabad
Treasury Officer
Pawayan
Do.
Tilhar
Do.
288
Sitapur
Biswan
Do.
Misrikh
Do.
Sidhauri
Do.
289
Sultanpur
Amethi
Do.
Kadipur
Do.
Musafirkhana
Do.
290
Tehrigarhwal
(Narendranagar).
Devprayag
Do.
Tehri
Do.
Uttarkashi
Do.
291

Unnao
Hassanganj
Do.
Purwa
Do.
Safipur
Do.
292
Varanasi
Chandauli
Do.
Chakia
Do.
Gyanpur
Do.
WEST BENGAL
293
Bankura
Bishnupur
Do.
294
Birbhum (H.Qrs. at
Suri).
Rampurhat
Do.
295
Bardwan
Asansol
Do.
Kalna
Do.
Katwa
Do.
296
Cooch Behar
Dinhata
Do.
Mathabhanga
Do.
Mekliganj
Do.
Tufanganj
Do.
297
Darjeeling
Kalimpong
Do.
Kurseong
Do.
Siliguri
Do.

298

Hooghly (H.Qrs. at
Chinsurah).

Arambagh

Do.

Chandernagore

Do.

Serampur

Do.

299

Howrah

Ulberia

Do.

300

Jalpaiguri

Alipurduars

Do.

301

Malda

Do.

302

Midnapore .

Contai

Treasury Officer

Ghatal

Do.

Jhargam

Treasury Officer

Tamluk

Do.

303

Murshidabad

(H.Qrs. at Behrampur).

Jangipur

Do.

Kandi

Do.

Lalbagh

Do.

304

Nadia (H.Qrs. at

Krishnagar).

Ranaghat

Do.

305

Purulia

Do.

306

West Dinajpur

(H.Qrs. at Balusghat).

Raiganj

Do.
307
24-Parganas (H.
Qrs. at Alipore).
Barasat
Do.
Basirhat
Do.
Barrackpore
Do.
Bongaon
Do.
Diamond Harbour
Do.
MANIPURADMINISTRATION,
IMPHAL
308
Imphal
Do.
TRIPURA
ADMINISTRATION, AGARTALA
309
Agartala, Tripura
Amarpur
Do.
Belonia
Do.
Dharamnagar
Do.
Khowai
Do.
Kamalpur
Do.
Kailashahr
Do.
Sabroom
Do.
Sonamura
Do.
Udaipur
Do.
ANDAMAN
& NICOBAR ISLANDS-ADMINISTRATION
310
Port Blair
Do.
DELHI
ADMINISTRATION, DELHI
311
Delhi
Do.

HIMANCHAL

PRADESH ADMINISTRATION, SIMLA

312

Bilaspur

Bilaspur

Do.

313

Chamba

Chamba

Do.

Chowari

Do.

314

Mandi

Mandi

Do.

Joginder Nagar

Do.

Karsog

Do.

Sarkaghat

Do.

Sundernagar

Treasury Officer

315

Mahasu

Arki

Do

Chini

Do.

Chopal

Do.

Jubbal

Do.

Kothal

Do.

Mahasu at

kasumpatti

Do.

Rampur

Do.

Rohro

Do.

Solan

Do.

Theog

Do.

316

Sirmur

Nahan

Do.

LIST - H

List of Treasury Chest Offices at which Defence Pensions are paid

Sl.No.

Treasury Chest

Pension paying

Officer

1

Lansdowne (U.P.)

Military Treasury

Chest Officer.

Appendix X-Contd.

LIST No. III

List of post Offices in Punjab, Himachal Pradesh, Jammu & Kashmir State and Delhi Administration Authorised to Disburse Payment of Pension to Defence Pensioners

NOTE :-Only pensioners below officer rank and their families are paid through Post Offices. Other pensioners are paid through Civil Treasuries)

Sl.No.

Head

Post

Sub-Offices

Branch

Offices

Branch

Offices Paying Pension to crippled and aged pensioners

Branch

Offices Paying Pension to female pensioners

Sub-Offices

specially authorised to make 1st payment of pension to Defence

Pensioners

1

2

3

4

5

6

7

1

Ambala

Auchinleck

Lines

1.

Barijhallian.

Ambala

City

Ambala

City kutchery

2.

Kainaur.

Ambala

City R.S.

Ambala

City Model Town

3.

Kherisalabatpur.

Ambala

Civil Lines

Ambala

Sadar Bazar CPO EP-79

4.

Manda.

Bobyal

Bamer

5.

Shakrullapur.

Barara

Bazar

Basti Ram

6.

Samanakalan.

Bhakhra

Dam

Bharat

Garh

7.

Tajawala.

Bilaspur

Buria

CPO EP-81

B.C.

Bazar, Ambala CPO EP-26

B.C.W.

Surajpur

Baldev

Nagar

Bela

CPO EP-159

Chachrauli

Chamkaur

Sahib

Chandigarh

Chandi

Mandir

Civil

lines, Ambala

Commissioner's

Court, Ambala

D.A.V.

College, Ambala

City

CPO EP-129.

Dera

Bass

Ghanauli
Garkhal
Gopal
Paper Mill, Yamunanagar CPO EP-140.
Government
Press, Chandigarh CPO EP-111.
Hargolal,
Ambala
High
Court, Chandigarh CPO EP-56.
I.A.F.
Lines, Ambala
Jagadhari
Jagadhari
Town
Jagadhari
Model Town
Jagadhri
Workshop
Kachhar
Bazar, Ambala
Kalka
Kalka
R.S.
Kasauli
Kasauli
Motor Terminus
Kasauli
Research Institute
Kasauli
Sanatorium
Kharar
Khazirabad
West
Kuldip
Nagar
Kurali
Lal
Kurti Bazar, Ambala
Lutheri
Manauli
Mani
Majra
Mianpur
CPO EP-103
Morinda
Mullana
Mustafabad
Mubarakpur
Mullanpur
CPO EP-167

Motor
Stand, Ambala City
Nahan
Nalgarh
Naraingarh
Panjkulu
CPO EP-95
Panipat
Lines, Ambala
Panjore
CPO EP-110
Paonta
Patel
Nagri, Ambala
P.
& T. Colony, Ambala
Punjab
University, Chandigarh C.P.O. - 68.
Punjab
University, Chandigarh CPO EP-68.
Railway
Road, Ambala City
Raipur
Rani
Raj
Bhawan, Chandigarh
Rupar
Rupar
Motor Terminus
Rupar
College Road
Sadhaura
Sanawar
Sarhan
Secretariat,
Chandigarh
Sector
16, Chandigarh CPO EP-39
Sector.
22, Chandigarh CPO EP-132
Sector
23, Chandigarh
Sessions
Court, Ambala
Shahzadpur
Sohana
Sugar
Mills Yamuna Nagar
Top
Khana Bazar, Ambala
Vidhan

Sabha Chandigarh

Yamna

Nagar.

2

Bhatinda

Bareta

Heengna

Balanwali

Heengna

Balanwali

Heengna

Balanwali

As

in Col. 3.

Jaitu

Mandiphul

Mansa

Maurmandi

Phul

Raman

3

Dharamshala

Dharamshala

HO Akhara Bazar, Kulu

Arlu

Aloh

All

Branch Offices are authorised to pay pension to aged and crippled

All

Branch Offices are authorised to pay pension to pensioners.

All

the Sub-Offices are authorised to make 1st payment female pensioners.

Alhilal

Kangra Valley

Andrita

Baijnath

Bhulana

Baldwara

Bir

Bandorah

Orchard

Bani

Banjar

Balimer

Barsar

Bhareri

Barwana

Bhukker

Bhota

Bhuntu

Bumbloo
Bhuraui
Banalag
Bijori
Bajrol
Chanchiet
Chadhiar
Baroh
Dari
Baiaura
Dehra
Gopipur
Bharoh
Dheera
Bhadwar
Bhameta
Bharmer
Dhaneta
Bhadiarkher
Dharamsala
Cantt.
Bagera
Garli
Charri
Hamirpur
Chamboh
Haripur
Chabutra
Jawalamukhi
Chauntra
Jawali
Chachian
Jogindernagar
Dagoh
Kangra
Ketrain
Dhumdu
Keylong
Khera
Dhamoral
K.B.
Dharamsala
Dada
Siha
Kulu
Dhabiri
Ladraur
Divivin
Lambagraon
Dobi
Dhangota

Marand
Daroka
Manali
Dainkwan
Mandi
State
Dubak
Mangwal
Dehar
Molag
Fatehpur
Nadaun
Galor
Naggar
Gummar
Nagrota
Bagwan
Gangtha
Nurpur
Garh
Jammla
Out
Palampur
Hori
Devi
Paprola
Jalgaon
Pragpur
Jaru
Rehan
Jhainari
Riason
Jhahalari
Sulah
Jalag
Sarkaghat
Jangal
Sandholi
Jalari
Shahpur
Khopa
Sujanpur
Tira
Kathiana
Sundernagar
Khundian
Tauni
Devi
Kangu
Thural
Kukhu

Kotla
Ladori
Karot
Lathiari
Makroli
Lahat
Majherna
Mandli
Nagrota
Gajian
Mahal
Ootpu
Mundkhar
Proian
Pahru
Pharer
Pirasaluhi
Paraur
Patalander
Raipur
Rail
Raja
Talib
Rajher
Rihlu
Sansai
Saliali
Sanghol
Sihunta
Jikku
Thill
Takoli
Ubal
Ukhali

4

Ferozepur
Abohar
Bharana
All

the Branch Offices mentioned in Col. 4 are authorised to make
payment to crippled and aged pensioners

All

the Branch Offices mentioned in Col. 4 are authorised to make
payment to family pensioners

All

Sub-Offices make payment on 1st payment

Badhani
Kalan
Bhambia
Bhai
Bagha

Purana
Bhagta
Bhai
Bhucho
Mandhi
Chand
Nau
Bhuttar
Chauhar
Chak
Dharamkot
Dandhar
Faridkot
Mandi
Dhudike
Faridkot
Sectt.
Ghall
Khurd
Fazilka
Gholian
Kalan
Ferozepur
City
Ghall
Kalan
Giddar
Baha
Indergarh
Goniana
Mandi
Kot
Bhai
Guru
Har Sahai
Kapura
Jalalabad
Kotha
Guru
Kohri
Kalan
Kalyan
Sukha
Kot
Kapura
Kassuana
Malaut
Mandi
Lehra
Mohabat
Makhu

Loppon
Moga
Purana
Mamdot
Moga
Mehma
Sawai
Kuktsar
Sadar Bazar
Mudki
Nathana
Munawan
Patto
Hira Singh
Raunia
Talwandi
Bhai
Ramuwala
Zira
Raonta
Raitra
Sodhi
Nagar
Sohangar
Samadh
Bhai
Wander
5
Gurdaspur
Bakloh
Anlakh
Kalan
All

the Branch Offices mentioned in Col. 4 are authorised to make payment to crippled and aged pensioners.

All
the branch Offices mentioned in Col. 4 are authorised to make payment to family pensioners

All
sub-offices make payment on 1st payment.

Batala
Behrampur
Bhagowal
Bhoa
Bhattian
Boh
Chamba
Dakoha
Chowari
Dharamkot
Dalhousie

Bagga
Dalhousie
Cantt.
Dharamkot
Dera
Baba Nanak
Randhawa
Dhariwal
Dharowali
Dina
Nagar
Dehriwala
Darogian
Dunera
Dorangla
Ghuman
Ghoriwala
Gurdaspur
Mandi
Gharota
Indora
Gurdas
Nangal
Kalanaur
Ghat
Meran
Kadhopur
Kathlaur
Pathankot
Kot
Santokhrai
Qadian
Marara
Siri
Har Govindpur
Mori
Buchian
Sujanpur
Hardochhani
Kahnuwan
Masarian
Mirthal
Narot
Jaimal Singh
Mohti
Pokiwan
Ramdiwalj
Raiba
Wadala
6
Gurgaon

Badshahpur

Ahrod

All

the Branch Offices shown in Col. 4 are authorised to pay pensions to aged and crippled pensioners.

All

the Branch Offices shown in Col. 4 are authorised to pay pensions to pay pensions to female pensioners.

All

Sub-Offices shown in Col. 3 are authorised to make 1st payment to Def. Pensioners

Ballabgarh

Bahora

Kalan

Faridabad

Bahu

Farukhnagar

Balwari

Firozpur

Jhirka

Bhiduki

Guriani

Bhundsi

Hatti

Bichhor

Hodal

Cheelarh

Kosli

Dahina

Kund

Dhulkot

Nahar

Garhi

Bolni

Nuh

Garhi

Harsaru

Palwal

Guraora

Pataudi

Ffsanpur

Punabana

Jatusana

Rewar

Jharti

Sohra

Kanhaura

Taura

Khol

Tigaon

Kanwali

Khem
Kalan
Khorl
Malab
Mandola
Mandi
Khera
Mohna
Nagina
Pinangwan
Ratanthal
Salhawas
Taukri
Tarkiawas
Ujina
7

Hissar
Bhiwani
Khera
Adampur
All

the Branch offices mentioned in Col. 4 are authorised to pay
pensions to crippled and aged pensioners

All
the Branch Offices mentioned in Col. 4 are authorised to pay
pensions to female pensioners

All
Sub-Offices shown in Col. 3 are authorised to make first payment
to Defence pensioners.

Bhiwani
Balsamand
Bahal
E.D.S.O.
Barwwa
Budhlada
Bhattu
Dabwali
Baliali
Ellenabad
E.D.S.O.
Bamla
Fatehabad
Bapura
Hansi
Barsi
Jakhal
Mandi
Bas
Kairu
Chang
Kalanwali

Dhanana
Loharu
Ding
Narnaund
Ghirai
Sirsa
Jamalpur
Tohana
Kirmara
Toshan
Khanda
Kheri
Uklana
Mandi
Lohari
Jutu
Latani
Morka
Mitathal
Mirchpur
Nalwa
Pabra
Puthisaman
Ratora
Rori
Siwani
Siswal
Sisai
Tigrana
Umra
8
Hoshiarpur
Amb
Ajram
All
the Branch offices mentioned in Col. 4 are authorised to make
payment to crippled and aged pensioners
All
the Branch Offices mentioned in Col. 4 are authorised to make
payment to family pensioners.
All
Sub-Offices make payment on first payment.
Ambota
Amboa
Anandpur
Sahib
Aharnakalan
Bajwara
Bundlehi
Barrian
Kalan

Bhala
Bassi
Kalan
Bodal
Balachaur
Badla
Bham
Bhadarkali
Bharwain
Benowal
Bulalowal
Bhadsali
Bhunga
Badla
Harta
Bhangla
Badhera
Dasuya
Bathri
Datarpur
Chabewal
Dholbaha
Chalet
Daulatpur
Charatgarh
Gagret
Deoli
Ganguwal
Power House
Dharamsal
Mahantan
Garhdiwala
Dharampur
Garhshanker
Dulehar
Hariana
Ghorewaha
Hajipur
Haroli
Jaijon
Jandali
Janauri
Kamahi
Devi
Kot
Fatuhi
Khudda
Kot
Power House
Kuthera
Jaswalan

Kot
Abdulkhalige
Marwari
Mahilpur
Moranwali
Miani
Nangal
Kikku
Mukerian
Pur
Hiran
Mehlanwali
Pirthipur
Nangal
Dam
Palakwah
Nangal
Township
Panjawar
Nanda
Chaur
Puddisurasingh
Nurpur
Bedi
Pajjo
Deota
Oel
Qasba
Kotla
pandogah
Rampur
Bilron
Piplanwala
Sikri
Ram
Colony
Sunkali
Rajpur
Bhayan
Singham
Saila
Khurd
Tipri
Saroa
Talwara
Sarhala
Kalan
Teuri
Sadhu
Ashram
Thakarwal

Sham
Chaurasi
Zahura
Santokhgarh
Tanda
Totomazara
Una
Urmar

9

Jammu
Tawi (J. & K. State)
Akhnur
Barwal

All

the Branch offices mentioned in Col. 4 are authorised to make payment to crippled and aged pensioners

All

the Branch Offices mentioned in Col. 4 are authorised to make payment to family pensioners.

All

Sub-Offices make payment on first payment.

Banihal
Budhal
Basoli
Bishna
Batoti
Birpur
Bhadarwah
Bhaddu
Chhamb
Billawar
Doda
Chhan
Durbargarh
Chinani
Arori
Arorian
Dings
Amb
Hiranagar
Dharamsala
Jammu
Cantt.
Gurha
Jammu
Market
Ghagwal
Jaurian
Gharota
Katia
Jandial

Kishtwar
Kotli
Jhajjar
Kud
Kakrai
Lakhanpur
Kanna
Chak
Noashera
Mahanpur
Pallanwala
Pragwal
Poonch
Parola
Rajouri
Poni
Ramban
Pallasy
Ramnagar
Rai
Kootah
Ramsu
Rehal
Ranbirsinghpura
Raika
Riasi
Rahya
Rehari
Mohalla
Ramkot
Raghunath
Bazar
Saror
Samba
Sanoora
Sunderbani
Snailpur
Thathri
Uchapind
Udhampur
Vinaik
Bazar
10
Jullundur
Adampur
Bala
Chaur
Do.
Do
Do
Alawalpur

Baddon
Apra
Bhatnaura
Aur
Chakdana
Banga
Dosauj
Kalan
Bara
Pind
Darauli
Khurd
Basti
Gazan
Doli
ke Sunderpur
Bhsti
Sheikh
Dayalpur
Bhogpur
Ghurial
Dakola
Haripur
Darauli
Kalan
Isharmal
Garha
Kala
Bakra
Goraya
Kang
Sabhu
Jadla
Kalra
Jamsher
Kabran
Jandu
Singh
Khan
Khana
Jullundur
City ?B?
Kotli
Than Singh
Kukar
Pind
Ladhewali
Kultham
Manko
Mahalla
Ramdaspora

Moran
Nawashahr
Nadalon
Panchhat
Nurur
Phagwara
Padhiana
Pherala
Pandori
Mijran
Phillaur
Rohyri
Police
Training School Phillur
Sahlon
Rahoon
Talhan
Satnampur
Unapur
Suranassi
11
Karnal
Gharaunda
Assand
Do
Do
Do
Gubla
Kunj
Pura
Kaithal
Mandi
Kheri
Sharafali
Ladwa
Mandwal
Nilokheri
Nissang
Panipat
Pai
Pehowa
Rajaund
Pundri
Radaur
Shahabad
Tauri
Thanesar
Samalkha
12
Kapurthala
Bilga

Nangal
Lohana Ramedi
Do
Do
Do
Bolath
Bundala
Dhilwan
Jundiala
Kartarpur
Mahalpur
Nakodar
Mandi
Nur
Mahal
Rurka
Kalan
Shahkot
Sultanpur
Shahkot
Samrai
13
Ludhiana
Ahmadgarh
Andlu
Do
Do
Do
Badowal
Athur
Bassian
Ayali-Kalan
Dehlon
Barundi
Gujarwal
Barewal
Guru
Sar Sadhar
Bilaspur
Jagraon
Butahri
Khanna
Bopa
Rai Kalan
Camp
PO EP 92
All

the Branch Offices mentioned in Col. 4 are authorised to make
payment to crippled and aged pensioners.

All
the Branch Offices mentioned in Col. 4 are authorised to make

payment to family pensioners.

All

Sub-Offices make payment on 1stpayment.

Kila

Raipur

Bijal

Machiwara

Bhammadi

Malerkotla

Bhari

Maland

Bija

Kalan

Man

Barsal

Mullanpur

Mandi

Bhanohar

Raekot

Chhappar

Samrala

Chhorian

Sanchwal

Dhul-Kot

Sadhar

Dhandra

Sahauli

Dewatwal

Salaudi

Fatehgarh

Sihandaud

Ghumgrana

Sawaddi

Gill

Sangowal

Hans

Sahabana

Isewal

Takhtpura

Ikolaha

Konke-Kalan

Katani-Kalan

Lakha

Lohat

Badi

Malha

Manoke

Modpur

Mohi

Nathowal

Narsrali

Narangwal

Pakhowal

Raman

Raquiba

Rumi

Rajewal

14

Narnaul

Badhra

Chirya

Chirya

Chirya

All

the Sub-Offices are authorised to make payment on 1stpayment.

Bawal

Charkhi

Dadri

Jhojhu

Kanina

Mandi

Ateli

Mahendragarh

15

Patiala

An-doh

Do

Bassi

Doraha

Mandi

Govindgarh

Nabha

Payal

Rajpura

Sainana

Sirhind

16

Rohtak

Bahadurgarh

Anwal

All

the Branch Offices mentioned in Col. 4 are authorised to make payment to crippled and aged pensioners

All

the Branch Offices mentioned in Col. 4 are authorised to make payment to family pensioners.

All

Sub-Offices are authorised to make payment on 1stpayment.

Bahadurgarh

Mandi

Assauddah

Badli

Bhatgaon
Baund
Chimni
Butana
Chhara
Beri
Dhakla
Dujjana
Farmana
Dighal
Gochhi
Ganaur
Gwalison
Gohana
Juan
Jhajjar
Jakhauli
Kahanaur
Kiloi
Kalanaur
Khungai
Kharkhauda
Kalinga
Mahm
Kharkkalan
Murthal
Khewara
Sampla
Lahli
Sonepat
Maina
madana Kala

All
the Branch Offices mentioned in Col. 4 are authorised to make
payment to crippled and aged pensioners

All
the Branch Offices mentioned in Col. 4 are authorised to make
payment to family pensioners.

All
Sub-Offices authorised to make payment on 1st payment.

Majra
Manauthi
Nigana
Rai
Talao
17
Sangrur
Amargarh
Bakhat
Garh
Do

Do
Do
Barnala
Chima
Bhadaur
Khot
Kalan
Bhawanigarh
Tallewal
Dhanaula
Uggoki
Dhuri
Chawki
Jind
Julana
Lehragga
Narwana
Safidon
Safidon
City
Shiana
Sunam
Tapa
18
Simla
Bilaspur
State
Jhanduta-E.D.
Jhanduta-E.D.
Jhanduta
Bilaspur
Berthian
Kilba-ED.
Kilba-E.D.
Berthian
Chini
Dharampur
Kotgarh
Chopal
E.D.
Ghumarwin
Kumarsain
Daghshai
Lehrisaral
Dharampur
Rampur
Ghumarwin
Solan
Jubbal
Subathu
Jotogh

Theog
Kotgarh
Kot
Knai
Kumar
Sain
Lehri
Sarai
Mashobra
Rampur
Rohru
Solan
Subathu
Theog
19
Srinagar
Anantnag
Kainah
Tral
Kainah
Tral
Anant
Nag
Bandipur
Bandipura
Baigam
Baramulla
Baramulla
Handwara
Bijhehara
Kargil
Doru
Kulgam
Drass
Kupwara
Fateh
Kadar
Leh
Gandarbal
Sopor
Habbakadal
Uri
Handwara
Karannagar
Kargil
Kashmir
University
Kulgam
Kupwara
Leh
Mohara

Mattan
Martand
Naushera
Nedous
Hotal
Pampur
Pattan
Pulwama
Qazigund
Rambagh
Safakadel
Shopian
Sonamerg
Sopor
Srinagar
Secretariat
Sri
Ranbirganj
Tangmarg
Tourist
Reception Centre

Uri
Verinag

20
Delhi
Bijwasar
Narela

21
New
Delhi
Mehrauli
Chiragh-Delhi
Chiragh-Delhi
Chiragh-Delhi

Mehrauli
Najafgarh
Mahpalpur
Mahpalpur
Mahpalpur
Najafgarh

LIST No. IV

List of Pension Pay Masters Disbursing Pensions to Defence Pensioners

1
Pension
Paymaster
Amritsar

2
Do.
Bangalore

3
Do.

Calcutta

4

Do.

Jaipur

5

Do.

Hyderabad

6

Do.

Madras

7

Do.

Secunderabad

8

Do.

Trivendrum

Appendix XI

(See Regulation 192)

Name

of the State/Territory in which pension is drawn

Frequency

of payment

Andhra

Bengal

(at Purulia Treasury only)

Bihar

Bombay

Himachal

Pradesh.

Monthly

Kerala

Madhya

Pradesh

Madras

Mysore

Orissa

(at Ganjam, Koraput and Phulbani Treasuries only)

Rajasthan

(at Barmer, Jalore, Jodhpur, Nagaur and Pali Treasuries only)

Assam

.

Andaman

and Nicobar Islands .

Bengal'(except

Purulia Treasury) . .

Delhi

Manipur

Orissa

(except Ganjam, Koraput and Phulbani Treasuries)

Quarterly

Punjab

Rajasthan

(at Ajmer, Bikaner, Churu, Ganga Nagar, Jaisalmer,

Jhalawar,

Jaipur at (Phulera Sub-Treasury only), Udaipur; and pension

payments by Pension Paymaster, Jaipur at Bharatpur, Bundi,

Dholpur, Jahazpur, Karauli, kota, Sheoganj and Tonk)

Tripura

Uttar

Pradesh

Rajasthan

(pension payments by Pension Paymaster, Jaipur at Alwar, Chirwa,

Jaipur, Jhunjhunu, Khotri, Nim-ka-Thana, Kotputli, Sikar and

Hindaun)

Half-yearly

NOTE 1.-Pension payments in the States of Punjab, Himachal Pradesh and Delhi are also made through Post Offices, quarterly in arrears.

In addition, the Post Offices in Jammu and Kashmir State are authorised to disburse pensions quarterly in arrears.

NOTE 2.-Payments to Gorkha pensioners residing in Nepal but drawing pensions from Treasuries located in the States of India may be made on yearly basis, if so desired by the pensioners.

[Ministry of Defence]

Note.-For all subsequent notifications, whether principal or amending, issued under the Navy Act, 1957 (62 of 1957

), please see Supplement to General Statutory Rules and orders, Volume III.

[Added by S.R.O 309, dated 5th September, 1974]

Related AI tags, queries and research notes

Translation